

MEMORANDA

OF

DECISIONS RENDERED DURING THE PERIOD EMBRACED IN THIS VOLUME

KATHRYN CASEY et al., Respondents, et al., Plaintiffs-Intervenors, v WHITEHOUSE ESTATES, INC., et al., Appellants. WHITEHOUSE ESTATES, INC., et al., Third-Party Plaintiffs-Appellants, v ROBERTA L. KOEPPPEL, et al., Third-Party Defendants.

Submitted September 26, 2022; decided October 20, 2022

Reported below, 197 AD3d 401.

Motion by Rent Stabilization Association of NYC, Inc., et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

In the Matter of CELINETTE H.H., Appellant, v MICHELLE R. et al., Respondents.

Submitted October 11, 2022; decided October 20, 2022

Reported below, 2022 NY Slip Op 62277(U).

Motion for poor person relief granted.

BARBARA U. COLLYER et al., Appellants, v DANIELLE M. LAVIGNE et al., Respondents, et al., Defendants.

Submitted June 21, 2022; decided October 20, 2022

Reported below, 202 AD3d 1335.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]; *Eaton v State of New York*, 76 NY2d 824 [1990]).

In the Matter of BRANDY FOWLER, Respondent, v ERIC FOWLER,
Appellant.

Submitted July 11, 2022; decided October 20, 2022

Reported below, 206 AD3d 1718.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

JAMES B. NUTTER & COMPANY, Appellant, v COUNTY OF SARA-
TOGA et al., Respondents, et al., Defendants.

Submitted October 11, 2022; decided October 20, 2022

Reported below, 195 AD3d 1359.

Motion by Pacific Legal Foundation for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

DONALD C. KARN, JR., Appellant, v STATE OF NEW YORK, Re-
spondent. (Claim No. 137016.)

Decided October 20, 2022

Appeal transferred without costs, by the Court of Appeals sua sponte, to the Appellate Division, Third Department, upon the ground that a direct appeal does not lie when questions other than the constitutional validity of a statutory provision are involved (*see* NY Const, art VI, §§ 3 [b] [2]; 5 [b]; CPLR 5601 [b] [2]).

DONALD C. KARN, JR., Appellant, v STATE OF NEW YORK, Re-
spondent. (Claim No. 137015.).

Decided October 20, 2022

Appeal transferred without costs, by the Court of Appeals sua sponte, to the Appellate Division, Third Department, upon the ground that a direct appeal does not lie when questions other than the constitutional validity of a statutory provision are involved (*see* NY Const, art VI, §§ 3 [b] [2]; 5 [b]; CPLR 5601 [b] [2]).

In the Matter of PETER LANG et al., Respondents, v BRITTANEY LANG et al., Appellants.

In the Matter of PETER LANG et al., Respondents, v BRITTANEY M. LANG Appellant, et al., Respondent.

Decided October 20, 2022

Reported below, 2022 NY Slip Op 67788(U).

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the proceedings within the meaning of the Constitution.

FAYE T. MADIGAN, Appellant, v BERKELEY CAPITAL, LLC, et al., Defendants, ROSA BRONSTEIN et al., Respondents.

Decided October 20, 2022

Reported below, 205 AD3d 900.

Appeal, insofar as taken by Faye T. Madigan from so much of the Appellate Division order as granted that branch of the motion to hold plaintiff's counsel in criminal contempt, dismissed without costs, by the Court of Appeals sua sponte, upon the ground that she is not a party aggrieved (*see* CPLR 5511); appeal otherwise dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the remaining portion of the order does not finally determine the action within the meaning of the Constitution.

ANDREW NITKEWICZ, as Trustee of the JOAN C. LUPE FAMILY TRUST and On Behalf of Himself and All Others Similarly Situated, Appellant, v LINCOLN LIFE & ANNUITY COMPANY OF NEW YORK, Respondent.

Decided October 20, 2022

See 49 F4th 721.

Certification of question by the United States Court of Appeals for the Second Circuit, pursuant to Rules of the Court of Appeals (22 NYCRR) § 500.27, accepted and the issue presented is to be considered after briefing and argument.

Concur: Acting Chief Judge CANNATARO and Judges RIVERA, GARCIA, WILSON, SINGAS and TROUTMAN.

THE PEOPLE OF THE STATE OF NEW YORK, by LETITIA JAMES, as
Attorney General of the State of New York, Respondent, v
LAURENCE G. ALLEN et al., Appellants.

Submitted July 18, 2022; decided October 20, 2022

Reported below, 198 AD3d 531.

On the Court's own motion, appeal dismissed, without costs,
upon the ground that no substantial constitutional question is
directly involved. Motion for leave to appeal denied with \$100
costs and necessary reproduction disbursements.

THE PEOPLE OF THE STATE OF NEW YORK, by LETITIA JAMES, as
Attorney General of the State of New York, Respondent, v
LAURENCE G. ALLEN et al., Appellants.

Submitted July 18, 2022; decided October 20, 2022

Reported below, 198 AD3d 531.

Motion by Limited Partners Advisory Committee for ACP X,
LP for leave to appear amicus curiae on the motion for leave to
appeal herein denied.

THE PEOPLE OF THE STATE OF NEW YORK, by LETITIA JAMES, as
Attorney General of the State of New York, Respondent, v
LAURENCE G. ALLEN et al., Appellants.

Submitted August 8, 2022; decided October 20, 2022

Reported below, 198 AD3d 531.

Motion for a stay dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RAMON
CABRERA, Appellant.

Submitted October 11, 2022; decided October 20, 2022

Reported below, 206 AD3d 479.

Motion for assignment of counsel granted and Robert S.
Dean, Center for Appellate Litigation, 120 Wall Street, 28th
Floor, New York, NY 10005, assigned as counsel to the appel-
lant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RA-
KEEM DOUGLAS, Appellant.

Decided October 20, 2022

Reported below, 193 AD3d 622.

Reargument ordered for a future Court of Appeals session.

Concur: Acting Chief Judge CANNATARO and Judges RIVERA,
GARCIA, WILSON, SINGAS and TROUTMAN.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TY-
QUAN JOHNSON, Appellant.

Submitted September 19, 2022; decided October 20, 2022

Reported below, 206 AD3d 1702.

Motion for assignment of counsel granted and Paul B. Wat-
kins, Esq., 115 North Main Street, Fairport, NY 14450 assigned
as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v FAROD
MOSLEY, Appellant. (Appeal No. 1.)

Submitted September 26, 2022; decided October 20, 2022

Reported below, 200 AD3d 1658.

Motion for assignment of counsel granted and Philip Roths-
child, Esq., Hiscock Legal Aid Society, 51 South Warren Street,
Syracuse, NY 13202 assigned as counsel to the appellant on
the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v STORM
N. RIVERA, Appellant.

Submitted October 3, 2022; decided October 20, 2022

Reported below, 206 AD3d 1356.

Motion for assignment of counsel granted and Kelly L. Egan,
Esq., The Rural Law Center of New York, 1528 Columbia
Turnpike, Castleton, NY 12033, assigned as counsel to the ap-
pellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LANCE
RODRIGUEZ, Appellant.

Submitted October 17, 2022; decided October 20, 2022

Reported below, 194 AD3d 968.

Motion by Alice Ristroph et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LANCE
RODRIGUEZ, Appellant.

Submitted October 17, 2022; decided October 20, 2022

Reported below, 194 AD3d 968.

Motion by Transportation Alternatives et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DANIEL
TALLUTO, Appellant.

Submitted October 17, 2022; decided October 20, 2022

Reported below, 201 AD3d 1333.

Motion by The Legal Aid Society et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v PETER
J. TROY, Appellant.

Submitted October 11, 2022; decided October 20, 2022

Reported below, 2021 NY Slip Op 76046(U).

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

Judge SINGAS took no part.

In the Matter of JUAN RAMIREZ, JR., Appellant, v SELECTIVE ADVISORS GROUP, LLC, Respondent.

Submitted June 27, 2022; decided October 20, 2022

Reported below, 202 AD3d 608; 2022 NY Slip Op 65796(U).

On the Court's own motion, appeal, insofar as taken from the May 2022 Appellate Division order, dismissed, without costs, upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution; appeal, insofar as taken from the February 2022 Appellate Division order, dismissed, without costs, upon the ground that no appeal lies as of right from the unanimous order of the Appellate Division absent the direct involvement of a substantial constitutional question (*see* CPLR 5601). Motion, insofar as it seeks leave to appeal from the May 2022 Appellate Division order, dismissed upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

IRENE RICHARDS, Executrix of the Estate of LOREN J. RICHARDS, Deceased, and Individually and as Surviving Spouse of LOREN J. RICHARDS, Respondent, v HEDMAN RESOURCES LIMITED, Appellant, et al., Defendants. (Action No. 1.)

DAVID D. LAURES et al., Respondents, v AIR & LIQUID SYSTEMS CORPORATION et al., Defendants, and HEDMAN RESOURCES LIMITED, Appellant. (Action No. 2.)

ROGER J. ADAMEK, Executor of the Estate of ANN M. ADAMEK, Deceased, and Individually as Surviving Spouse of ANN M. ADAMEK, Respondent, v HEDMAN RESOURCES LIMITED, Appellant, et al., Defendants. (Action No. 3.)

Decided October 20, 2022

Reported below, 204 AD3d 1407.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the actions within the meaning of the Constitution.

ROGER ROWE, Appellant, v U.S. BANK NATIONAL ASSOCIATION et al., Respondents, et al., Defendants.

Decided October 20, 2022

Reported below, 2022 NY Slip Op 68744(U); 2022 NY Slip Op 64937(U).

Appeal, insofar as deemed taken from so much of the April 2022 Appellate Division order as resolved the appeal from the May 2021 Supreme Court order, dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no appeal lies as of right from the unanimous Appellate Division order absent the direct involvement of a substantial constitutional question (*see* CPLR 5601); appeal otherwise dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the July 2022 order appealed from does not finally determine the action within the meaning of the Constitution.

BRIAN BERNARD TUOHY, Appellant, v KIYOE SATO, Respondent.
(Action No. 1.)

BRIAN BERNARD TUOHY, Appellant, v KIYOE SATO, Respondent.
(Action No. 2.)

KIYOE SATO, Appellant, v BRIAN BERNARD TUOHY, Respondent.
(Action No. 3.)

Submitted June 27, 2022; decided October 20, 2022

Reported below, 2022 NY Slip Op 66489(U); 2022 NY Slip Op 65153(U).

Motion, insofar as it seeks leave to appeal from (1) the May 2022 Appellate Division order and (2) those portions of the April 2022 Appellate Division order as dismissed appeals from (i) so much of the January 2021 order as denied the motion to vacate the September 2020 judgment, (ii) the March 2020 order, and (iii) the December 2020 order, dismissed upon the ground that such order and portions of the order do not finally determine the actions within the meaning of the Constitution; motion for leave to appeal otherwise denied. Motion for a stay dismissed as academic. Motion for ancillary relief dismissed upon the ground that this Court does not have jurisdiction to entertain the motion (*see* NY Const, art VI, § 3).

BGC PARTNERS, INC. et al., Appellants, v AVISON YOUNG (CAN-ADA), INC. et al., Respondents.

Submitted July 5, 2022; decided October 25, 2022

Reported below, 205 AD3d 603; 192 AD3d 498.

Motion, insofar as it seeks leave to appeal from the March 2021 Appellate Division order, dismissed upon the ground that it does not lie, appellants having previously moved in the Court of Appeals for leave to appeal (37 NY3d 1226 [2022]) from the same Appellate Division order from which they currently seek leave to appeal (*see Selinger v Selinger*, 90 NY2d 842 [1997]); motion, insofar as it seeks leave to appeal from the May 2022 Appellate Division order, dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

MURRAY BIRNBAUM, as Assignee, Appellant, v GOLDENBERG CONSULTING GROUP, INC., Respondent.

Submitted July 11, 2022; decided October 25, 2022

Reported below, 201 AD3d 432.

Motion for leave to appeal dismissed as untimely (*see CPLR 5513 [b]*; *Eaton v State of New York*, 76 NY2d 824 [1990]).

In the Matter of GLEN BOLOFSKY et al., Appellants, v CITY OF NEW YORK et al., Respondents.

Submitted July 11, 2022; decided October 25, 2022

Reported below, 201 AD3d 496.

Motion for leave to appeal, insofar as made by Glen Bolofsky, denied; motion for leave to appeal otherwise dismissed upon the ground that, as to the other appellants, the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution and is not an order of the type provided for in CPLR 5602 (a) (2).

BRASSTACKS ALLIANCE LLC, Respondent, v PHOEBE LEWIS et al., Appellants.

Submitted July 5, 2022; decided October 25, 2022

Reported below, 2022 NY Slip Op 66447(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of the Claim of FAUSTO DEBORA, Respondent.
LEGAL INTERPRETING SERVICES, INC., Appellant. COMMIS-
SIONER OF LABOR, Respondent.

Submitted July 25, 2022; decided October 25, 2022

Reported below, 2022 NY Slip Op 67154(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of the Estate of BEATRICE EISMAN. GAIL MORRIS,
Respondent; CLYDE EISMAN, Appellant.

Submitted July 25, 2022; decided October 25, 2022

Reported below, 2022 NY Slip Op 67530(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for a stay dismissed as academic.

In the Matter of LANDMARKWEST! INC., Appellant, v NEW YORK
CITY BOARD OF STANDARDS AND APPEALS et al., Respon-
dents.

Submitted June 13, 2022; decided October 25, 2022

Reported below, 204 AD3d 608.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order as affirmed the Supreme Court order denying the motion to renew, dismissed upon the ground that such portion of the order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of 150 E. THIRD ST LLC, Appellant, v TAYLOR RYAN et al., Respondents.

Submitted July 11, 2022; decided October 25, 2022

Reported below, 201 AD3d 582; 2022 NY Slip Op 66446(U).

Motion for leave to appeal dismissed upon the ground that this Court does not have jurisdiction to entertain this motion for leave to appeal from the order of the Appellate Division entered in this proceeding commenced in the Civil Court of the City of New York (*see* NY Const, art VI, § 3 [b] [7]; CPLR 5602 [a]).

WITOLD OPALINSKI, Appellant, v CITY OF NEW YORK et al., Respondents.

Submitted July 11, 2022; decided October 25, 2022

Reported below, 205 AD3d 917.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of SARWAT PARVAZ et al., Appellants, v PUBLIC SERVICE COMMISSION et al., Respondents.

Submitted July 11, 2022; decided October 25, 2022

Reported below, 201 AD3d 1211.

Motion by Sarwat Parvaz for reargument of motion for leave to appeal denied [*see* 38 NY3d 1029 (2022)]. Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TRAMEL CUENCAS, Appellant.

Decided October 25, 2022

Reported below, 192 AD3d 109.

Reargument ordered for a future Court of Appeals session.

Concur: Acting Chief Judge CANNATARO and Judges RIVERA, GARCIA, WILSON, SINGAS and TROUTMAN.

In the Matter of ST. LAWRENCE COUNTY et al., Appellants, v
CITY OF OGDENSBURG et al., Respondents.

Submitted September 26, 2022; decided October 25, 2022

Reported below, 208 AD3d 929.

Motion for a stay denied.

SUSAN ARANOFF, Respondent, v GERALD ARANOFF, Appellant.

Submitted October 3, 2022; decided October 27, 2022

Reported below, 2014 NY Slip Op 65643(U).

Motion for reargument of motion for leave to appeal denied
[see 38 NY3d 1169 (2022)].

WANNA BERRY-MAYES, as Administrator of the Estate of ANDRE
BERRY, Deceased, Appellant, v NEW YORK CITY HEALTH AND
HOSPITALS CORPORATION, Respondent.

Submitted August 1, 2022; decided October 27, 2022

Reported below, 198 AD3d 409; 2022 NY Slip Op 60029(U).

Motion for leave to appeal dismissed as untimely (*see* CPLR
5513 [b]).

BYUNG CHOON JOE, Appellant, v STATE OF NEW YORK, Respon-
dent.

Submitted September 19, 2022; decided October 27, 2022

Reported below, 203 AD3d 1258.

Motion by Asian American Bar Association of New York et al.
for leave to appear amici curiae on the motion for leave to ap-
peal herein granted and the proposed brief is accepted as filed.

CAROL COMMISSIONG, Appellant, v IH PRESERVATION PARTNERS
LLP, Respondent. (Index No. 570503/16.)

CAROL COMMISSIONG, Appellant, v IH PRESERVATION PARTNERS
LLC, Respondent. (Index No. 570080/20.)

Submitted July 25, 2022; decided October 27, 2022

Reported below, 2017 NY Slip Op 73930(U); 2020 NY Slip Op 73315(U).

Motion for leave to appeal dismissed upon the ground that this Court does not have jurisdiction to entertain this motion for leave to appeal from orders of the Appellate Division entered in actions commenced in the Civil Court of the City of New York (*see* NY Const, art VI, § 3 [b] [7]; CPLR 5602 [a]).

In the Matter of ROBERT L. DICKERSON, Appellant, v NEW YORK STATE DEPARTMENT OF STATE, DIVISION OF LICENSING SERVICES, et al., Respondents.

Submitted July 25, 2022; decided October 27, 2022

Reported below, 2022 NY Slip Op 66754(U).

Motion for leave to appeal dismissed upon the ground that the June 2022 order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

J.S., Respondent, v RAMAPO CENTRAL SCHOOL DISTRICT, Appellant, et al., Defendants.

Submitted July 18, 2022; decided October 27, 2022

Reported below, 205 AD3d 947.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

JANICE PATRICIA McPHAUL-GUERRIER et al., Appellants, v KERI-ANN LEPLA et al., Defendants, and ZELDA R. SIMMONS et al., Respondents.

Submitted July 11, 2022; decided October 27, 2022

Reported below, 201 AD3d 920.

Motion for reargument of motion for leave to appeal denied [*see* 38 NY3d 1028 (2022)].

In the Matter of MIRANDA HOLDINGS, INC., Respondent, v TOWN BOARD OF THE TOWN OF ORCHARD PARK et al., Appellants.

Submitted August 1, 2022; decided October 27, 2022

Reported below, 206 AD3d 1662.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of 160 EAST 84TH STREET, Appellant, v NEW YORK STATE DIVISION OF HOUSING AND COMMUNITY RENEWAL, Respondent, and SHERRY SADO, Intervenor-Respondent.

Submitted August 1, 2022; decided October 27, 2022

Reported below, 2022 NY Slip Op 66749(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

THE GAP, INC., et al., Appellants, v 44-45 BROADWAY LEASING Co. LLC, Respondent.

Submitted August 1, 2022; decided October 27, 2022

Reported below, 206 AD3d 503.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

RICHARD CAVALIER et al., Appellants, v WARREN COUNTY BOARD OF ELECTIONS et al., Respondents.

Decided October 21, 2022

Reported below, 77 Misc 3d 297.

Appeal transferred without costs, by the Court of Appeals sua sponte, to the Appellate Division, Third Department, upon the ground that a direct appeal does not lie when questions other than the constitutional validity of a statutory provision are involved (*see* NY Const, art VI, §§ 3 [b] [2]; 5 [b]; CPLR 5601 [b] [2]).

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(October 1, 2022 through October 31, 2022)

People v Abdullah	3d Dept: 206 AD3d 1340 (Broome)	denied 10/6/22 (Cannataro, Acting Ch. J.)
People v Agan	3d Dept: 207 AD3d 861 (Columbia)	denied 10/31/22 (Garcia, J.)
People v Augustine	2d Dept: 208 AD3d 678 (Dutchess)	denied 10/20/22 (Garcia, J.)
People v Baafi	App Term, 1st Dept: 75 Misc 3d 133(A) (Bronx)	denied 10/5/22 (Troutman, J.)
People v Babadzhanov	2d Dept: 204 AD3d 685 (Queens)	denied reconsideration 10/4/22 (Rivera, J.)
People v Bohn	2d Dept: 198 AD3d 669 (Queens)	granted 10/14/22 (Cannataro, Acting Ch. J.)
People v Bonich	2d Dept: 208 AD3d 679 (Queens)	denied 10/31/22 (Singas, J.)
People v Brown (Noel)	1st Dept: 204 AD3d 418 (NY)	denied ¹ 10/26/22 (Rivera, J.)
People v Brown (Wilton)	4th Dept: 207 AD3d 1085 (Monroe)	denied ² 10/13/22 (Rivera, J.)
People v Campbell	1st Dept: 206 AD3d 495 (NY)	denied 10/27/22 (Troutman, J.)
People v Chambers	App Term, 1st Dept: 75 Misc 3d 134(A) (NY)	denied 10/5/22 (Troutman, J.)
People v Crittleton	4th Dept: 202 AD3d 1488 (Ontario)	denied 10/26/22 (Garcia, J.)
People v Cuevas	2d Dept: 207 AD3d 557 (Suffolk)	denied 10/27/22 (Troutman, J.)
People v Dale	2d Dept: 207 AD3d 651 (Kings)	denied 10/4/22 (Rivera, J.)
People v Dorfils	2d Dept: 207 AD3d 654 (Kings)	denied 10/28/22 (Wilson, J.)
People v Dowling	3d Dept: 207 AD3d 799 (Albany)	denied 10/6/22 (Cannataro, Acting Ch. J.)
People v Duckett	3d Dept: 205 AD3d 1229 (Albany)	denied 10/5/22 (Troutman, J.)
People v Dunaway	2d Dept: 207 AD3d 742 (Kings)	denied 10/4/22 (Rivera, J.)
People v Fick	4th Dept: 206 AD3d 1661 (Livingston)	denied 10/19/22 (Wilson, J.)

1. Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Pastrana* (205 AD3d 461 [1st Dept 2022], *lv granted* 38 NY3d 1135 [2022]) and *People v Cabrera* (206 AD3d 479 [1st Dept 2022], *lv granted* 38 NY3d 1187 [2022]).

2. Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Pastrana* (205 AD3d 461 [1st Dept 2022], *lv granted* 38 NY3d 1135 [2022]) and *People v Cabrera* (206 AD3d 479 [1st Dept 2022], *lv granted* 38 NY3d 1187 [2022]).

People v Fox (Cody)	4th Dept: 204 AD3d 1452 (Lewis)	denied 10/26/22 (Garcia, J.) (Appeal No. 1)
People v Fox (Cody)	4th Dept: 204 AD3d 1454 (Lewis)	denied 10/26/22 (Garcia, J.) (Appeal No. 2)
People v Fox (Cody)	4th Dept: 204 AD3d 1455 (Lewis)	denied 10/26/22 (Garcia, J.) (Appeal No. 3)
People v Garcia	App Div, 1st Dept: 2022 NY Slip Op 68043(U) (Bronx)	denied 10/6/22 (Cannataro, Acting Ch. J.)
People v Gonzalez	4th Dept: 208 AD3d 981 (Monroe)	denied 10/31/22 (Singas, J.)
People v Grant	App Term, 2d Dept, 9th & 10th Jud Dists: 76 Misc 3d 128(A) (Suffolk)	denied 10/31/22 (Singas, J.)
People v Harris	3d Dept: 206 AD3d 1454 (Albany)	denied 10/21/22 (Rivera, J.)
People v Hatchett	1st Dept: 207 AD3d 401 (NY)	denied 10/22/22 (Troutman, J.)
People v Henry	4th Dept: 207 AD3d 1062 (Onondaga)	denied 10/6/22 (Cannataro, Acting Ch. J.)
People v Hernandez	2d Dept: 207 AD3d 749 (Suffolk)	denied 10/6/22 (Cannataro, Acting Ch. J.)
People v Hill	App Div, 1st Dept: 2022 NY Slip Op 66568(U) (NY)	denied reconsideration 10/26/22 (Rivera, J.)
People v Holmes (Desmond)	2d Dept: 206 AD3d 761 (Kings)	denied 10/28/22 (Wilson, J.)
People v Holmes (Justus)	4th Dept: 207 AD3d 1091 (Onondaga)	denied 10/19/22 (Wilson, J.)
People v Ingrassia	2d Dept: 207 AD3d 751 (Queens)	denied 10/5/22 (Troutman, J.)
People v Ison	App Div, 1st Dept: 2022 NY Slip Op 67120(U) (Bronx)	dismissed 10/14/22 (Cannataro, Acting Ch. J.)
People v Jacobson	App Div, 4th Dept, 6/21/22 (Ontario)	dismissed 10/4/22 (Rivera, J.)
People v Korsuntsev	2d Dept: 207 AD3d 565 (Kings)	denied 10/27/22 (Troutman, J.)
People v Labate	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 74 Misc 3d 138(A) (Queens)	granted 10/11/22 (Wilson, J.)
People v LaDuke	3d Dept: 204 AD3d 1083 (Albany)	denied reconsideration 10/14/22 (Rivera, J.)
People v Laroc	2d Dept: 203 AD3d 1176 (Queens)	denied 10/19/22 (Wilson, J.)

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People v Lester	2d Dept: 208 AD3d 684 (Queens)	denied 10/31/22 (Singas, J.)
People v Lewis	4th Dept: 208 AD3d 989 (Ontario)	denied 10/31/22 (Singas, J.)
People v Lloyd-Douglas	2d Dept: 208 AD3d 520 (Queens)	denied 10/5/22 (Troutman, J.)
People v Maldonado	1st Dept: 206 AD3d 577 (Bronx)	denied 10/19/22 (Wilson, J.)
People v Mango	2d Dept: 206 AD3d 826 (Nassau)	denied 10/25/22 (Troutman, J.)
People v Marshall	3d Dept: 206 AD3d 1377 (Broome)	denied 10/27/22 (Troutman, J.)
People v Maxey	App Div, 4th Dept, 7/7/22 (Wayne)	dismissed 10/14/22 (Rivera, J.)
People v McBride	County Ct, 8/11/22 (Onondaga)	denied 10/4/22 (Rivera, J.)
People v Medina	2d Dept: 207 AD3d 570 (Queens)	denied 10/27/22 (Troutman, J.)
People v Mitchell	App Div, 1st Dept: 2022 NY Slip Op 68106(U) (NY)	dismissed 10/11/22 (Cannataro, Acting Ch. J.)
People v Montford	3d Dept: 207 AD3d 811 (Schenectady)	denied 10/28/22 (Wilson, J.)
People v Morris	2d Dept: 207 AD3d 477 (Westchester)	denied 10/6/22 (Cannataro, Acting Ch. J.)
People v Muhammad	4th Dept: 206 AD3d 1580 (Onondaga)	granted 10/5/22 (Rivera, J.)
People v Newhall	3d Dept: 206 AD3d 1144 (Sullivan)	denied 10/28/22 (Wilson, J.)
People v Noel	3d Dept: 207 AD3d 956 (Broome)	denied 10/5/22 (Troutman, J.)
People v Omodunbi	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 76 Misc 3d 129(A) (Kings)	denied 10/31/22 (Garcia, J.)
People v Palmer	3d Dept: 207 AD3d 802 (Schenectady)	denied 10/5/22 (Troutman, J.)
People v Potter	2d Dept: 208 AD3d 802 (Orange)	denied 10/14/22 (Rivera, J.)
People v Powell	4th Dept: 200 AD3d 1745 (Orleans)	denied reconsideration 10/21/22 (Wilson, J.)
People v Prophet	4th Dept: 206 AD3d 1620 (Monroe)	denied reconsideration 10/31/22 (Garcia, J.)
People v Ramos	2d Dept: 208 AD3d 686 (Suffolk)	denied 10/31/22 (Singas, J.)

People v Rivera	4th Dept: 202 AD3d 1480 (Monroe)	granted 10/13/22 (Wilson, J.)
People v Robbins	3d Dept: 206 AD3d 1069 (Tompkins)	denied 10/22/22 (Troutman, J.)
People v Rodriguez-Rivera	4th Dept: 203 AD3d 1624 (Erie)	denied ³ 10/19/22 (Wilson, J.)
People v Rubert	3d Dept: 206 AD3d 1378 (Sullivan)	denied 10/6/22 (Cannataro, Acting Ch. J.)
People v Savran	2d Dept: 206 AD3d 764 (Nassau)	denied 10/25/22 (Troutman, J.)
People v Savransky	2d Dept: 206 AD3d 764 (Nassau)	denied 10/25/22 (Troutman, J.)
People v Shepherd	1st Dept: 205 AD3d 652 (NY)	denied 10/6/22 (Cannataro, Acting Ch. J.)
People v Sidbury	1st Dept: 206 AD3d 413 (Bronx)	granted 10/20/22 (Rivera, J.)
People v Smith	4th Dept: 207 AD3d 1066 (Monroe)	denied 10/6/22 (Cannataro, Acting Ch. J.)
People v Sosa	2d Dept: 208 AD3d 523 (Rockland)	denied 10/31/22 (Singas, J.)
People v Stallone	2d Dept: 204 AD3d 841 (Suffolk)	denied reconsideration 10/19/22 (Wilson, J.)
People v Streater	3d Dept: 207 AD3d 952 (Ulster)	denied 10/6/22 (Cannataro, Acting Ch. J.)
People v Swinton	App Div, 1st Dept: 2022 NY Slip Op 61452(U) (Bronx)	denied 10/5/22 (Troutman, J.)
People v Taylor	3d Dept: 207 AD3d 806 (Broome)	denied 10/6/22 (Cannataro, Acting Ch. J.)
People v Torres	1st Dept: 205 AD3d 524 (NY)	denied 10/6/22 (Cannataro, Acting Ch. J.)
People v Washington (Dennis)	3d Dept: 206 AD3d 1278 (Chemung)	denied 10/27/22 (Troutman, J.)
People v Washington (Michael)	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 75 Misc 3d 60 (Richmond)	denied 10/5/22 (Troutman, J.)
People v Washington (Zahmeil)	1st Dept: 206 AD3d 575 (NY)	denied 10/6/22 (Cannataro, Acting Ch. J.)
People v Whaley	4th Dept: 206 AD3d 1636 (Onondaga)	denied 10/6/22 (Cannataro, Acting Ch. J.)

3. Denied, with leave to renew within 60 days after the Court of Appeals renders a decision in *People v Cabrera* (206 AD3d 479 [1st Dept 2022]), *lv granted* 38 NY3d 1187 [2022]).

MEMORANDA

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People v White	4th Dept: 206 AD3d 1620 (Monroe)	denied reconsideration 10/31/22 (Garcia, J.)
People v Young	4th Dept: 204 AD3d 1511 (Onondaga)	denied 10/26/22 (Garcia, J.)

CONSOLIDATED RESTAURANT OPERATIONS, INC., Appellant, v
WESTPORT INSURANCE CORPORATION, Respondent.

Submitted July 25, 2022; decided November 17, 2022

Reported below, 205 AD3d 76.

Motion, insofar as it seeks leave to appeal from so much of the Appellate Division order as resolved the appeal from Supreme Court's September 2021 order, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise granted.

CONSOLIDATED RESTAURANT OPERATIONS, INC., Appellant, v
WESTPORT INSURANCE CORPORATION, Respondent.

Submitted August 1, 2022; decided November 17, 2022

Reported below, 205 AD3d 76.

Motion by Chefs' Warehouse Inc. et al. for leave to appear amici curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

CONSOLIDATED RESTAURANT OPERATIONS, INC., Appellant, v
WESTPORT INSURANCE CORPORATION, Respondent.

Submitted August 8, 2022; decided November 17, 2022

Reported below, 205 AD3d 76.

Motion by United Policyholders for leave to appear amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

In the Matter of JOHN W. EISENHAUER et al., Appellants, v WATERTOWN CITY SCHOOL DISTRICT et al., Respondents. (Appeal No. 1.)

In the Matter of JOHN W. EISENHAUER et al., Appellants, v WATERTOWN CITY SCHOOL DISTRICT et al., Respondents. (Appeal No. 2.)

Decided November 17, 2022

Reported below, 208 AD3d 952; 208 AD3d 956.

Appeal, insofar as taken from the Appellate Division order dismissing the appeal from the superseded Supreme Court judgment, dismissed without costs, by the Court of Appeals sua sponte, upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution; appeal otherwise dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of the Claim of MACK FULLER, Claimant, v NYC TRANSIT AUTHORITY, Appellant. WORKERS' COMPENSATION BOARD, Respondent.

Submitted August 15, 2022; decided November 17, 2022

Reported below, 202 AD3d 1189.

Motion by Consolidated Edison Co. of N.Y., Inc. for leave to appear amicus curiae on the motion for leave to appeal herein granted and the proposed brief is accepted as filed.

In the Matter of the Claim of MACK FULLER, Claimant, v NYC TRANSIT AUTHORITY, Appellant. WORKERS' COMPENSATION BOARD, Respondent.

Submitted August 22, 2022; decided November 17, 2022

Reported below, 202 AD3d 1189.

Motion by Wegmans Food Markets, Inc. for leave to appear amicus curiae on the motion for leave to appeal herein granted and the proposed brief is accepted as filed.

In the Matter of the Claim of CHRISTOPHER M. GABEL, Respondent. BANKERS LIFE AND CASUALTY COMPANY, Appellant. COMMISSIONER OF LABOR, Respondent.

Submitted August 8, 2022; decided November 17, 2022

Reported below, 199 AD3d 1199.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

IMELDA GARCIA, Plaintiff, v DARSHAN SHAH et al., Defendants/Third-Party Plaintiffs-Respondents. OCCIDENTAL FIRE & CASUALTY COMPANY OF NORTH CAROLINA, Third-Party Defendant-Appellant.

Submitted August 22, 2022; decided November 17, 2022

Reported below, 206 AD3d 626.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

In the Matter of the Claim of ANTHONY MARTIN, Respondent. TRUCKING SUPPORT SERVICES, LLC, Appellant. COMMISSIONER OF LABOR, Respondent. (Claim No. 1.)

In the Matter of the Claim of ANTHONY MARTIN, Respondent. DISTRIBUTION COOPERATIVE NETWORK OF NY, Appellant. COMMISSIONER OF LABOR, Respondent. (Claim No. 2.)

Submitted August 8, 2022; decided November 17, 2022

Reported below, 2022 NY Slip Op 67151(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceedings within the meaning of the Constitution.

In the Matter of 139 STATE ROUTE 208 LLC, Appellant, v ZONING BOARD OF APPEALS, TOWN OF NEW PALTZ, Respondent.

Submitted August 29, 2022; decided November 17, 2022

Motion for leave to appeal dismissed upon the ground that the Court of Appeals lacks jurisdiction to entertain it (*see* NY Const, art VI, § 3; CPLR 5602).

In the Matter of the Claim of PAUL PARATORE, Respondent.
BANKERS LIFE AND CASUALTY COMPANY, Appellant. COMMIS-
SIONER OF LABOR, Respondent.

Submitted August 8, 2022; decided November 17, 2022

Reported below, 199 AD3d 1196.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v GON-
ZALO AGUILAR, Appellant.

Submitted October 31, 2022; decided November 17, 2022

Reported below, 206 AD3d 572.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MELVIN
BAEZ, Appellant.

Submitted October 24, 2022; decided November 17, 2022

Reported below, 202 AD3d 1102.

Motion for assignment of counsel granted and Twyla Carter, Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v BAT-
TISTA GERITANO, Appellant.

Submitted November 14, 2022; decided November 17, 2022

Reported below, 158 AD3d 724.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 dismissed as untimely.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v STANLEY HOLMES, Appellant.

Submitted October 24, 2022; decided November 17, 2022

Reported below, 205 AD3d 653.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CHRISTOPHER MCGHEE, Appellant.

Submitted November 14, 2022; decided November 17, 2022

Reported below, 205 AD3d 930.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ROGELIO MENDEZ, Appellant.

Submitted August 29, 2022; decided November 17, 2022

Reported below, 207 AD3d 480.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]). Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v STEVEN SIDBURY, Appellant.

Submitted November 14, 2022; decided November 17, 2022

Reported below, 206 AD3d 413.

Motion for assignment of counsel granted and Caprice R. Jenerson, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v FRED-
DIE T. WRIGHT, Appellant.

Submitted October 31, 2022; decided November 17, 2022

Reported below, 203 AD3d 965.

Motion for assignment of counsel granted and Patricia Pazner, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

LILLIAN F. SCHWARTZ, Appellant, v A. MICHAEL NOLL et al.,
Respondents.

Submitted June 27, 2022; decided November 17, 2022

Reported below, 2022 NY Slip Op 66581(U); 2021 NY Slip Op 75698(U).

Motion for leave to appeal insofar as asserted against defendant A. Michael Noll dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution; motion for leave to appeal insofar as asserted against defendant Kenneth Knowlton dismissed upon the ground that timely substitution has not been made (*see* CPLR 1021).

TAX EQUITY NOW NY LLC, Appellant, v CITY OF NEW YORK et
al., Respondents.

Submitted November 14, 2022; decided November 17, 2022

Reported below, 182 AD3d 148.

Motion by Citizens Budget Commission for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

In the Matter of YARELIS E. ADMINISTRATION FOR CHILDREN'S
SERVICES, Respondent; FRANLY E., Appellant.

Submitted September 26, 2022; decided November 17, 2022

Reported below, 205 AD3d 1025.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of IRMA ZELIG, Respondent, v STATE OF NEW YORK
DIVISION OF HOUSING AND COMMUNITY RENEWAL et al.,
Respondents. ASPENLY COMPANY LLC, Intervenor-
Appellant.

Decided November 17, 2022

Reported below, 189 AD3d 657.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no appeal lies from an order from which appellant previously appealed (*see Matter of Zelig v State of New York Div. of Hous. & Community Renewal*, 36 NY3d 1079 [2021]).

[198 NE3d 1289, 178 NYS3d 8]

EVERHOME MORTGAGE COMPANY, as Nominee for Bank One,
N.A., Appellant, v NUCHEM ABER et al., Respondents, et
al., Defendants.

Argued October 19, 2022; decided November 17, 2022

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered June 9, 2021. The Appellate Division, with two Justices dissenting, affirmed an order of the Supreme Court, New York County (Noach Dear, J.; op 2017 NY Slip Op 33530[U] [2017]), which had (1) granted the motion of defendant Equity Recovery Corporation pursuant to CPLR 3211 (a) (5) to dismiss the amended complaint insofar as asserted against it as time-barred, to cancel the notice of pendency filed against the subject property, and for summary judgment on its counterclaim pursuant to RPAPL article 15 to cancel and discharge of record the mortgage; and (2) denied, as academic, plaintiff's cross motion, among other things, for summary judgment on the amended

complaint against defendants Nuchem Aber and Equity Recovery Corporation, to strike their answer, and for an order of reference.

Everhome Mtge. Co. v Aber, 195 AD3d 682, affirmed.

HEADNOTE

Mortgages — Foreclosure — Acceleration of Debt by Commencement of Prior Foreclosure Action

In a mortgage foreclosure action, defendant established that the statute of limitations began to run on the date when plaintiff commenced a prior action to foreclose the mortgage, which was dismissed without prejudice based on plaintiff's failure to appear for a court conference. Plaintiff did not commence the second foreclosure action until more than six years after acceleration of the debt (*see* CPLR 213 [4]). Plaintiff failed to raise an issue of fact in opposition to defendant's motion for, among other things, dismissal of the amended complaint as time-barred and for summary judgment on its counterclaim pursuant to RPAPL article 15.

APPEARANCES OF COUNSEL

McGlinchey Stafford, New York City (*Mikelle V. Bliss* and *Margaret J. Cascino* of counsel), for appellant.

Rosenberg Fortuna & Laitman, LLP, Garden City (*Anthony R. Filosa* of counsel), *Villanti Law Group PLLC*, Brooklyn (*Christopher Villanti* of counsel), and *Menashe & Lapá LLP*, Suffern (*David Lapá* of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

The Appellate Division order should be affirmed, with costs.

In this foreclosure action, defendant Equity Recovery Corporation (Equity) established that the statute of limitations began to run on April 30, 2009, when plaintiff commenced the first action to foreclose the mortgage (*see Albertina Realty Co. v Rosbro Realty Corp.*, 258 NY 472, 476 [1932]; *Freedom Mtge. Corp. v Engel*, 37 NY3d 1, 22-23 [2021]). That first action was dismissed without prejudice based on plaintiff's failure to appear for a court conference. Plaintiff did not commence this second foreclosure action until June 24, 2015, more than six years after acceleration of the debt (*see* CPLR 213 [4]). We agree with the Appellate Division that plaintiff failed to raise an issue of fact in opposition to Equity's motion for, among other things, dismissal of the amended complaint as time-barred and for summary judgment on its counterclaim pursuant to RPAPL article 15 (195 AD3d 682, 689 [2d Dept 2021]).

Acting Chief Judge CANNATARO and Judges RIVERA, GARCIA, WILSON, SINGAS and TROUTMAN concur.

Order affirmed, with costs, in a memorandum.

[198 NE3d 1290, 178 NYS3d 9]

FEDERAL NATIONAL MORTGAGE ASSOCIATION (“FANNIE MAE”), a Corporation Organized and Existing under the Laws of the United States of America, Appellant, v MAXI JEANTY, Also Known as MAXI JEANTY, JR., et al., Respondents, et al., Defendants.

Argued October 18, 2022; decided November 17, 2022

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered November 12, 2020. The Appellate Division affirmed an order of the Supreme Court, Kings County (Noach Dear, J.), which, insofar as appealed from, had (1) denied those branches of plaintiff’s motion which were for summary judgment on the complaint insofar as asserted against defendants Maxi Jeanty and Sherley Jeanty and for an order of reference; and (2) granted those defendants’ cross motion for summary judgment dismissing the complaint insofar as asserted against them as time-barred.

Federal Natl. Mtge. Assn. v Jeanty, 188 AD3d 827, reversed.

HEADNOTE

Limitation of Actions — Revival of Time-Barred Claims — Mortgage Foreclosure

In a mortgage foreclosure action, Supreme Court erred in concluding that the complaint was untimely inasmuch as defendant debtor made four payments which were effective pursuant to General Obligations Law § 17-107 (1) to make the statute of limitations begin running anew on the date of the last such payment. Plaintiff met its prima facie burden on its motion by submitting evidence that, after entering a Home Affordable Modification Trial Period Plan (the Plan), defendant debtor made a total of seven payments within a certain period, each in an amount exceeding that of the regular installment payments required under the loan documents prior to the acceleration of the debt. The first three payments were required pursuant to the Plan, but the remaining four were not. Those four payments established circumstances amounting to an absolute and unqualified acknowledgment by defendant debtor of more being due, from which a promise may be inferred to pay the remainder. In response, defendant debtor and a codefendant failed to raise a triable issue of fact. Those defendants submitted no evidence which called into question whether such a promise might be inferred from the debtor’s acknowledgement of the debt.

APPEARANCES OF COUNSEL

McCarter & English, LLP, New York City (*Adam M. Swanson* and *Jessie D. Bonaros* of counsel), for appellant.

Brian McCaffrey, Attorney at Law, P.C., Jamaica (*Brian McCaffrey* of counsel), for respondents.

Legal Services NYC, New York City (*Jacob Inwald, Christopher Newton, Rachel Geballe, Jennifer Lerman, Michael Corcoran* and *Thomas Tillona* of counsel), for Legal Services NYC and others, amici curiae.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division should be reversed, with costs, plaintiff's motion for summary judgment on the complaint as against defendants Maxi Jeanty and Sherley Jeanty and for an order of reference granted, and the Jeanty defendants' cross motion for summary judgment denied.

In this mortgage foreclosure action, plaintiff contends that Supreme Court erred in concluding that the complaint was untimely inasmuch as Maxi Jeanty (debtor) made four payments between August 2009 and March 2010 on account of the mortgage debt which were effective pursuant to General Obligations Law § 17-107 (1) to make the statute of limitations begin running anew on the date of the last such payment. We agree. Plaintiff met its prima facie burden on its motion, insofar as is relevant here, by submitting evidence that, after entering a Home Affordable Modification Trial Period Plan (the Plan), the debtor made a total of seven payments from April 2009 through March 2010, each in an amount exceeding that of the regular installment payments required under the loan documents prior to the acceleration of the debt in August 2008. The first three payments were required pursuant to the Plan, but the remaining four were not. Those four payments established circumstances amounting to "an absolute and unqualified acknowledgment by the debtor of more being due, from which a promise may be inferred to pay the remainder" (*Lew Morris Demolition Co. v Board of Educ. of City of N.Y.*, 40 NY2d 516, 521 [1976]; see General Obligations Law § 17-107 [1]). In response, the Jeanty defendants failed to raise a triable issue of fact. Those defendants submitted no evidence which calls into question whether such a promise may be inferred from the debtor's acknowledgement of the debt. Because the six-year statute of limitations began running anew in March 2010 (see

§ 17-107 [1]; CPLR 213 [4]), the action was timely commenced in March 2015.

In light of our determination, we do not address plaintiff's remaining contentions.

Acting Chief Judge CANNATARO and Judges RIVERA, GARCIA, WILSON, SINGAS and TROUTMAN concur.

Order reversed, with costs, plaintiff's motion for summary judgment on the complaint as against defendants Maxi Jeanty and Sherley Jeanty and for an order of reference granted, and the Jeanty defendants' cross motion for summary judgment denied, in a memorandum.

GREGORY CHRISTOPULOS, Respondent, v KATHERINE CHRISTOPULOS et al., Defendants, and NICHOLAS SPYREAS, Appellant.

Submitted October 11, 2022; decided November 22, 2022

Reported below, 207 AD3d 696.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

GREGORY CHRISTOPULOS, Respondent, v KATHERINE CHRISTOPULOS et al., Defendants, and NICHOLAS SPYREAS, Appellant.

Submitted October 11, 2022; decided November 22, 2022

Reported below, 207 AD3d 698.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

GREGORY CHRISTOPULOS, Respondent, v KATHERINE CHRISTOPULOS et al., Defendants, and NICHOLAS SPYREAS, Appellant.

Submitted October 11, 2022; decided November 22, 2022

Reported below, 208 AD3d 746.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

GREGORY CHRISTOPULOS, Respondent, v KATHERINE CHRISTOPULOS et al., Defendants, and NICHOLAS SPYREAS, Appellant.

Submitted October 11, 2022; decided November 22, 2022

Reported below, 208 AD3d 747.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

GREGORY CHRISTOPULOS, Respondent, v KATHERINE CHRISTOPULOS et al., Defendants, and NICHOLAS SPYREAS, Appellant.

Submitted October 31, 2022; decided November 22, 2022

Reported below, 208 AD3d 749.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

JEFFREY COLT et al., Respondents, v NEW JERSEY TRANSIT CORPORATION et al., Appellants.

Decided November 22, 2022

Reported below, 206 AD3d 126.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of CROWN CASTLE NG EAST, LLC, Respondent, v CITY OF RYE et al., Appellants.

Submitted September 6, 2022; decided November 22, 2022

Reported below, 207 AD3d 624.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the hybrid action/proceeding within the meaning of the Constitution and is not an order of the type provided for in CPLR 5602 (a) (2).

CHARLES FRITSCHLER et al., Appellants, v DRAPER MANAGEMENT, LLC, et al., Defendants, and MARK DESO et al., Respondents.

Submitted August 8, 2022; decided November 22, 2022

Reported below, 203 AD3d 623.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed the Supreme Court order staying the action, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of the Claim of VINCENT GAMBARDELLA, Respondent, v NEW YORK CITY TRANSIT AUTHORITY, Appellant. WORKERS' COMPENSATION BOARD, Respondent.

Submitted August 29, 2022; decided November 22, 2022

Reported below, 204 AD3d 1210.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of the Claim of VINCENT GAMBARDELLA, Respondent, v NEW YORK CITY TRANSIT AUTHORITY, Respondent. WORKERS' COMPENSATION BOARD, Appellant.

Submitted September 6, 2022; decided November 22, 2022

Reported below, 204 AD3d 1210.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of SUSAN KATHRYN HEFTI, Appellant, v NEW YORK STATE DIVISION OF HOUSING AND COMMUNITY RENEWAL et al., Respondents.

In the Matter of 93RD BUILDING CORP., Respondent, v NEW YORK STATE DIVISION OF HOUSING AND COMMUNITY RENEWAL et al., Respondents.

Submitted August 15, 2022; decided November 22, 2022

Reported below, 203 AD3d 605.

Motion for leave to appeal denied. Motion for a stay dismissed as academic.

YESIM IZMIRLIGIL, Appellant-Respondent, v STEVEN J. BAUM, P.C., et al., Respondents-Appellants, and THE BANK OF NEW YORK MELLON et al., Respondents, et al., Defendants.

Submitted November 2, 2022; decided November 22, 2022

Reported below, 180 AD3d 767.

Motion, insofar as it seeks leave to appeal against defendants Steven J. Baum, P.C., Steven J. Baum, Esq., Brian B. Kumiega, Esq., and Patricia M. Esdinsky, Esq., dismissed upon the ground that as to those defendants the order sought to be appealed from does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied. Cross motion for leave to appeal dismissed upon the ground that, as to the cross movants, the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

JPMORGAN CHASE BANK, NATIONAL ASSOCIATION, Respondent, v ALEX AMNER BORUKHOV, Appellant, et al., Defendants.

Submitted September 19, 2022; decided November 22, 2022

Reported below, 203 AD3d 808.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

BRIAN J. KEGELMAN et al., Appellants, v TOWN OF OTSEGO, Respondent.

Submitted September 6, 2022; decided November 22, 2022

Reported below, 203 AD3d 82.

Motion for reargument of motion for leave to appeal [*see* 38 NY3d 1124 (2022)] dismissed as untimely (*see* Rules of Ct of Appeals [22 NYCRR] § 500.24 [b]).

GREGORY D. KILPATRICK, Appellant, v ANDREW M. CUOMO Respondent.

Submitted September 19, 2022; decided November 22, 2022

Reported below, 2022 NY Slip Op 70265(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

GREGORY D. KILPATRICK, Appellant, v KATHY HOCHUL et al., Respondents.

Submitted September 12, 2022; decided November 22, 2022

Reported below, 2022 NY Slip Op 69405(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of DEBORAH KOPALD, Appellant, v NEW YORK PUBLIC SERVICE COMMISSION et al., Respondents.

Submitted August 1, 2022; decided November 22, 2022

Reported below, 204 AD3d 1108; 2022 NY Slip Op 67621(U).

Motion for leave to appeal from the June 2022 Appellate Division order dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution; motion, insofar as treated as also seeking leave to appeal from that portion of the April 2022 Appellate Division order as resolved the appeal from the January 2019 judgment, otherwise denied.

In the Matter of DEBORAH KOPALD, Appellant, v NEW YORK
PUBLIC SERVICE COMMISSION et al., Respondents.

Submitted August 15, 2022; decided November 22, 2022

Reported below, 204 AD3d 1108; 2022 NY Slip Op 67621(U).

Motion by David O. Carpenter for leave to appear amicus curiae on the motion for leave to appeal granted and the brief is accepted as filed.

OLGA MALICKI et al., Appellants, v DAVID GLADSHYEYN, Defendant,
and KWOK LENG WUN, Respondent.

Submitted September 12, 2022; decided November 22, 2022

Reported below, 2022 NY Slip Op 69465(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

NELLA MANKO, Appellant, v DAVID A. GABAY et al., Respondents. (Action Nos. 1, 2 & 3.)

NELLA MANKO, Appellant, v LAW OFFICES OF DAVID A. GABAY et al., Respondents. (Action No. 4.)

Submitted October 31, 2022; decided November 22, 2022

Reported below, 2021 NY Slip Op 72231(U).

Motion for reargument of motion for leave to appeal denied [*see* 38 NY3d 1175 (2022)]. Motion for poor person relief dismissed as academic.

Acting Chief Judge CANNATARO took no part.

NELLA MANKO, Appellant, v DAVID A. GABAY et al., Respondents, et al., Defendants.

NELLA MANKO, Appellant, v DAVID A. GABAY et al., Respondents.

Submitted November 7, 2022; decided November 22, 2022

Reported below, 2022 NY Slip Op 61368(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

Acting Chief Judge CANNATARO took no part.

NELLA MANKO, Appellant, v LENOX HILL ANESTHESIOLOGY, PLLC, et al., Respondents.

Submitted October 24, 2022; decided November 22, 2022

Reported below, 2022 NY Slip Op 63442(U).

Motion for reconsideration of this Court's September 8, 2022 dismissal order denied [*see* 38 NY3d 1158 (2022)]. Motion for poor person relief dismissed as academic.

Acting Chief Judge CANNATARO took no part.

NELLA MANKO, Appellant, v DR. DANA MANNOR et al., Respondents, et al., Defendants.

NELLA MANKO, Appellant, v DANA MANNOR et al., Respondents, et al., Defendants.

Submitted October 31, 2022; decided November 22, 2022

Reported below, 2021 NY Slip Op 66341(U); 2021 NY Slip Op 63173(U); 2019 NY Slip Op 84361(U).

Motion for reargument of motion for leave to appeal denied [*see* 38 NY3d 1176 (2022)]. Motion for poor person relief dismissed as academic.

Acting Chief Judge CANNATARO took no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LANCE RODRIGUEZ, Appellant.

Decided November 22, 2022

Reported below, 194 AD3d 968.

Reargument ordered for a future Court of Appeals session.

Concur: Acting Chief Judge CANNATARO and Judges RIVERA, GARCIA, WILSON, SINGAS and TROUTMAN

PETRÓLEOS DE VENEZUELA S.A. et al., Appellants, v MUFG
UNION BANK, N.A., et al., Respondents.

Decided November 22, 2022

See 51 F4th 456.

Certification of questions by the United States Court of Appeals for the Second Circuit, pursuant to Rules of the Court of Appeals (22 NYCRR) § 500.27, accepted and the issues presented are to be considered after briefing and argument.

Conur: Acting Chief Judge CANNATARO and Judges RIVERA, GARCIA, WILSON, SINGAS and TROUTMAN

ILANA RIGWAN, Appellant, v JORDAN NEUS, Respondent.

Submitted August 22, 2022; decided November 22, 2022

Reported below, 205 AD3d 1062.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed Supreme Court's denial of the motion to vacate, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied. Motion for ancillary relief dismissed upon the ground that this Court does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3).

In the Matter of VAPOR TECHNOLOGY ASSOCIATION et al., Appellants, v ANDREW M. CUOMO, as Governor of the State of New York, et al., Respondents.

Submitted September 19, 2022; decided November 22, 2022

Reported below, 203 AD3d 1516.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

JUNE WU, Respondent, v SABRINA BASKY INTERIOR DESIGNS et al., Appellants.

Submitted July 11, 2022; decided November 22, 2022

Reported below, 201 AD3d 541.

Motion for leave to appeal dismissed upon the ground that appellants are not parties aggrieved (*see* CPLR 5511).

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(November 1, 2022 through November 30, 2022)

People v Ali	2d Dept: 209 AD3d 758 (Queens)	denied 11/29/22 (Garcia, J.)
People v Anderson	2d Dept: 208 AD3d 507 (Westchester)	denied 11/10/22 (Troutman, J.)
People v Ashe	3d Dept: 208 AD3d 1500 (Broome)	denied 11/30/22 (Singas, J.)
People v Baez (Isaiah)	1st Dept: 209 AD3d 413 (Bronx)	denied 11/18/22 (Rivera, J.)
People v Baez (Richard)	App Div, 4th Dept, 9/6/22 (Monroe)	dismissed 11/17/22 (Singas, J.)
People v Battle	2d Dept: 209 AD3d 758 (Kings)	denied 11/30/22 (Rivera, J.)
People v Biggs	2d Dept: 208 AD3d 1340 (Queens)	denied 11/30/22 (Singas, J.)
People v Blackshear	4th Dept: 208 AD3d 1635 (Genesee)	denied 11/17/22 (Garcia, J.)
People v Box	App Div, 4th Dept, 5/2/22 (Jefferson)	denied reconsideration 11/30/22 (Cannataro, Acting Ch. J.)
People v Brooks	1st Dept: 208 AD3d 1114 (Bronx)	denied 11/18/22 (Rivera, J.)
People v Burnell	3d Dept: 208 AD3d 1554 (Clinton)	denied 11/30/22 (Singas, J.)
People v Cannon	1st Dept: 209 AD3d 476 (Bronx)	denied 11/30/22 (Cannataro, Acting Ch. J.)
People v Celestine	2d Dept: 208 AD3d 509 (Kings)	denied 11/30/22 (Troutman, J.)
People v Chavez	1st Dept: 208 AD3d 1137 (NY)	denied 11/30/22 (Cannataro, Acting Ch. J.)
People v Coleman	4th Dept: 206 AD3d 1710 (Ontario)	denied 11/22/22 (Rivera, J.)
People v Colter	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 76 Misc 3d 28 (Kings)	denied 11/30/22 (Troutman, J.)
People v Cutts	1st Dept: 209 AD3d 474 (Bronx)	denied 11/30/22 (Singas, J.)
People v Danso	2d Dept: 208 AD3d 1363 (Queens)	denied 11/18/22 (Wilson, J.)

People v Dean	County Ct, 5/24/22 (Ontario)	denied 11/30/22 (Singas, J.)
People v Dixon	App Div, 1st Dept: 2022 NY Slip Op 63530(U) (NY)	dismissed 11/30/22 (Wilson, J.)
People v Dollison	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 76 Misc 3d 132(A) (Queens)	denied 11/18/22 (Rivera, J.)
People v Driver	App Term, 2d Dept, 9th & 10th Jud Dists: 73 Misc 3d 144(A) (Orange)	denied 11/3/22 (Cannataro, Acting Ch. J.)
People v Echevarria-Acevedo	App Term, 2d Dept, 9th & 10th Jud Dists: 76 Misc 3d 128(A) (Suffolk)	denied 11/30/22 (Cannataro, Acting Ch. J.)
People v Espinosa	2d Dept: 207 AD3d 655 (Queens)	granted 11/3/22 (Rivera, J.)
People v Fields	1st Dept: 209 AD3d 444 (NY)	denied 11/18/22 (Rivera, J.)
People v Foster	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 76 Misc 3d 133(A) (Queens)	denied 11/30/22 (Singas, J.)
People v Franklin	4th Dept: 206 AD3d 1618 (Oneida)	denied reconsideration 11/3/22 (Cannataro, Acting Ch. J.) (Appeal No. 2)
People v Gabbidon	App Div, 2d Dept: 2022 NY Slip Op 63636(U) (Dutchess)	dismissed 11/30/22 (Singas, J.)
People v Goins	2d Dept: 208 AD3d 592 (Nassau)	denied 11/3/22 (Cannataro, Acting Ch. J.)
People v Gonzalez	1st Dept: 208 AD3d 1137 (Bronx)	denied 11/29/22 (Garcia, J.)
People v Granger	App Div, 2d Dept: 2022 NY Slip Op 71106(U) (Queens)	dismissed 11/30/22 (Cannataro, Acting Ch. J.)
People v Hardy	2d Dept: 208 AD3d 519 (Suffolk)	denied 11/3/22 (Cannataro, Acting Ch. J.)
People v Hatcher	App Div, 2d Dept: 2022 NY Slip Op 71427(U) (Kings)	dismissed 11/17/22 (Garcia, J.)
People v Hincapie	App Term, 1st Dept: 76 Misc 3d 130(A) (NY)	denied 11/30/22 (Wilson, J.)
People v Hinton (Robert)	App Div, 4th Dept, 9/14/22 (Herkimer)	dismissed 11/30/22 (Cannataro, Acting Ch. J.)
People v Hinton (Robert)	App Div, 4th Dept, 9/14/22 (Herkimer)	dismissed 11/30/22 (Cannataro, Acting Ch. J.)

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People v Holder	2d Dept: 208 AD3d 593 (Queens)	denied 11/30/22 (Cannataro, Acting Ch. J.)
People v Hughes	App Div, 2d Dept: 2020 NY Slip Op 75753(U) (Queens)	dismissed 11/30/22 (Troutman, J.)
People v Ison	App Div, 1st Dept: 2022 NY Slip Op 67120(U) (Bronx)	denied reconsideration 11/30/22 (Cannataro, Acting Ch. J.)
People v Jackson	App Div, 3d Dept: 2022 NY Slip Op 71878(U) (Clinton)	dismissed 11/17/22 (Singas, J.)
People v Jamison	2d Dept: 209 AD3d 761 (Queens)	denied 11/30/22 (Cannataro, Acting Ch. J.)
People v Johnson	4th Dept: 208 AD3d 1649 (Monroe)	denied 11/29/22 (Garcia, J.)
People v Jones	1st Dept: 209 AD3d 415 (Bronx)	denied 11/30/22 (Rivera, J.)
People v Karantinidis	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 73 Misc 3d 145(A) (Queens)	denied 11/29/22 (Troutman, J.)
People v Kelly	2d Dept: 208 AD3d 1250 (Nassau)	denied 11/30/22 (Rivera, J.)
People v Khalil	3d Dept: 206 AD3d 1300 (St. Lawrence)	denied reconsideration 11/30/22 (Cannataro, Acting Ch. J.)
People v Kimbrough	2d Dept: 209 AD3d 762 (Kings)	denied* 11/30/22 (Singas, J.)
People v King	2d Dept: 209 AD3d 762 (Richmond)	denied 11/21/22 (Rivera, J.)
People v Leshore	2d Dept: 208 AD3d 1364 (Queens)	denied 11/17/22 (Garcia, J.)
People v Mable	1st Dept: 209 AD3d 475 (Bronx)	denied 11/30/22 (Wilson, J.)
People v Maddox	3d Dept: 208 AD3d 1535 (Albany)	denied 11/30/22 (Wilson, J.)
People v Marinelli	2d Dept: 205 AD3d 734 (Orange)	denied 11/30/22 (Troutman, J.)
People v Mayancela	2d Dept: 207 AD3d 752 (Queens)	denied 11/30/22 (Cannataro, Acting Ch. J.)

* Denied with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Cabrera* (206 AD3d 479 [1st Dept 2022], *lv granted* 38 NY3d 1187 [2022]) and *People v Pastrana* (205 AD3d 461 [1st Dept 2022], *lv granted* 38 NY3d 1135 [2022]).

People v McGuire	4th Dept: 196 AD3d 1155 (Monroe)	denied reconsideration 11/30/22 (Cannataro, Acting Ch. J.)
People v McPherson	App Term, 1st Dept: 76 Misc 3d 130(A) (NY)	denied 11/30/22 (Singas, J.)
People v Miller	County Ct, 9/6/22 (Onondaga)	denied 11/30/22 (Singas, J.)
People v Molina	4th Dept: 208 AD3d 1641 (Monroe)	denied 11/21/22 (Rivera, J.)
People v Moore	2d Dept: 207 AD3d 755 (Westchester)	denied 11/30/22 (Cannataro, Acting Ch. J.)
People v Moreira	App Term, 1st Dept: 75 Misc 3d 133(A) (NY)	denied 11/30/22 (Wilson, J.)
People v Olivo	App Term, 1st Dept: 76 Misc 3d 130(A) (NY)	denied 11/30/22 (Troutman, J.)
People v Onwuanaibe	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 76 Misc 3d 132(A) (Queens)	denied 11/30/22 (Cannataro, Acting Ch. J.)
People v Paulino (Luis)	App Div, 1st Dept: 2022 NY Slip Op 67026(U) (Bronx)	denied 11/30/22 (Wilson, J.)
People v Paulino (Luis)	App Div, 1st Dept: 2022 NY Slip Op 70291(U) (Bronx)	dismissed 11/18/22 (Wilson, J.)
People v Ponzo	4th Dept: 208 AD3d 1600 (Jefferson)	denied 11/30/22 (Singas, J.)
People v Portillo	2d Dept: 208 AD3d 522 (Suffolk)	denied 11/18/22 (Rivera, J.)
People v Rideout	App Div, 4th Dept, 6/13/22 (Monroe)	dismissed 11/30/22 (Wilson, J.)
People v Rivera-Mateo	4th Dept: 208 AD3d 1578 (Monroe)	denied 11/29/22 (Garcia, J.)
People v Rosa	3d Dept: 206 AD3d 1253 (Albany)	denied 11/3/22 (Cannataro, Acting Ch. J.)
People v Samuel	2d Dept: 208 AD3d 1261 (Kings)	denied 11/30/22 (Singas, J.)
People v Sanchez	App Div, 2d Dept: 2022 NY Slip Op 68088(U) (Nassau)	dismissed 11/18/22 (Wilson, J.)
People v Sawyer	County Ct, 9/12/22 (Erie)	denied 11/30/22 (Cannataro, Acting Ch. J.)
People v Sherwood	3d Dept: 204 AD3d 1162 (Sullivan)	denied 11/18/22 (Rivera, J.)
People v Shirley	4th Dept: 209 AD3d 1272 (Livingston)	denied 11/21/22 (Rivera, J.)
People v Slaughter	4th Dept: 207 AD3d 1185 (Onondaga)	denied 11/9/22 (Rivera, J.)

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People v Soto	2d Dept: 209 AD3d 772 (Kings)	denied 11/21/22 (Rivera, J.)
People v Tlatelpa	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 76 Misc 3d 132(A) (Queens)	denied 11/30/22 (Rivera, J.)
People v Vasquez	App Term, 2d Dept, 9th & 10th Jud Dists: 75 Misc 3d 49 (Suffolk)	denied 11/30/22 (Singas, J.)
People v Vazquez	4th Dept: 206 AD3d 1621 (Onondaga)	denied 11/30/22 (Wilson, J.)
People v Vicks	App Div, 4th Dept: 2022 NY Slip Op 69204(U) (Oneida)	dismissed 11/30/22 (Wilson, J.)
People v Warren J.T.	2d Dept: 208 AD3d 689 (Suffolk)	denied 11/3/22 (Cannataro, Acting Ch. J.)
People v Washington	4th Dept: 208 AD3d 1649 (Monroe)	denied 11/30/22 (Wilson, J.)
People v Williams (David)	1st Dept: 203 AD3d 612 (NY)	granted 11/15/22 (Troutman, J.)
People v Williams (Jamal)	2d Dept: 208 AD3d 1263 (Kings)	denied 11/30/22 (Cannataro, Acting Ch. J.)
People v Williams (Kenneth)	App Div, 3d Dept: 2022 NY Slip Op 71282(U) (Albany)	denied 11/30/22 (Singas, J.)
People v Wright	App Term, 2d Dept, 9th & 10th Jud Dists: 75 Misc 3d 130(A) (Nassau)	denied 11/10/22 (Troutman, J.)
People v Wynn	2d Dept: 208 AD3d 693 (Westchester)	denied 11/18/22 (Rivera, J.)

**COURTNEY ANDERSON, Respondent, v COMMACK FIRE DISTRICT,
Appellant, et al., Defendants.**

Submitted September 6, 2022; decided December 13, 2022

Reported below, 195 AD3d 779.

Motion by Association of Fire Districts of the State of New York for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

In the Matter of ANONYMOUS, Appellant. GRIEVANCE COMMITTEE FOR THE SECOND, ELEVENTH, AND THIRTEENTH JUDICIAL DISTRICTS, Respondent. (App Div No. 2021-05514.)

Decided December 13, 2022

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not

finally determine the proceeding within the meaning of the Constitution.

In the Matter of ANONYMOUS, Appellant. GRIEVANCE COMMITTEE FOR THE SECOND, ELEVENTH, AND THIRTEENTH JUDICIAL DISTRICTS, Respondent. (App Div No. 2021-08435.)

Decided December 13, 2022

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

BANK OF AMERICA, N.A., Appellant, v ANDREW KESSLER, Respondent, et al., Defendants.

Submitted November 28, 2022; decided December 13, 2022

Reported below, 202 AD3d 10.

Motion by American Legal and Financial Network et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

BANK OF AMERICA, N.A., Appellant, v ANDREW KESSLER, Respondent, et al., Defendants.

Submitted December 5, 2022; decided December 13, 2022

Reported below, 202 AD3d 10.

Motion by USFN - America's Mortgage Banking Attorneys for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

In the Matter of ROSALIE CARDINALE, Appellant, v NEW YORK CITY DEPARTMENT OF EDUCATION, Respondent.

Decided December 13, 2022

Reported below, 204 AD3d 994.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of CHRISTOPHER N., Appellant, v DANIELLE P., Respondent. (Appeal No. 2.)

Submitted September 12, 2022; decided December 13, 2022

Reported below, 208 AD3d 981.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

THE ESTATE OF TAYSHANA MURPHY, Deceased, by its Administratrix, TEPHANIE HOLSTON, Appellant, v NEW YORK CITY HOUSING AUTHORITY, Respondent, et al., Defendants. (And a Third-Party Action.)

Submitted December 5, 2022; decided December 13, 2022

Reported below, 193 AD3d 503.

Motion by Defense Association of New York, Inc., et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

In the Matter of NONHUMAN RIGHTS PROJECT, INC., on Behalf of HAPPY, Appellant, v JAMES J. BREHENY et al., Respondents.

Submitted July 25, 2022; decided December 13, 2022

Reported below, 189 AD3d 583.

Motion for reargument denied [*see* 38 NY3d 555 (2022)].

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JORGE ESPINOSA, Appellant.

Submitted November 28, 2022; decided December 13, 2022

Reported below, 207 AD3d 655.

Motion for assignment of counsel granted and Patricia Pazner, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v PATRICK LABATE, Respondent.

Submitted December 5, 2022; decided December 13, 2022

Reported below, 74 Misc 3d 138(A), 2022 NY Slip Op 50309(U).

Motion for assignment of counsel granted and Patricia Pazner, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v HANZA MUHAMMAD, Appellant.

Submitted November 21, 2022; decided December 13, 2022

Reported below, 206 AD3d 1580.

Motion for assignment of counsel granted and Philip Rothschild, Esq., Hiscock Legal Aid Society, 351 South Warren Street, Syracuse, NY 13202 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MICHAEL MYERS, Appellant.

Submitted November 28, 2022; decided December 13, 2022

Reported below, 198 AD3d 1373.

Motion by New York State Association of Criminal Defense Lawyers for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DAVID
WILLIAMS, Appellant.

Submitted December 5, 2022; decided December 13, 2022

Reported below, 203 AD3d 612.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

In the Matter of STEPHANIE Q., Respondent, v WALTER R., Ap-
pellant. (And Another Related Action.)

Submitted June 21, 2022; decided December 13, 2022

Reported below, 2022 NY Slip Op 63243(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine an action or proceeding within the meaning of the Constitution.

RANDOLPH J. TAYLOR, Respondent, v ANNA TAYLOR, Appellant.

Submitted October 11, 2022; decided December 13, 2022

Reported below, 2022 NY Slip Op 70071(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of ANNA TAYLOR, Appellant, v RANDOLPH J.
TAYLOR SR., Respondent.

Submitted October 17, 2022; decided December 13, 2022

Motion for leave to appeal etc. dismissed upon the ground that the “Papers Rejection Notice” sought to be appealed from is not a judgment or an order from which an appeal to this Court may be taken (*see* CPLR 5512 [a]; 5602 [a]).

In the Matter of TOWN OF SOUTHAMPTON et al., Respondents, et al., Petitioner, v NEW YORK STATE DEPARTMENT OF ENVIRONMENTAL CONSERVATION et al., Respondents, and SAND LAND CORPORATION et al., Appellants.

Submitted December 5, 2022; decided December 13, 2022

Reported below, 194 AD3d 1310.

Motion by Sierra Club for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

Judge RIVERA took no part.

ADRIA INFRASTRUCTURE, LLC, Appellant, v HENICK-LANE, INC., Respondent, et al., Defendants.

Submitted September 6, 2022; decided December 15, 2022

Reported below, 207 AD3d 604.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of KEVIN GRIFFIN, Appellant, v DAVID M. HOOVLER, Respondent.

Submitted October 17, 2022; decided December 15, 2022

Reported below, 2021 NY Slip Op 71999(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

DONJE JONES, Appellant, v CITY OF NEW YORK et al., Respondents.

Submitted August 1, 2022; decided December 15, 2022

Reported below, 206 AD3d 635; 206 AD3d 640.

Motion, insofar as it seeks leave to appeal from the June 2022 Appellate Division order reversing the January 2020 Supreme Court order, dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

LOUIS MAZZARISI et al., Respondents, v NEW YORK SOCIETY FOR THE RELIEF OF THE RUPTURED AND CRIPPLED, MAINTAINING THE HOSPITAL FOR SPECIAL SURGERY, Appellant. (And a Third-Party Action.)

Submitted October 17, 2022; decided December 15, 2022

Reported below, 205 AD3d 424.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of the Claim of FREDERICK MITCHELL, Appellant, v WASTEQUIP, INC., et al., Respondents. WORKERS' COMPENSATION BOARD, Respondent. (And Another Related Claim.)

Submitted August 22, 2022; decided December 15, 2022

Reported below, 203 AD3d 1288.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceedings within the meaning of the Constitution.

138-140 WEST 32ND STREET ASSOCIATES LLC, Respondent, v 138-140 WEST 32ND STREET ASSOCIATES, a New York General Partnership, et al., Appellants.

Submitted October 11, 2022; decided December 15, 2022

Reported below, 204 AD3d 489.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

PAUL ORLANDO, Respondent, v COUNTY OF PUTNAM, Appellant.

Submitted October 17, 2022; decided December 15, 2022

Reported below, 208 AD3d 503.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of the Claim of LOUIZA PATSIS, Respondent.
GENEVA WORLDWIDE INC., Appellant. COMMISSIONER OF LABOR, Respondent.

Submitted October 11, 2022; decided December 15, 2022

Reported below, 204 AD3d 1278.

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the proceeding within the meaning of the Constitution.

SEFCU, Respondent, v MABATHO L. MATIMA, Appellant.

Submitted October 31, 2022; decided December 15, 2022

Reported below, 2022 NY Slip Op 71885(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for ancillary relief dismissed upon the ground that this Court does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3).

MARTHA SOUTHARD et al., Individually and as Trustees of the L. MILLER HARRIS FAMILY TRUST, Respondents, v PETER HARRIS, Individually and as Trustee of the L. MILLER HARRIS FAMILY TRUST, Appellant, and DEBRA GROSS, Respondent.

Submitted October 24, 2022; decided December 15, 2022

Reported below, 199 AD3d 1101.

Motion for reargument of motion for leave to appeal denied [*see* 38 NY3d 1179 (2022)].

In the Matter of the Claim of MARK TASSIE, Respondent. KOY-
OTE CAPITAL GROUP LLC, Appellant. COMMISSIONER OF LA-
BOR, Respondent.

Submitted September 26, 2022; decided December 15, 2022

Reported below, 204 AD3d 1276.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of JEFFREY TERBORG, Appellant, v NEW YORK
STATE DEPARTMENT OF CORRECTIONS AND COMMUNITY SU-
PERVISION, Respondent.

Submitted September 26, 2022; decided December 15, 2022

Reported below, 2022 NY Slip Op 70118(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for ancillary relief dismissed upon the ground that this Court does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3).

[200 NE3d 1019, 180 NYS3d 52]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAIME
CRUZ, Appellant.

Decided December 13, 2022

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Term of the Supreme Court in the First Judicial Department, entered October 9, 2020. The Appellate Term affirmed a judgment of the Criminal Court of the City of New York, New York County (Anne J. Swern, J.), which had convicted defendant, upon a plea of guilty, of criminal possession of a controlled substance in the seventh degree.

People v Cruz, 69 Misc 3d 131(A), 2020 NY Slip Op 51185(U), reversed.

HEADNOTE**Crimes — Controlled Substances**

The Appellate Term order affirming a judgment convicting defendant of criminal possession of a controlled substance in the seventh degree was reversed and the accusatory instrument was dismissed. As the People acknowledged, the accusatory instrument's misdemeanor count, to which defendant pleaded guilty, was facially deficient, and the People consented to dismissal of the remaining portion of the accusatory instrument.

APPEARANCES OF COUNSEL

Twyla Carter, The Legal Aid Society, New York City (*Harold V. Ferguson, Jr.*, of counsel), for appellant.

Alvin L. Bragg, Jr., District Attorney, New York City (*Alan Gadlin* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed and accusatory instrument dismissed. As the People acknowledge, the accusatory instrument's misdemeanor count, to which defendant pleaded guilty, was facially deficient (*see People v Hill*, 38 NY3d 460, 462 [2022]). The People consent to dismissal of the remaining portion of the accusatory instrument.

Concur: Acting Chief Judge CANNATARO and Judges RIVERA, GARCIA, WILSON, SINGAS and TROUTMAN.

In the Matter of CLARISSA C., Respondent, v ALEXEI G., Appellant.

Submitted October 11, 2022; decided January 5, 2023

Reported below, 208 AD3d 1089.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of DARCEL D. CLARK, Appellant, v DENIS J. BOYLE et al., Respondents.

Submitted December 19, 2022; decided January 5, 2023

Reported below, 210 AD3d 463.

Motion for leave to appeal denied. Motion for a stay dismissed as academic.

In the Matter of JOANNE FULLER-ASTARITA, Appellant, v ABA
TRANSPORTATION HOLDING COMPANY, Respondent. WORK-
ERS' COMPENSATION BOARD, Respondent.

Submitted October 31, 2022; decided January 5, 2023

Reported below, 201 AD3d 1108.

Motion for reargument of motion for leave to appeal denied
[see 38 NY3d 1171 (2022)].

LUKASZ GOTTWALD, Professionally Known as DR. LUKE, et al.,
Respondents, v KESHA ROSE SEBERT, Professionally Known
as KESHA, Appellant, et al., Defendants.

Submitted January 3, 2023; decided January 5, 2023

Reported below, 203 AD3d 488.

Motion by Legal Momentum et al. for leave to file a brief
amici curiae on the appeal herein granted and the proposed
brief is accepted as filed. The brief must be submitted in digital
format within seven days.

JAMES F. KELLY, Appellant, v STATE OF NEW YORK, Respondent.

Decided January 5, 2023

Reported below, 206 AD3d 1309.

Appeal dismissed without costs, by the Court of Appeals sua
sponte, upon the ground that no substantial constitutional
question is directly involved.

NATIONSTAR MORTGAGE, LLC, Respondent, v ARTHUR H. CHASE
III et al., Defendants, and MAURICE OPARAJI, Appellant.

Submitted October 11, 2022; decided January 5, 2023

Reported below, 208 AD3d 790.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution. Motion for a
stay dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MATTHEW CORR, Appellant.

Submitted September 12, 2022; decided January 5, 2023

Reported below, 208 AD3d 136.

Motion by Restorative Action Alliance, Inc. for leave to appear amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RICHARD E. DOBSON, Appellant.

Submitted January 3, 2023; decided January 5, 2023

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v YOSELYN ORTEGA, Appellant.

Submitted January 3, 2023; decided January 5, 2023

Reported below, 202 AD3d 489.

Motion by The Innocence Project for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSE M. RIVERA, Appellant.

Submitted January 3, 2023; decided January 5, 2023

Reported below, 202 AD3d 1480.

Motion for assignment of counsel granted and Julie A. Cianca, Esq., Monroe County Public Defender, 10 N. Fitzhugh Street, Rochester, NY 14614 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SEBASTIAN TELFAIR, Appellant.

Submitted December 19, 2022; decided January 5, 2023

Reported below, 2021 NY Slip Op 76588(U).

Motion, pursuant to CPL 460.60 (3), to extend the time for argument or submission of the appeal and to continue the stay granted and stay continued pending determination of the appeal.

CHRISTINA SELVAGGIO, Appellant, v CITY OF NEW YORK, Respondent, et al., Defendants. MILBER MAKRIS PLOUSADO & SEIDEN, Nonparty Respondent.

Submitted October 17, 2022; decided January 5, 2023

Reported below, 2022 NY Slip Op 70924(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of TERRENCE STEVENS et al., Respondents, v NEW YORK STATE DIVISION OF CRIMINAL JUSTICE SERVICES et al., Appellants.

Submitted December 12, 2022; decided January 5, 2023

Reported below, 206 AD3d 88.

Motion by District Attorneys Association of the State of New York, Inc. for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

In the Matter of TCR SPORTS BROADCASTING HOLDING, LLP, et al., Appellants, v WN PARTNER, LLC, et al., Respondents.

Submitted January 3, 2023; decided January 5, 2023

Reported below, 187 AD3d 623.

Motion by Kenneth R. Feinberg for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

In the Matter of TCR SPORTS BROADCASTING HOLDING, LLP, et al., Appellants, v WN PARTNER, LLC, et al., Respondents.

Submitted January 3, 2023; decided January 5, 2023

Reported below, 187 AD3d 623.

Motion by Mayor of Baltimore et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

WELLS FARGO BANK, N.A., as Trustee for the MERRILL LYNCH MORTGAGE INVESTORS TRUST LOAN, ASSET-BACKED CERTIFICATES, SERIES 2004-WMC4 UNDER THE MORTGAGE POOLING AND SERVICING AGREEMENT DATED AS OF JUNE 1, 2004, Respondent, v CAROL HAYDEN, Appellant, et al., Defendants.

Submitted August 29, 2022; decided January 5, 2023

Reported below, 202 AD3d 459.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of AARON MANOR REHABILITATION AND NURSING CENTER, LLC, et al., Appellants, v HOWARD A. ZUCKER, as Commissioner of Health, et al., Respondents.

Decided January 10, 2023

Reported below, 205 AD3d 1193.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

HERMAN BRETTLER, Trustee of the ZUPNICK FAMILY TRUST 2008 A, Appellant, v ALLIANZ LIFE INSURANCE COMPANY OF NORTH AMERICA, Respondent.

Decided January 10, 2023

See 57 F4th 57.

Certification of question by the United States Court of Appeals for the Second Circuit, pursuant to Rules of the Court of Appeals (22 NYCRR) § 500.27, accepted and the issues presented are to be considered after briefing and argument.

Concur: Acting Chief Judge CANNATARO and Judges RIVERA, GARCIA, WILSON, SINGAS and TROUTMAN.

In the Matter of BROOKDALE PHYSICIANS' DIALYSIS ASSOCIATES, INC., Formerly Known as CHURCH AVENUE ASSOCIATES, INC., Respondent, et al., Petitioner, v DEPARTMENT OF FINANCE OF THE CITY OF NEW YORK, Appellant.

Decided January 10, 2023

Reported below, 178 AD3d 443.

Reargument ordered for a future Court of Appeals session.

Concur: Acting Chief Judge CANNATARO and Judges RIVERA, GARCIA, WILSON, SINGAS and TROUTMAN.

CITIBANK, N.A., Respondent, v ELIZABETH I. CONTI-SCHEURER, Appellant, et al., Defendants.

Submitted October 11, 2022; decided January 10, 2023

Reported below, 172 AD3d 17.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

NELLA MANKO, Appellant, v DR. DANA MANNOR et al., Respondents, et al., Defendants.

NELLA MANKO, Appellant, v DANA MANNOR et al., Respondents, et al., Defendants.

Submitted December 5, 2022; decided January 10, 2023

Reported below, 2019 NY Slip Op 84361(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the actions within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

Acting Chief Judge CANNATARO took no part.

In the Matter of GEORGE D. MAZIARZ, Appellant, v WESTERN
REGIONAL OFF-TRACK BETTING CORPORATION, Respondent.

Submitted August 22, 2022; decided January 10, 2023

Reported below, 207 AD3d 1065.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of THE NORTH FLATS LLC, Appellant, v NEW
YORK CITY LOFT BOARD et al., Respondents.

Submitted November 7, 2022; decided January 10, 2023

Reported below, 2022 NY Slip Op 72385(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution and is not an order of the type provided for in CPLR 5602 (a) (2).

SUZANNE P., as Administratrix of the Estate of MITCHELL P.,
Deceased, Appellant, v JOINT BOARD OF DIRECTORS OF ERIE-
WYOMING COUNTY SOIL CONSERVATION DISTRICT, Also
Known as THE ERIE-WYOMING JOINT WATERSHED BOARD, et
al., Respondents.

Decided January 10, 2023

Reported below, 194 AD3d 1483.

Reargument ordered for a future Court of Appeals session.

Concur: Acting Chief Judge CANNATARO and Judges RIVERA,
GARCIA, WILSON, SINGAS and TROUTMAN.

US BANK, NATIONAL ASSOCIATION, Respondent, v ALABA RUFAL,
Appellant, et al., Defendants.

Submitted November 14, 2022; decided January 10, 2023

Reported below, 202 AD3d 719; 202 AD3d 716.

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution.

[201 NE3d 802, 181 NYS3d 185]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v REBECCA
RUIZ, Respondent.

Argued November 17, 2022; decided December 15, 2022

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order of that Court, entered August 26, 2021. The Appellate Division (1) reversed, on the law, a judgment of the Chautauqua County Court (David W. Foley, J.) which had convicted defendant, upon a jury verdict, of criminal possession of a weapon in the second degree; and (2) granted a new trial on the charge of criminal possession of a weapon in the second degree.

People v Ruiz, 197 AD3d 915, reversed.

HEADNOTE

Crimes — Possession of Weapon — Jury Charge on Temporary and Lawful Possession Not Warranted

Defendant, who was charged with criminal possession of a weapon in the second degree and related crimes and testified at trial that she shot and killed her boyfriend through the metal, windowless door to her residence in the mistaken belief that she was shooting at her estranged husband, was not entitled to a jury charge on the defense of temporary and lawful possession. A defendant is entitled to such charge when there is evidence presented at trial showing a legal excuse for possession as well as facts tending to establish that, once possession has been obtained, the weapon had not been used in a dangerous manner. Viewing the evidence adduced at trial in the light most favorable to defendant, there was no reasonable view of the evidence that would support a finding of the tendered defense of temporary and lawful possession. Defendant used the weapon in a dangerous manner. Although no single fact was dispositive, she fired the gun blindly through a closed, windowless door, endangering anyone who might have been on the other side, striking and killing the victim, and creating a risk that the bullet would ricochet off the metal door and potentially injure her children who were inside her residence.

APPEARANCES OF COUNSEL

Jason L. Schmidt, District Attorney, Mayville (*Andrew M. Molitor* of counsel), for appellant.

David C. Schopp, Legal Aid Bureau of Buffalo, Inc., Buffalo
(*John J. Morrissey* and *Jane I. Yoon* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed and the case remitted to the Appellate Division for a determination of the facts and issues raised but not determined on appeal to that Court (CPL 470.25 [2] [d]; 470.40 [2] [b]). Defendant killed the victim, her boyfriend, by firing a single shot from a semiautomatic pistol through the metal, windowless door to her residence. She was charged in an indictment with murder in the second degree, criminal possession of a weapon in the second degree, and tampering with physical evidence.

Defendant testified at trial that she shot the victim in the mistaken belief that she was shooting at her estranged husband, who had previously broken in and attacked her in the home. On the night in question, the victim warned her not to open the door for anyone before leaving her at home with her children, who ranged in age from four to 13. Shortly thereafter, defendant was startled awake by someone pounding on her front door, identifying himself as her husband and yelling for her to open the door. Defendant testified that while searching for something to use to defend herself, she found a gun in a kitchen drawer that the victim had left behind, unbeknownst to her. She told the person at the door to leave or she would shoot. When the person nevertheless continued trying to get inside the house, defendant fired a single shot at the door.

The victim's friend then yelled, from outside, that defendant shot the victim. She ran out of the house, dropped the gun on the ground, and called 911 as she tried to help the victim. Two passersby testified that they were walking directly across the street from defendant's house, heard the gun shot and saw the victim stumble backwards. The witnesses heard defendant tell the victim that she did not mean to shoot him and thought he was her husband. Responding police officers also heard defendant, who was distraught, state that she shot the victim because she thought he was her husband. Defendant told police that she threw the gun "over there somewhere" and suggested that her cousin took it. Police did not recover the gun.

Defendant requested an instruction on temporary and lawful possession of a weapon, arguing that she had a right to possess

the weapon at the time of the shooting because she believed that her life and the lives of her children were under threat. The People responded that the charge was unwarranted because there was no legal excuse for possessing the weapon and it was used in a dangerous manner to kill the victim. County Court agreed with the People and denied the request. The court charged justification in connection with the murder charge, and the jury acquitted defendant of murder in the second degree and tampering with physical evidence, but found her guilty of criminal possession of a weapon in the second degree.

The Appellate Division, with one Justice dissenting, reversed and granted defendant a new trial on the weapon possession charge, concluding that County Court erred in denying defendant's request to instruct the jury on the defense of temporary and lawful possession of a firearm (197 AD3d 915 [4th Dept 2021]). The Court concluded that the undisputed evidence that defendant shot and killed the victim did not necessarily bar the instruction because a justification defense to the homicide charge was submitted to the jury. The dissenting Justice would have affirmed the conviction on the ground that, among other things, the defense is unavailable where the evidence demonstrates that the defendant used the weapon in a dangerous manner and, here, defendant did so by using the subject weapon to shoot through a closed door, thereby killing the person who was on the other side (*see id.* at 919 [NeMoyer, J., dissenting]). The dissenting Justice granted the People leave to appeal.

“A trial court must instruct the jury on ‘the material legal principles applicable to the particular case, and, so far as practicable, explain the application of the law to the facts’” (*People v J.L.*, 36 NY3d 112, 119 [2020], quoting CPL 300.10 [2]). It is well settled that “the jury must be instructed on all claimed defenses which are supported by a *reasonable view* of the evidence—not by any view of the evidence, however artificial or irrational” (*see People v Butts*, 72 NY2d 746, 750 [1988]). A requested “‘charge must be given if there is evidence reasonably supportive of the defense, even if there is other evidence which, if credited, would negate it’” (*J.L.*, 36 NY3d at 119, quoting *People v McKenzie*, 19 NY3d 463, 466 [2012]).

A defendant is entitled to a jury charge on the defense of temporary and lawful possession when there is evidence presented at trial “‘showing a legal excuse for . . . possession as

well as facts tending to establish that, once possession has been obtained, the weapon had not been used in a dangerous manner’ ” (*People v Williams*, 36 NY3d 156, 161 [2020], quoting *People v Williams*, 50 NY2d 1043, 1044-1045 [1980]; accord *People v Banks*, 76 NY2d 799, 801 [1990]). Here, defendant used the weapon in a dangerous manner (*see Williams*, 50 NY2d at 1044-1045). Although no single fact is dispositive, she fired the gun blindly through a closed, windowless door, endangering anyone who might have been on the other side, striking and killing the victim, and creating a risk that the bullet would ricochet off the metal door and potentially injure her children.

Viewing the evidence adduced at trial in the light most favorable to defendant, as we must (*see Banks*, 76 NY2d at 800), we conclude that “ ‘no reasonable view of the evidence would support a finding of the tendered defense’ ” of temporary and lawful possession and, thus, County Court was “ ‘under no obligation to submit the question to the jury’ ” (*Williams*, 36 NY3d at 160, quoting *People v Watts*, 57 NY2d 299, 301 [1982]). Inasmuch as defendant’s actions were reckless and dangerous, she was not entitled to the temporary and lawful possession charge. Defendant’s remaining arguments are academic.

Order reversed and case remitted to the Appellate Division, Fourth Department, for a determination of the facts and issues raised but not determined on appeal to that Court (CPL 470.25 [2] [d]; 470.40 [2] [b]), in a memorandum.

Acting Chief Judge CANNATARO and Judges RIVERA, GARCIA, WILSON, SINGAS and TROUTMAN concur.

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(December 1, 2022 through December 31, 2022)

<i>People v Alexander</i>	3d Dept: 207 AD3d 878 (Schenectady)	denied 12/5/22 (Troutman, J.)
<i>People v Allen</i>	4th Dept: 209 AD3d 1307 (Oswego)	denied 12/30/22 (Singas, J.)
<i>People v Barkat</i>	App Term, 1st Dept: 76 Misc 3d 137(A) (NY)	denied 12/30/22 (Singas, J.)
<i>People v Betances</i>	1st Dept: 209 AD3d 596 (Bronx)	denied 12/14/22 (Cannataro, Acting Ch. J.)
<i>People v Blue</i>	1st Dept: 202 AD3d 546 (NY)	granted 12/21/22 (Wilson, J.)

MEMORANDA

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People v Brown	4th Dept: 204 AD3d 1390 (Erie)	denied 12/21/22 (Wilson, J.)
People v Buntley	4th Dept: 208 AD3d 1630 (Monroe)	denied 12/27/22 (Rivera, J.)
People v Carzoglio	2d Dept: 198 AD3d 810 (Westchester)	denied 12/13/22 (Troutman, J.)
People v Castro	4th Dept: 207 AD3d 1027 (Oswego)	denied 12/21/22 (Wilson, J.)
People v Cosby	App Div, 4th Dept, 9/26/22 (Onondaga)	dismissed 12/27/22 (Garcia, J.)
People v Creecy	App Term, 2d Dept, 9th & 10th Jud Dists: 77 Misc 3d 127(A) (Westchester)	denied 12/30/22 (Singas, J.)
People v Cruz	2d Dept: 210 AD3d 903 (Kings)	denied 12/30/22 (Singas, J.)
People v Cuenca	2d Dept: 208 AD3d 1363 (Queens)	denied 12/21/22 (Garcia, J.)
People v Davilmar	2d Dept: 208 AD3d 681 (Kings)	denied 12/14/22 (Cannataro, Acting Ch. J.)
People v DeJesus	3d Dept: 210 AD3d 1195 (Albany)	denied 12/27/22 (Garcia, J.)
People v Del Valle	1st Dept: 209 AD3d 502 (Bronx)	denied 12/14/22 (Cannataro, Acting Ch. J.)
People v Diallo	App Div, 1st Dept: 2022 NY Slip Op 72395(U) (NY)	denied 12/14/22 (Cannataro, Acting Ch. J.)
People v Dixon	1st Dept: 209 AD3d 595 (NY)	denied 12/14/22 (Cannataro, Acting Ch. J.)
People v Doe	4th Dept: 208 AD3d 1597 (Monroe)	denied 12/14/22 (Cannataro, Acting Ch. J.)
People v Dougal	County Ct, 5/10/22 (Saratoga)	denied reconsideration 12/14/22 (Cannataro, Acting Ch. J.)
People v Drummond	1st Dept: 209 AD3d 543 (Bronx)	denied 12/21/22 (Wilson, J.)
People v Fabien	1st Dept: 206 AD3d 436 (NY)	denied ¹ 12/28/22 (Garcia, J.)
People v Farrell	4th Dept: 208 AD3d 1577 (Erie)	denied 12/15/22 (Garcia, J.)
People v Fleming	1st Dept: 209 AD3d 475 (Bronx)	denied 12/15/22 (Rivera, J.)
People v Folk	1st Dept: 209 AD3d 590 (NY)	denied 12/2/22 (Rivera, J.)

1. Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Pastrana* (205 AD3d 461 [1st Dept 2022], *lv granted* 38 NY3d 1135 [2022]).

People v Franklin	2d Dept: 207 AD3d 476 (Queens)	granted 12/30/22 (Singas, J.)
People v Funderburk	2d Dept: 208 AD3d 1250 (Kings)	denied 12/21/22 (Garcia, J.)
People v Gainer	2d Dept: 207 AD3d 745 (Kings)	denied 12/12/22 (Troutman, J.)
People v Garcia	1st Dept: 205 AD3d 432 (NY)	granted 12/9/22 (Wilson, J.)
People v Gough	2d Dept: 209 AD3d 667 (Queens)	denied 12/21/22 (Garcia, J.)
People v Gutierrez	2d Dept: 209 AD3d 669 (Richmond)	denied 12/30/22 (Singas, J.)
People v Harvey	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 76 Misc 3d 134(A) (Kings)	denied 12/2/22 (Rivera, J.)
People v Hay	2d Dept: 207 AD3d 748 (Kings)	denied 12/16/22 (Troutman, J.)
People v Hill	4th Dept: 209 AD3d 1262 (Jefferson)	denied 12/30/22 (Singas, J.)
People v Jalloh	App Term, 1st Dept: 76 Misc 3d 137(A) (NY)	denied 12/30/22 (Singas, J.)
People v Jones (Frederick)	1st Dept: 209 AD3d 591 (Bronx)	denied 12/21/22 (Garcia, J.)
People v Jones (Jamill)	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 77 Misc 3d 5 (Queens)	denied 12/28/22 (Rivera, J.)
People v Jones (Jerry)	4th Dept: 208 AD3d 1632 (Monroe)	denied 12/14/22 (Cannataro, Acting Ch. J.)
People v Jones (Kurt)	1st Dept: 208 AD3d 1135 (Bronx)	denied 12/14/22 (Cannataro, Acting Ch. J.)
People v Keitt	1st Dept: 208 AD3d 1108 (NY)	denied 12/21/22 (Garcia, J.)
People v Keller	2d Dept: 207 AD3d 564 (Suffolk)	denied 12/14/22 (Cannataro, Acting Ch. J.)
People v Kenney	4th Dept: 209 AD3d 1301 (Herkimer)	denied 12/22/22 (Singas, J.)
People v King	1st Dept: 206 AD3d 499 (NY)	denied 12/14/22 (Cannataro, Acting Ch. J.)
People v Kirby	App Term, 1st Dept: 76 Misc 3d 138(A) (NY)	denied 12/28/22 (Garcia, J.)
People v Kuforiji	1st Dept: 209 AD3d 499 (NY)	denied ² 12/21/22 (Garcia, J.)
People v Lee	App Term, 2d Dept, 9th & 10th Jud Dists: 77 Misc 3d 127(A) (Nassau)	denied 12/28/22 (Rivera, J.)
People v Lopez	2d Dept: 209 AD3d 763 (Nassau)	denied 12/14/22 (Rivera, J.)

2. Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Pastrana* (205 AD3d 461 [1st Dept 2022], *lv granted* 38 NY3d 1135 [2022]).

MEMORANDA

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People v Lopez-Contreras	4th Dept: 208 AD3d 1583 (Monroe) (Efrain)	denied 12/14/22 (Cannataro, Acting Ch. J.) (Appeal No. 1)
People v Lopez-Contreras	4th Dept: 208 AD3d 1584 (Monroe) (Efrain)	denied 12/14/22 (Cannataro, Acting Ch. J.) (Appeal No. 2)
People v Madison	2d Dept: 208 AD3d 1253 (Dutchess)	denied 12/5/22 (Garcia, J.)
People v McGill	3d Dept: 207 AD3d 996 (Rensselaer)	denied 12/21/22 (Wilson, J.)
People v McKenzie	4th Dept: 207 AD3d 1070 (Monroe)	denied 12/8/22 (Wilson, J.)
People v Melendez	1st Dept: 209 AD3d 566 (NY)	denied 12/16/22 (Singas, J.)
People v Merchant	1st Dept: 209 AD3d 453 (Bronx)	denied 12/30/22 (Singas, J.)
People v Miranda	2d Dept: 210 AD3d 803 (Queens)	denied 12/28/22 (Garcia, J.)
People v Mislá	2d Dept: 207 AD3d 660 (Queens)	denied 12/14/22 (Cannataro, Acting Ch. J.)
People v Moore	1st Dept: 209 AD3d 446 (NY)	denied 12/21/22 (Garcia, J.)
People v Muir	2d Dept: 209 AD3d 676 (Kings)	denied 12/22/22 (Garcia, J.)
People v Naseem J.	1st Dept: 209 AD3d 543 (Bronx)	denied 12/21/22 (Garcia, J.)
People v Neischer	2d Dept: 210 AD3d 804 (Richmond)	denied 12/14/22 (Rivera, J.)
People v Novas	1st Dept: 204 AD3d 613 (NY)	granted 12/21/22 (Wilson, J.)
People v Olave	1st Dept: 210 AD3d 439 (NY)	denied 12/16/22 (Singas, J.)
People v Oliver	4th Dept: 178 AD3d 1463 (Seneca)	denied 12/22/22 (Garcia, J.)
People v Park	1st Dept: 209 AD3d 568 (NY)	denied 12/14/22 (Rivera, J.)
People v Picon	1st Dept: 209 AD3d 506 (Bronx)	denied 12/14/22 (Rivera, J.)
People v Reid (Jason)	1st Dept: 209 AD3d 502 (Bronx)	denied 12/14/22 (Cannataro, Acting Ch. J.)
People v Reid (Joseph)	App Term, 1st Dept: 76 Misc 3d 136(A) (NY)	denied 12/19/22 (Garcia, J.)
People v Reneau	2d Dept: 209 AD3d 677 (Kings)	denied 12/14/22 (Cannataro, Acting Ch. J.)
People v Reyes	2d Dept: 209 AD3d 771 (Kings)	denied 12/14/22 (Cannataro, Acting Ch. J.)

People v Rivera	1st Dept: 209 AD3d 502 (NY)	denied 12/30/22 (Singas, J.)
People v Robinson	1st Dept: 209 AD3d 505 (NY)	denied 12/14/22 (Rivera, J.)
People v Ruckdeschel	4th Dept: 208 AD3d 1597 (Monroe)	denied 12/14/22 (Cannataro, Acting Ch. J.)
People v Salcedo	2d Dept: 209 AD3d 678 (Queens)	denied 12/14/22 (Rivera, J.)
People v Samms	2d Dept: 208 AD3d 1259 (Kings)	denied 12/16/22 (Singas, J.)
People v Santana	1st Dept: 209 AD3d 566 (NY)	denied 12/30/22 (Rivera, J.)
People v Sherman	County Ct, 10/26/22 (Onondaga)	denied 12/30/22 (Singas, J.)
People v Sloley	App Div, 3d Dept: 2022 NY Slip Op 66183(U) (Greene)	denied 12/21/22 (Wilson, J.)
People v Stone	App Div, 4th Dept, 9/26/22 (Erie)	dismissed 12/14/22 (Rivera, J.)
People v Thomas	2d Dept: 206 AD3d 676 (Kings)	denied 12/21/22 (Wilson, J.)
People v Treistman	County Ct, 10/25/22 (Ulster)	denied 12/14/22 (Rivera, J.)
People v Trini	3d Dept: 207 AD3d 878 (Schenectady)	denied 12/5/22 (Troutman, J.)
People v Vanderhall	2d Dept: 209 AD3d 876 (Suffolk)	denied 12/14/22 (Rivera, J.)
People v Velett	3d Dept: 205 AD3d 1143 (Fulton)	denied 12/21/22 (Wilson, J.)
People v Whyte	2d Dept: 208 AD3d 1189 (Queens)	dismissed 12/30/22 (Wilson, J.)
People v Williams	County Ct, 10/4/22 (Genesee)	denied 12/14/22 (Cannataro, Acting Ch. J.)
People v Young (Brendon)	4th Dept: 208 AD3d 1577 (Monroe)	denied 12/14/22 (Rivera, J.)
People v Young (Jamal)	4th Dept: 209 AD3d 1278 (Erie)	denied 12/30/22 (Singas, J.)

[201 NE3d 1292, 181 NYS3d 519]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v MICHAEL
HEISERMAN, Respondent.

Decided December 13, 2022

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division
of the Supreme Court in the Third Judicial Department, from

an order of that Court, entered April 21, 2022. The Appellate Division (1) reversed, on the law, a judgment of the Franklin County Court (Derek Champagne, J.), which had convicted defendant, upon a jury verdict, of assault in the second degree; and (2) remitted the matter to the Franklin County Court for a new trial.

People v Heiserman, 204 AD3d 1249, reversed.

HEADNOTE

Crimes — Justification — Police Use of Pepper Spray Not Excessive or Otherwise Unlawful

In the second-degree assault prosecution of defendant for striking a police sergeant after being pepper sprayed for refusing to remove his footwear while being processed for an arrest at a county jail, the trial court did not err in refusing to grant defendant's request for a justification charge. Viewing the evidence in the light most favorable to defendant, there was no reasonable view of the evidence that the sergeant's use of pepper spray was excessive or otherwise unlawful. The trial evidence was that defendant was given a lawful command to remove his footwear, that he was given that verbal command several times yet persisted in his refusal, and that he was specifically warned that he would be pepper sprayed if he did not comply. The officers further testified that the use of pepper spray was considered a "minimal" use of force compared to using "hands on" force to remove the footwear. Defendant's contention that the force exerted was unlawful because the sergeant's use of pepper spray was inconsistent with facility policy was without merit.

APPEARANCES OF COUNSEL

Jonathan J. Miller, Acting District Attorney, Malone (Jennifer M. Hollis of counsel), for appellant.

G. Scott Walling, Slingerlands, for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed and the case remitted to the Appellate Division for consideration of the facts and issues raised but not determined on the appeal to that Court.

Defendant was charged with assault in the second degree (Penal Law § 120.05 [7]) based on allegations that while being processed for an arrest at the Franklin County Jail, he struck a police sergeant. The People's witnesses testified at trial that after being frisked, defendant was directed to remove his footwear, a command given to all those in custody at the jail so that footwear could be searched for weapons and contraband. Defendant refused to remove his footwear despite multiple

orders to do so. After the sergeant called for backup, he specifically warned defendant that he would pepper spray defendant if defendant did not remove his footwear. Defendant continued to refuse, and the sergeant sprayed him in the face. Five seconds after he was sprayed, defendant charged at the sergeant and punched him in the head, after which defendant was subdued by other officers. Video surveillance of the incident corroborated the testimony of the officers. Defendant was convicted as charged.

On appeal, the Appellate Division reversed, holding that the trial court erred in refusing to grant defendant's request for a justification charge (204 AD3d 1249 [3d Dept 2022]). The Appellate Division concluded that, viewing the evidence in the light most favorable to defendant, there was a "reasonable view of the evidence that the use of the pepper spray constituted excessive force in this scenario" (*id.* at 1251). Two Justices dissented, and a dissenting Justice granted the People leave to appeal to this Court.

"A trial court must charge the factfinder on the defense of justification 'whenever there is evidence to support it' " (*People v Petty*, 7 NY3d 277, 284 [2006], quoting *People v McManus*, 67 NY2d 541, 549 [1986]). The court must view the evidence in the light most favorable to the defendant, and if there is "any reasonable view of the evidence [that] would permit the factfinder to conclude that the defendant's conduct was justified," the charge must be given (*Petty*, 7 NY3d at 284). "As a corollary, when no reasonable view of the evidence would support a finding of [justification], the court is under no obligation to submit the question to the jury" (*People v Watts*, 57 NY2d 299, 301 [1982]).

"[A] citizen may use reasonable force in self-defense where the force exerted by the police . . . is excessive" and therefore unlawful (*People v Stevenson*, 31 NY2d 108, 112 [1972]; see Penal Law § 35.15 [1]). Here, however, viewing the evidence in the light most favorable to defendant, there is no reasonable view of the evidence that the sergeant's use of pepper spray was excessive or otherwise unlawful. The trial evidence was that defendant was given a lawful command to remove his footwear, that he was given that verbal command several times yet persisted in his refusal, and that he was specifically warned that he would be pepper sprayed if he did not comply. The officers further testified that the use of pepper spray was considered a "minimal" use of force compared to using "hands

on” force to remove the footwear. Defendant’s contention that the force exerted was unlawful because the sergeant’s use of pepper spray was inconsistent with facility policy is without merit. No reasonable factfinder could conclude on this record that defendant reasonably believed that the use of force was necessary to defend himself from the use of unlawful physical force (*see* Penal Law § 35.15; *cf. Stevenson*, 31 NY2d at 112-113).

Acting Chief Judge CANNATARO and Judges RIVERA, GARCIA, WILSON, SINGAS and TROUTMAN concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed and case remitted to the Appellate Division, Third Department, for consideration of the facts and issues raised but not determined on appeal to that Court, in a memorandum.

[202 NE3d 559, 182 NYS3d 1]

In the Matter of ROSA RIZZO, Appellant, v THOMAS P. DiNAPOLI,
as State Comptroller, et al., Respondents.

Decided October 27, 2022

SUMMARY

APPEAL from a judgment of the Appellate Division of the Supreme Court in the Third Judicial Department, entered January 6, 2022, in a proceeding pursuant to CPLR article 78 (transferred to the Appellate Division by order of the Supreme Court, entered in Albany County). The Appellate Division, with two Justices dissenting, (1) confirmed respondents’ determination denying petitioner’s application for accidental disability retirement benefits; and (2) dismissed the petition.

Matter of Rizzo v DiNapoli, 201 AD3d 1098, affirmed.

HEADNOTE

Civil Service — Retirement and Pension Benefits — Accidental Disability Retirement

Substantial evidence supported respondents’ determination that the precipitating cause of the injuries sustained by petitioner police officer when a heavy metal door slammed shut on her was not an accident. Petitioner

conceded that she knew that the heavy metal door slammed automatically and that on the day of the injury her movements were intended to avoid that quick and forceful closure. While the known condition might be a risk of the work site, it could not be the cause of an accident compensable under Retirement and Social Security Law § 363.

APPEARANCES OF COUNSEL

McIntyre, Donohue, Accardi, Salmonson & Riordan, Bay Shore (*Sean Patrick Riordan* of counsel), for petitioner.

Letitia James, Attorney General, Albany (*Kate H. Nepveu, Barbara D. Underwood, Andrea Oser* and *Victor Paladino* of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), judgment affirmed, with costs.

An “‘injury which occurs without an unexpected event as the result of activity undertaken in the performance of ordinary employment duties, considered in view of the particular employment in question, is not an accidental injury’” (*Matter of Kelly v DiNapoli*, 30 NY3d 674, 681 [2018], quoting *Matter of Lichtenstein v Board of Trustees of Police Pension Fund of Police Dept. of City of N.Y., Art. II*, 57 NY2d 1010, 1012 [1982]). Substantial evidence supports the determination that the precipitating cause of petitioner’s injuries was not an accident.

We need not address our dissenting colleague’s assertion that the Appellate Division majority applied a legal standard contrary to our precedent when that Court “resort[ed] to a ‘reasonably anticipated’ doctrine” (dissenting op at 999). Any substantive distinction—if there is one—between the “reasonably anticipated” standard applied below and the standard we applied in *Matter of Kelly* is irrelevant here. Petitioner conceded that she knew that the heavy metal door slammed automatically and that on the day of the injury her movements were intended to avoid that quick and forceful closure. While the known condition may be a risk of the work site, it cannot be the cause of an accident compensable under Retirement and Social Security Law § 363.

Our dissenting colleague nevertheless persists in expressing dissatisfaction with the relevant case law (*compare Kelly*, 30 NY3d at 688-691 [Wilson, J., dissenting in part] [“A slip on a pool of water in the bathroom or on wet pavement is an ac-

cident, but a supervisor's fall on uneven pavement while searching for a prowler at night is not" (citations omitted)], *with* dissenting op at 1005-1006 ["Perhaps there is a hidden logic as to why falling is an 'accident' only when the hazard is covered by snow and not by shrubbery or darkness" (citations omitted)] and revives his proposal for a two-part test (*compare Kelly*, 30 NY3d at 686-687 [Wilson, J., dissenting in part] [proposing two-part test for assessing accidental disability], *with* dissenting op at 994 [proposing two-part test for assessing accidental disability]; *Kelly*, 30 NY3d at 690-691 [Wilson, J., dissenting in part] [same], *with* dissenting op at 1003-1004 [same]). But we must again reject the invitation to rewrite the statute and reiterate that doing so would be "inconsistent with the legislative policy choice to grant more generous disability benefits to police officers or firefighters injured by stepping into a pothole, or slipping on wet pavement or when getting up from a desk chair" (*Kelly*, 30 NY3d at 681 n 1).

WILSON, J. (dissenting). Rosa Rizzo worked for the Port Authority of New York and New Jersey as a police officer. On a cold February day, she trudged through the sleet and cold winds at the Lincoln Tunnel to tend to an ailing woman, staying with her until an ambulance arrived. Once it arrived, Officer Rizzo gathered the names of the parties and witness testimony and then headed towards the heated Metropolitan Transportation Authority booth so she could write her report. She had used the booth before and knew that its door could swing closed, but she had never heard of anyone being injured by it. As she squeezed into the booth, however, a violent gust of wind blew the 80 to 100 pound door shut, crushing her right index finger and permanently disabling her from returning to her to a full duty position. It is undisputed that Officer Rizzo is permanently disabled as a result of the door crushing her hand. The door lacked a safety mechanism to prevent exactly this kind of hazardous condition. A "commonsense" way of characterizing this event would be to say that Officer Rizzo was permanently disabled in a workplace accident (*Matter of Lichtenstein v Board of Trustees of Police Pension Fund of Police Dept. of City of N.Y.*, Art. II, 57 NY2d 1010, 1012 [1982]).

The majority disagrees, stating that substantial evidence supports the proposition that the crash of the heavy metal door was not "an accident." Our decisions and those of the lower courts in this area produce erratic and inexplicably inconsistent outcomes (*see Matter of Kelly v DiNapoli*, 30 NY3d 674, 686 [2018, Wilson, J., dissenting in part]).

Injured governmental employees and their employers would greatly benefit from a standard that produced clear, intelligible, predictable and fair results. In the wake of the courts' inability to do so, that task falls to the legislature. Our decisional law concerning Retirement and Social Security Law § 363 asks whether an injury was caused by an accident, a word that has been contorted beyond recognition by courts' efforts to apply a "commonsense definition of a 'sudden, fortuitous mischance, unexpected, out of the ordinary, and injurious in impact'" (*Lichtenstein*, 57 NY2d at 1012). That definition was first penned in 1958. Its invocation of "fortuitous mischance," which phrase served Faulkner well, has floundered as a legal term of art (*compare Lichtenstein*, 57 NY2d at 1012, quoting *Arthur A. Johnson Corp. v Indemnity Ins. Co. of N. Am.*, 6 AD2d 97, 100 [1st Dept 1958], *aff'd* 7 NY2d 222 [1959], with *William Faulkner, Go Down Moses* 287 [1940]). Our subsequent attempts to clarify that abstruse definition have invited greater confusion.

Our precedents have failed to provide guidance allowing for predictability and consistency; by synthesizing them into two discrete questions we can offer better guidance resulting in more consistent results. To more easily traverse our doctrine, courts should engage in two clear, cabined inquiries to ensure that disability awards fit the purposes of the statutory scheme. Courts should ask "(i) whether the nature of the hazard is part of the bargained-for risks of the job and (ii) whether it is truly unexpected and out of the ordinary, or rather is part of the ordinary risks of daily life" (*Kelly*, 30 NY3d at 686 [Wilson, J., dissenting in part]). Admittedly, no test can create perfectly consistent results given the haphazard application of the existing doctrine and the illogic of the underlying statutory scheme. But a clearer exposition, with attention to the underlying legislative purpose, would help achieve greater consistency and transparency.

The majority rejects my opinion as an "invitation to rewrite the statute" (majority mem at 993). I have extended an invitation; the majority just has the wrong guest in mind. I am not inviting our Court to rewrite the statute; we have been unsuccessful in interpreting it (*see infra* at 1005-1006). I am again inviting the legislature to do so. As *Kelly* itself states in the footnote that supposedly rejects my suggestion: "For police officers and firefighters, this statutory structure . . . can lead to incongruous results, as the dissent notes. We do not take issue with the dissent's conclusion that the legislature should

consider acting to address such results” (*Kelly*, 30 NY3d at 681 n 1). I make two principal points in this dissent. First, *Kelly* is the law and the Third Department violated *Kelly* in this case.¹ Second, the doctrine surrounding *Kelly* is confusing and unfair, and the legislature should fix it.

I.

The text and history of the underlying statutory scheme, along with the traditional gloss we have given to its words, show why Officer Rizzo should have prevailed in this case.

It helps to recall the odd history and structure of the statute, Retirement and Social Security Law § 363. In 1984, the legislature worked a significant change to the Retirement and Social Security Law’s treatment of disabled police officers and firefighters (L 1984, ch 661, § 1, codified in Retirement and Social Security Law § 363-c). As explained in the sponsor’s memorandum for the 1984 legislation modifying the disability pension scheme, before the passage of that legislation, police officers and firefighters who suffered disabilities rendering them unable to perform their duties might be able to receive retirement benefits in one of two ways. So long as they had served for a sufficient number of years, they could retire with “ordinary disability retirement” benefits regardless of the cause of the disability. In the alternative, regardless of how long they had served, they could retire with “accidental disability retire-

1. To the extent that the majority disagrees with my interpretation of the existing doctrine, it has not explained why my understanding is inconsistent with *Kelly*. In *Kelly*, we rejected both plaintiffs’ claims on the ground that their injuries resulted from actions encompassed within their ordinary job duties. I agreed as to one (Sica) and disagreed as to the other (Kelly). As to both, *Kelly* held that the hazard was a “risk of the work performed” (*Kelly*, 30 NY3d at 684). That analysis, outlined in *Matter of McCambridge v McGuire* (62 NY2d 563, 568 [1984]), is the first “part” of the “test” I said courts should use, and I disagreed with the majority’s application of the test in that case (30 NY3d at 691 [Wilson, J., dissenting in part]).

The “two-part test” (majority mem at 992-993) that *Kelly* supposedly rejected was my attempt to synthesize our existing case law into words providing clearer guidance: each “part” is simply a restatement of the operative law from relevant precedents of this Court (*see infra* at 1003-1004). The majority claims to have rejected the “two-part test” (which would constitute the majority’s abandonment of our prior case law), but it has not clarified what about this “test” *Kelly* rejected. *Kelly* expressly accepted the first part of the test, and could not have “rejected” the second part—how to understand what an “accident” means when the injury does not result from a risk of the work performed—because *Kelly* denied both claims on the grounds that the hazards in question were “inherent risk[s] of petitioners’ regular duties” (*Kelly*, 30 NY3d at 684).

ment benefits,” but would have to meet a “very stringent condition precedent that the incapacity to perform the duties of the position [was] the natural and proximate result of an accident sustained in such service” (Sponsor’s Mem in Support of Legislation, Bill Jacket, L 1984, ch 661 at 9).

Noting that the “courts have continually ruled that exertional type injuries are not accidental injuries for the purposes of accidental disability retirement,” the legislation created a “new disability retirement benefit” in which the “applicant need only establish that the incapacity is the natural and proximate result of a disability sustained in the performance of duties of the position, [which is] . . . a considerably less [restrictive] criteria for establishing eligibility to a significant benefit” (*id.*). Whereas the accidental disability retirement benefits were set at 75% of the employee’s final average salary, the new “performance of duty” disability retirement benefit was set at 50% of the employee’s final average salary. However, the accidental disability benefits were reduced by any workers’ compensation benefits received by the employee, whereas the performance of duty benefits were not.²

For police officers and firefighters entering the system on or after January 1, 1985, the legislature eliminated accidental disability retirement benefits. Those who had entered the system before that date could choose between accidental retirement benefits or the performance of duty retirement benefits. It is clear from both the text of the legislation and its legislative history that the legislature’s intent was to override the courts’ stinginess in allowing benefits to officers and firefighters injured in the line of duty by providing disability retirement benefits without regard to whether the disability was caused by an “accident,” but to reduce the State’s per-person cost of benefits from 75% of salary to 50%. The statute in that form was easily administrable: once the pre-1985 employees

2. The different treatment of workers’ compensation benefits makes an apples-to-apples comparison difficult. The Permanent Commission on Public Employee Pension and Retirement Systems objected to the legislation on the ground that 50% of the employee’s public salary plus workers’ compensation benefits plus Social Security disability benefits could wind up with the disabled employee receiving more in retirement benefits than the employee was paid for working (Mem of James F. Regan, Chair, Permanent Commn on Public Employee Pension and Retirement Sys, Bill Jacket, L 1984, ch 661 at 27).

aged out of the system, no further consideration of the meaning of “accident” would be required.³

The principal problem arose 14 years later. In 1998, the legislature reenacted accidental disability retirement benefits for police officers and firefighters. The legislative history explains the reasons for the legislature’s change of heart. Senator Trunzo, the measure’s sponsor, explained that correction officers and court officers were eligible to receive a 75% accidental retirement benefit, as were all New York City police officers and firefighters, but tier 2 police officers and firefighters elsewhere in New York could not receive those benefits. In his words, “[t]his legislation would remedy this inequity.” (Letter from Senator Caesar Trunzo to James M. McGuire, June 24, 1998, Bill Jacket, L 1998, ch 489 at 3).

The Division of the Budget further illuminated the legislative purpose, noting that in 1996, the legislature had provided 75% accidental disability pay for correction officers and security hospital treatment assistants because of the risk of “contraction of HIV, tuberculosis or hepatitis” (Budget Rep on Bills, Bill Jacket, L 1998, ch 489 at 4). The Budget Division also noted that the legislature had enacted 75% accidental disability pension benefits to court officers in 1995, and noted that proponents of the pending legislation “would also argue that police officers and firefighters are exposed to greater occupational risks than are uniformed court officers” (*id.*).

The Budget Division recommended that the Governor veto the legislation, noting that “it could be argued that this bill is inconsistent with past pension reforms” and that it “would provide a greater disability benefit to Tier 2 police officers and firefighters than that afforded to most other Tiers 2, 3 and 4 State and local employees” who received either 60% (tiers 2 and 3) or 33% (tier 4) of their final average salary (*id.* at 4-5). The Budget Division estimated that the legislation would increase pension benefit costs by \$19 million (*id.* at 5).

That legislative history makes two points clear. The first is obvious: by reestablishing accidental disability pension benefits, the legislature intended to provide greater relief to those injured by workplace accidents than those injured by physical exertion in the performance of duty. Thus, the

3. In addition to those who aged out, those who left the system for other reasons and those who, though eligible for accidental benefits, chose performance of duty benefits would also reduce the frequency of cases calling for an interpretation of “accident.”

legislature determined that an officer disabled by a suspect's bullet or a firefighter suffering disabling burns will receive a lower disability pension benefit than if that person's injury was caused by an "accident"—however that is defined. Second, some of the risks the legislature intended to cover, including exposure to persons who might transmit serious illnesses, helps us think about what "accident" means. As to the first point, it is very difficult to understand why those injured by means of an "accident"—if "accident" includes ones of the sort that occur in everyday life, such as slipping, tripping and falling—should receive greater benefits than officers or firefighters suffering from the on the job "exertion"-related injuries the legislature sought to reach in 1984 (*see* L 1998, ch 489, § 1, codified at Retirement and Social Security Law § 444 [c]). Thus, we are tasked with determining how to interpret the legislative direction that those police officers and firefighters who are disabled by a workplace accident (a description which one Court has even applied to so commonplace an occurrence as falling out of a desk chair [*Matter of Crone v DiNapoli*, 201 AD3d 1260, 1262 (3d Dept 2022)]) should receive 75% of their salary instead of the 50% they would receive had they been injured exerting themselves at work (e.g. entering a collapsing home and blocking a falling beam to save the life of another [*Kelly*, 30 NY3d at 679, 686]).

As to the second point, the legislature clearly meant to include, as "accidents," the communication of a serious illness as a consequence of employment. This helps us distinguish between everyday events, such as missing a step and falling (for which the legislature provided performance of duty benefits at a 50% rate), from more unusual events, such as contracting hepatitis by assisting the victim of an automobile accident (for which the legislature provided accidental disability benefits at a 75% rate).

Focusing, then, on the statutory text at issue here, Retirement and Social Security Law § 363 (a) (1) provides that a member of the police and firefighters' retirement system may be entitled to an accidental disability retirement allowance if he or she has been "[p]hysically or mentally incapacitated for performance of duty as the natural and proximate result of an accident not caused by his or her own willful negligence." We have defined an "accident" as a "sudden, fortuitous mischance, unexpected, out of the ordinary, and injurious in impact," finding that "an injury which occurs without an unexpected event as the result

of activity undertaken in the performance of ordinary employment duties, considered in view of the particular employment in question, is not an accidental injury” (*Matter of Kenny v Di-Napoli*, 11 NY3d 873, 874 [2008], quoting *Lichtenstein*, 57 NY2d at 1012; accord *Kelly*, 30 NY3d at 681). To qualify for an accidental disability retirement allowance, a petitioner must show that her injury was caused by “a precipitating accidental event . . . which was not a risk of the work performed” (*Kelly*, 30 NY3d at 682, quoting *Matter of McCambridge v McGuire*, 62 NY2d 563, 568 [1984]). “[C]ommon[]sense” (*Lichtenstein*, 57 NY2d at 1012) suggests that it was.

Officer Rizzo was permanently disabled when an “unexpected” (*Kelly*, 30 NY3d at 681) gust of wind slammed a heavy, defective door onto her hand. Getting one’s hand crushed by a door is an accident in the “commonsense definition” of the term (*Lichtenstein*, 57 NY2d at 1012). In other contexts, courts regularly refer to incidents where individuals have their hands crushed by doors as accidents (see e.g. *E.W. v City of New York*, 179 AD3d 747, 748 [2d Dept 2020]; *Duck v D’Angelo*, 32 Misc 2d 164, 165 [Sup Ct, Westchester County 1961]). Even in the context of accidental disability retirement benefits, a door-crush injury would be an accident: when a police officer lost the use of her right-index finger after another officer slammed a car door on it, the First Department described the incident as an “accident” and asked only whether the door slam caused the injury (see *Matter of Bon v Safir*, 307 AD2d 885, 887 [1st Dept 2003]). It even opined that “were we hearing this case on appeal after trial, we undoubtedly would find the Board’s contrary determination to clearly be against the weight of the evidence” (*id.*).

II.

The Appellate Division rejected Officer Rizzo’s claim by resort to a “reasonably anticipated” doctrine. The majority explicitly does not reach this test (majority mem at 992), so that issue is left open here (and perhaps in the Third Department as well)⁴

4. Even though the Attorney General prevailed below, she requested that we afford full briefing and allow oral argument in this case, because “the Third Department has been internally divided over whether a disability-causing incident can constitute an accident when the injured employee could have reasonably anticipated the hazard.” We did not do so.

for another day. I would not accept it.⁵ The “reasonably anticipated” doctrine effectively reenacts the decisively rejected “readily observable” test and undermines the purpose of Retirement and Social Security Law § 363 (a) (1).

We rejected the “reasonably anticipated” test when we rejected the logic of the “readily observable” test. In *Matter of Kelly v DiNapoli*, we held that the petitioner did not need to show a condition was “not readily observable” to demonstrate that she was injured in an accident (30 NY3d at 685 n 3). Two months later, in *Matter of Stancarone v DiNapoli*, the Third Department resuscitated the “readily observable” test by asking whether the hazard at issue could be “reasonably anticipated” (161 AD3d 144, 147, 149-150 [3d Dept 2018]). The Third Department drew the language from one of the cases that we had explicitly criticized in *Kelly*, and even acknowledged that “[s]ome of the phrases that have been used [in determining eligibility for an accidental disability retirement allowance] are overlapping or slightly different ways of saying the same thing” (*Stancarone*, 161 AD3d at 147, citing *Matter of Manning v DiNapoli*, 150 AD3d 1382, 1382 [3d Dept 2017]; see also *Kelly*, 30 NY3d at 685 n 3 [identifying the “readily observable” language of *Manning* and other cases as “inconsistent with our prior case law”]). Nevertheless, despite *Kelly*’s disapproval, the Third Department rejected Officer Rizzo’s claim because she could have “reasonably anticipated that the wind would blow the door closed on her” (201 AD3d 1098, 1100 [3d Dept 2022]).

The *Stancarone* Court should have “readily observed” that its test had been permanently deep-sixed by *Kelly*. In *Stancarone*, the Court engaged in the “challenging” task of justifying why a hazard’s being “reasonably anticipated” barred a claim for an accidental disability retirement allowance (161 AD3d at 148). The Court explained that an incident that “a person in the petitioner’s position and location could or should have reasonably anticipated” was not really an accident because it

5. I am unsure what to make of the majority’s observation that “[w]hile the known condition may be a risk of the work site, it cannot be the cause of an accident compensable under Retirement and Social Security Law § 363” (majority mem at 992). In *McCambridge*, for instance, we held that an officer who slipped on a wet sidewalk suffered an accident and was entitled to accidental disability benefits as a matter of law (62 NY2d at 568). Surely the officer there knew that rainy sidewalks are slippery. In contrast, Officer Rizzo’s knowledge was less specific: she knew the day was windy and knew the door was defective but did not know that the two would combine to pose an enhanced hazard. In any event, if the majority’s observation is meant to have any legal force, it would be incompatible with *McCambridge*.

would be expected (*id.* at 149).⁶ A “readily observable” hazard is necessarily a hazard that is “reasonably anticipated” (*see e.g. Matter of Yurko v DiNapoli*, 122 AD3d 1047, 1048 [3d Dept 2014] [“the pothole was a condition that was readily observable and, therefore, could have been reasonably anticipated”]). Indeed, the *Kelly* Court understood the logic of the “readily observable” argument to be that the claimant “could [] or should have recognized the danger posed in the circumstances presented” due to the readily observable hazard (30 NY3d at 685 n 3 [internal quotation marks omitted]). In rejecting the “readily observable” test, *Kelly* rejected the logic of the “reasonably anticipated” test as well.

The hearing officer in this very case struggled with the hazy distinction between these two tests. In his 2019 determination, he ruled that the hazard “could have reasonably been anticipated,” citing, *inter alia*, *Matter of Yurko v DiNapoli* (122 AD3d 1047) for the proposition “no accident when an officer was injured due to a pothole condition that was readily observable.” Slightly more than one year before his determination, we decided *Kelly*, which not only rejected the readily observable test, but also explicitly cited *Yurko* as an example of a case that was “inconsistent with our prior case law” (*Kelly*, 30 NY3d at 685 n 3). Errors like this, leading to inconsistent treatment of claimants, will continue to abound until a better governing test is provided.

In addition to being inconsistent with our case law, the “reasonably anticipated” test also renders text in Retirement and Social Security Law § 363 (a) (1) superfluous. A core principle of statutory construction is that “effect and meaning must, if possible, be given to the entire statute and every part and

6. The *Stanciarone* Court attempted to justify its reasonably anticipated test by citing two cases which attached importance to the fact that a petitioner had “direct knowledge” of the hazard (*see* 161 AD3d at 148, citing *Matter of Lang v Kelly*, 21 NY3d 972 [2013]; *Matter of Kenny v DiNapoli*, 11 NY3d 873 [2008]). The Third Department overread both of these cases.

In *Lang*, the claimant tripped over a wire that had been strung across the floor for several months. We held that tripping over those wires—which were ordinary and well-known—was not “sudden, fortuitous . . . unexpected [or] out of the ordinary” (21 NY3d at 973). *Kenny* involved a petitioner who knew of a wet ramp and slipped on it, a hazard that was similarly well-known and utterly pedestrian (11 NY3d at 875). Officer Rizzo’s case would be more like those if she had previously observed the door being slammed shut by the wind—which she had not. Furthermore, if *Kelly*’s rejection of cases relying on a “readily observable” test is inconsistent with prior decisions of our Court, that is all the more reason for legislative action.

word thereof” (*People v Galindo*, 38 NY3d 199, 205 [2022], quoting McKinney’s Cons Laws of NY, Book 1, Statutes § 98 [a]). Consequently, a “construction that would render a provision superfluous is to be avoided” (*Galindo*, 38 NY3d at 205, quoting *Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577, 587 [1998]). Here, Retirement and Social Security Law § 363 (a) (1) prevents a member from recovering when the accident was “caused by his or her own willful negligence.” Willful negligence is generally thought to entail a “conscious disregard of the consequences of [one’s] actions” (*Matter of Robinson v New York State & Local Police & Fire Retirement Sys.*, 192 AD2d 951, 952 [3d Dept 1993]). A doctrinal formulation that excludes all instances in which an injured party might “reasonably anticipate” a hazard would also exclude all cases in which a party willfully disregarded those reasonably anticipated consequences. Under the “reasonably anticipated” test, the term “accident” renders the qualification on accidents “caused by his or her own willful negligence” redundant. A court should therefore reject a test defining “accident” on the basis of reasonable anticipation.

The “reasonably anticipated” test also fails a core function of a well-designed doctrine: it does not let claimants reasonably anticipate how a court will rule in their case. For instance, the Appellate Division faulted Officer Rizzo for knowing that the steel door in question was defective and using it anyway (*see* 201 AD3d at 1100). Perhaps she would have fared better with different defective equipment. After all, a police officer was eligible for an accidental disability retirement allowance when he fell from his chair, even though he had seen others falling from their chairs, he knew doing so was a hazard associated with his behavior, and he had not even convinced the hearing officer that the defect caused him to fall (*see Crone*, 201 AD3d at 1264-1265 [Aarons, J., dissenting]).

Officer Rizzo’s claim would gain little traction in the jurisprudence of ice. A police officer who slipped on black ice in a poorly illuminated parking lot can recover (*Matter of Castellano v DiNapoli*, 197 AD3d 1478, 1480 [3d Dept 2021]). Not so, however, if “it was cold” and “there was snow on the ground” (*see Matter of Kempkes v DiNapoli*, 81 AD3d 1071, 1072-1073 [3d Dept 2011]; *accord Matter of Ruggiero v DiNapoli*, 85 AD3d 1282, 1283 [3d Dept 2011]). By contrast, a bus attendant *can* recover, even if “it was cold with a few snow flurries and . . . a few piles of old snow” (*Matter of Larivey v DiNapoli*, 168 AD3d 1178, 1179 [3d Dept 2019]).

More slippery still is the jurisprudence of wet floors. An employee could reasonably anticipate that “on and off rain” would wet the stairs inside an administrative building (*Matter of Lamb v DiNapoli*, 139 AD3d 1312, 1313 [3d Dept 2016]). But if a cleaning crew mopped the stairs, she could recover accidental disability benefits because no one would reasonably anticipate that recently mopped stairs might be slippery (*Matter of Como v New York State Comptroller*, 202 AD3d 1427, 1428 [3d Dept 2022]). She had better hope, however, that the custodial staff did not also treat the floors with polyurethane, as she could reasonably anticipate that a wood floor was coated with the clear substance—even if she had never been in the building before and never looked at the floor (see *Matter of Greco v DiNapoli*, 123 AD3d 1366, 1367-1368 [3d Dept 2014]). If the court is unable to identify the slippery substance, however, it may conclude that the employee could not reasonably have been expected to anticipate it, and might therefore allow recovery (see *Stancarone*, 161 AD3d at 149-151; *Matter of Sammon v DiNapoli*, 97 AD3d 952, 953 [3d Dept 2012]).

It is perhaps “the most basic principle of jurisprudence that we must act alike in all cases of like nature” (Henry J. Friendly, *Indiscretion about Discretion*, 31 Emory LJ 747, 758 [1982] [internal quotation marks omitted]; see also *Enright v Eli Lilly & Co.*, 77 NY2d 377, 388 [1991]; *Martin v Franklin Capital Corp.*, 546 US 132, 139 [2005]; Benjamin N. Cardozo, *The Nature of the Judicial Process* 33 [1931]). What is plainly observable from the judicial application of Retirement and Social Security Law § 363 is that it regularly treats like cases differently (see *Kelly*, 30 NY3d at 686 [Wilson, J., dissenting in part]).

III.

Short of a legislative fix, we must traverse existing doctrine to vindicate the goals of the Retirement and Social Security Law. Our existing doctrine identifies two categories of risks that are excluded from a commonsense definition of “accident.” The hazard that wounded Officer Rizzo—an unexpected gust of wind combined with a defective and unsafe door—fell into neither category.

First, we can ask whether the hazard was “part of the bargained-for risks of the job,” or “whether persons in the employee’s line of work should reasonably expect to face the sort of hazard that injured the petitioner” (*Kelly*, 30 NY3d at 690

[Wilson J., dissenting in part]). Bargained-for risks of the job are covered by performance of duty benefits. Once we have concluded that the risk is not part of the bargained-for “risk of the work performed” (*Kelly*, 30 NY3d at 682; *McCambridge*, 62 NY2d at 568), we can second ask “whether it is sufficiently out of the ordinary risks of everyday life to constitute an accident” (*Kelly*, 30 NY3d at 690 [Wilson J., dissenting in part]; *see also Matter of Starnella v Bratton*, 92 NY2d 836, 839 [1998] [asking whether an event is “so out-of-the-ordinary or unexpected as to constitute an accidental injury as a matter of law”]; *Lichtenstein*, 57 NY2d at 1012 [explaining that an “accident” must be “out of the ordinary”]). By requiring that an accident be something beyond the everyday risks we all bear, we ensure that an officer falling from a desk chair or slipping on wet stairs does not receive greater compensation than an officer injured when attempting a rescue or apprehending a suspect. There remains some incongruity that any accident victim should be entitled to greater compensation than an officer or firefighter injured because of the risks involved in an inherently dangerous job, but by adding back the 75% accidental disability pension benefit, the legislature has directed that result.

Officer Rizzo qualifies for an accidental disability retirement allowance under that framework. Officers face different sorts of bargained-for risks depending on their duty stations. Persons working at toll plazas have occasionally been struck by the barrier arm of automatic toll machines (*Nikolovdakis v TDC Elecs.*, 220 AD2d 492, 492 [2d Dept 1995]), have been injured by errant motorists (*Ast v State of New York*, 66 NY2d 998 [1985]), and have even slipped and fallen (*Matter of Klett v New York State & Local Empls. Retirement Sys.*, 210 AD2d 723, 723 [3d Dept 1994]). Officers working at toll plazas do not, however, tend to have their hands crushed when a freak gust of wind collides with a defective door. What happened to Officer Rizzo is not something she had ever heard of happening to any of her colleagues in her eight years of service, let alone something she knew she was getting into when she signed up for the job.

Second, Ms. Rizzo’s accident was decidedly out of the ordinary. People are not ordinarily slammed by tempest-tossed 80 to 100 pound steel doors that are not fitted with dampers or other safety equipment. When people are injured by defective doors, they tend to sue for negligence (*e.g. Hinz v Wantagh*

Union Free Sch. Dist., 165 AD3d 1074 [2018]; *New v Stachowiak*, 84 AD3d 1326 [2d Dept 2011]; *Raga v Kresge Co.*, 274 App Div 966 [4th Dept 1948]). They do not tell themselves that their injury was not really an accident because they should have reasonably anticipated being maimed by an 80 to 100 pound slab of steel. Using common sense, or common parlance, it would be hard to describe what happened to Officer Rizzo as anything other than an accident. It is true that, in the abstract, one might imagine that a very heavy door could be blown shut by a powerful gust of wind, just as one might imagine that an officer removing an injured passenger from a vehicle could contract AIDS or hepatitis. But both are quite remote possibilities; they are the sort of risks the legislature meant to include as “accidents,” as contrasted to ordinary risks of everyday life such as slipping on a wet floor, tripping on an extension cord or falling on ice.

IV.

Without a more straightforward statutory scheme or articulation of our case law to guide their analysis, courts are left distinguishing cases according to an inconsistently applied standard that imposes an outdated and unfairly punitive doctrine on otherwise deserving claimants like Officer Rizzo.

For many years, New York was governed by a regime of contributory negligence and a harsh version of assumption of risk, both of which completely barred a plaintiff from recovering any damages if she had contributed at all to her misfortune. That system was harsh, irrational, unfair, and coldly formalistic. In 1972, we recognized the meanness of this system and abolished it for joint tortfeasors (*see Dole v Dow Chem. Co.*, 30 NY2d 143, 153 [1972]). In 1975, the state legislature affirmed *Dole* and extended its “more realistic and fairer standard of comparative negligence . . . to the case-in-chief” (Mem of Assembly Member Stanley Fink, Bill Jacket, L 1975, ch 69). Today, CPLR 1411 prohibits contributory negligence and assumption of risk from “bar[ring] recovery.” Retirement and Social Security Law § 363 does not create a negligence regime and is not governed by either contributory negligence or CPLR 1411. Nevertheless, many determinations as to whether an incident was an “accident” under that provision harken to that decisively rejected doctrine.

Perhaps there is a hidden logic as to why falling is an “accident” only when the hazard is covered by snow (*Matter of*

Lewis v New York State Comptroller, 176 AD3d 1545, 1546-1547 [3d Dept 2019]) and not by shrubbery (*Matter of Grall v DiNapoli*, 196 AD3d 962, 964 [3d Dept 2021]) or darkness (*Matter of Parry v New York State Comptroller*, 187 AD3d 1303, 1305 [3d Dept 2020]). If it is because an officer should have “reasonably anticipated” the hazard in question, or if the hazard was in some way known to the officer, we should ask whether we are improperly imposing the long-abandoned paradigm of contributory negligence. Officer Rizzo is merely one of many disabled employees buffeted by a whirlwind of legal confusion. It is time for the legislature to construct a statutory edifice that can withstand the gale-force vicissitudes of judicial “common[]sense.”

Acting Chief Judge CANNATARO and Judges RIVERA, GARCIA, SINGAS and TROUTMAN concur; Judge WILSON dissents in an opinion.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), judgment affirmed, with costs, in a memorandum.

[202 NE3d 569, 182 NYS3d 11]

DORA HOWELL, Appellant, v CITY OF NEW YORK et al., Respondents, et al., Defendant.

Argued October 20, 2022; decided November 22, 2022

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered February 10, 2021. The Appellate Division order (1) reversed, on the law, so much of an order of the Supreme Court, Kings County (Reginald A. Boddie, J.), as had denied so much of the motion of defendants City of New York, P.O. Mosely-Lawrence and P.O. Meran which was for summary judgment dismissing the complaint; and (2) granted that branch of defendants’ motion seeking summary judgment dismissing the complaint insofar as asserted against them.

Howell v City of New York, 191 AD3d 771, affirmed.

HEADNOTE

Municipal Corporations — Tort Liability — Special Relationship — Violation of Order of Protection — No Justifiable Reliance

In a negligence action commenced against defendant city and police officers, plaintiff, whose ex-boyfriend brutally attacked her and pushed her out of a third-floor window in violation of an order of protection, failed to raise a triable issue of fact as to justifiable reliance, an element required to establish a voluntarily assumed special duty. Accordingly, the Appellate Division properly granted defendants' motion for summary judgment dismissing the complaint. Plaintiff testified during her deposition that she had no contact with the police on the day of the incident prior to the attack, that her ex-boyfriend was in fact at liberty that day, and that the officers never told her that her ex-boyfriend would be arrested for violating the order of protection. Plaintiff's own testimony demonstrated that she did not relax her vigilance based on any police promises that her ex-boyfriend would be arrested for violating the order of protection and also showed that the police were not on the scene or in a position to provide assistance if necessary. The mere existence of an order of protection, standing alone, will not prove justifiable reliance. A contrary rule would impermissibly expand government liability in violation of the policies supporting the special duty rule, given that New York courts issue hundreds of orders of protection in favor of persons at risk of harm every day.

APPEARANCES OF COUNSEL

Rawlins Law, PLLC, White Plains (*Beverly Gale Vanier* and *Gary N. Rawlins* of counsel), and *Annette G. Hasapidis*, South Salem, for appellant.

Sylvia O. Hinds-Radix, Corporation Counsel, New York City (*Devin A. Slack, Ellen Ravitch, Richard Dearing* and *John Moore* of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

Plaintiff's ex-boyfriend brutally attacked her and pushed her out of a third-floor window, in violation of an order of protection. For his crimes, the ex-boyfriend was sentenced to a maximum of seven years in prison. Plaintiff commenced this negligence action against defendants City of New York and two police officers, alleging that they failed to provide her sufficient protection to prevent the assault.

This Court has, unfortunately, been asked to resolve many cases like this one, in which the plaintiff claims that "the police failed to protect [them] from injury inflicted by a third party" (*Ferreira v City of Binghamton*, 38 NY3d 298, 312

[2022]). Over the last several decades, this Court has established an approach to such cases that permits recovery against the government only in a narrow set of circumstances (*see generally id.* at 307-312).¹ Although typically applied to tragic facts befalling an individual, the special duty rule's purpose is to permit the government to protect its citizenry as a whole by allocating its resources in a manner that best promotes public welfare (*see McLean v City of New York*, 12 NY3d 194, 204 [2009]). Applying that well-settled analysis here, we conclude that the Appellate Division properly granted defendants' motion for summary judgment.

Defendants undisputedly were engaged in a governmental function—policing—when plaintiff's negligence claims arose (*see Applewhite v Accuhealth, Inc.*, 21 NY3d 420, 425 [2013]). Plaintiff was therefore required to prove that defendants owed her a special duty of care as “an essential element” of her negligence claims (*Ferreira*, 38 NY3d at 310 [internal quotation marks omitted]).²

In response to defendants' prima facie showing on their summary judgment motion that they did not voluntarily assume a special duty in plaintiff's favor, plaintiff failed to raise a triable issue of fact. To establish a voluntarily assumed special duty, plaintiff was required to satisfy four well-settled elements:

“ (1) an assumption by the municipality, through promises or actions, of an affirmative duty to act on behalf of the party who was injured; (2) knowledge on the part of the municipality's agents that inaction could lead to harm; (3) some form of direct

1. Despite our frequent reiteration that the special duty and governmental function immunity doctrines are separate principles, one dissent would, nevertheless, erroneously conclude that a special duty existed here based on the test applicable in the governmental function immunity context (*compare Ferreira*, 38 NY3d at 311 [a municipality is entitled to governmental function immunity if it “proves that the alleged negligent act or omission involved the exercise of discretionary authority” (internal quotation marks omitted)], *with* Rivera, J., dissenting op 1051 [“an atomized assessment of each individual Cuffy factor is unnecessary because the factors are satisfied by the legislative abrogation of officer discretion”]).

2. While “a special duty can arise in three situations” (*Ferreira*, 38 NY3d at 310 [internal quotation marks omitted]), we address only the voluntary assumption of a duty circumstance here. Except Judge Wilson, we all agree that plaintiff's claim that defendants owed her a special duty pursuant to statute is unpreserved, and that plaintiff does not argue that such a duty existed because defendants took positive control of a known and dangerous safety condition (*see* Rivera, J., dissenting op at 1048-1049, 1048 n 10).

contact between the municipality's agents and the injured party; and (4) that party's justifiable reliance on the municipality's affirmative undertaking' " (*id.* at 312-313, quoting *Cuffy v City of New York*, 69 NY2d 255, 260 [1987]).

Viewing the facts in the light most favorable to plaintiff (*see Vega v Restani Constr. Corp.*, 18 NY3d 499, 503 [2012]), she failed to raise a triable issue concerning the "critical" fourth element of an assumed special duty (*Valdez v City of New York*, 18 NY3d 69, 81 [2011] [internal quotation marks omitted]). Plaintiff testified during her deposition that she had no contact with the police on the day of the incident prior to the attack, that her ex-boyfriend was in fact at liberty that day, and that the officers never told her that her ex-boyfriend would be arrested for violating the order of protection. Plaintiff's own testimony demonstrates that she did not relax her vigilance based on any police promises that her ex-boyfriend would be arrested for violating the order of protection. It also shows that the police were not on the scene or in a position to provide assistance if necessary (*see Mastroianni v County of Suffolk*, 91 NY2d 198, 205 [1997]; *see also Valdez*, 18 NY3d at 82-83), nor had they promised to "provide assistance at some reasonable time" (*Sorichetti v City of New York*, 65 NY2d 461, 471 [1985]). In these circumstances, plaintiff could not have justifiably relied on any promises made or actions taken by defendants.

Contrary to the dissents' suggestion (*see Rivera*, J., dissenting op at 1051; *Wilson*, J., dissenting op at 1031, 1033), and as this Court has previously explained, "[t]he mere existence of an order of protection, standing alone, will not prove justifiable reliance" (*Mastroianni*, 91 NY2d at 205; *see Valdez*, 18 NY3d at 72; *Sorichetti*, 65 NY2d at 470). A contrary rule would impermissibly expand government liability in violation of the policies supporting the special duty rule (*see Ferreira*, 38 NY3d at 316). Every day, New York courts issue hundreds of orders of protection in favor of persons at risk of harm. More than 195,000 orders of protection were issued in domestic violence cases in this state in 2021 alone (*see Governor Hochul Signs Legislative Package Strengthening Protections and Support for Survivors of Domestic Violence as Part of Domestic Violence Awareness Month* [Oct. 18, 2022], <https://www.governor.ny.gov/news/governor-hochul-signs-legislative-package-strengthening-protections-and-support-survivors> [last accessed Nov. 14, 2022]). This grim statistic undermines the dissents' conclusion

that the legislature intended to abrogate the *Cuffy* factors or markedly expand the potential for government tort liability by enacting the Family Protection and Domestic Violence Intervention Act of 1994, and its mandatory arrest provisions (*see* Rivera, J., dissenting op at 1052; Wilson, J., dissenting op at 1021). Indeed, that statute's legislative history provides that it would cause no "fiscal implications" for local municipalities and only appropriated \$500,000 "to implement . . . training requirements" and for an initial evaluation (Senate Introducer's Mem in Support, Bill Jacket, L 1994, ch 222 at 25). Given the numbers discussed above, the cost of potential municipal liability regarding violations of orders of protection would far exceed the amount appropriated and would have a significant impact on municipal finances.

That domestic violence has no place in our society, and that every effort must be made to eliminate it, is unquestionable. Special duty cases often come to us following instances of domestic violence and other "sympathetic circumstances" (*Kircher v City of Jamestown*, 74 NY2d 251, 257 [1989]) where emotions are charged and our shared "humanistic intuition" necessarily tempts us to disregard settled law in order to permit individual recovery (*Lauer v City of New York*, 95 NY2d 95, 103 [2000] [internal quotation marks omitted]). We have long warned, however, against adoption of the sort of "ad hoc exceptions to the special duty . . . rule" that the dissents propose (*McLean*, 12 NY3d at 204), and decline to "enlarg[e] the ambit of duty" here out of "concern for the consequential effects" of such a decision (*Lauer*, 95 NY2d at 105).

Plaintiff's argument concerning governmental function immunity is academic in light of our determination (*see Ferreira*, 38 NY3d at 310, 311-312).

WILSON, J. (dissenting). Passersby found Dora Howell face down on the pavement outside her apartment building, screaming for help and unable to move. Ms. Howell's knee, pelvis, and hip were all broken, and her spine was fractured. She remained the hospital for over a month undergoing surgeries to treat her extensive injuries. How did this happen?

Unfortunately, such incidents are far too common. Ms. Howell's ex-boyfriend, Andre Gaskin, dragged her by the hair into his third-floor apartment, a floor above hers, and physically assaulted her. When Ms. Howell went to the window yelling for someone to call the police to help her, Mr. Gaskin said,

“[Y]ou want help[?] I’ll send you for help,” and threw her out of the window.

Mr. Gaskin had violently assaulted Ms. Howell before, beginning when she was pregnant with their child. The first time he assaulted her, he threw her on the floor and kicked her stomach, causing her to bleed and require hospitalization. On the basis of that assault, Ms. Howell obtained an order of protection against Mr. Gaskin, requiring him to stay away from and not communicate with her. Based on Mr. Gaskin’s subsequent conduct, Ms. Howell obtained seven additional orders of protection against him, the most recent of which issued less than two months before Mr. Gaskin threw her out of the window. How did it happen that a woman who obtained eight orders of protection against the same abuser wound up unprotected?

Unfortunately, that question is harder to comprehend. Orders of protection are supposed to mean something. Ms. Howell called the police to report violations of the September 26th order on October 7, October 15, October 18, October 29, November 5, November 6, November 12, and November 13—each time explaining that Mr. Gaskin had violated the order of protection. Three times in the weeks leading up to this incident, the same two police officers, defendants Mosely-Lawrence and Meran, responded to her calls. As explained below, they assured Ms. Howell that they were handling the situation, yet completely failed to do so. Their actions and inactions rendered Ms. Howell’s multiple orders of protection meaningless, constituting both a dereliction of their duties and an affront to the courts.

Seeking to confront the scourge of domestic violence and the historical reluctance of police officers to arrest abusers who violate orders of protection, our legislature in 1994 required officers to arrest persons in violation of domestic violence protective orders. The legislation removed all discretion from officers: even if a victim of domestic violence begs the officers not to arrest the violator, the police must arrest him. On numerous occasions, Mr. Gaskin was present at the scene when the police arrived and observed him in violation of the orders of protection. Each time they refused to arrest him in the face of a statutory requirement that they do so. How did that happen?

Unfortunately, I have no answer. But I do have an answer as to what should happen now: Ms. Howell should be able to pursue her claim for damages against the City, by establishing that the City bore her a “special duty” through any of three

avenues: (1) the Family Protection and Domestic Violence Intervention Act of 1994 (DVIA) establishes a statutory special duty, and its violation by the officers provides a basis for relief; (2) a triable issue of fact exists as to whether the officers assumed positive control of a dangerous situation; and (3) a triable issue of fact exists as to whether the officers' statements and conduct established representations on which Ms. Howell justifiably relied.

I.

Ms. Howell and Mr. Gaskin lived in the same Brooklyn apartment building, in separate apartments one floor apart.¹ They had a romantic relationship for about a year, during which Mr. Gaskin was not violent until March of 2008, when Mr. Gaskin threw Ms. Howell, pregnant with their daughter, to the floor and kicked her stomach, requiring hospitalization and causing her to bleed several times during the course of her pregnancy. As a result of that assault, on April 12, 2008, she obtained the first of eight protective orders against Mr. Gaskin. The order required Mr. Gaskin to “[s]tay away from” Ms. Howell “and/or from” her home, school, business, and place of employment; “[r]efrain from communication or any other contact by mail, telephone, e-mail, voice-mail or other means” with Ms. Howell; and “[r]efrain from assault, stalking, harassment, menacing, reckless endangerment, disorderly conduct, intimidation, threats, or any criminal offense against” or interference with Ms. Howell. Ms. Howell obtained additional orders of protection against Mr. Gaskin on April 17, 2008; May 20, 2008; May 23, 2008; July 10, 2008; and July 14, 2008. On September 20, 2008, Ms. Howell reported to the police that Mr. Gaskin had violated an order of protection by kicking her front door and breaking its lock. On September 23, 2008, and September 26, 2008, Ms. Howell obtained her seventh and eighth protective orders against Mr. Gaskin. The September 26, 2008 order of protection expired on January 30, 2009, and thus was in effect during all of the relevant acts described below.

In the week before Mr. Gaskin threw Ms. Howell out of the window, Ms. Howell called the police several times to report

1. On review of a motion granting summary judgment, we take the facts in the light most favorable to the party opposing it (here, Ms. Howell) (*see e.g. Jacobsen v New York City Health & Hosps. Corp.*, 22 NY3d 824, 833 [2014]). In addition, only Ms. Howell tendered evidence about the events in question, for reasons explained *infra* at 1018-1019.

that Mr. Gaskin was violating the order of protection. Officers Mosely-Lawrence and Meran responded to Ms. Howell's calls. On the first occasion, Ms. Howell showed the officers her order of protection. The officers told Ms. Howell that they would "ensure . . . that [Mr. Gaskin would] be removed from the premises." The officers spoke to Mr. Gaskin, who told the officers that he would leave his apartment and stay at his uncle's house. Ms. Howell overheard one of the officers speaking by phone to the uncle; the officers told Ms. Howell that the uncle "was coming for him and they will be leaving the premises." The officers waited outside with Mr. Gaskin until his uncle arrived. From her window, Ms. Howell saw Mr. Gaskin drive off with his uncle.² One of the officers returned and told Ms. Howell that Mr. Gaskin would be remaining with family members and "won't be returning." The officers made Ms. Howell "feel assured he won't be coming back."

The next day, as Ms. Howell was about to enter her apartment, she heard Mr. Gaskin inside. Mr. Gaskin was speaking on the phone in Ms. Howell's apartment, arranging for someone to assault and rob her. Ms. Howell recorded him through the door, left the building, and called 911 from outside, explaining what she had overheard and recorded.

The same two officers arrived. By that time, Mr. Gaskin had returned to his apartment on the third floor. The police asked Ms. Howell to show them the order of protection (which they had seen the day before) and Ms. Howell explained that Mr. Gaskin had ripped it up. Ms. Howell played the recording she had made; the officers told her that Mr. Gaskin had not mentioned her name as the person he was arranging to have robbed and assaulted, and therefore they were unconvinced. They found Mr. Gaskin in his apartment. Ms. Howell heard Mr. Gaskin tell the officers that he had returned for his clothes and the recording was not about Ms. Howell. The officers told Ms. Howell to return to her apartment and wait for them there, which she did. When the officers returned, one officer told Ms. Howell that they were "removing [Mr. Gaskin] from the premises" and he "would not be coming back." Ms. Howell saw the two officers escort Mr. Gaskin out of the building. The offi-

2. According to Ms. Howell, Mr. Gaskin's uncle "is something . . . I don't know if he's a detective." Ms. Howell testified that the uncle came around "all the time," always dressed in a suit, was known to the responding officers, and that Mr. Gaskin was treated specially because the officers knew his uncle and treated him deferentially. The defendants have not disputed those facts.

cers drove away, and Mr. Gaskin walked around the corner. The officers made Ms. Howell feel “assured that he won’t be coming back.”

The next day passed without incident until nighttime, when Mr. Gaskin began banging on Ms. Howell’s door with a pipe. Ms. Howell called the police; the same two officers arrived and saw Mr. Gaskin, pipe in hand in Ms. Howell’s apartment, with dents in the door and a lock broken off. The officers asked Mr. Gaskin, “[W]hat’s going on now?” Mr. Gaskin responded, “I don’t know, she called you.” Ms. Howell told the officers to look at the dents in the door and the busted lock, and said, “Ya’ll said he won’t be coming back and he’s banging my door now. He popped one of the locks off from trying to bust his way in.”

The officers did not arrest Mr. Gaskin. They did not ask him put the pipe down. They did not even ask him to explain himself. Instead, they said to Ms. Howell, “Why don’t you move[?] Why don’t you go and stay somewhere else if this keep[s] happening?” When Ms. Howell said she had no place to go, and that she had a right to stay in her apartment and Mr. Gaskin was not permitted to come to the floor of her building, the officers asked her to show them the order of protection—the one those same officers had seen two days before. Ms. Howell reminded them that Mr. Gaskin had ripped up her copy. She asked them to look up the order (as they are required to do by statute and by New York City Police Department [NYPD] protocol) but they told her it was “[her] business to go down and get another order of protection.”

The officers told Mr. Gaskin to go upstairs and not come down to the second floor. They went to talk with Mr. Gaskin, and then returned to Ms. Howell, telling her that Mr. Gaskin would not come downstairs; that Ms. Howell was “going to be okay”; that Mr. Gaskin “[would] be leaving”; and that Mr. Gaskin’s uncle wasn’t able to leave work until later, at which time he would remove Mr. Gaskin. They concluded their visit by telling Ms. Howell that if she called them again, they would arrest her.

Mr. Gaskin did not leave. He spent the night banging a hammer and stomping on the floor of his apartment, which was directly above Ms. Howell’s. Ms. Howell was scared: afraid to call the police because they threatened to arrest her if she called again, and afraid to leave her apartment because Mr. Gaskin was present: “I am scared not only of him but scared of getting arrested too.” She remained in her apartment overnight

and into the next day, leaving her house to attend the weekly meeting of her domestic violence victim support group in Brooklyn.

On November 18, 2008, while Ms. Howell was walking a friend home from their domestic violence class, Mr. Gaskin called her repeatedly, leaving messages asking where she was and apologizing for his behavior. Eventually she answered one of his calls and told him she was helping the friend.³ Mr. Gaskin knew where this friend lived because he had previously followed the pair home from a prior class. He came to the friend's house and started yelling at Ms. Howell, who became embarrassed. Wanting to de-escalate the situation, Ms. Howell left with Mr. Gaskin. As Mr. Gaskin dragged her by the arm down the street towards her building, she tried to keep him calm. When they arrived, they talked outside the building for about an hour. He wanted to talk inside. Ms. Howell eventually capitulated because she thought he seemed much calmer and said he just wanted to talk about their daughter.

However, once they were inside the building, Mr. Gaskin blocked the door to prevent her from leaving and took her phone. He pulled her by the hair and neck up to his apartment on the third floor while she tried to fight him off. Inside his apartment, he hit and choked her. She tried to yell for help from the window. Mr. Gaskin hit her in the head, and Ms. Howell fell to the floor. Mr. Gaskin then picked her up by her hair, told her, "[Y]ou want help, I'll send you for help," and threw her out of the window.

Ms. Howell landed on the handicap ramp leading into her building. Eventually, she caught the attention of two passersby, who called for an ambulance. One woman placed her coat under Ms. Howell's head and told her not to move. The same two offi-

3. Those of us who have not experienced domestic violence might wonder why Ms. Howell picked up the phone. In Ms. Howell's case, not answering the phone would not prevent Mr. Gaskin from finding her eventually given that he knew where she lived and in fact lived in the same building. Even putting that aside, researchers have long studied the question of why victims of domestic violence return to their abusers. People who have been repeatedly exposed to uncontrollable and aversive events often develop a trait described as "learned helplessness" (see Neta Bargai et al., *Posttraumatic Stress Disorder and Depression in Battered Women: The Mediating Role of Learned Helplessness*, 22 J Fam Viol 267 [2007]). Learned helplessness is a common and predictable response to domestic violence, and involves a "substantial decrease in associating action with positive outcome and leads to a marked reduction in the range of responses to external demands" (*id.* at 268).

cers arrived. They told Ms. Howell that she “should have listened” to them. They did not go inside when Ms. Howell told them Mr. Gaskin was upstairs and had pushed her out of the window. When the EMTs arrived, the same two officers told them that Ms. Howell was “fine,” that nothing was wrong with her.

II.

Ms. Howell sued the City and the two officers, alleging negligence. On February 14, 2011, Supreme Court ordered that the two officers be deposed on June 7, 2011. The City failed to produce the officers for depositions. On August 2, 2011, Supreme Court ordered the City to produce the officers for deposition on December 13, 2011. Once again, the City failed to produce the officers as ordered by the court. On June 19, 2012, Supreme Court again ordered the City to produce the officers for deposition, this time on October 30, 2012. Once again, the City failed to comply with the court’s order.

Instead, defendants moved to dismiss the complaint pursuant to CPLR 3211 (a) (7) and/or for summary judgment, on the following grounds: (1) Ms. Howell’s complaint against the City failed to plead a special duty; (2) “the City has put forth sufficient evidence to establish that no special duty—of any of the three types recognized by the Court of Appeals [a statute, assumption of direction and control, or voluntary assumption of a special duty]—existed as a matter of law”; and (3) Ms. Howell’s claim against the City for negligent hiring, training or supervision must be dismissed because (a) if the officers are liable for damages under a negligence theory, the City will be held responsible under respondeat superior, and therefore cannot be held liable for negligent supervision, retention, training or hiring; or (b) if the officers are not liable for damages, “there is no basis for imposing liability on the City . . . regardless of the quality of its training or supervision.”⁴ Ms. Howell opposed defendants’ summary judgment motion on the ground that the

4. Although the motion to dismiss and for summary judgment was filed on behalf of all defendants, the arguments pertain to the City’s liability only, and do not make any argument as to why the complaint against the officers should be dismissed. In particular, the motion does not claim that the officers (or City) are entitled to any sort of immunity, so it is curious that the majority chooses to avoid “[p]laintiff’s argument concerning governmental function immunity” (majority mem at 1010 [emphasis added]), when the defendants did not assert any such argument in their motion below and the burden to assert and, ultimately, prove such immunity would rest on defendants, not Ms. Howell.

motion was premature because defendants had failed to produce the officers for depositions, despite numerous court orders compelling those depositions. Supreme Court denied defendants' motion, without opinion, "with leave to renew after completion of discovery."

The Appellate Division, among other things, granted defendants' motion for summary judgment, without addressing the incompleteness of discovery or the City's failure to comply with Supreme Court's orders requiring the depositions of the officers. Instead, the Appellate Division held that Ms. Howell had failed to demonstrate that the defendants owed her a special duty. As a general rule, a municipality may not be held liable for injuries resulting from a simple failure to provide police protection (*see Cuffy v City of New York*, 69 NY2d 255, 260 [1987]). The underlying rationale is that while "a municipality owes a general duty to the public at large to furnish police protection, this does not create a duty of care running to a specific individual sufficient to support a negligence claim" (*Valdez v City of New York*, 18 NY3d 69, 75 [2011]). However, an exception to the general rule exists where a plaintiff can show that the municipality owed her a special duty. Such a special duty can arise in three ways, each of which is relevant here.

First, a special duty can arise where the plaintiff belongs to a class for whose benefit a statute was enacted. We have held that "[t]o form a special relationship through breach of a statutory duty, the governing statute must authorize a private right of action" (*McLean v City of New York*, 12 NY3d 194, 200 [2009]). A private right of action, in turn, "may be fairly implied when (1) the plaintiff is one of the class for whose particular benefit the statute was enacted; (2) recognition of a private right of action would promote the legislative purpose of the governing statute; and (3) to do so would be consistent with the legislative scheme" (*id.*).

Second and third, even where no statute creates a special duty, the actions of a governmental defendant may establish a special duty with regard to a particular person, under either of the two theories articulated by the City in its motion to dismiss: (1) assumption of positive direction and control of a dangerous situation (*see Smullen v City of New York*, 28 NY2d 66 [1971]; *Ferreira v City of Binghamton*, 38 NY3d 298 [2022]); or (2) the governmental defendant's voluntary assumption of a duty to the plaintiff beyond what is owed to the public generally (*see*

Applewhite v Accuhealth, Inc., 21 NY3d 420 [2013]). A municipality voluntarily assumes a special duty (which we have sometimes termed a “special relationship”) with a party where there is:

“(1) an assumption by the municipality, through promises or actions, of an affirmative duty to act on behalf of the party who was injured; (2) knowledge on the part of the municipality’s agents that inaction could lead to harm; (3) some form of direct contact between the municipality’s agents and the injured party; and (4) that party’s justifiable reliance on the municipality’s affirmative undertaking” (*Tara N.P. v Western Suffolk Bd. of Coop. Educ. Servs.*, 28 NY3d 709, 714-715 [2017] [emphasis omitted]).

The Appellate Division held that the defendants were entitled to summary judgment as a matter of law because Ms. Howell had not raised an issue of fact as to any type of special duty in response to defendants’ motion for summary judgment. The majority agrees, holding that Ms. Howell did not preserve a statutorily-based argument as to the existence of a special duty, and that the factual record establishes that Ms. Howell cannot establish a special duty otherwise. I disagree as to both.

III.

I begin with a preliminary matter related to fundamental fairness of our processes. Supreme Court thrice ordered the City to produce the defendant officers for their depositions. The City deposed Ms. Howell, and the Appellate Division and majority used her testimony against her to extinguish her claim. Supreme Court, which should be offered wide latitude in managing discovery,⁵ concluded that it would be inappropriate even to consider the City’s motion to dismiss or for summary judgment until the two defendant officers could be deposed.

5. See e.g. *Hamed v Alas Realty Corp.*, 209 AD3d 628, 629 (2d Dept 2022) (“The supervision of discovery, and the setting of reasonable terms and conditions for disclosure, are within the sound discretion of the Supreme Court. The Supreme Court’s discretion is broad because it is familiar with the action before it, and its exercise should not be disturbed on appeal unless it was improvidently exercised” [internal quotation marks omitted]), quoting *Provident Life & Cas. Ins. Co. v Brittenham*, 284 AD2d 518, 518 (2d Dept 2001); *Di Mascio v General Elec. Co.*, 307 AD2d 600, 601 (3d Dept 2003) (“The trial court is afforded broad discretion in supervising disclosure and its determinations will not be disturbed unless that discretion has been clearly abused”).

Suppose, for example, the officers explained that Mr. Gaskin's uncle was a high-ranking NYPD official, who instructed them that he would ensure that his nephew would comply with the orders of protection and that such information should be conveyed to Ms. Howell. Or suppose the officers merely said, as Ms. Howell argues here, that Mr. Gaskin was being provoked by Ms. Howell's reports to the police, and as long as she did not call them in the future, they had the situation under control and she could rely on that representation. Or suppose the officers said that they knew they had a mandatory statutory duty to arrest Mr. Gaskin, but decided to break the law. Would Ms. Howell still have no claim?

Given Supreme Court's repeated orders, flouted by the City, to produce the two officers for deposition, it is perfectly understandable that Ms. Howell's counsel would object to the City's motion on the ground that discovery was not complete, and perfectly understandable that Supreme Court, in view of the repeated defiance of its orders and the centrality of these two officers to the claims asserted, would summarily deny the motion without prejudice to its renewal once discovery was complete. Where our preservation doctrine rests on avoiding the "blindsiding" of parties, the party blindsided here is Ms. Howell. I would hold that the Appellate Division abused its discretion in granting the City summary judgment in view of the City's repeated flouting of Supreme Court's orders and the centrality of Officers Mosely-Lawrence and Meran to the issues in this case.

IV.

Putting aside the procedural unfairness of treating any claim of Ms. Howell's as unpreserved, both issues are fully preserved for our decision. The majority agrees that Ms. Howell's claims concerning the existence of a nonstatutory special duty are preserved; it disposes of those claims on the merits. I discuss them *infra* at part VI. Whether the DVIA imposes a statutory special duty is also preserved for our review, albeit by the City rather than Ms. Howell.

Our preservation doctrine generally requires that we will not consider an issue on appeal that has not been raised below, out of concerns for blindsiding parties and judicial economy. The paradigmatic cases include the failure to object to the introduction of evidence, failure to object to jury instructions, or failure to object to the qualifications of jurors. In such cases, judicial

efficiency and orderly judicial process require the timely interposition of objections; the court system could not function were litigants free to raise those sorts of objections post hoc, when a trial court could have addressed them had they been timely made.

As to other sorts of issues, not those where the question is the failure to interpose a timely objection, but instead the failure to raise a legal issue in the court of instance, we have also declined to hear new issues, raised for the first time on appeal, out of a concern for the blindsiding of an adverse party (*see e.g. Misicki v Caradonna*, 12 NY3d 511, 519 [2009] [“We are not in the business of blindsiding litigants, who expect us to decide their appeals on rationales advanced by the parties, not arguments their adversaries never made”]). The preservation doctrine, however, is “far less restrictive than some case language would indicate”; we have carved out an exception that applies even when issues were “raised neither at the trial nor at previous stages of appeal,” so long as the new contentions could not have “been obviated or cured by factual showings or legal countersteps” (*Telaro v Telaro*, 25 NY2d 433, 439 [1969]; *see also American Sugar Ref. Co. of N.Y. v Waterfront Commn. of N.Y. Harbor*, 55 NY2d 11, 25 [1982]; Arthur Karger, Powers of the New York Court of Appeals § 17:2 [3d ed rev 2005]).⁶ Here, however, neither judicial efficiency nor a concern for blindsiding applies. The City itself, in its moving papers, raised the issue of whether a statute created a special duty, and spent several pages arguing that no such duty existed. Because the issue was clearly raised in Supreme Court, it was preserved. The City cannot claim to have been blindsided because it raised the issue as a ground on which it sought to dismiss the complaint. Although it is true that Ms. Howell opposed the City’s motion solely on the ground that the City had failed to provide the

6. The circumstances here fit within the exception as well. The question of whether a statute (here, the DVIA) creates an implied cause of action is a pure question of law; there are no “factual showings or legal countersteps” that could have resolved it below, “turning as it does on legislative intent” (*American Sugar Ref. Co.*, 55 NY2d at 25). The issue presented to us is whether, when officers disobey the legislature’s mandatory arrest command and a victim of domestic violence is injured as a result, that victim can sue the municipality to recover damages. Our Court may answer yes or no, but *some* answer will, at least, provide the legislature, the Governor, and the public with the basis to act accordingly should they disagree with us. This is precisely why our *Telaro* exception exists: no fact in this or any future case will affect our determination as to statutory special duty arising from the DVIA’s mandatory arrest provision.

court-ordered discovery to which she was entitled, Ms. Howell's failure to address the issue in Supreme Court does not render it unpreserved. One might contend that Ms. Howell waived the issue by failing to respond to it, but waiver is different from a lack of preservation: waiver requires a deliberate decision to forgo a claim or argument (*see People v Ahmed*, 66 NY2d 307, 311 [1985]). Neither the City nor the Appellate Division contended that Ms. Howell had waived the argument, and because Ms. Howell prevailed in Supreme Court, it would be difficult to conclude that she affirmatively waived a statutorily-based claim of special duty rather than standing on what she believed (and Supreme Court held) was the clear winner, deferring the merits argument until the completion of discovery.

Here, we have (1) the presentation of the statutorily-based special duty issue in Supreme Court, and (2) the decision of the Appellate Division that "plaintiff's alternate contention that the defendants violated a statutory duty to her is without merit"—with no suggestion by the Appellate Division that the issue was not preserved (*see* 191 AD3d 771, 774 [2d Dept 2021]). None of our decisions on preservation holds that when a party has raised a question of law in the court of instance, that court decides on a different ground, and the Appellate Division reverses by reaching the issue raised below, the issue of law is unpreserved for our review. No purpose underlying our preservation rules is served by treating the question decided here by the Appellate Division—that the DVIA's requirement that police officers arrest violators of protective orders who are found at the scene in violation of such an order does not create a statutory duty—as unpreserved. The City itself advanced that issue as a ground for ruling in its favor, which the Appellate Division then did.

V.

I would hold that CPL 140.10 (4) (b) establishes a statutory special duty for holders of domestic violence protective orders. In *Pelaez v Seide* (2 NY3d 186, 200 [2004]), we held:

"To form a special relationship through breach of a statutory duty, the governing statute must authorize a private right of action. One may be fairly implied when (1) the plaintiff is one of the class for whose particular benefit the statute was enacted; (2) recognition of a private right of action would promote the legislative purpose of the governing

statute; and (3) to do so would be consistent with the legislative scheme.”

The first prong is indisputably met here. CPL 140.10 (4) (b) requires:

“Notwithstanding any other provisions of this section, a police officer shall arrest a person, and shall not attempt to reconcile the parties or mediate, where such officer has reasonable cause to believe that: . . .

“(b) a duly served order of protection or special order of conditions issued pursuant to subparagraph (i) or (ii) of paragraph (o) of subdivision one of section 330.20 of this chapter is in effect, or an order of which the respondent or defendant has actual knowledge because he or she was present in court when such order was issued . . . ; and

“(i) Such order directs that the respondent or defendant stay away from persons on whose behalf the order of protection or special order of conditions has been issued and the respondent or defendant committed an act or acts in violation of such ‘stay away’ provision of such order; or

“(ii) The respondent or defendant commits a family offense as defined in subdivision one of section eight hundred twelve of the family court act or subdivision one of section 530.11 of this chapter in violation of such order of protection or special order of conditions.”

Ms. Howell, who had eight domestic violence orders of protection against Mr. Gaskin ordering him to stay away, is a member of the class for whose benefit CPL 140.10 (4) was enacted: victims of domestic violence who have obtained orders of protection.

I turn next to the third *Pelaez* factor, which we have deemed the “most important” of the three and “frequently determinative” (*Ortiz v Ciox Health LLC*, 37 NY3d 353, 360, 361 [2021]). “[W]here a statutory scheme contains private or public enforcement mechanisms, this demonstrates that the legislature considered and decided what avenues of relief were appropriate” (*id.* at 362). Here, the legislature imposed a duty but provided no public or private enforcement mechanism, and no preexisting mechanism existed by which the new statutory

duty could be enforced. Thus, the most important *Pelaez* factor cuts in favor of implying a private right of action. Turning to the second factor, advancement of the legislative scheme, we have noted that “[t]he second prong is itself a two-part inquiry. We must first discern what the Legislature was seeking to accomplish when it enacted the statute, and then determine whether a private right of action would promote that objective” (*id.* at 363). The legislature’s objective in enacting CPL 140.10 (4) as part of the DVIA is painfully obvious.

In 1994, the year the DVIA was enacted, the New York State Division of Criminal Justice Services (DCJS) recorded 61,258 reports of domestic violence between married couples. Of these offenses, 53,683 were perpetrated by husbands against their wives (or common-law wives); 5,691 of the incidents included a husband violating his wife’s order of protection against him.⁷ Data at the time covered only married couples; thus the numbers are vastly understated. Despite the underinclusive nature of the data, DCJS recorded 87 domestic violence homicides among this subset in 1993 alone.⁸ During the years 1991 through 1995 in New York State, DCJS data showed that the rate of violent crimes in general decreased every year. During the same period, however, domestic violence offenses did not decrease. Legislators who sponsored the DVIA estimated that “some 4,000 women will be killed nationally this year by way of incidents of domestic violence. Some 15 seconds can’t elapse in this country without a woman being a victim of domestic violence.”⁹

By enacting the DVIA, the legislature sought to protect victims of domestic abuse from the escalation of violence—and the police indifference—of exactly the type that Ms. Howell experienced. In 1993 and 1994, legislators held months of hearings across the state to gather information about the scope and causes of, and potential solutions to, domestic violence. Those hearings included testimony from, *inter alia*, survivors, law enforcement, judges, advocates, academics, and social services professionals. Both the Senate and Assembly sponsors’ bill

7. Division of Criminal Justice Services, 1994 Crime and Justice Annual Report at 38.

8. Commission on Domestic Violence Fatalities, Report to the Governor at 5 (Oct. 1997).

9. Public Hearing on the Revision of New York State’s Laws Pertaining to Domestic Violence, including how the Statutory Law Can Better Protect Victims of Domestic Violence and Prosecute Violent Family Offenders at 3 (Nov. 29, 1993).

memoranda termed domestic violence “a crime of enormous magnitude and tragic consequences,” and observed that “[t]he National Institute of Mental Health has identified battering as the leading cause of injury to women, more than auto accidents, rapes and mugging combined” (Senate Introducer’s Mem in Support, Bill Jacket, L 1994, ch 222 at 23; Assembly Sponsor’s Letter in Support, Bill Jacket, L 1994, ch 222 at 10-11).

The sponsors of the DVIA were aware that police often failed to enforce orders of protection or otherwise failed to intervene in domestic violence situations. Our Court had long been aware of the problem as well. In *Bruno v Codd* (47 NY2d 582 [1979]), 12 domestic violence victims sued the NYPD, the Department of Probation, and the Family Court, alleging discrimination and misconduct against them for the defendants’ failure to enforce and comply with statutes and regulations regarding domestic violence complaints. We noted that a

“primary concern voiced in plaintiffs’ complaint is frequent failure of officers of the New York City Police Department to respond to requests for safeguarding made by or on behalf of a battered or threatened wife, presumably because of reluctance on the part of the police to intervene in what they reflexively characterized as ‘domestic disputes’ rather than criminal offenses” (*id.* at 590).

In the introduction to the Senate bill that became the DVIA, the sponsors (composed of 37 Senators) noted that “one of the major problems contributing to the recurrence of domestic violence lies in the absence of aggressive enforcement by law enforcement officials.” Because of this, a key provision of the legislation provides that a police officer must arrest someone who violates a stay-away order of protection (CPL 140.10 [4]). Senator Saland’s letter to the Governor’s Counsel listed “New York’s first mandatory arrest law” first among the DVIA’s highlights (Senate Sponsor’s Letter in Support, Bill Jacket, L 1994, ch 222 at 6). Assemblyperson Weinstein’s letter to the Governor’s Counsel likewise identified the mandatory arrest provision as a “cornerstone of this legislation” (Assembly Sponsor’s Letter in Support, Bill Jacket, L 1994, ch 222 at 9). The Governor’s approval memorandum noted that the DVIA included “a four-year pilot program requiring mandatory arrest

of family offenders,”¹⁰ and further explained that the DVIA created a system by which police officers could “retrieve information on orders of protection and family court arrest warrants automatically,” which would “enhance police response in domestic violence cases” (Governor’s Approval Mem, Bill Jacket, L 1994, ch 222 at 26-27).

The legislative history contains letters of support from hundreds of activists, service providers, and ordinary citizens urging the Governor to approve the bill. Those letters overwhelmingly focus on the concern addressed by the mandatory arrest provision (for example, that “[b]atterers ignore Orders of Protection and go unpunished” and that “[t]he courts, the police and the legislature have historically failed to protect battered women and their children”), and many explicitly voice their support for that provision (*see e.g.* Letters in Support, Bill Jacket, L 1994, ch 222, *passim*). Hundreds of supporters called the Governor’s office; internal communications indicate that the callers “specifically want[ed] the mandatory arrest part of the bill left intact” (Bill Jacket, L 1994, ch 222 at 50-51). Ironically, the defendant here, the City of New York, wrote to the Governor to pronounce: “One of the most critical provisions of this bill would call for arrests in cases involving family offenses” (City of NY Off of Mayor Mem in Support, Bill Jacket, L 1994, ch 222 at 80).

Thus, it could not be clearer that the legislature believed it extraordinarily important that perpetrators of domestic violence who violated orders of protection would be arrested—without exception. That satisfies the first part of *Pelaez*’s second prong. The second part of that prong asks whether a private right of action would promote that objective.

The salutary effect of damage suits for officers who violate the rights of others is well established (*see e.g. Richardson v McKnight*, 521 US 399, 403 [1997] [noting the purpose of damage awards under 42 USC § 1983, enacted as part of the 1871 Civil Rights Act, is to “deter state actors from using the badge

10. The mandatory arrest provision has been renewed every two years without lapse since its enactment in 1994. In addition, the New York Police Department patrol guide in effect when Officers Meran and Mosely-Lawrence responded to Ms. Howell’s calls for help required that officers must “[a]rrest offender even if complainant-victim requests that offender not be arrested” (NYPD Patrol Guide 208-36 [issued Aug. 15, 2003]). It also required officers, when a complainant was not able to produce the order of protection, to call first the Central Records Division, then the precinct of occurrence, then the communications dispatcher to verify the details of the order (*see id.*).

of their authority to deprive individuals of their federally guaranteed rights” (emphasis omitted)). The countervailing concern—the drain on financial resources of the governmental defendants who end up paying for the officers’ transgressions—is carefully cabined by two features. First, governmental immunity doctrines bar recovery in most cases; the most egregious cases, where immunity is unavailable, have not resulted in governmental insolvency (see e.g. *Brownridge v City of New York*, ED NY, Dec. 30, 2021, No. 1:2021cv04603 [\$13,000,000 settlement for misconduct including faulty detective work]; *Alvarado v City of New York*, Sup Ct, Kings County, July 26, 2022, index No. 516399/2019 [\$12,000,000 settlement for excessive force resulting in injury to neck and spinal cord]; see generally Legal Aid Society, *Law Enforcement Lookup, Civil Lawsuits (NYPD)*, <https://legalaidnyc.org/law-enforcement-lookup/> [last accessed Nov. 2, 2022]). Second, the prospect of money damages gives governmental authorities the incentive to cause their employees to comply with the law. The deterrent function of compensatory damages to incentivize governmental actors to comply with law is firmly established (see e.g. *Hardin v Straub*, 490 US 536, 539 [1989] [(42 USC) § 1983’s chief goals (are) compensation and deterrence]; *Memphis Community School Dist. v Stachura*, 477 US 299, 307 [1986] [“Deterrence is also an important purpose of this system (42 USC § 1983), but it operates through the mechanism of damages that are *compensatory*”]; *Carey v Phipus*, 435 US 247, 256-257 [1978] [compensatory damages have an “inherent” and “formidable” deterrent effect]). For these reasons, I would hold that the second part of *Pelaez*’s second prong has been met as well.

In short, the City bore a statutory special duty to Ms. Howell, because the satisfaction of the test for a private right of action establishes that special duty, as required by *Pelaez*. The officers plainly breached that duty; causation and damages would be determined at trial.¹¹

11. Only for the purpose of this appeal do I assume that *Pelaez* properly equated the test for the existence of a statutory special duty with a private right of action.

Conceptually, determining whether to imply a cause of action asks whether the legislature wished to provide one. The presumption under our case law is that the legislature did *not* intend to create a cause of action, which can be overcome when the three-part test establishes that the legislature must have meant to allow one. But negligence claims (and subsidiary doctrines such as special duty) are established by the common law and courts. The legislative

(n. cont’d)

presumption operates in exactly the opposite direction: the legislature can displace the common law only by doing so clearly and unequivocally (*see e.g. Hechter v New York Life Ins. Co.*, 46 NY2d 34, 39 [1978] [(“It is a general rule of statutory construction that a clear and specific legislative intent is required to override the common law”). Because common-law doctrines like negligence are judicially managed, the courts are expected to adapt them in response to changing needs (*see e.g. MacPherson v Buick Motor Co.*, 217 NY 382, 391 [1916] [noting theories of negligence ought to change alongside the “the needs of life in a developing civilization”]; *Woods v Lancet*, 303 NY 349, 355 [1951] [“We act in the finest common-law tradition when we adapt and alter decisional law to produce common-sense justice”]). Thus, determining the scope of the common-law negligence claim and the judicially-made special duty requirement is a judicial function shaped by the court’s evaluation of public policy. Our evaluation should certainly consider the legislature’s policy in enacting the DVIA and the mandatory arrest requirement, but is not controlled by the absence of an explicit or implied right of action. If, on the other hand, we were evaluating a statutory cause of action, we would not apply these immunities (or, for that matter, ask whether the injury was proximately caused by the officers’ conduct); but-for causation is all that a plaintiff must show when a statute sets out prohibited conduct and provides a civil remedy.

Analytically, *Pelaez* misapplied *Sheehy v Big Flats Community Day* (73 NY2d 629 [1989]). A subsequent case, *McLean v City of New York* (12 NY3d at 200), entrenched the error. In *Sheehy*, a minor was served alcohol at a community fair and was injured. She sued to recover for her injuries. We separately considered and rejected, first, her claim that the various statutory prohibitions against serving alcohol to minors created a private right of action, and second, her claim that an action in negligence should lie. We rejected the latter not because there was no private right of action in the various statutes, but for two reasons: (1) courts had consistently held that no “duty exists to protect a consumer of alcohol from the results of his or her own voluntary conduct”; and (2) the Dram Act “made express provision for civil remedy, albeit a narrower remedy than the plaintiff might wish,” which we saw as a factor counseling against recognizing a duty (*Sheehy*, 73 NY2d at 636). *Sheehy*, then, supports my view. *Pelaez* and *McLean* conflate *Sheehy*’s two distinct holdings. If, for example, *Sheehy* had held that a duty existed, the fact that the legislature had provided a different civil statutory remedy would not be sufficient to displace the common law allowing tort recovery. *Pelaez* and *McLean*, by using the legislature’s silence on the provision of a civil remedy to eliminate a common-law tort action that might otherwise exist, contravene our requirement that a legislative displacement of the common law must be clear and unmistakable.

That error is further evidenced by the doctrine of negligence per se. As recognized in the First, Second, and Third Restatements of Torts, the violation of a statute intended to protect the victim may establish both duty and breach (*see e.g. Martin v Herzog*, 228 NY 164 [1920]; *see also* Restatement [Third] of Torts: Liability for Physical and Emotional Harm § 14, Comment c, Statutory Violations as Negligence Per Se [(“N)egligence per se has been settled doctrine in American tort law for many decades”). Under that settled doctrine, “[a]n actor is negligent if, without excuse, the actor violates a statute that is designed to protect against the type of accident the actor’s conduct causes, and if the accident victim is within the class of persons the statute is designed to protect” (*id.* § 14).

(n. cont’d)

VI.

Independently from the existence of a statutory special duty, Ms. Howell has raised a triable issue of fact as to the existence of a special duty based on the City's assumption of control over a dangerous situation or its voluntary assumption of a duty to Ms. Howell. As to both of these theories, the majority rests its decision solely on its assertion that the record conclusively demonstrates that Ms. Howell did not justifiably rely on anything the officers did or said.

A.

In Supreme Court, the City contended that a "special duty can be created . . . when the municipality assumes positive direction and control in the face of a known, blatant and dangerous safety violation." The City argued that such instances were "rare" because our case law required that "the defendant knowingly directed the plaintiff into the path of danger" (citing *O'Connor v City of New York*, 58 NY2d 184 [1983]) and applied only "where the municipality exercises direct personal supervision over the injured person." However, earlier this year we decided *Ferreira v City of Binghamton* (38 NY3d 298 [2022]), which renders the City's argument below

Far from requiring an implied cause of action to create a statutory duty, traditional negligence per se doctrine

"presupposes a statute that declares conduct unlawful but that is silent as to civil liability and that cannot be readily interpreted as impliedly creating a private right of action. This Section [of the Restatement] hence acknowledges that the statute may not itself provide civil liability. This Section nevertheless concludes that courts, exercising their common-law authority to develop tort doctrine, not only should regard the actor's statutory violation as evidence admissible against the actor, but should treat that violation as actually determining the actor's negligence. An unexcused violation of the statute is thus negligence per se" (*id.* § 14, Comment c).

Negligence per se thus

"addresses the interstices left when statutes neither provide for nor negate private rights of action. When the legislature has not provided a remedy, but the interest protected is physical or emotional harm, courts may consider the legislative purpose and the values reflected in the statute to decide that the purpose and values justify adopting a duty that the common law had not previously recognized" (*id.* § 38, Comment c).

Thus, were we to evaluate Ms. Howell's claim under the traditional doctrine of negligence per se, we would regard the officers' unexcused statutory violation as "actually determining [their] negligence" (*id.* § 14, Comment c). Proximate cause, of course, would be a question for the finder of fact.

untenable. In *Ferreira*, we held that a special duty exists when governmental actors plan and enforce a no-knock warrant, with the duty running to all occupants of the target premises (see *id.* at 317-318). The police in *Ferreira* did not knowingly direct any specific person into the path of danger (they did not even know the plaintiff existed) and the plaintiff was not someone over whom the police exercised any supervision or with whom the police had any relationship whatsoever. Instead, *Ferreira* held that a special duty exists as to the planning and execution of no-knock warrants because “the police direct and control a known and dangerous condition, effectively taking command of the premises and temporarily detaining occupants of the targeted location” (*id.* at 318). Key to that holding was the determination that “the municipality’s duty to the individuals in the targeted premises, a limited class of potential plaintiffs, exceeds the duty the municipality owes to the members of the general public,” thus distinguishing the claim from those asserting negligence to the public at large (*id.*). *Ferreira*’s articulation contains two important innovations in the common law of special duty: first, when the government takes charge of a dangerous situation, the governmental defendant need not know of the existence of a person for the special duty to attach to that person; and second, we created a categorical rule applicable to all no-knock warrants, which we had not previously done for any type of special duty.

Here, Ms. Howell has raised a triable issue as to whether the police “direct[ed] and controll[ed] a known and dangerous condition” (*id.*). The existence of multiple orders of protection; Mr. Gaskin’s prior beating of a pregnant Ms. Howell; and his repeated violations of the orders of protection observed by the officers, including his bashing of her door with a pipe and breaking her lock, establish that the situation was known and dangerous. In the light most favorable to Ms. Howell, the officers’ repeated assurances that she would be safe; the officers’ involvement of Mr. Gaskin’s uncle; the emphatic instruction that Ms. Howell should not call the police again; and the officers’ decision to violate CPL 140.10 (4) and instead resolve the threat in their own way, would allow a trier of fact to conclude that the officers had “directed and controlled” the dangerous condition.

B.

In Supreme Court, the City also contended that a special duty could be created “when the municipality voluntarily as-

sumes a duty that generates justifiable reliance by the person who benefits from the duty” (citing *Pelaez*, *Cuffy*, and *Valdez*). The majority, after reciting the four *Cuffy* factors necessary to establish the voluntary assumption of a special duty, does not contend that Ms. Howell has failed to meet the first three factors, but holds that she failed to raise a triable issue of fact as to the “critical” fourth element—justifiable reliance.

Here, the fourth factor is “critical” because Ms. Howell has indisputably satisfied the other three. The first two factors in the special relationship test—assumption of an affirmative duty to act and knowledge that inaction could lead to harm—are satisfied as a matter of law by the issuance of an order of protection (*Mastroianni v County of Suffolk*, 91 NY2d 198, 204 [1997] [(A) duly issued order of protection constitutes an ‘assumption’ of an ‘affirmative duty’ of protection coupled with an awareness that ‘inaction could lead to harm’ ”], quoting *Cuffy*, 69 NY2d at 260). No one contends that the officers’ repeated interactions with Ms. Howell fail to satisfy the third “direct contact” *Cuffy* factor. Thus, Ms. Howell’s claim that the City owed her a special duty via *Cuffy*’s voluntary assumption test turns solely on the issue of justifiable reliance.

On summary judgment, all facts must be taken in the light most favorable to Ms. Howell. Here, defendants proffered no evidence at all. A reasonable trier of fact could have concluded that the officers repeatedly told Ms. Howell she would be safe; that they had talked to Mr. Gaskin and told him not to harass her; that they assured her Mr. Gaskin would be staying with his uncle; and that the police were familiar with his uncle, who has some special relationship with the police. The City and Appellate Division focus on other portions of Ms. Howell’s testimony—for example, that she was scared, or that she knew Mr. Gaskin had remained in his apartment despite the officers’ instruction that he leave, or that the police told her to move out of her own apartment and threatened her with arrest if she called them again—all of which, if taken in the light *least* favorable to Ms. Howell, could result in a verdict against her. Notably, though,

“credibility, the reconciliation of . . . conflicting statements, a determination of which should be accepted and which rejected, and the truthfulness and accuracy of [a witness’s] testimony, whether contradicted or not, were exclusively for the jury, the trier of the facts. The court could not put its

finger upon any particular item of testimony by [a witness] and say, as matter of law, that it was the truth” (*Lee v City Brewing Corp.*, 279 NY 380, 384 [1939] [citations omitted]).

Evaluating the facts in the light most favorable to Ms. Howell, she understood Mr. Gaskin had not left the building because his uncle was working late and not immediately available to transport him away and that Mr. Gaskin’s prior appearances were merely to recover his clothes and were sanctioned by the officers. From her observations about the relationship between Mr. Gaskin’s uncle and the officers, a trier of fact could conclude that Ms. Howell understood that the officers were taking a step to ensure her security by involving the uncle, who appeared to have some authority over the officers. A reasonable trier of fact could also have found that by telling Ms. Howell that if she called the police again, *she* would be arrested, the police were telling her they had the situation under control, there was absolutely no need for her to call again to seek their further protection, and it was her summoning of the police that was escalating the situation with Mr. Gaskin. Furthermore, despite her experiences with the officers thus far, when Ms. Howell was being assaulted on November 18, she yelled out of the window to ask any person within earshot to call the police, demonstrating that she continued to rely on them to aid her. “Whether a special relationship exists is generally a question for the jury” (*Coleson v City of New York*, 24 NY3d 476, 483 [2014]). The evidence tendered in this case creates a triable issue of fact, sufficient to defeat a motion for summary judgment.

Most fundamentally, victims of domestic violence who have obtained orders of protection from our courts are a limited class of persons justifiably entitled to rely on the DVIA’s mandatory arrest provision. How could it be otherwise? The majority’s holding—that despite the multiple orders of protection and emphatic action by the legislature and Governor requiring the arrest of violators of such orders, two officers are able to countermand all three branches of government and render the victim’s reliance on the law “unjustifiable”—is baffling. What, then, becomes of our holding in *Mastroianni* that “a duly issued order of protection constitutes an ‘assumption’ of an ‘affirmative duty’ of protection coupled with awareness that ‘inaction could lead to harm’ ” (91 NY2d at 204)? In *Mastroianni*, we held that a plaintiff could justifiably rely on police

protection even though the police told her they would *not* arrest her assailant. The order itself, and the protection it is intended to afford, are the affirmative undertakings on which a plaintiff may justifiably rely (see *Dinardo v City of New York*, 13 NY3d 872, 877 [2009, Lippman, Ch. J., concurring] [“The touchstone of the special duty rule is that the government, by its undertaking to the specific plaintiff, has gone above and beyond the general duty it owes to the public and created a unique relationship with that plaintiff, upon which he or she is entitled to rely”]).

Likewise, in *Sorichetti v City of New York* (65 NY2d 461 [1985]), we held that a special relationship existed, and emphasized that an order of protection

“evinces a preincident legislative and judicial determination that its holder should be accorded a reasonable degree of protection from a particular individual. It is presumptive evidence that the individual whose conduct is proscribed has already been found by a court to be a dangerous or violent person and that violations of the order’s terms should be treated seriously. Significantly, the class of potential victims to whom a duty to investigate might arise is necessarily limited by the terms of the order” (*id.* at 469-470; see also *Cuffy*, 69 NY2d at 262 [(T)he presence of a judicial order of protection contributed to our conclusion in *Sorichetti* that an actionable relationship existed”]).

Parallels between *Sorichetti* and Ms. Howell’s case are instructive. Both had orders of protection in place—though Ms. Howell’s was augmented by the mandatory arrest provision of the DVIA. The officers in both cases knew of the offender’s violent tendencies. The responses to Ms. Sorichetti—it’s “‘only a piece of paper’ that ‘means nothing,’ ” “‘wait outside,’ ” and “‘go home’ ” (*Sorichetti*, 65 NY2d at 466, 471)—are exactly the sort of statements the Appellate Division cited to contend that Ms. Howell could not justifiably rely on the police.

Are we to allow individual officers, by disobeying the law and threatening to arrest the victim holding an order of protection, to render reliance on the law unjustifiable? Sadly, that is precisely what the majority holds: had the officers unequivocally said, “you can rely on us to follow the law and arrest Mr. Gaskin, and you will be safe,” Ms. Howell’s case could proceed, but because the officers said, “we will disregard the law and

you are on your own,” her case must fail. Police officers have discretion in how they choose to enforce the laws. Should they now be given discretion to write laws out of existence?

The majority quotes *Mastroianni* (a case in which we upheld a money damages award against the police for failing to protect the victim) for the proposition that the “mere existence of an order of protection, standing alone, will not prove justifiable reliance” (majority mem at 1009). The events in *Mastroianni* took place a decade before the legislature acted to require the police to arrest violators of domestic violence orders of protection, without exception. The order of protection here does not stand alone; it is accompanied by forceful and unambiguous legislative action, taken in response to countless events like those in *Mastroianni*. Indeed, this case does not even call on us to decide whether the violation of the mandatory arrest statute creates a rebuttable presumption of reliance or conclusive proof of reliance; either would be enough to defeat the City’s motion for summary judgment.

The majority insists that the legislature could not have intended to impose liability for police failure to comply with the DVIA’s mandatory arrest provision because, “[g]iven the numbers above, the cost of potential municipal liability regarding violations of orders of protection would far exceed the [\$500,000 appropriated by the legislature] and would have a significant impact on municipal finances” (majority mem at 1010). I have three responses to the majority’s argument. First, the calculation by the budget office in 1994 (including that the bill would have no “fiscal implications” for local municipalities) of the expected cost of the legislation surely did not assume that officers would violate the statute by disobeying the mandatory arrest requirement. The budget office estimate measured the cost of the legislation if obeyed, not if flouted. Second, the 195,000 domestic violence orders of protection issued since 2011 will impose no liability on municipalities unless: (a) the subject of an order violates it; (b) the police disregard the mandatory arrest law; (c) injury proximately follows from the police inaction; and (d) governmental function immunity does not bar recovery even when a special duty is established (on this last point, see majority mem at 1008 n 1). Third, the legislative history cited by the majority does not support its conclusion. Immediately below the statements cited by the majority appears the following: “The longer term State operations impact for the above agencies . . . will depend on felony arrest

activity . . . Unfortunately, the criminal justice sector could not provide any estimates of workload impact” (Budget Rep on Bills, Bill Jacket, L 1994, ch 222 at 38). Thus, the legislature acknowledged that the budget office’s cost estimate was under-inclusive. Additionally, during the statewide hearings the legislature held while drafting the DVIA, Senator Saland, the bill’s sponsor, questioned the City of Buffalo Police Commissioner about expenses associated with the “instances in which the defendants or respondents have started litigation charging false arrest” after their cases were dismissed for lack of a true complainant (Nov. 29, 1993 Domestic Violence Hearing at 59). Asked whether he had “a suggestion . . . that might enable us to create a mechanism that shields your department, your officers and parole officers from having to place themselves, or be placed in that situation where they [effect a mandatory arrest required by law] and then they and their municipality find themselves subject to the lawsuit,” the Commissioner agreed that “something to protect the police officers would be very, very important” (*id.* at 61), but distinguished between liability arising from

“our number one concern that . . . no action having been taken, the officers leave that scene and then the victim is assaulted further or in the worst case obviously we’ve had homicides as a result of this so, you know, the issue of any kind of physical harm or serious physical injury to the victim would be very, very important,” and liability arising from the concern that officers “will not be criticized for making a bad arrest or that there is a liability issue of making a false arrest coming against the officer” (*id.* at 61-62).

Senator Saland responded that they were

“looking, contemplating, there is nothing in the bill that addresses it now, but something akin to the language that’s in the Social Service Law that deals with mandatory report, providing them with, in effect, a good faith immunity for basically doing what the law requires of them and doing it in a fashion that, if anything, is short of being grossly negligent” (*id.* at 62).

Senator Daly noted that the following language “would go far in that way: The police officer shall arrest in the course of his duty” (*id.*). The inescapable conclusion is that the legislature

wanted any immunity to incentivize officers to *follow* the law, not to protect them when they failed to do so.

The majority's core argument for disregarding the legislature's decision—we're afraid of the cost—could just as easily be applied to police brutality cases or deprivations of civil rights. The simple answer to that argument is: when governmental entities follow the law, they will face no liability. The courts issued Ms. Howell multiple orders of protection. She reasonably relied on them. The legislature required the police to arrest Mr. Gaskin. She reasonably relied on the statute. Even putting those aside, her statements, taken in a light most favorable to her, establish her reliance.

VII.

I offer one final observation. In *Ferreira*, we held that police officers planning or executing a no-knock warrant owe a special duty to all those inside the targeted premises. That includes people within the premises as to whom probable cause exists to arrest them, some of whom pose such a threat to the police that a no-knock warrant is required. If the police plan or execute the raid negligently, any person within the premises, including the violent criminal dreaded by the police, may recover money damages from the government. Here, the majority holds that a *victim* of domestic violence, granted special protections by the courts and legislature, may not recover damages when officers violate the law. The genius of the common law is that it does not require that outcome, but allows our court to adjust the common-law doctrines of negligence and special duty as fairness and justice require.

RIVERA, J. (dissenting).

“[The police officers said] what’s going on now. . . . I said look at what he’s doing. He did this to my door and look. I said I don’t know what—he’s calling me all types of names and everything and he’s trying to bust in. [The officer] said how many times you going to keep calling us. Why don’t you move. Why don’t you go and stay somewhere else if this keep[s] happening. . . .

“I said I don’t have no place else to be. This is my apartment and even if his apartment is upstairs if he’s not supposed to be here or come down to my floor the order of protection says. Well, show me

again. I said Miss, I told you the other day he ripped it. They said it's my business to go down and get another order of protection. I had to go to my domestic violence worker and ask them for another copy of it."

In her own words, plaintiff Dora Howell describes how she sought police protection on multiple occasions from a physically and emotionally abusive ex-boyfriend. The police did not arrest him, even though he was in violation of multiple judicially-issued orders of protection to stay away from plaintiff. He eventually pushed her out of a third-story window. It is an all too familiar scenario of intimate partner violence and failed law enforcement. Plaintiff then turned to our civil torts system for justice. The majority concludes that she cannot pursue a negligence action against defendant officers and the City of New York because they had no duty to protect her. That holding is incomprehensible.

By law, New York police officers must arrest persons who violate an order of protection issued in cases involving former or current intimate partners (*see* CPL 140.10 [4] [b]). Plaintiff secured eight such orders against her ex-boyfriend, Andre Gaskin. No one disputes that she did what the law required when she petitioned and persuaded the courts that she needed judicial protection against him. When Gaskin violated these judicial orders by repeatedly contacting plaintiff, threatening her, and physically attacking her, plaintiff called the police for help and asked them to enforce those orders. In this action she alleges that defendants New York City Police Department (NYPD) Officers Mosely-Lawrence and Meran negotiated with Gaskin to leave the premises rather than arrest him as the law required, and that they told her she should move out of her apartment.

Plaintiff further alleges that, after several visits, the officers eventually told her that if she called again, they would arrest her. Unsurprisingly, Gaskin was undeterred by the police, and one day during a violent bout, he pushed plaintiff out of his third-floor apartment building window. She survived. When the same officers who had failed to arrest Gaskin arrived at the scene, they told her that she "should have listened" to them and moved out. The officers' reproach of plaintiff is shocking. I thought we were done with the days of blaming the victim, but I digress.

This appeal is a cautionary tale of the continued failures of our legal system to effectively address intimate partner

violence and protect survivors, made worse by the majority decision. If, as the majority concludes, plaintiff cannot pursue her claims and test her allegations in court because the officers made it clear that they would not comply with the law, then how can—and why should—survivors trust our legal system? I disagree with the majority that our courts provide plaintiff with no recourse. Plaintiff has set forth a viable claim for negligence based on the officers' alleged misconduct and defendants have failed to meet their burden of showing on their motion for summary judgment that they did not owe her a duty under the facts alleged in her complaint. Of course they owed her a duty—the legislature has said so.

I.

Intimate partner violence¹ affects people from all walks of life, regardless of economic status, race, ethnicity, or gender identity (*see e.g.* National Domestic Violence Hotline, *Domestic Violence Statistics*, <https://www.thehotline.org/stakeholders/domestic-violence-statistics/> [last visited Nov. 8, 2022]). It includes physical, psychological, economic, sexual, and emotional abuse (*see* Matthew J. Breiding et al., National Center for Injury Prevention and Control, Centers for Disease Control and Prevention, *Intimate Partner Violence Surveillance: Uniform Definitions and Recommended Data Elements* at 11-17 [2015], available at <https://www.cdc.gov/violenceprevention/pdf/ipv/intimatepartnerviolence.pdf>). While advocates have described the experiences of victims, it is the voices of survivors that most pointedly reveal the toll of this violence:

“Five years ago, when my life as a victim of violence in my home became public, people seemed so surprised that a man of my former husband’s prom-

1. Unless contained in a direct quote or citation, I use the term “intimate partner violence” rather than “domestic violence” to refer to violence between former or current intimate partners. As I explained almost 30 years ago:

“The term ‘domestic violence’ is a misnomer because it suggests that violence that occurs in the home or among family members belongs in a different category than other forms of violence, or is of a distinctly private nature. Historically, such beliefs have acted to insulate violence against women from state intervention and from rigorous law enforcement and judicial scrutiny” (Jenny Rivera, *Domestic Violence against Latinas by Latino Males: An Analysis of Race, National Origin, and Gender Differentials*, 14 BC Third World LJ 231, 232 n 5 [1994]).

inence could be guilty of physically and emotionally abusing his wife and children. There were those who felt I must have ‘done something’ to deserve the 17 years of black eyes, bruises, a broken ear drum, and, yes, also being beaten while I was pregnant with one of my six children. Also, they felt that perhaps I had done something to deserve the endless hours of belittlement and criticism that became a pattern of rigid threatening control from the early days of our relationship. I will be honest, I certainly wanted the same myself, for guilt was constantly reinforced by my husband.

“I wonder why people look for reason to justify violence in the home. I think perhaps for some it is incomprehensible that a wife and child is not safe in their home” (US Senate, Comm on Judiciary, Hearing on Legislation to Reduce the Growing Problem of Violent Crime against Women, *Domestic Violence: Violence against Women*, 101st Cong, 2d Sess, Dec. 11, 1990, part 2 at 88-89).

“When I left, I left everything I owned and loved. For years my children and I lived below poverty and experienced great sacrifice, all in the name of living free from violence.

“It took 10 years for me to rebuild my life after leaving and 20 years for me to come before you today with my story” (US House of Representatives, Comm on Judiciary, Hearing before Subcomm on Crime and Crim Justice, *Domestic Violence: Not Just a Family Matter*, 103d Cong, 2d Sess, June 30, 1994 at 11).

“There’s no worse emotion, I think, than fear. When you hear yelling through the walls, it’s a helpless feeling. I was never abused, but the fear that it created in my life is something that I’ll never forget” (Claudine Dombrowski, *Joe Torre—The ‘fear’ was the worst—Growing Up with Domestic Violence*, YouTube at 01:01 [Mar. 25, 2009], <https://www.youtube.com/watch?v=zite2v5UdqU>).

“The first time I went to the hospital [he] had broken my nose and cut my head open. He hit me on the head with a wooden clothes hanger and I

got seventeen stitches over my ear. I can't hear well on that side since that happened. The other time, I was pregnant with my third boy. . . . [He] hit me and kicked me so that I almost miscarried in my sixth month. You know, [my son] has always been a slow learner and I think it's because of the beating before he was born" (*Domestic Violence against Latinas* at 235 n 21, quoting Myrna M. Zambrano, *Mejor Sola Que Mal Acompañada* 140 [1985]).

"My mom didn't believe me—when I told her she didn't believe that she—her reaction was that doesn't happen with other women. Women don't do that to each other. And I think it took her actually seeing me bruised to have her realize the yeah, I wasn't just blowing this out of proportion. It hurt. It made me feel like she didn't believe what I was telling her. When I called her and asked her to come over and get me because [my partner] had hurt me, she stopped at a sewing machine place on the way because she had an errand to run. So, I mean that—that, I think hurt more than [my partner's] fist" (Mikel L. Walters, *Straighten Up and Act Like a Lady: A Qualitative Study of Lesbian Survivors of Intimate Partner Violence*, 23 J Gay & Lesbian Soc Servs 250, 259 [2011]).²

As the above testimonials make clear, in addition to physical, psychological, and emotional harm, intimate partner violence has wide-ranging social effects, impacting employment (see e.g. Pamela C. Alexander, *Childhood Maltreatment, Intimate Partner Violence, Work Interference and Women's Employment*, 26 J Fam Violence 255 [2011]); housing stability (see e.g. Joanne Pavao et al., *Intimate Partner Violence and Housing Instability*, 32 Am J Preventative Med 143 [2007]); and even the lives of future generations (see e.g. Megan R. Holmes et al., *Economic Burden of Child Exposure to Intimate Partner Violence in the United States*, 33 J Fam Violence 239 [2018]).

II.

A.

Survivors of intimate partner violence and their advocates have spent decades requesting that law enforcement and the

2. Additional survivor and advocate accounts can be found in the sources cited above.

judicial system treat intimate partner violence like a crime of public concern rather than a private matter (*see e.g.* Susan Schechter, *Women and Male Violence: The Visions and Struggles of the Battered Women's Movement* 157-174 [1982]; Eve S. Buzawa & Carl G. Buzawa, *Domestic Violence: The Criminal Justice Response* 89-124 [3d ed 2003]; Elizabeth M. Schneider, *Battered Women & Feminist Lawmaking* 20-23 [2000]; Jeannie Suk, *Criminal Law Comes Home*, 116 Yale LJ 2, 11-17 [2006]; Tara Urs, *Coercive Feminism*, 46 Colum Hum Rts L Rev 85, 92-107 [2014]). In the mid-twentieth century, "[f]eminist activism around issues of domestic violence was highly diffuse and took many different forms" (*Battered Women & Feminist Lawmaking* at 20-21). As part of that activism, advocates "worked legislatively to see that wife beating was treated as a crime—a social, not a private matter" (*Women and Male Violence* at 159; *see e.g.* Charlotte A. Watson, *A Look Back on Our 40-Year Walk, and a Glimpse Ahead*, in Supreme Court of the State of New York, Appellate Division, First Department & New York State Judicial Committee on Women in the Courts, *Lawyers' Manual on Domestic Violence: Representing the Victim* 18-30 [Mary Rothwell Davis et al. eds, 6th ed 2015], available at <http://ww2.nycourts.gov/sites/default/files/document/files/2018-07/DV-Lawyers-Manual-Book.pdf>; Sally Goldfarb, *The Civil Rights Remedy of the Violence against Women Act: Legislative History, Policy Implications & Litigation Strategy, a Panel Discussion Sponsored by the Association of the Bar of the City of New York, September 15, 1995*, 4 JL & Poly 391, 391-397 [1996]; Urs at 93-99; *see also e.g.* Elizabeth M. Schneider, *The Violence of Privacy*, 23 Conn L Rev 973, 977 [1991]).³ Over time, those advocates raised social consciousness about the devastating effects of violence between intimate

3. The advocacy surrounding intimate partner violence was not monolithic; many advocates raised concerns about expansive criminal law intervention on ideological and practical grounds (*see e.g.* Jenny Rivera, *Creating an Intimate Partner Violence against Women Legal Theory*, 8 NYC L Rev 495, 498 [2005]; Jenny Rivera, *The Violence against Women Act and the Construction of Multiple Consciousnesses in the Civil Rights and Feminist Movements*, 4 JL & Poly 463, 505 [1996]; Miriam H. Ruttenberg, Note, *A Feminist Critique of Mandatory Arrest: An Analysis of Race and Gender in Domestic Violence Policy*, 2 J Gender & L 171, 180-187, 191-194 [1994]; Kimberle Crenshaw, *Mapping the Margins: Intersectionality, Identity Politics, and Violence against Women of Color*, 43 Stan L Rev 1241, 1245-1250 [1991]). These advocates did not argue that the police should fail to enforce orders of protection secured by a survivor. To the contrary, they argued that lax enforcement was an inherent danger to survivors (*see e.g.* *Women and Male Violence* at 178; Urs at 96).

partners—on survivors, their families, and our society (see e.g. Elizabeth M. Schneider, *Domestic Violence Law Reform in the Twenty-First Century: Looking Back and Looking Forward*, 42 Fam L Q 353, 354-356 [2008]).

“Today, we have a greater understanding of the dynamics of abusive relationships, and how institutional gender bias heightens the barriers that survivors of domestic violence face, increasing the risk of harm to them and their children. Increased appreciation and concern for the challenges faced by survivors comes after decades of advocacy demanding, among other things, a change in the culture of law enforcement and just treatment in the courts” (*Cole v Cole*, 35 NY3d 1012, 1015 [2020, Rivera, J., dissenting]).⁴

Both the federal and the state governments have enacted legislation that protects survivors of intimate partner violence, under both civil and criminal law frameworks, and ensures funding for various forms of services and government interventions. At the federal level, Congress enacted the Violence against Women Act of 1994 (VAWA; Pub L 103-322, title IV, 108 Stat 1796, 1902), which made interstate intimate partner violence a crime (see 18 USC §§ 2261-2266). Congress also enacted a comprehensive scheme of grant programs, including a program designed to encourage mandatory arrests for the purposes of “improv[ing] the criminal justice response to domestic violence, dating violence, sexual assault, and stalking as serious violations of criminal law, and . . . seek[ing] safety

4. See also *Report of the New York Task Force on Women in the Courts*, 15 Fordham Urb LJ 11, 28-50 (1986-1987); Hon. Judith S. Kaye & Susan K. Knipps, *Judicial Responses to Domestic Violence: The Case for a Problem Solving Approach*, 27 W St U L Rev 1 (2000); Lynn Hecht Schafran, *There's No Accounting for Judges*, 58 Alb L Rev 1063 (1995); Women and Male Violence at 161-169; Hon. Jonathan Lippman, *Ensuring Victim Safety and Abuser Accountability: Reforms and Revisions in New York Courts' Response to Domestic Violence*, 76 Alb L Rev 1417, 1420-1422, 1435-1437 (2012-2013). Our court system now better recognizes the devastating effects of intimate partner violence and judges and prosecutors receive training and education on intimate partner violence (see e.g. NY State Unified Court System Domestic Violence Workplace Policy, available at <https://ww2.nycourts.gov/sites/default/files/document/files/2018-06/dvp.pdf>; Rules of Chief Judge [22 NYCRR] § 17.4 [requiring domestic violence training for certain judges]; *Legal Training*, Manhattan District Attorney's Office, <https://www.manhattanda.org/careers/legal-training/> [last visited Nov. 7, 2022]).

and autonomy for victims” (34 USC § 10461 [a]).⁵ New York preceded the federal government in enacting the Domestic Violence Prevention Act (DVPA) in 1987, declaring that “the development and funding of programs providing emergency intervention, shelter, and assistance to victims of domestic violence is of major importance to this state” and that such programs were “experiencing severe financial difficulties due to inadequate levels of state, local, and private funding,” putting them “at risk of permanent closure” (DVPA, L 1987, ch 838, § 1; *see also* Hon. Karen Burstein, *Naming the Violence: Destroying the Myth*, 58 Alb L Rev 961 [1995] [discussing pre-DVPA legislation in New York]). The DVPA requires local governments to provide shelter and social services for survivors, and establishes funding for such services (*see* Social Services Law §§ 459-b, 459-c).

New York State and New York City have also passed laws to protect the legal rights of survivors. Both the State and City Human Rights Laws treat survivors as a protected class. In 2001 and 2003, New York City amended its Human Rights Law to prohibit employment discrimination based on domestic violence status and to require reasonable accommodations for survivors (*see* NY City Human Rights Law [Administrative Code of City of NY] former § 8-107.1; Local Law No. 75 [2003] of City of New York; Local Law No. 1 [2001] of City of New York). The City Council found that “a growing body of evidence has documented the devastating impact of domestic violence on the ability of victims—over 90% of whom are women—to participate fully in the economy” (Local Law No. 1 § 1). The Council was concerned that “[b]ecause [survivors] are embarrassed or because they fear losing their jobs, [they] are often reticent about informing their employers about incidents of domestic violence or about requesting simple accommodations that might assist them in fulfilling their job duties” (*id.*; *see also* Rep of Human Servs Div, Comm on Gen Welfare & Comm on Women’s Issues at 3, NY City Council Prop. Int. No. 400-A [2000]). The Council added a reasonable accommodation provision to bolster survivors’ employment rights (*see e.g.* Rep of Governmental Affairs Div, Comm on Gen Welfare, NY City Council Prop Int. No. 107-A [Dec. 12, 2003]). The City expanded

5. Following VAWA’s passage, there was additional advocacy to fund various VAWA programs in Congress (*see* Patricia Schroeder, *Stopping Violence against Women Still Takes a Fight: If in Doubt, Just Look at the 104th Congress*, 4 JL & Poly 377 [1996]).

that antidiscrimination provision in 2016 to protect survivors from discrimination in housing (*see* NY City Human Rights Law former § 8-107.1; Local Law No. 38 [2016] of City of NY).⁶

Likewise, in 2009, the state legislature adopted an amendment to the State Human Rights Law prohibiting discrimination in employment on the basis of domestic violence status (*see* Executive Law § 296 [1] [a]; [22] [c]; L 2009, ch 80). Like the City Council, the state legislature recognized that survivors were “reluctant” to inform their employers of the need for accommodations because “[i]t is not unusual for a victim of domestic violence to be terminated from [their] job or demoted because [they] need[] time off[f] or flexible hours as a protective measure” (Senate Sponsor’s Mem in Support, Bill Jacket, L 2009, ch 80 at 8; *see e.g.* Mem of Off for Prevention of Domestic Violence, Bill Jacket, L 2009, ch 80 at 20; Mem of Natl Org for Women, Bill Jacket, L 2009, ch 80 at 30). In 2022, the legislature expanded those protections to outlaw discrimination on the basis of domestic violence status in public accommodations, housing, education, and business transactions (*see* Executive Law § 296 [1]-[2-a], [3-b]-[5], [9], [13], [22] [a]-[b], as amended by L 2022, ch 202; Senate Sponsor’s Mem in Support, L 2022, ch 202; Press Release, Governor Kathy Hochul, Governor Hochul Signs Legislation Protecting Victims of Domestic Violence [May 13, 2022], <https://www.governor.ny.gov/news/governor-hochul-signs-legislation-protecting-victims-domestic-violence>).

Additionally, various criminal statutes have been enacted or amended to address violence against current or former intimate partners (*see e.g.* Penal Law §§ 120.00, 120.05, 120.10, 120.13-120.15, 120.45-120.60, 135.00-135.30; *see generally* 11 Joel R. Brandes, Law and the Family New York § 86:15 at 646-648 [2022-2023 ed]). Time and again, legislatures have expanded these protections and the definition of “domestic violence,” and eventually extended the law’s coverage to same-sex partners (*see* Social Services Law § 459-a). Each time, the legislature acted in response to the experiences of survivors. For example, in 1994 the legislature gave family and criminal courts concurrent jurisdiction over many offenses and authorized them to issue orders of protection, a change intended to bring New York in line with other jurisdictions and ensure that “individuals who commit violent acts” would not “escape criminal prosecu-

6. Both provisions have since been recodified (*see* NY City Human Rights Law § 8-107 [27] [a], [e]-[f]).

tion whenever the victim seeks civil redress” (Letter from Assemblyperson Helene E. Weinstein, Bill Jacket, L 1994, ch 222 at 10; see CPL 530.11-530.12; Family Ct Act §§ 812, 842).

B.

These legislative efforts provide express legal protections to survivors. But, the law is only effective if followed. Following the enactment of these legislative protections, much advocacy sought to ensure that they were actually carried out on the ground. One area of particular concern identified by survivors and advocates was lax police enforcement of orders of protection. In the 1990s, advocates described “[t]he failure to enforce orders of protection once they have been granted [as] perhaps the weakest link in the legal safeguards now available to battered women” (US Senate, Comm on Judiciary, *Domestic Violence: Violence against Women*, Hearing on Legislation to Reduce the Growing Problem of Violent Crime against Women, 101st Cong, 2d Sess, June 20, 1990, part 1 at 71 [statement of NOW Legal Defense and Education Fund]). One survivor who testified before the United States Senate Judiciary Committee in the lead-up to the passage of VAWA explained that although she called the police “several times,” the police “refused to arrest” her abuser (US Senate, Comm on Judiciary, *Domestic Violence: Violence against Women*, Hearing on Legislation to Reduce the Growing Problem of Violent Crime against Women, 101st Cong, 2d Sess, Dec. 11, 1990, part 2 at 99). Advocates in New York described police indifference to violations of orders of protection as a “trivialization of the single greatest cause of injury to women in this society” (Letter from Ilene Leopold Persoff, Bill Jacket, L 1994, ch 222 at 116). As one advocate and service provider explained during a State Senate hearing:

“Many of [the women who come for services] don’t even go for orders of protection because the[] [police] said basically it’s a piece of paper, and the only way you can get help is actually for the abuser to come after them again and to threaten either themselves . . . or their children” (NY Senate, Comm on Children & Families, Public Hearing on the Revision of New York State’s Laws Pertaining to Domestic Violence, Nov. 29, 1993 at 14-15).

The New York State Legislature adopted a strategy to address this issue with the intended purpose of ensuring the aggressive enforcement of criminal laws expressly enacted to protect survivors and their families (see e.g. Senate Introductory Mem in Support, Bill Jacket, L 1994, ch 222 at 24). Before

1994, there was no statewide uniform arrest policy to guide officers in situations where a person violated an order of protection obtained by a current or former intimate partner; police departments and individual officers had discretion over arrests. That ended with the enactment of the Family Protection and Domestic Violence Intervention Act of 1994 (DVIA), which adopted mandatory arrest into New York law.⁷ In particular, the DVIA provides that “a police officer shall arrest a person, and shall not attempt to reconcile the parties or mediate, where such officer has reasonable cause to believe that . . . a duly served order of protection . . . is in effect” directing the person to stay away from another (CPL 140.10 [4] [b]).⁸

The judicial branch has done its part to educate the public and the bar. Since 1995, the First Department and the Judicial Committee on Women in the Courts have published and updated the Lawyers’ Manual on Domestic Violence, a handbook covering dozens of topics for attorneys representing survivors of domestic violence. In the foreword to the latest

7. Advocates of mandatory arrest policies relied on early research into intimate partner violence, particularly the Minneapolis Domestic Violence Experiment (Lawrence W. Sherman & Richard A. Berk, *The Minneapolis Domestic Violence Experiment* [Police Foundation Reports 1984], available at <https://www.policinginstitute.org/wp-content/uploads/2015/07/Sherman-et-al.-1984-The-Minneapolis-Domestic-Violence-Experiment.pdf>) and several replication studies (*see* Buzawa & Buzawa at 98-104).

8. Some police departments in New York—including the NYPD—had adopted mandatory arrest policies prior to the DVIA’s enactment (*see e.g. Bruno v Codd*, 47 NY2d 582, 590 [1979]; Letter from Rudolph W. Giuliani, Mayor of City of NY, Bill Jacket, L 1994, ch 222 at 193). Prior to 1996, the City did not adopt a system for “uniform reporting of domestic violence incidents by NYPD” (Mary Haviland et al., Family Violence Project, Urban Justice Center, *The Family Protection and Domestic Violence Intervention Act of 1995: Examining the Effects of Mandatory Arrest in New York City* at 14 n 3 [May 2001], available at https://www.researchgate.net/publication/314857235_The_Family_Protection_and_Domestic_Violence_Intervention_Act_of_1995_Examining_the_Effects_of_Mandatory_Arrest_in_New_York_City_A_REPORT_BY_THE_FAMILY_VIOLENCE_PROJECT_OF_THE_URBAN_JUSTICE_CENTER_AUTH; *see also* Adriana Fernandez-Lanier et al., New York State Division of Criminal Justice Services, *Domestic Violence: Research in Review* at 2 n 3 [May 2002], available at https://www.criminaljustice.ny.gov/crimnet/ojsa/domviol_rinr/19972000dir_report.pdf). However, independent researchers found that, notwithstanding the City’s mandatory arrest policy, arrest rates for intimate partner violence were low (*see* Ariella Hyman et al., *Laws Mandating Reporting of Domestic Violence: Do They Promote Patient Well-being?*, 273 JAMA 1781, 1784 [1995] [“Studies in San Francisco and New York City revealed that in 1991, only 25% to 30% of domestic violence calls to the police resulted in written reports required by law, and only 7% to 12% resulted in arrest”]).

edition, former Chief Judge Lippman recognized that the “education and commitment” of various groups—including judges and attorneys—“is critically needed if we are to continue to make progress in combatting the terrible problem of domestic violence” (Hon. Jonathan Lippman, Foreword, in *Lawyers’ Manual on Domestic Violence*). Today, the Unified Court System website succinctly explains the State’s mandatory arrest law:

“New York State has ‘mandatory arrest’ for domestic violence cases. This means that in an intimate partner relationship the police must make an arrest when . . . [a] person disobeys an order of protection by making contact when there is a stay away order. . . . In mandatory arrest cases, even if you ask the police not to make an arrest, they must do so. . . . A mandatory arrest does not always happen right away. It means that the police must make an arrest even if the abuser leaves before the police arrive. Whenever the police investigate domestic violence, they must give the victims written notice of their legal rights” (New York State Unified Court System, *Criminal Domestic Violence Cases*, NY CourtHelp, <https://www.nycourts.gov/courthelp/Safety/criminalDVCases.shtm> [last visited Nov. 7, 2022]).

C.

Despite increased legislative efforts to protect survivors, law enforcement still lags behind (*see e.g. Domestic Violence Law Reform* at 358). According to a 2015 report by the National Domestic Violence Hotline, one in three survivors of domestic violence felt less safe after calling the police, one in two believed that the police made no difference to their safety, and one in four reported that police had threatened them with arrest when they called (*see* TK Logan & Rob Valente, National Domestic Violence Hotline, *Who Will Help Me? Domestic Violence Survivors Speak Out About Law Enforcement Responses* at 6, 8 [2015], available at <http://www.thehotline.org/wp-content/uploads/sites/3/2015/09/NDVH-2015-Law-Enforcement-Survey-Report.pdf>). Likewise, a 2015 report by the American Civil Liberties Union referenced service providers’ statements that their clients feared police responses to intimate partner violence. Representative of other reports, one provider stated that

“[t]he majority of [their] clients who need law enforcement assistance will call once, but not twice. Their first experience usually turns them off to the police as a form of help. Clients have reported insensitive comments ranging from ‘didn’t you think this was going to happen?’ to ‘what did you do to make him so mad?’, but more commonly they tell me that they call the police to report violations of restraining orders and are told ‘there is nothing we can do’ or ‘you’ll have to go to court and tell the judge’ ” (Donna Coker et al., American Civil Liberties Union, *Responses from the Field: Sexual Assault, Domestic Violence, and Policing* at 14 [Oct. 2015], available at https://www.aclu.org/sites/default/files/field_document/2015.10.20_report_-_responses_from_the_field_0.pdf).

Some officers do not fully appreciate—and others simply refuse to acknowledge—that “domestic violence” is as serious as other violent crimes or that survivors are crime victims, entitled to the protections the law affords. As survivors have recounted:

“When my ex entered the house, my daughter was awake. I heard an argument. I came into the living area to try and calm her down. Her eyes were wide with fear—she could see him approaching with a gun. When I turned around shots rang. I managed to dial 911. I couldn’t talk because [my face] was shot up, but they traced the call home. The police came, then the medical team.

“I heard a policeman say, ‘Oh this is just a domestic violence case.’ He was just five feet from where I was fighting for my life and where my child lay dead. There was nothing ‘just’ about it” (*These women survived domestic violence. Now they’re taking a stand to help others*, Amnesty Intl [Oct. 24, 2019], <https://www.amnesty.org/en/latest/news/2019/10/gun-violence-report/>).

“I called the police, uh, you know the second squad car comes, and the officer walks down, and he goes, ‘It’s just a couple of dykes, whatever,’ and they walk off. I get to the police station and they call me Charlize Theron, because I had straggly blond hair at the time, and I’d had the crap beat out of me, and I pretty much looked like her from the movie ‘Mon-

ster.’ And then, the way they treated us during the interviews and stuff, it was just so different from anything I’d ever seen or experienced. And it was like, we were beyond second class” (Jeanne L. Alhusen et al., *Perceptions of and Experience With System Responses to Female Same-Sex Intimate Partner Violence*, 1 Partner Abuse 443, 450 [2010]).

The allegations in plaintiff’s complaint and in her testimony hark back to the bad old days before our social enlightenment about how cultural gendered norms can encourage violence against intimate partners, and the familiar blame-the-victim refrain that survivors “should have known better.” The majority’s decision also echoes the past (*see e.g.* majority mem at 1009 [blaming plaintiff for Gaskin’s assault and faulting her for failing to “relax her vigilance”]).⁹

III.

My dissenting colleague Judge Wilson has thoroughly set forth the facts as alleged in the complaint and the procedural history of this litigation (*see* Wilson, J., dissenting op, parts I-II). I have nothing to add to his summary. Although I disagree with Judge Wilson that plaintiff preserved a claim based on a private right of action for breach of a statutory special duty under the DVIA (*see id.* part III),¹⁰ I agree with my colleague that under existing precedent as applied by our Court, Supreme Court properly denied defendants’ motion and plaintiff’s action should have been allowed to go forward (*see id.* part VI.B). Thus, I join his dissent fully with respect to those matters. I write separately because the special duty test applied by the majority is designed for cases of individual discretionary action, not where the officers—by legislative

9. As Judge Wilson notes, “[l]earned helplessness is a common and predictable response to [intimate partner violence]” (Wilson dissenting op at 1015 n 3). Another common response to intimate partner violence is post-traumatic stress disorder, which causes a constant state of vigilance and fear (*see e.g.* Erica L. Birkley et al., *Posttraumatic Stress Disorder Symptoms, Intimate Partner Violence, and Relationship Functioning: A Meta-Analytic Review*, 29 J Traumatic Stress 397 [2016]).

10. I also do not join Judge Wilson’s dissent to the extent that he opines that plaintiff should be allowed to proceed on the theory that a special duty arose because the City assumed positive direction and control in a dangerous situation (*see* Wilson, J., dissenting op part VI.A). Plaintiff does not assert that special duty theory before this Court. Thus, whether or not that theory was pleaded in plaintiff’s complaint, it has been abandoned (*see e.g.* *JF Capital Advisors, LLC v Lightstone Group, LLC*, 25 NY3d 759, 766 n 2 [2015]).

fiat—have no discretion. The majority’s mechanical application of the special duty test simply fails to square with the officers’ legislatively-imposed obligation to arrest Gaskin once they were informed that he violated plaintiff’s orders of protection.

Plaintiff had two paths in her action against defendants; both turned on the officers’ failure to arrest Gaskin. She could have (1) asserted a private right of action under the DVIA and, in the alternative, she could have (2) alleged that the City owed her a special duty under the facts of her case. Plaintiff’s complaint did not explicitly allege a violation of the DVIA as a basis for relief, and even under our liberal pleading standards—which require we draw all reasonable inferences in her favor—her complaint, as written, cannot be read as advancing such a claim (*see Himmelstein, McConnell, Gribben, Donoghue & Joseph, LLP v Matthew Bender & Co., Inc.*, 37 NY3d 169, 175 [2021]).¹¹

As to the alternative path, there is no dispute that plaintiff’s complaint asserts a claim that, on the facts as alleged, defendants had a special duty to protect her against Gaskin. Defendants’ motion for summary judgment¹² on this special duty claim required them to “make a prima facie showing of entitlement to judgment as a matter of law, tendering sufficient evidence to demonstrate the absence of any material issues of fact” (*Alvarez v Prospect Hosp.*, 68 NY2d 320, 324 [1986]; *accord Jacobsen v New York City Health & Hosps. Corp.*, 22 NY3d 824, 833 [2014]). Specifically, they had to establish as a matter of law that, interpreting the facts as alleged in the light most favorable to plaintiff (*see William J. Jenack Estate Appraisers & Auctioneers, Inc. v Rabizadeh*, 22 NY3d 470, 475 [2013]), they were not liable for plaintiff’s injuries because of defendant officers’ failure to arrest Gaskin on the numerous occasions he violated an order of protection issued on plaintiff’s behalf (*see Alvarez*, 68 NY2d at 324 [“Failure to make (a) prima facie showing requires a denial of the motion, regardless of the sufficiency of the opposing papers”], citing *Winegrad v New York Univ. Med. Ctr.*, 64 NY2d 851, 853 [1985]). Defendants failed to do so.

11. This appeal does not present a question as to whether, if requested by plaintiff, Supreme Court should have granted her leave to amend her claim after discovery to include such a claim (*see* CPLR 3025 [b]; *Davis v South Nassau Communities Hosp.*, 26 NY3d 563, 580 [2015]; *Edenwald Contr. Co. v City of New York*, 60 NY2d 957, 959 [1983]).

12. Defendants also moved pursuant to CPLR 3211 (a) (7) for dismissal of the complaint, which portion of the motion was denied, and is not at issue on appeal.

The majority's conclusion to the contrary is a misapplication of our judicially-formulated special duty doctrine and the underlying policy considerations that animate our precedent. In *Cuffy v City of New York*, this Court set forth a four-factor test for determining whether there is a special relationship between a person and a municipality that gives rise to a special duty:

“(1) an assumption by the municipality, through promises or actions, of an affirmative duty to act on behalf of the party who was injured; (2) knowledge on the part of the municipality's agents that inaction could lead to harm; (3) some form of direct contact between the municipality's agents and the injured party; and (4) that party's justifiable reliance on the municipality's affirmative undertaking” (69 NY2d 255, 260 [1987]; *accord Pelaez v Seide*, 2 NY3d 186, 202 [2004]).

The doctrine reflects two principles: (1) a municipality owes a duty to the general public, not to any individual—here the general duty to provide protective law enforcement (*see Ferreira v City of Binghamton*, 38 NY3d 298, 309 [2022]; *Valdez v City of New York*, 18 NY3d 69, 75 [2011]; *Florence v Goldberg*, 44 NY2d 189, 195-196 [1978]); and (2) police protection is “a resource-allocating function” best left to the discretion of a municipality (*Cuffy*, 69 NY2d at 260, citing *Weiner v Metropolitan Transp. Auth.*, 55 NY2d 175 [1982]; *see Pelaez*, 2 NY3d at 205). These are justifications for “declin[ing] to hold municipalities subject to tort liability for their failure to furnish police protection to individual citizens” (*Cuffy*, 69 NY2d at 260). As the Court has painstakingly explained, “[w]e have deemed it necessary to restrict the scope of duty in this manner because the government is not an insurer against harm suffered by its citizenry at the hands of third parties” (*Valdez*, 18 NY3d at 75).

The special duty doctrine announced in our case law is a pragmatic response to unlimited liability in those cases where the municipality and its agents have discretion to act. The doctrine presupposes, first, that the municipality need do nothing at all—the municipality may decide not to provide police protection (*see Valdez*, 18 NY3d at 75; *Cuffy*, 69 NY2d at 260). It further presupposes that once the municipality or its agents assume the duty to act on behalf of the injured party in a particular case and acts accordingly, the municipality has knowingly chosen to direct its resources to protect the individual and is therefore subject to tort liability for negligence (*see*

Valdez, 18 NY3d at 75; *Cuffy*, 69 NY2d at 260-262; *Sorichetti v City of New York*, 65 NY2d 461, 468-470 [1985]). Those presumptions are misplaced when the government in the first instance promises—or, put another way, enters a form of social compact with New Yorkers—to protect against a category of potential future harm, as when a survivor of intimate partner violence has informed the police that an order of protection for their benefit has been violated and the law mandates an arrest. In those cases, the municipality and its agent have no choice in how to act, and an atomized assessment of each individual *Cuffy* factor is unnecessary because the factors are satisfied by the legislative abrogation of officer discretion.¹³

In the context presented here, the legislature removed officer discretion with full knowledge of the removal's impact on local law enforcement resources. The legislature enacted the mandatory arrest policy over law enforcement objections that it would “put another mandate on local government financially which would include additional personnel and overtime” (Letter from Police Conference of NY, Bill Jacket, L 1994, ch 222 at 66; *see also* NY Senate, Comm on Children & Families, Public Hearing on the Revision of New York State's Laws Pertaining to Domestic Violence, Jan. 27, 1994 at 15 [discussing costs of domestic violence arrests in New York City]). Indeed, the State Division of the Budget recognized that although “[the] [DVIA] could result in increased costs for local police departments, . . . it can be argued that the existing negative effects associated with domestic violence already place an emotional and economic burden upon our criminal justice, social service, health care[,] and educational systems,” and that “[b]y preventing such destructive impact upon society, the long term benefits . . . outweigh the immediate costs” (Budget Rep on Bills, Bill Jacket, L 1994, ch 222 at 38; *see also* NY Senate, Comm on Children & Families, Public Hearing on the Revision of New York State's Laws Pertaining to Domestic Violence, Jan. 13, 1994 at 5-6 [“Domestic violence . . . costs all of us . . . hundreds of millions of dollars”] [statement of Senator Sa-

13. I am not, as the majority suggests, collapsing the special duty and governmental function immunity analysis (*see* majority mem at 1008 n 1). Rather, I argue that the legislature's elimination of officer discretion creates an affirmative duty—grounded in this State's policy to prevent violence in intimate relationships—that necessarily directs municipalities to allocate their resources in a particular manner.

land]).¹⁴ This legislative choice was a drastic departure from the past, where an officer made an individual assessment as to the proper response in domestic violence cases. As my dissenting colleague and I discuss, the legislature deemed the mandatory, nondiscretionary arrest policy necessary given the recalcitrance of law enforcement to arrest abusers even when the officers were aware that the abuser has violated a stay-away order of protection (*see* part II.B, *supra*; Wilson, J., dissenting op part VI.B).¹⁵

Given that the principles supporting our prior articulation of the special duty doctrine and its narrow exception fail to account for the scenario presented in this appeal, we should realign the doctrine to serve the State's clear legislative objectives. Specifically, we should make clear that since there is a statewide uniform arrest policy, leaving no room for discretion by the municipality and its agent, a plaintiff need not establish the "critical" factor of reliance (majority mem at 1009, quoting *Valdez*, 18 NY3d at 81) when officers fail to make arrests in qualifying cases.¹⁶ The doctrine as re-envisioned would advance the legislature's intent to expand the protection of survivors via rigid police enforcement of orders of protection.

IV.

The legislature's adoption of a statewide mandatory arrest policy withdrew officer discretion and imposed a new munici-

14. The majority's suggestion that the legislature recognized that the DVIA would have "no 'fiscal implications' for local municipalities" (majority mem at 1010, quoting Senate Introducer's Mem in Support, Bill Jacket, L 1994, ch 222 at 25) is belied by the balance of the legislative record, in which legislators candidly acknowledged that effecting arrests is a costly exercise.

15. The majority's fear that "the cost of potential municipal liability regarding violations of orders of protection . . . would have a significant impact on municipal finances" (majority mem at 1010) assumes that law enforcement officers routinely ignore the DVIA's mandatory arrest provision. If that is actually the case, then, as Judge Wilson explains, expanding liability here would further another salutary goal of tort law—incentivizing compliance, encouraging adequate training, and deterring bad actors (*see* Wilson dissenting op at 1025-1026; *see also id.* at 1033-1035).

16. The majority is correct that this Court has held that "[t]he mere existence of an order of protection, standing alone, will not prove justifiable reliance" (majority mem at 1009 [internal quotation marks omitted], quoting *Mastroianni v County of Suffolk*, 91 NY2d 198, 205 [1997], citing *Sorichetti*, 65 NY2d at 70). However, in *Mastroianni*, where this Court articulated that rule, the underlying events occurred in 1985, prior to the enactment of the DVIA (*see* 91 NY2d at 201-203), and the Court did not discuss the DVIA in that case. Likewise, *Sorichetti* was decided before the legislature enacted the DVIA.

pal duty; combined with its allotment of resources, such measures reflect its intent to ensure that survivors of intimate partner violence are protected by removing officer discretion in individual cases. Plaintiff's complaint alleges that defendants failed in their duty. The majority holding deprives her of the opportunity to establish these allegations. "Unfortunately, due to the majority decision here, legislative action to reinstate the [C]ourt's obligations is the only recourse to ensure survivors are heard" (*Cole*, 35 NY3d at 1024 [Rivera, J., dissenting]).

Acting Chief Judge CANNATARO and Judges GARCIA, SINGAS and TROUTMAN concur; Judge WILSON dissents in an opinion, in which Judge RIVERA concurs in part in a separate dissenting opinion.

Order affirmed, with costs, in a memorandum.

[203 NE3d 624, 183 NYS3d 49]

MIN ZHONG, Appellant, v PETER J. MATRANGA, Respondent.

Decided February 9, 2023

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered August 30, 2022. The Appellate Division, with two Justices dissenting, (1) reversed, on the law, an order of the Supreme Court, New York County (Alexander M. Tisch, J.), which had denied defendant's motion for summary judgment in an action brought by plaintiff pedestrian to recover damages for personal injuries she sustained when she and defendant bicyclist collided; (2) granted the motion; and (3) dismissed the complaint.

Min Zhong v Matranga, 208 AD3d 439, affirmed.

HEADNOTE

Motor Vehicles — Injuries to Pedestrians — Summary Judgment

In an action brought by plaintiff pedestrian to recover damages for personal injuries she sustained when she and defendant bicyclist collided, the Appellate Division order granting defendant's motion for summary judgment dismissing the complaint was affirmed. In response to defendant's prima facie showing of entitlement to summary judgment, plaintiff failed to raise a triable issue of material fact.

APPEARANCES OF COUNSEL

Pollack, Pollack, Isaac & De Cicco, LLP, New York City (Brian J. Isaac of counsel), for appellant.

Law Offices of Kevin P. Westerman, Garden City (*Arlene E. Lewis* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs. In response to defendant's prima facie showing of entitlement to summary judgment, plaintiff failed to raise a triable issue of material fact (*see Heltz v Barratt*, 24 NY3d 1185, 1187 [2014]; *Green v Mower*, 100 NY2d 529, 530 [2003]).

Concur: Acting Chief Judge CANNATARO and Judges GARCIA, WILSON, SINGAS and TROUTMAN. Judge RIVERA dissents and votes to reverse and deny defendant's motion for summary judgment, for reasons stated in so much of the dissenting opinion by Justice Peter H. Moulton as concluded that, assuming defendant made out a prima facie case in support of his motion for summary judgment, plaintiff raised triable issues of material fact warranting denial of the motion (*see Min Zhong v Matranga*, 208 AD3d 439, 444-445 [1st Dept 2022, Moulton, J., dissenting]).

AMERICAN TAX FUNDING, LLC, Respondent, v JAMES I. WYNN, SR., Appellant, and COUNTY OF MONROE, Respondent, et al., Defendants.

Submitted November 28, 2022; decided February 9, 2023

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

AMTRUST NORTH AMERICA, INC., Appellant, v SHERRI PAVLOFF et al., Respondents.

Submitted December 12, 2022; decided February 9, 2023

Reported below, 204 AD3d 599.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

KATHRYN CASEY et al., Respondents, et al., Plaintiffs-Intervenors, v WHITEHOUSE ESTATES, INC., et al., Appellants. WHITEHOUSE ESTATES, INC., et al., Third-Party Plaintiffs-Appellants, v ROBERTA L. KOEPPLE et al., Third-Party Defendants.

Submitted January 30, 2023; decided February 9, 2023

Reported below, 197 AD3d 401.

Motion by Housing Rights Initiative, Inc. for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

CHESWOLD (TL), LLC, Respondent, v JAMES WYNN, Appellant, and COUNTY OF MONROE et al., Respondents.

Submitted December 5, 2022; decided February 9, 2023

Reported below, 2022 NY Slip Op 73416(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

HARLEM CONTRACTING LLC, Respondent, v 2201 7TH AVENUE REALTY LLC et al., Defendants. TREVOR WHITTINGHAM et al., Nonparty Appellants.

Submitted November 21, 2022; decided February 9, 2023

Reported below, 209 AD3d 529.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

RACHEL HERMAN et al., Respondents, v JUDLAU CONTRACTING, INC., Appellant.

Submitted October 31, 2022; decided February 9, 2023

Reported below, 204 AD3d 496.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

RACHEL HERMAN et al., Respondents, v JUDLAU CONTRACTING, INC., Appellant.

Submitted December 19, 2022; decided February 9, 2023

Reported below, 204 AD3d 496.

Motion by General Contractors Association of the City of New York, Inc. for leave to appear amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

FAYE T. MADIGAN, Plaintiff, v BERKELEY CAPITAL LLC, et al., Defendants, and ROSA BRONSTEIN et al., Respondents, and JOSEPH PAUKMAN, Appellant.

Decided February 9, 2023

Reported below, 205 AD3d 900.

Appeal dismissed without costs, by the Court of Appeals sua sponte, as untimely (*see* CPLR 5513 [a]).

In the Matter of the Claim of LIDIA M. ORREGO, Appellant, v KEVIN KNIPFING et al., Respondents. WORKERS' COMPENSATION BOARD, Respondent.

Decided February 9, 2023

Reported below, 2022 NY Slip Op 74564(U).

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANTHONY BLUE, Appellant.

Submitted January 17, 2023; decided February 9, 2023

Reported below, 202 AD3d 546.

Motion for assignment of counsel granted and Caprice R. Jenerson, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JASON BOHN, Appellant.

Submitted January 9, 2023; decided February 9, 2023

Reported below, 198 AD3d 669.

Motion for assignment of counsel granted and Patricia Pazner, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MATTHEW CORR, Appellant.

Submitted February 6, 2023; decided February 9, 2023

Reported below, 208 AD3d 136.

Motion for poor person relief granted.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JEAN DUFRESNE, Appellant.

Submitted January 30, 2023; decided February 9, 2023

Reported below, 209 AD3d 541.

Motion for poor person relief granted.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v GEORGE GARCIA, Appellant.

Submitted January 9, 2023; decided February 9, 2023

Reported below, 205 AD3d 432.

Motion for assignment of counsel granted and Mark Zeno, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v BRYAN McDONALD, Appellant.

Submitted February 6, 2023; decided February 9, 2023

Reported below, 207 AD3d 669.

Motion for poor person relief granted.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DANNY NOVAS, Appellant.

Submitted January 23, 2023; decided February 9, 2023

Reported below, 204 AD3d 613.

Motion for assignment of counsel granted and Caprice R. Jenerson, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. ABDOOL AZEEZ, Appellant, v SUPERINTENDENT, LYNNE LILLY, EASTERN CORRECTIONAL FACILITY, Respondent.

Submitted November 28, 2022; decided February 9, 2023

Reported below, 2022 NY Slip Op 72457(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

Judge TROUTMAN took no part.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. MICHAEL ERBER, Appellant, v SUPERINTENDENT JOHN RICH, Respondent.

Submitted November 14, 2022; decided February 9, 2023

Reported below, 2022 NY Slip Op 63937(U); 2021 NY Slip Op 75501(U).

Motion for reargument of motion for leave to appeal denied [see 38 NY3d 1165 (2022)].

FREDERICK REUS et al., Appellants, v ETC HOUSING CORPORATION et al., Respondents, et al., Defendants.

Submitted July 18, 2022; decided February 9, 2023

Reported below, 203 AD3d 1281; 2022 NY Slip Op 66672(U).

Motion, insofar as it seeks leave to appeal from the portion of the March 2022 Appellate Division order affirming the Supreme Court order imposing sanctions upon plaintiffs' counsel, dismissed upon the ground that plaintiffs are not parties aggrieved (*see* CPLR 5511); motion for leave to appeal otherwise dismissed upon the ground that the remainder of the March 2022 Appellate Division order and the May 2022 Appellate Division order denying reargument or leave to appeal do not finally determine the action within the meaning of the Constitution.

In the Matter of ROCHESTER POLICE LOCUST CLUB, INC., et al., Respondents, v CITY OF ROCHESTER et al., Respondents, and COUNCIL OF CITY OF ROCHESTER, Appellant.

Submitted February 6, 2023; decided February 9, 2023

Reported below, 196 AD3d 74.

Motion by City of Kingston for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

Judge TROUTMAN took no part.

In the Matter of ROGER C., Appellant, v HEIDI A., Respondent.

Submitted December 27, 2022; decided February 9, 2023

Reported below, 2022 NY Slip Op 70825(U)

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

ROMAN CATHOLIC DIOCESE OF ALBANY et al., Appellants, v MARIA T. VULLO, as Acting Superintendent of Department of Financial Services, et al., Respondents, et al., Defendants. (And Another Related Action.)

Submitted July 18, 2022; decided February 9, 2023

Reported below, 206 AD3d 1074.

Motion for leave to appeal denied as unnecessary (*see* CPLR 5601 [b] [1]).

In the Matter of STEPHEN P. ROMINE, Appellant, v NEW YORK PUBLIC SERVICE COMMISSION et al., Respondents.

Decided February 9, 2023

Reported below, 209 AD3d 1197.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

DALER SINGH et al., Appellants, v CITY OF NEW YORK et al., Respondents.

Submitted February 6, 2023; decided February 9, 2023

Reported below, 189 AD3d 1697.

Motion by New York State Conference of Mayors and Municipal Officials for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Nine copies of the brief must be filed and the brief submitted in digital format within seven days.

Judge RIVERA took no part.

SIYU YANG et al., Appellants, v UNIVERSITY OF ROCHESTER/EASTMAN SCHOOL OF MUSIC et al., Respondents.

Submitted November 28, 2022; decided February 9, 2023

Reported below, 2022 NY Slip Op 73429(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for ancillary relief dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3).

In the Matter of TERRENCE STEVENS et al., Respondents, v NEW YORK STATE DIVISION OF CRIMINAL JUSTICE SERVICES et al., Appellants.

Submitted February 6, 2023; decided February 9, 2023

Reported below, 206 AD3d 88.

Motion by Alexander F. Roehrkasse for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

NAFEESA SYEED, Appellant, v BLOOMBERG L.P., Respondent.

Decided February 9, 2023

See 58 F4th 64.

Certification of question by the United States Court of Appeals for the Second Circuit, pursuant to Rules of Court of Appeals (22 NYCRR) § 500.27, accepted and the issues presented are to be considered after briefing and argument.

Concur: Acting Chief Judge CANNATARO and Judges RIVERA, GARCIA, WILSON, SINGAS and TROUTMAN.

BRIAN BERNARD TUOHY, Appellant, v KIYOE SATO, Respondent.
(Action No. 1.)

BRIAN BERNARD TUOHY, Appellant, v KIYOE SATO, Respondent.
(Action No. 2.)

KIYOE SATO, Respondent, v BRIAN BERNARD TUOHY, Appellant.
(Action No. 3.)

Submitted November 14, 2022; decided February 9, 2023

Reported below, 2022 NY Slip Op 66489(U); 2022 NY Slip Op 65153(U).

Motion for reargument of motion for leave to appeal denied [see 39 NY3d 932 (2022)].

274 MADISON COMPANY, LLC, Appellant, v CRISTHIANE VIEIRA, Respondent.

Submitted October 3, 2022; decided February 9, 2023

Reported below, 205 AD3d 403.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

[203 NE3d 632, 183 NYS3d 57]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v STORM N. RIVERA, Appellant.

Decided February 14, 2023

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Third Judicial Department, from an order of that Court, entered June 23, 2022. The Appellate Division affirmed a judgment of the St. Lawrence County Court (Felix J. Catena, J.), which had convicted defendant, upon a jury verdict, of rape in the first degree and unlawful imprisonment in the second degree.

People v Rivera, 206 AD3d 1356, affirmed.

HEADNOTE

Crimes — Right to Counsel — Effective Representation

Defendant did not meet his burden of showing that trial counsel's performance was constitutionally deficient and his claims regarding counsel's tactical decisions were based on matters dehors the record.

APPEARANCES OF COUNSEL

Rural Law Center of New York, Inc., Castleton (*Kristin A. Bluvás* of counsel), for appellant.

Gary M. Pasqua, District Attorney, Canton (*Matthew L. Peabody* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order af-

firmed. On this record, defendant has not met his burden of showing that trial counsel's performance was constitutionally deficient and his claims regarding counsel's tactical decisions are based on matters dehors the record (*see People v Hymes*, 34 NY3d 1178, 1179 [2020]). Defendant's other arguments pertaining to County Court's inquiry of juror No. 6 are unpreserved (*see People v Bailey*, 32 NY3d 70, 77-79 [2018]). Defendant's remaining contentions do not require reversal.

Concur: Acting Chief Judge CANNATARO and Judges RIVERA, GARCIA, WILSON, SINGAS and TROUTMAN.

SUSAN ARANOFF, Respondent, v GERALD ARANOFF, Appellant.

Submitted January 9, 2023; decided February 14, 2023

Reported below, 2022 NY Slip Op 75972(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

BGC PARTNERS, INC., et al., Appellants, v AVISON YOUNG (CANADA), INC., et al., Respondents.

Submitted December 5, 2022; decided February 14, 2023

Reported below, 205 AD3d 603; 192 AD3d 498.

Motion for reargument of motion for leave to appeal denied [*see* 39 NY3d 933 (2022)].

LIVINGSTONE BROOMES, Appellant, v LEGAL AID SOCIETY OF NEW YORK CITY, INC., et al., Respondents.

Submitted December 5, 2022; decided February 14, 2023

Reported below, 210 AD3d 623.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

GREGORY CHRISTOPULOS, Respondent, v KATHERINE CHRISTOPULOS et al., Defendants, and NICHOLAS SPYREAS, Appellant. (App. Div. No. 2020-09406)

Submitted December 5, 2022; decided February 14, 2023

Reported below, 209 AD3d 968.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

GREGORY CHRISTOPULOS, Respondent, v KATHERINE CHRISTOPULOS et al., Defendants, and NICHOLAS SPYREAS, Appellant. (App. Div. No. 2021-01417)

Submitted December 5, 2022; decided February 14, 2023

Reported below, 209 AD3d 969.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

GREGORY CHRISTOPULOS, Respondent, v KATHERINE CHRISTOPULOS et al., Defendants, and NICHOLAS SPYREAS, Appellant. (App. Div. No. 2021-04425)

Submitted December 5, 2022; decided February 14, 2023

Reported below, 209 AD3d 970.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

GREGORY CHRISTOPULOS, Respondent, v KATHERINE CHRISTOPULOS et al., Defendants, and NICHOLAS SPYREAS, Appellant. (App. Div. No. 2021-08970)

Submitted December 5, 2022; decided February 14, 2023

Reported below, 209 AD3d 971.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

GREGORY CHRISTOPULOS, Respondent, v KATHERINE CHRISTOPULOS et al., Defendants, and NICHOLAS SPYREAS, Appellant.
(App. Div. No. 2019-09305)

Submitted December 5, 2022; decided February 14, 2023

Reported below 207 AD3d 698.

Motion for leave to appeal dismissed upon the ground that the judgment sought to be appealed from does not finally determine the action within the meaning of the Constitution.

GREGORY CHRISTOPULOS, Respondent, v KATHERINE CHRISTOPULOS et al., Defendants, and NICHOLAS SPYREAS, Appellant.
(App. Div. No. 2020-02288)

Submitted December 5, 2022; decided February 14, 2023

Reported below, 208 AD3d 746.

Motion for leave to appeal dismissed upon the ground that the judgment sought to be appealed from does not finally determine the action within the meaning of the Constitution.

GREGORY CHRISTOPULOS, Respondent, v KATHERINE CHRISTOPULOS, et al., Defendants, and NICHOLAS SPYREAS, Appellant.
(App. Div. No. 2020-09166)

Submitted December 5, 2022; decided February 14, 2023

Reported below, 208 AD3d 747.

Motion for leave to appeal dismissed upon the ground that the judgment sought to be appealed from does not finally determine the action within the meaning of the Constitution.

GREGORY CHRISTOPULOS, Respondent, v KATHERINE CHRISTOPULOS et al., Defendants, and NICHOLAS SPYREAS, Appellant.
(App. Div. No. 2021-06093)

Submitted December 12, 2022; decided February 14, 2023

Reported below, 208 AD3d 749.

Motion for leave to appeal dismissed upon the ground that the judgment sought to be appealed from does not finally determine the action within the meaning of the Constitution.

GREGORY CHRISTOPULOS, Respondent, v KATHERINE CHRISTOPULOS et al., Defendants, and NICHOLAS SPYREAS, Appellant.
(App. Div. No. 2020-09406)

Submitted December 12, 2022; decided February 14, 2023

Reported below, 209 AD3d 968.

Motion for leave to appeal dismissed upon the ground that the judgment sought to be appealed from does not finally determine the action within the meaning of the Constitution.

GREGORY CHRISTOPULOS, Respondent, v KATHERINE CHRISTOPULOS et al., Defendants, and NICHOLAS SPYREAS, Appellant.
(App. Div. No. 2021-01417)

Submitted December 12, 2022; decided February 14, 2023

Reported below, 209 AD3d 969.

Motion for leave to appeal dismissed upon the ground that the judgment sought to be appealed from does not finally determine the action within the meaning of the Constitution.

GREGORY CHRISTOPULOS, Respondent, v KATHERINE CHRISTOPULOS et al., Defendants, AND NICHOLAS SPYREAS, Appellant.
(App. Div. No. 2021-08970)

Submitted December 12, 2022; decided February 14, 2023

Reported below, 209 AD3d 971.

Motion for leave to appeal dismissed upon the ground that the judgment sought to be appealed from does not finally determine the action within the meaning of the Constitution.

FEDERAL NATIONAL MORTGAGE ASSOCIATION (“FANNIE MAE”), a Corporation Organized and Existing under the Laws of the United States of America, Appellant, v MAXI JEANTY et al., Respondents, et al., Defendants.

Submitted January 9, 2023; decided February 14, 2023

Reported below, 188 AD3d 827.

Motion for reargument or renewal denied with \$100 costs

and necessary reproduction disbursements [*see* 39 NY3d 951 (2022)].

JASON FLYNN, on Behalf of Himself and All Others Similarly Situated, Respondent, v RED APPLE 670 PACIFIC STREET, Appellant.

Submitted December 12, 2022; decided February 14, 2023

Reported below, 209 AD3d 580.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of JOHN HOGAN, Appellant, v JAMES THOMPSON, as Superintendent of Collins Correctional Facility, Respondent.

Submitted December 5, 2022; decided February 14, 2023

Reported below, 2022 NY Slip Op 72911(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

WILLIAM D. MALDOVAN, Public Administrator, as Administrator of the Estate of LAURA CUMMINGS, Deceased, Appellant, v COUNTY OF ERIE et al., Respondents.

Submitted January 9, 2023; decided February 14, 2023

Reported below, 188 AD3d 1597; 188 AD3d 1601.

Motion for reargument denied with \$100 costs and necessary reproduction disbursements [*see* 39 NY3d 166 (2022)].

Judge RIVERA took no part.

NELLA MANKO, Appellant, v DAVID A. GABAY et al., Respondents, et al., Defendants. (App. Div. No. 2016-13181)

NELLA MANKO, Appellant, v DAVID A. GABAY et al., Respondents. (App. Div. No. 2017-07541)

Submitted January 9, 2023; decided February 14, 2023

Reported below, 2022 NY Slip Op 61368(U).

Motion for reargument of motion for leave to appeal denied [*see* 39 NY3d 958 (2022)]. Motion for poor person relief dismissed as academic.

Acting Chief Judge CANNATARO took no part.

NATIONAL AIR CARGO, INC., et al., Appellants, et al., Plaintiffs, v JENNER & BLOCK, LLP et al., Respondents, et al., Defendant.

Submitted November 21, 2022; decided February 14, 2023

Reported below, 207 AD3d 1092.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge RIVERA took no part.

In the Matter of 160 EAST 84TH STREET, Appellant, v NEW YORK STATE DIVISION OF HOUSING AND COMMUNITY RENEWAL, Respondent, and SHERRY SADO, Intervenor-Respondent.

Submitted December 12, 2022; decided February 14, 2023

Reported below, 2022 NY Slip Op 66749(U).

Motion for reargument of motion for leave to appeal denied [*see* 39 NY3d 938 (2022)].

JOHN W. SAUNDERS, Respondent, v SANDRA FOSCHI et al., Appellants.

Submitted December 5, 2022; decided February 14, 2023

Reported below, 209 AD3d 512.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

TAXI TOURS INC., Plaintiff/Counterclaim Defendant, v Go NEW YORK TOURS, INC., Appellant/Counterclaim Plaintiff-Appellant. BIG BUS TOURS LIMITED et al., Counterclaim Defendants-Respondents, et al., Counterclaim Defendants.

Submitted December 19, 2022; decided February 14, 2023

Reported below, 210 AD3d 451.

Motion, insofar as it seeks leave to appeal as against respondents Go City, Inc.; Go City North America, LLC; Open Top Sightseeing USA, Inc.; and Taxi Tours Inc., dismissed upon the ground that as to those respondents the order sought to be appealed from does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise granted.

In the Matter of THE DEPARTMENT OF EDUCATION OF THE CITY OF NEW YORK (“DOE”) et al., Respondents, v MICHAEL CANICK, Appellant, et al., Respondents.

Submitted December 5, 2022; decided February 14, 2023

Reported below, 188 AD3d 607.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

THOMAS C. WILMOT, SR., et al., Respondents, v TONY KIRIK, Appellant, and COUNTY OF MONROE, Respondent.

Decided February 14, 2023

Reported below, 210 AD3d 1432.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

ALBERTHA WRAY-DAVIS, Appellant, v NEW YORK METHODIST
HOSPITAL, Respondent.

Submitted December 19, 2022; decided February 14, 2023

Reported below, 186 AD3d 537.

Motion for reargument of motion for leave to appeal dismissed as untimely (*see* Rules of Ct of Appeals [22 NYCRR] § 500.24 [b]) [*see* 38 NY3d 1121 (2022)].

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(January 1, 2023 through January 31, 2023)

People v Adams	2d Dept: 208 AD3d 895 (Kings)	denied 1/30/23 (Wilson, J.)
People v Arch	4th Dept: 208 AD3d 1620 (Monroe)	denied 1/19/23 (Cannataro, Acting Ch. J.)
People v Barber (Kenneth)	4th Dept: 210 AD3d 1424 (Wayne)	denied 1/12/23 (Cannataro, Acting Ch. J.) (Appeal No. 1)
People v Barber (Kenneth)	4th Dept: 210 AD3d 1426 (Wayne)	denied 1/12/23 (Cannataro, Acting Ch. J.) (Appeal No. 2)
People v Barnes (Alfred)	2d Dept: 210 AD3d 792 (Nassau)	denied 1/31/23 (Garcia, J.)
People v Barnes (Christopher)	App Term, 1st Dept: 75 Misc 3d 133(A) (NY)	denied 1/30/23 (Wilson, J.)
People v Batts	1st Dept: 210 AD3d 564 (NY)	denied 1/30/23 (Wilson, J.)
People v Boissard	2d Dept: 208 AD3d 794 (Kings)	denied 1/26/23 (Cannataro, Acting Ch. J.)
People v Breighner	App Term, 2d Dept, 9th & 10th Jud Dists: 2022 NY Slip Op 73152(U) (Suffolk)	denied 1/30/23 (Wilson, J.)
People v Brendon V.	2d Dept: 210 AD3d 1113 (Kings)	denied 1/6/23 (Rivera, J.)
People v Burrell	App Div, 4th Dept, 11/9/19 (Oneida)	dismissed 1/12/23 (Cannataro, Acting Ch. J.)
People v Bursey	App Div, 4th Dept, 9/6/22 (Monroe)	dismissed 1/11/23 (Singas, J.)
People v Butler	2d Dept: 209 AD3d 876 (Kings)	denied 1/19/23 (Cannataro, Acting Ch. J.)

MEMORANDA

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People v Cain	3d Dept: 209 AD3d 124 (Washington)	denied 1/23/23 (Troutman, J.)
People v Campbell	4th Dept: 210 AD3d 1509 (Monroe)	denied 1/31/23 (Singas, J.)
People v Carvalho	App Term, 1st Dept: 76 Misc 3d 130(A) (NY)	denied 1/11/23 (Troutman, J.)
People v Castelan	2d Dept: 210 AD3d 795 (Orange)	denied 1/13/23 (Troutman, J.)
People v Caswell	4th Dept: 208 AD3d 1598 (Monroe)	denied 1/31/23 (Singas, J.)
People v Clement	App Term, 1st Dept: 76 Misc 3d 138(A) (Bronx)	denied 1/9/23 (Garcia, J.)
People v Clinkscapes	4th Dept: 210 AD3d 1435 (Monroe)	denied 1/12/23 (Cannataro, Acting Ch. J.)
People v Colon	3d Dept: 208 AD3d 1551 (Albany)	denied 1/11/23 (Troutman, J.)
People v Concepcion	1st Dept: 210 AD3d 443 (NY)	denied 1/11/23 (Singas, J.)
People v Conyers	1st Dept: 210 AD3d 540 (NY)	denied 1/24/23 (Garcia, J.)
People v Coston	4th Dept: 208 AD3d 1601 (Onondaga)	denied 1/27/23 (Cannataro, Acting Ch. J.)
People v Coulibaly	1st Dept: 208 AD3d 1113 (NY)	denied 1/11/23 (Troutman, J.)
People v Coulibay	1st Dept: 208 AD3d 1113 (NY)	denied 1/11/23 (Troutman, J.)
People v Couser	4th Dept: 210 AD3d 1513 (Wayne)	denied 1/31/23 (Singas, J.)
People v Craft	2d Dept: 210 AD3d 903 (Kings)	denied 1/12/23 (Cannataro, Acting Ch. J.)
People v Cruz	1st Dept: 210 AD3d 541 (Bronx)	denied 1/6/23 (Rivera, J.)
People v Cuatt	4th Dept: 208 AD3d 1640 (Seneca)	denied 1/24/23 (Cannataro, Acting Ch. J.)
People v Curtis	2d Dept: 210 AD3d 904 (Rockland)	denied 1/13/23 (Cannataro, Acting Ch. J.)
People v Dantzler	2d Dept: 208 AD3d 590 (Queens)	denied 1/9/23 (Troutman, J.)
People v Davis (Brandon)	4th Dept: 210 AD3d 1434 (Monroe)	denied 1/6/23 (Rivera, J.)
People v Davis (Rodney)	App Div, 4th Dept, 10/21/22 (Niagara)	dismissed 1/19/23 (Cannataro, Acting Ch. J.)
People v DeGroff	4th Dept: 210 AD3d 1505 (Niagara)	denied 1/31/23 (Singas, J.)

People v DeJesus	App Term, 1st Dept: 76 Misc 3d 137(A) (NY)	denied 1/27/23 (Cannataro, Acting Ch. J.)
People v Delacruz	2d Dept: 207 AD3d 652 (Westchester)	denied 1/30/23 (Wilson, J.)
People v Diallo	App Div, 1st Dept: 2022 NY Slip Op 72395(U) (NY)	denied reconsideration 1/26/23 (Cannataro, Acting Ch. J.)
People v Doe	4th Dept: 210 AD3d 1516 (Monroe)	denied 1/24/23 (Cannataro, Acting Ch. J.)
People v Donnay	1st Dept: 208 AD3d 1135 (NY)	denied 1/11/23 (Troutman, J.)
People v Dukes	1st Dept: 209 AD3d 568 (Bronx)	denied 1/13/23 (Troutman, J.)
People v Duran-Infante	1st Dept: 210 AD3d 414 (NY)	denied 1/13/23 (Troutman, J.)
People v Dye	3d Dept: 210 AD3d 1192 (Albany)	denied 1/13/23 (Troutman, J.)
People v Emiliano	1st Dept: 210 AD3d 508 (NY)	denied 1/31/23 (Singas, J.)
People v Fajardo	1st Dept: 210 AD3d 541 (NY)	denied 1/27/23 (Cannataro, Acting Ch. J.)
People v Fernandez	2d Dept: 210 AD3d 693 (Kings)	denied 1/24/23 (Garcia, J.)
People v Floyd	4th Dept: 210 AD3d 1530 (Monroe)	denied 1/31/23 (Singas, J.)
People v Folks	1st Dept: 211 AD3d 514 (NY)	denied 1/27/23 (Cannataro, Acting Ch. J.)
People v Ford	3d Dept: 210 AD3d 1142 (Albany)	denied 1/11/23 (Garcia, J.)
People v Gillespie	3d Dept: 205 AD3d 1212 (Albany)	denied 1/30/23 (Wilson, J.)
People v Grant (Zebrick)	4th Dept: 208 AD3d 1597 (Monroe)	denied 1/19/23 (Cannataro, Acting Ch. J.) (Appeal No. 2)
People v Grant (Zebrick)	4th Dept: 208 AD3d 1597 (Monroe)	denied 1/19/23 (Cannataro, Acting Ch. J.) (Appeal No. 1)
People v Gregg (Jeffery)	1st Dept: 209 AD3d 448 (NY)	denied 1/19/23 (Cannataro, Acting Ch. J.)
People v Gregg (Jeffrey)	1st Dept: 209 AD3d 448 (NY)	denied 1/19/23 (Cannataro, Acting Ch. J.)
People v Griffith	App Div, 4th Dept: 2022 NY Slip Op 73646(U) (Onondaga)	dismissed 1/19/23 (Garcia, J.)

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People v Haywood	App Div, 2d Dept: 2022 NY Slip Op 70914(U) (Westchester)	dismissed 1/13/23 (Cannataro, Acting Ch. J.)
People v Heredia-Delacruz	App Term, 1st Dept: 76 Misc 3d 138(A) (Bronx)	denied 1/26/23 (Cannataro, Acting Ch. J.)
People v Hettig	4th Dept: 210 AD3d 1508 (Monroe)	denied 1/27/23 (Cannataro, Acting Ch. J.)
People v Hinton (Robert)	App Div, 4th Dept, 9/14/22 (Herkimer)	denied reconsideration 1/31/23 (Cannataro, Acting Ch. J.)
People v Hinton (Robert)	App Div, 4th Dept, 9/14/22 (Herkimer)	denied reconsideration 1/31/23 (Cannataro, Acting Ch. J.)
People v Holiday	2d Dept: 207 AD3d 658 (Kings)	denied 1/4/23 (Wilson, J.)
People v Holmes	4th Dept: 210 AD3d 1510 (Monroe)	denied 1/31/23 (Singas, J.)
People v Hoyt	App Term, 1st Dept: 77 Misc 3d 1 (NY)	denied 1/19/23 (Cannataro, Acting Ch. J.)
People v Ignacio	App Div, 2d Dept: 2022 NY Slip Op 74153(U) (Kings)	dismissed 1/6/23 (Rivera, J.)
People v Johnson	4th Dept: 210 AD3d 1516 (Monroe)	denied 1/24/23 (Cannataro, Acting Ch. J.)
People v Joseph	2d Dept: 209 AD3d 1037 (Kings)	denied 1/23/23 (Troutman, J.)
People v Kaye	2d Dept: 209 AD3d 873 (Kings)	denied 1/13/23 (Troutman, J.)
People v Kidd	3d Dept: 210 AD3d 1148 (Rensselaer)	denied 1/27/23 (Cannataro, Acting Ch. J.)
People v Komynar	2d Dept: 210 AD3d 698 (Kings)	denied 1/19/23 (Garcia, J.)
People v Krause	1st Dept: 208 AD3d 1114 (NY)	denied 1/11/23 (Troutman, J.)
People v Leonard	4th Dept: 206 AD3d 1665 (Monroe)	denied 1/30/23 (Wilson, J.)
People v Lewis	4th Dept: 208 AD3d 1616 (Niagara)	denied 1/9/23 (Garcia, J.)
People v Long	2d Dept: 209 AD3d 673 (Dutchess)	denied 1/24/23 (Cannataro, Acting Ch. J.)
People v Lopez-Sarmiento	4th Dept: 207 AD3d 1210 (Yates)	denied 1/31/23 (Garcia, J.)
People v Louime	2d Dept: 209 AD3d 1038 (Queens)	denied 1/13/23 (Troutman, J.)

People v Macuil	2d Dept: 208 AD3d 1252 (Kings)	denied 1/11/23 (Troutman, J.)
People v McCoy	1st Dept: 209 AD3d 569 (NY)	denied 1/23/23 (Troutman, J.)
People v McIver	App Term, 1st Dept: 76 Misc 3d 130(A) (NY)	denied 1/11/23 (Troutman, J.)
People v McKenzie	1st Dept: 209 AD3d 546 (NY)	denied 1/12/23 (Cannataro, Acting Ch. J.)
People v McLaughlin	3d Dept: 208 AD3d 1556 (Schenectady)	denied 1/13/23 (Troutman, J.)
People v Mitchell	4th Dept: 210 AD3d 1425 (Monroe)	denied 1/26/23 (Garcia, J.)
People v Nabi	App Div, 2d Dept: 2022 NY Slip Op 72545(U) (Queens)	dismissed 1/12/23 (Cannataro, Acting Ch. J.)
People v Oballe	App Term, 2d Dept, 9th & 10th Jud Dists: 77 Misc 3d 128(A) (Putnam)	denied 1/31/23 (Singas, J.)
People v Oquendo	1st Dept: 209 AD3d 616 (Bronx)	denied 1/9/23 (Singas, J.)
People v Paulino	App Div, 1st Dept: 2022 NY Slip Op 70291(U) (Bronx)	denied reconsideration 1/6/23 (Wilson, J.)
People v Peasley	3d Dept: 208 AD3d 1466 (Clinton)	denied 1/30/23 (Wilson, J.)
People v Pierotti	2d Dept: 208 AD3d 1254 (Nassau)	denied 1/11/23 (Troutman, J.)
People v Plowden	2d Dept: 209 AD3d 876 (Kings)	denied 1/19/23 (Cannataro, Acting Ch. J.)
People v Porter	2d Dept: 210 AD3d 911 (Kings)	denied 1/26/23 (Garcia, J.)
People v Ramirez (Dayshawn)	2d Dept: 209 AD3d 876 (Kings)	denied 1/13/23 (Troutman, J.)
People v Ramirez (Fernando)	2d Dept: 208 AD3d 897 (Suffolk)	granted 1/26/23 (Cannataro, Acting Ch. J.)
People v Ramos	4th Dept: 210 AD3d 1453 (Erie)	denied 1/10/23 (Garcia, J.)
People v Reeder	4th Dept: 204 AD3d 1527 (Seneca)	denied 1/30/23 (Wilson, J.)
People v Richards	2d Dept: 208 AD3d 603 (Queens)	denied 1/30/23 (Wilson, J.)
People v Ripley	3d Dept: 210 AD3d 1198 (Ulster)	denied 1/31/23 (Singas, J.)
People v Rivera (Matthew)	App Term, 1st Dept: 76 Misc 3d 130(A) (NY)	denied 1/17/23 (Cannataro, Acting Ch. J.)
People v Rivera (Raymond)	1st Dept: 209 AD3d 544 (NY)	denied 1/6/23 (Wilson, J.)

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People v Roberts	2d Dept: 210 AD3d 1014 (Suffolk)	denied 1/24/23 (Cannataro, Acting Ch. J.)
People v Rodriguez (Luis)	2d Dept: 208 AD3d 1367 (Queens)	denied 1/26/23 (Cannataro, Acting Ch. J.)
People v Rodriguez (Maria)	1st Dept: 208 AD3d 1114 (Bronx)	denied 1/11/23 (Troutman, J.)
People v Roasario	1st Dept: 208 AD3d 1109 (NY)	denied 1/27/23 (Cannataro, Acting Ch. J.)
People v Rosario (Fernando)	1st Dept: 208 AD3d 1109 (NY)	denied 1/27/23 (Cannataro, Acting Ch. J.)
People v Rumph	4th Dept: 207 AD3d 1209 (Monroe)	denied 1/6/23 (Wilson, J.)
People v Salas	2d Dept: 208 AD3d 1368 (Rockland)	denied 1/19/23 (Cannataro, Acting Ch. J.)
People v Salgado	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 76 Misc 3d 134(A) (Kings)	denied 1/26/23 (Cannataro, Acting Ch. J.)
People v Sanchez	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 76 Misc 3d 132(A) (Kings)	denied 1/12/23 (Cannataro, Acting Ch. J.)
People v Santana	1st Dept: 209 AD3d 454 (NY)	denied 1/13/23 (Troutman, J.)
People v Santiago	1st Dept: 209 AD3d 447 (NY)	denied 1/30/23 (Wilson, J.)
People v Santiago-Jeronimo	2d Dept: 209 AD3d 771 (Queens)	denied 1/27/23 (Cannataro, Acting Ch. J.)
People v Sapp	4th Dept: 210 AD3d 1431 (Ontario)	denied 1/19/23 (Garcia, J.)
People v Saunders	4th Dept: 209 AD3d 1292 (Niagara)	denied 1/31/23 (Singas, J.)
People v Savery	4th Dept: 209 AD3d 1268 (Onondaga)	denied 1/11/23 (Garcia, J.)
People v See	3d Dept: 206 AD3d 1153 (Clinton)	denied 1/30/23 (Wilson, J.)
People v Selby	2d Dept: 210 AD3d 1015 (Kings)	denied 1/24/23 (Cannataro, Acting Ch. J.)
People v Sierra-Garcia	4th Dept: 195 AD3d 1574 (Seneca)	denied 1/6/23 (Rivera, J.)
People v Silver	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 77 Misc 3d 131(A) (Queens)	denied 1/24/23 (Cannataro, Acting Ch. J.)
People v Simon-Roberson	2d Dept: 208 AD3d 805 (Kings)	denied 1/13/23 (Rivera, J.)
People v Smith (David)	4th Dept: 210 AD3d 1413 (Oneida)	denied 1/31/23 (Singas, J.)

People v Smith (Noel)	2d Dept: 210 AD3d 807 (Westchester)	denied 1/31/23 (Singas, J.)
People v Smith (Sean)	2d Dept: 210 AD3d 1018 (Kings)	denied 1/17/23 (Garcia, J.)
People v Solano	1st Dept: 206 AD3d 432 (NY)	denied 1/30/23 (Wilson, J.)
People v Sosa	1st Dept: 211 AD3d 486 (NY)	denied 1/27/23 (Cannataro, Acting Ch. J.)
People v Taylor	2d Dept: 208 AD3d 1188 (Nassau)	denied 1/17/23 (Rivera, J.)
People v Thomas	4th Dept: 208 AD3d 1584 (Ontario)	denied 1/19/23 (Garcia, J.)
People v Treese	County Ct, 6/3/22 (Ontario)	denied 1/30/23 (Wilson, J.)
People v Troy	App Div, 2d Dept: 2021 NY Slip Op 76046(U) (Nassau)	dismissed 1/11/23 (Troutman, J.)
People v Velez	1st Dept: 201 AD3d 554 (NY)	denied 1/26/23 (Cannataro, Acting Ch. J.)
People v Voltaire	2d Dept: 209 AD3d 773 (Queens)	denied 1/30/23 (Wilson, J.)
People v Walker	2d Dept: 207 AD3d 756 (Kings)	denied 1/31/23 (Troutman, J.)
People v Whitehurst	App Div, 3d Dept: 2022 NY Slip Op 69260(U) (Ulster)	denied 1/11/23 (Troutman, J.)
People v Williams	1st Dept: 210 AD3d 594 (NY)	denied 1/31/23 (Singas, J.)
People v Witherspoon	3d Dept: 210 AD3d 1145 (Schenectady)	denied 1/4/23 (Wilson, J.)
People v Wynne	2d Dept: 206 AD3d 1013 (Nassau)	denied 1/30/23 (Wilson, J.)
People v York	2d Dept: 209 AD3d 877 (Queens)	denied 1/31/23 (Singas, J.)
People v Yorke	App Term, 1st Dept: 76 Misc 3d 130(A) (NY)	denied 1/11/23 (Troutman, J.)
People v Zenon	4th Dept: 208 AD3d 1634 (Monroe)	denied 1/30/23 (Wilson, J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(February 1, 2023 through February 28, 2023)

People v Abad	2d Dept: 208 AD3d 892 (Richmond)	denied 2/24/23 (Wilson, J.)
People v Acevedo	2d Dept: 210 AD3d 1106 (Queens)	denied 2/2/23 (Rivera, J.)
People v Acosta	4th Dept: 208 AD3d 1579 (Oswego)	denied 2/22/23 (Rivera, J.)

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People v Alvarez	1st Dept: 210 AD3d 599 (Bronx)	denied 2/23/23 (Troutman, J.)
People v Anderson	4th Dept: 211 AD3d 1485 (Monroe)	denied 2/17/23 (Rivera, J.)
People v Baque	2d Dept: 210 AD3d 1000 (Queens)	granted 2/17/23 (Rivera, J.)
People v Bay	County Court: 79 Misc 3d 171 (Cortland)	granted 2/15/23 (Troutman, J.)
People v Bienaise	2d Dept: 209 AD3d 759 (Kings)	denied 2/24/23 (Wilson, J.)
People v Blake	2d Dept: 210 AD3d 901 (Queens)	denied 2/23/23 (Troutman, J.)
People v Blanding	4th Dept: 211 AD3d 1608 (Monroe)	denied 2/24/23 (Garcia, J.)
People v Bristol	1st Dept: 210 AD3d 481 (NY)	denied 2/22/23 (Cannataro, Acting Ch. J.)
People v Brown	1st Dept: 211 AD3d 648 (NY)	denied 2/17/23 (Rivera, J.)
People v Bryant	2d Dept: 211 AD3d 848 (Kings)	denied 2/17/23 (Singas, J.)
People v Burdo	3d Dept: 210 AD3d 1306 (Clinton)	denied 2/1/23 (Garcia, J.)
People v Byers	2d Dept: 211 AD3d 746 (Kings)	denied 2/23/23 (Troutman, J.)
People v Cabot	2d Dept: 210 AD3d 902 (Kings)	denied 2/17/23 (Rivera, J.)
People v Calafell	3d Dept: 211 AD3d 1114 (Chemung)	denied 2/23/23 (Troutman, J.)
People v Calixte	2d Dept: 209 AD3d 760 (Kings)	denied 2/21/23 (Troutman, J.)
People v Castro	1st Dept: 211 AD3d 592 (NY)	denied 2/22/23 (Cannataro, Acting Ch. J.)
People v Cathlin	App Term, 1st Dept: 76 Misc 3d 137(A) (NY)	denied 2/21/23 (Troutman, J.)
People v Cherry	App Term, 1st Dept: 76 Misc 3d 136(A) (NY)	denied 2/28/23 (Wilson, J.)
People v Clavijo	4th Dept: 210 AD3d 1444 (Monroe)	denied 2/2/23 (Cannataro, Acting Ch. J.)
People v Coley	4th Dept: 210 AD3d 1505 (Monroe)	denied 2/2/23 (Rivera, J.)
People v Culbreath	4th Dept: 211 AD3d 1635 (Erie)	denied 2/23/23 (Cannataro, Acting Ch. J.)
People v David	4th Dept: 209 AD3d 1276 (Monroe)	granted 2/23/23 (Cannataro, Acting Ch. J.)
People v DeCamp	3d Dept: 211 AD3d 1121 (Broome)	denied 2/10/23 (Singas, J.)

People v Defilippis	2d Dept: 210 AD3d 1004 (Nassau)	denied 2/23/23 (Troutman, J.)
People v Devarnne-Walls	3d Dept: 211 AD3d 1232 (Schenectady)	denied 2/24/23 (Garcia, J.)
People v Edwards	2d Dept: 208 AD3d 510 (Kings)	denied 2/14/23 (Troutman, J.)
People v Estwick	2d Dept: 208 AD3d 799 (Queens)	granted 2/23/23 (Cannataro, Acting Ch. J.)
People v Fellows	2d Dept: 208 AD3d 682 (Dutchess)	denied 2/23/23 (Cannataro, Acting Ch. J.)
People v Flagg	4th Dept: 209 AD3d 1298 (Onondaga)	denied 2/6/23 (Garcia, J.)
People v Fraser	2d Dept: 210 AD3d 697 (Kings)	denied 2/23/23 (Troutman, J.)
People v Gambino	2d Dept: 211 AD3d 850 (Richmond)	denied 2/24/23 (Rivera, J.)
People v Glatman	App Term, 2d Dept, 9th & 10th Jud Dists: 75 Misc 3d 131(A) (Suffolk)	denied 2/23/23 (Singas, J.)
People v Gonzalez	App Term, 1st Dept: 76 Misc 3d 130(A) (NY)	denied 2/7/23 (Wilson, J.)
People v Guzman	1st Dept: 209 AD3d 546 (NY)	denied 2/23/23 (Troutman, J.)
People v Haas	3d Dept: 211 AD3d 1176 (Washington)	denied 2/24/23 (Garcia, J.)
People v Hall	1st Dept: 210 AD3d 482 (NY)	denied 2/2/23 (Cannataro, Acting Ch. J.)
People v Hatcher	3d Dept: 211 AD3d 1236 (Greene)	denied 2/23/23 (Cannataro, Acting Ch. J.)
People v Hunter	App Div, 4th Dept, 12/9/22 (Monroe)	dismissed 2/15/23 (Singas, J.)
People v Jimenez	1st Dept: 210 AD3d 441 (NY)	denied 2/2/23 (Rivera, J.)
People v Johnson (Alonzo)	1st Dept: 211 AD3d 543 (Bronx)	denied 2/14/23 (Garcia, J.)
People v Johnson (Brett)	1st Dept: 211 AD3d 510 (NY)	denied 2/9/23 (Garcia, J.)
People v Jones	2d Dept: 211 AD3d 748 (Kings)	denied 2/14/23 (Garcia, J.)
People v Justice A.	App Term, 1st Dept: 77 Misc 3d 128(A) (NY)	granted 2/2/23 (Garcia, J.)
People v Lam Pham	1st Dept: 211 AD3d 488 (Bronx)	denied 2/24/23 (Rivera, J.)
People v Lewis (Alphonso)	App Term, 1st Dept: 76 Misc 3d 137(A) (NY)	denied 2/7/23 (Wilson, J.)
People v Lewis (Robert)	4th Dept: 208 AD3d 1627 (Steuben)	denied 2/9/23 (Garcia, J.)

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People v Lopez	1st Dept: 209 AD3d 564 (Bronx)	denied 2/23/23 (Cannataro, Acting Ch. J.)
People v McGhee	2d Dept: 205 AD3d 930 (Dutchess)	denied 2/22/23 (Cannataro, Acting Ch. J.)
People v McGill	2d Dept: 210 AD3d 1111 (Kings)	denied 2/8/23 (Garcia, J.)
People v McGregor	3d Dept: 210 AD3d 1197 (St. Lawrence)	denied 2/17/23 (Rivera, J.)
People v Medina	3d Dept: 209 AD3d 1059 (Sullivan)	granted 2/28/23 (Wilson, J.)
People v Monterola	1st Dept: 211 AD3d 620 (Bronx)	denied 2/28/23 (Wilson, J.)
People v Morales	1st Dept: 210 AD3d 483 (NY)	denied 2/23/23 (Troutman, J.)
People v Moye	1st Dept: 211 AD3d 592 (Bronx)	denied 2/24/23 (Garcia, J.)
People v Nary	4th Dept: 209 AD3d 1275 (Monroe)	denied 2/7/23 (Wilson, J.)
People v Nicholson	2d Dept: 210 AD3d 1009 (Queens)	denied 2/24/23 (Garcia, J.)
People v Osgood	4th Dept: 210 AD3d 1426 (Ontario)	denied 2/24/23 (Wilson, J.)
People v Padilla-Zuniga	2d Dept: 209 AD3d 770 (Nassau)	granted 2/10/23 (Cannataro, Acting Ch. J.)
People v Pawaroo	1st Dept: 210 AD3d 440 (NY)	denied 2/2/23 (Rivera, J.)
People v Quick	App Div, 4th Dept, 12/1/22 (Monroe)	dismissed 2/24/23 (Garcia, J.)
People v Quinn	3d Dept: 210 AD3d 1284 (Albany)	denied 2/23/23 (Troutman, J.)
People v Rashid	App Div, 3d Dept: 2022 NY Slip Op 75431(U) (Schenectady)	dismissed 2/28/23 (Wilson, J.)
People v Reed	3d Dept: 210 AD3d 1313 (Washington)	denied 2/9/23 (Singas, J.)
People v Reynolds	4th Dept: 211 AD3d 1493 (Onondaga)	denied 2/17/23 (Rivera, J.)
People v Rios	App Div, 2d Dept: 2022 NY Slip Op 75609(U) (Kings)	dismissed 2/22/23 (Cannataro, Acting Ch. J.)
People v Rodriguez (Brandon)	2d Dept: 211 AD3d 854 (Queens)	denied 2/24/23 (Garcia, J.)
People v Rodriguez (Gustavo)	1st Dept: 209 AD3d 412 (NY)	denied 2/22/23 (Troutman, J.)
People v Rosado	App Div, 4th Dept, 11/7/22 (Oneida)	dismissed 2/24/23 (Wilson, J.)
People v Saldivar	2d Dept: 210 AD3d 806 (Suffolk)	denied 2/8/23 (Garcia, J.)
People v Sanjurjo	1st Dept: 209 AD3d 546 (NY)	denied 2/24/23 (Wilson, J.)

People v Santiago	1st Dept: 208 AD3d 1112 (Bronx)	denied 2/23/23 (Cannataro, Acting Ch. J.)
People v Schlifke (Derek)	4th Dept: 210 AD3d 1518 (Erie)	denied 2/2/23 (Rivera, J.) (Appeal No. 1)
People v Schlifke (Derek)	4th Dept: 210 AD3d 1519 (Erie)	denied 2/2/23 (Rivera, J.) (Appeal No. 2)
People v Seraphin	2d Dept: 209 AD3d 771 (Kings)	denied 2/22/23 (Cannataro, Acting Ch. J.)
People v Seymour	4th Dept: 209 AD3d 1308 (Onondaga)	denied 2/24/23 (Rivera, J.)
People v Sims	3d Dept: 207 AD3d 882 (St. Lawrence)	granted 2/7/23 (Wilson, J.)
People v Smalls	1st Dept: 210 AD3d 483 (NY)	denied 2/23/23 (Troutman, J.)
People v Smith	3d Dept: 210 AD3d 1297 (Albany)	denied 2/23/23 (Troutman, J.)
People v Snickles	3d Dept: 206 AD3d 1387 (Essex)	denied 2/21/23 (Troutman, J.)
People v Sterling	App Div, 2d Dept: 2022 NY Slip Op 61213(U) (Kings)	dismissed 2/23/23 (Troutman, J.)
People v Taylor	2d Dept: 211 AD3d 860 (Richmond)	denied 2/2/23 (Rivera, J.)
People v Thompson	2d Dept: 211 AD3d 755 (Kings)	denied 2/24/23 (Rivera, J.)
People v Tisdale (Michael)	4th Dept: 207 AD3d 1192 (Wyoming)	denied 2/28/23 (Wilson, J.) (Appeal No. 1)
People v Tisdale (Michael)	4th Dept: 207 AD3d 1194 (Wyoming)	denied 2/28/23 (Wilson, J.) (Appeal No. 2)
People v Torres	1st Dept: 211 AD3d 410 (Bronx)	denied 2/24/23 (Rivera, J.)
People v Vasquez	3d Dept: 210 AD3d 1302 (Albany)	denied 2/23/23 (Troutman, J.)
People v Wahhab	2d Dept: 210 AD3d 809 (Nassau)	denied 2/2/23 (Cannataro, Acting Ch. J.)
People v Ward	2d Dept: 209 AD3d 1045 (Kings)	denied 2/23/23 (Cannataro, Acting Ch. J.)
People v Watford	3d Dept: 211 AD3d 1106 (Clinton)	denied 2/23/23 (Troutman, J.)
People v West	3d Dept: 210 AD3d 1194 (Albany)	denied 2/22/23 (Cannataro, Acting Ch. J.)
People v Williams (Brandon)	2d Dept: 204 AD3d 704 (Queens)	granted 2/24/23 (Wilson, J.)

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People v Williams (Lovell)	4th Dept: 210 AD3d 1507 (Monroe)	denied 2/22/23 (Cannataro, Acting Ch. J.)
People v Willis	App Div, 2d Dept: 2022 NY Slip Op 74822(U) (Queens)	dismissed 2/23/23 (Cannataro, Acting Ch. J.)
People v Wood	2d Dept: 210 AD3d 914 (Kings)	denied 2/7/23 (Wilson, J.)
People v Wu Long Chen	2d Dept: 210 AD3d 702 (Kings)	denied 2/23/23 (Cannataro, Acting Ch. J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL**Decisions of Appellate Division Justices ***

(February 1, 2023 through February 28, 2023)

People v Thomas	3d Dept: 211 AD3d 1326 (Chemung)	granted 2/2/23 (Aarons, J.)
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[205 NE3d 416, 184 NYS3d 696]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v RUDOLPH
KAVAL, Respondent.

Argued November 15, 2022; decided December 13, 2022

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Second Judicial Department, from an order of that Court, entered May 5, 2021. The Appellate Division (1) reversed, on the law, a resentence of the Supreme Court, Queens County (Ira H. Margulis, J.), upon remittal from the Appellate Division (154 AD3d 875 [2d Dept 2017]), which had adjudicated defendant a persistent violent felony offender; and (2) remitted the matter to Supreme Court for resentencing in accordance with the Appellate Division decision.

People v Kaval, 194 AD3d 746, reversed.

HEADNOTE

Crimes — Sentence — Resentence — Persistent Violent Felony Offender — Adjudication upon Evidence Not Submitted at Original Sentencing

In a criminal prosecution in which Supreme Court, upon remittal from the Appellate Division, resentence defendant as a persistent violent felony offender in reliance on supplemental evidence of defendant's prior incarceration

* Includes only applications that were granted.

tion brought to the court's attention in connection with collateral motion practice, the Appellate Division should have affirmed Supreme Court's resentencing. Upon the appeal from defendant's judgment of conviction and original sentence as a persistent violent felony offender the People conceded that defendant's prior incarceration dates did not provide sufficient tolling to qualify one of his prior convictions as a requisite predicate offense for adjudication as a persistent violent felony offender. The Appellate Division remitted the matter to Supreme Court "for resentencing in accordance" with its decision and did not further direct the scope of resentencing. At the time of resentencing, Supreme Court was on notice of the supplemental evidence conclusively demonstrating that defendant was a persistent violent felony offender. Given that Supreme Court has inherent authority to correct illegal sentences and must follow statutory sentencing procedures, which provide safeguards like notice and an opportunity to be heard and generally require that pertinent information available to the court or the People be presented and used to determine a defendant's sentence (CPL 400.15 [2]; Penal Law § 70.08 [2]), Supreme Court was not precluded from imposing the statutorily required sentence.

APPEARANCES OF COUNSEL

Melinda Katz, District Attorney, Kew Gardens (Christopher J. Blira-Koessler, John M. Castellano and Johnnette Traill of counsel), for appellant.

Twyla Carter, The Legal Aid Society, New York City (Simon Greenberg of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed and the case remitted to the Appellate Division for consideration of the facts and issues raised but not determined on appeal to that Court.

Upon the appeal from defendant's judgment of conviction and original sentence as a persistent violent felony offender in 2013, the People conceded that defendant's prior incarceration dates did not provide sufficient tolling to qualify his 1987 conviction as a requisite predicate offense (*see* Penal Law §§ 70.08 [1] [a]; 70.04 [1] [b]). While affirming the judgment of conviction, the Appellate Division vacated defendant's adjudication as a persistent violent felony offender and the sentence imposed thereon, and remitted the matter to Supreme Court "for resentencing in accordance" with its decision (*People v Kaval*, 154 AD3d 875, 875 [2d Dept 2017] [*Kaval I*]). The Court did not further direct the scope of resentencing.

On remittal, Supreme Court resentenced defendant as a persistent violent felony offender, relying on supplemental evidence of defendant's prior incarceration brought to the court's

attention in connection with collateral motion practice. Defendant appealed, and the Appellate Division, with one Justice dissenting, vacated defendant's resentencing and remitted for a second time. The Court declined to revisit its prior determination that defendant did not qualify as a persistent violent felony offender under the law of the case doctrine and directed Supreme Court to resentence defendant as a second violent felony offender (*People v Kaval*, 194 AD3d 746 [2d Dept 2021] [*Kaval II*]). The People now appeal by leave of the dissenting Justice.

Under the particular circumstances of this case, the Appellate Division should have affirmed defendant's resentencing as a persistent violent felony offender. At the time of resentencing, Supreme Court was on notice of the supplemental evidence of defendant's prior incarceration, which conclusively demonstrates that defendant is, in fact, a persistent violent felony offender. Further, the Appellate Division did not limit its remittal in *Kaval I* as it has in other cases (*see People v Flores*, 185 AD3d 958, 959 [2d Dept 2020], *lv denied* 35 NY2d 1112 [2020]; *People v Fews*, 148 AD3d 1180, 1182 [2d Dept 2017], *lv denied* 29 NY3d 1079 [2017]; *see also People v Velazquez*, 58 AD3d 646, 646 [2d Dept 2009], *lv denied* 12 NY3d 860 [2009]). On these facts, Supreme Court was not precluded from imposing the statutorily required sentence based on the evidence before it, particularly given that court's "inherent authority to correct illegal sentences" (*People v Williams*, 14 NY3d 198, 217 [2010]; *People v DeValle*, 94 NY2d 870, 871-872 [2000]; *see e.g. People v Simpson*, 173 AD3d 1617, 1621 [4th Dept 2019], *lv denied* 34 NY3d 954 [2019]), and the statutory sentencing procedures, which we have described as "mandatory [in] nature" (*People v Scarbrough*, 66 NY2d 673 [1985], *rev'd for reasons stated in dissenting op* 105 AD2d 1107, 1108-1109 [4th Dept 1984]). While providing safeguards like notice and an opportunity to be heard, the procedures also generally require that pertinent "information available to the court or to the people" be presented and used to determine a defendant's sentence (CPL 400.15 [2]; Penal Law § 70.08 [2] [when a court determines "that a person is a persistent violent felony offender," it "must impose an indeterminate sentence" in compliance with the statute]).

Contrary to the dissent's suggestion, post-conviction motions based on actual innocence and CPL 440.20 and 440.40 motions to set aside sentences are subject to different statutory limita-

tions and implicate different interests. This is a direct appeal from a sentence which is yet to become final. Although we certainly do not condone the People's unexplained lack of diligence in presenting the supplemental evidence at the original sentencing hearing, on the record before us, that evidence demonstrates that Supreme Court correctly resentenced defendant as a persistent violent felony offender.

WILSON, J. (dissenting). This is an odd case, in which the parties have mistakenly attempted to apply the law of the case doctrine and also argue about whether the People, having failed to present available evidence at the initial sentencing, can concede error on appeal and obtain a free do-over. Ordinarily, whether in a civil or criminal context, we do not allow parties a second chance at an apple that could readily have been picked the first time—especially when, as here, they had an obligation to pick it the first time (*see e.g.* CPLR 5015 [2]; CPL 440.10 [1] [g]). Judicial efficiency and the importance of finality undergirds that policy. It is also odd because, as the majority suggests, the Appellate Division could have stated the terms of its initial remittal more clearly, to require that Mr. Kaval be resentenced as a second violent felony offender, so that this is not a circumstance likely to arise again. Even as to Mr. Kaval it is odd, because on remittal the Appellate Division can adjust Mr. Kaval's sentence using its interest of justice power as it sees fit.

As the majority points out by referencing several cases decided by the Appellate Division, Second Department, the Appellate Division can expressly constrain a sentencing court on remittal as to the sentence to be imposed (majority mem at 1083). Likewise, the Appellate Division could expressly order a sentencing court on remittal to conduct a *de novo* sentencing on a new record. Here, the Appellate Division did neither, and subsequently interpreted its remittal order as constraining the sentencing court to sentence Mr. Kaval as a second violent felony offender, not a persistent violent felony offender. In this very unusual circumstance, the sole relevant question is: under what standard do we review the Appellate Division's interpretation of its own prior order?

Unfortunately, neither party has identified that question as an issue on appeal, so it remains open for us to resolve should it ever again arise. Instead, left with the way in which the parties have framed the case, absent a showing of good cause for the People's failure to present evidence readily available to

them at Mr. Kaval's initial sentencing, I would hold that he must be sentenced as a second violent felony offender, not a persistent one. Had the shoe been on the other foot, and Mr. Kaval failed to present available evidence that might have led to a mitigation of his sentence, we would not let him reopen his sentencing procedure to seek a more lenient sentence.¹ Fundamental fairness, not to mention judicial efficiency, requires that we hold the People to at least that same standard.

I.

While crossing the street in front of police officers, Mr. Kaval moved a gun from his pocket to his waistband. A jury convicted him of criminal possession of a weapon in the second degree and two counts of criminal possession of a weapon in the third degree. The People informed Mr. Kaval and the court that they sought to have Mr. Kaval sentenced as a persistent violent felony offender (PVFO), which requires an indeterminate sentence with a maximum of life imprisonment. The People relied on two prior convictions to establish the PVFO designation: (1) a March 27, 1987 conviction for second-degree robbery; and (2) a November 12, 1991 conviction for attempted second-degree robbery. Convictions older than 10 years from the date of the current offense cannot be used to support a PVFO designation (*see* Penal Law §§ 70.04 [1] [b] [iv]; 70.08 [1] [a]). However, time during which the defendant was incarcerated between the date of a prior offense and the date of the present offense is “excluded” from the 10-year period (Penal Law § 70.04 [1] [b] [v]).

At his October 2013 sentencing, Mr. Kaval's attorney challenged the use of the 1987 conviction as a predicate because the records of incarceration submitted by the People did not show a sufficient tolling period between the 1987 conviction and the present crimes. The People bear the burden to prove tolling (CPL 400.15 [7] [a]; 400.16 [2]). To be able to use Mr.

1. A defendant may be able to reopen a sentencing procedure upon a showing that the sentence was not authorized by law or was illegally imposed, but a court may deny even a meritorious request for relief if “the ground or issue raised thereupon was previously determined on the merits upon a prior motion or proceeding in a court of this state” (CPL 440.20 [3]). Neither the CPL nor any judicially created doctrine allows a defendant a second chance at sentencing based on evidence that was readily available at the time sentence was pronounced. The People have no such constitutional right.

Kaval's 1987 conviction as one of the two required predicates to sustain a PVFO designation, the People were required to prove that Mr. Kaval was incarcerated for at least 14 years, nine months, and 14 days between the date of the 1987 conviction and the date of the present offense (Jan. 10, 2012).

The People submitted a "certificate of incarceration" from the New York State Department of Corrections and Community Supervision showing that Mr. Kaval was incarcerated for 14 years, one month, and 26 days, which was not sufficient to toll the 1987 conviction. The People stated that there was "approximately a year" of tolling for incarceration in "downstate facilities," but failed to tender any evidence of that incarceration. Notwithstanding the lack of proof, the court designated Mr. Kaval a PVFO and imposed a sentence of 23 years to life.

On appeal, Mr. Kaval argued, as he had below, that the People failed to prove a sufficient tolling period to sentence him as a PVFO. The People conceded their failure. The Appellate Division agreed, holding that "Supreme Court erred in adjudicating him a persistent violent felony offender," vacated his sentence and remitted for resentencing in accordance with its decision (154 AD3d 875, 876 [2d Dept 2017]). At resentencing, the People, for the first time, submitted records of Mr. Kaval's incarceration in city jails which identified a total of 1,047 days during which Mr. Kaval had been in New York City Department of Correction (DOC) custody. The record shows that the People obtained the DOC records by subpoena issued six years after Mr. Kaval was first sentenced. The People have never contended those records could not have been obtained at Mr. Kaval's original sentencing and have never offered any explanation for their failure to do so.

Over Mr. Kaval's objection, Supreme Court relied on the city jail records and adjudicated him a PVFO, albeit with a slightly reduced sentence (20 years to life). On appeal from the resentencing (*Kaval II*), the Appellate Division reversed because "[it] [had] previously determined, on the merits, that the defendant's incarceration dates did not amount to a sufficient tolling period" and the People had a "full and fair opportunity" to litigate the issue both before the Supreme Court and the Appellate Division (194 AD3d 746, 747 [2d Dept 2021]).

II.

Although the question really presented here has nothing to do with the law of the case doctrine or the PVFO statute, but

rather what deference we should give to the Appellate Division's interpretation of its own prior order, the parties have not addressed that issue in any manner, and so I, too, avoid it even though it should be dispositive.

On the case as presented to us, I disagree with the majority's holding because it is not remotely evenhanded. Absent constitutional violations, parties are not given a chance to retry a matter based on evidence they could have readily obtained and used. That is true in both the civil and criminal contexts. Because "society's interest in finality of judgments . . . is formidable" (*People v Jackson*, 78 NY2d 638, 647 [1991]), we generally do not allow parties to relitigate matters based on evidence known and available to them at the time they first had a full and fair opportunity to litigate an issue (*Gilberg v Barbieri*, 53 NY2d 285, 291 [1981]; *Matter of Central Gen. Hosp. v Hanover Ins. Co.*, 49 NY2d 950 [1980]; *People v Caldavado*, 26 NY3d 1034, 1037 [2015]; *People v Salemi*, 309 NY 208 [1955]).

Here, the People bore the burden of proof, failed to collect the required proof, and thereafter have not offered any reason whatsoever for that failure. The interest in finality of judgments and efficient operation of the judicial system is apparently so important that we have refused to let a criminal defendant challenge her conviction to prove her actual innocence, on the ground that the evidence was previously available to her had counsel been diligent in investigating (*People v Tiger*, 32 NY3d 91 [2018]). In my view, the interest in sentencing Mr. Kaval as a PVFO instead of a second violent felony offender pales in comparison to the interest in ensuring that the convictions of innocent people are vacated.

The majority's holding is not limited by any principle or rule; it appears to allow the People an unlimited number of chances to meet their sentencing obligations, even when they inexcusably neglect to present readily available material evidence that is part of their burden when seeking a sentence. Whether the majority intends to allow merely a second chance or unlimited chances is unclear, but no principle appears by which any limit may be discerned.

The majority's position, which flies in the face of the pervasive rule that litigants receive one full and fair opportunity to prove their case, rests on our summary reversal in *People v Scarbrough* (66 NY2d 673 [1985]), adopting Justice Boomer's dissent in the Appellate Division. The majority here reads his dissent as holding that, because PVFO determina-

tions are “mandatory in nature,” the People are entitled to repeated attempts to meet their burden.

Scarbrough did not involve the failure of the People to adduce sufficient proof. In that case, the People informed the court that they would file a predicate felony statement; the presentence report, available to the court at sentencing, showed that the defendant had a prior felony conviction; and the court advised the defendant of a sentence that could only have been imposed on a predicate felon. *Scarbrough*’s reference to the “mandatory nature” is to the “procedure that *must be followed*,” specifically, that “*a statement must be filed by the prosecutor before sentence is imposed*” (105 AD2d at 1108 [Boomer, J., dissenting]).

Thus, the “mandatory nature” in *Scarbrough* concerns the requirement that the *procedure* be followed: “it was mandatory that the second felony offender statement be filed prior to sentencing. The failure to comply with this mandatory requirement rendered the sentence invalid as a matter of law” (*id.* [internal quotation marks omitted]). That holding does not bear on a case such as this, in which the procedure is followed but the People’s “unexplained lack of diligence” (majority mem at 1084) causes a failure of proof at sentencing. Indeed, there is a certain perverseness in reading a statute requiring that the government follow a particular procedure to conclude that when the government fails to do what a statute commands, it gets a free pass to try again.

The concern expressed in Justice Boomer’s dissent, which we adopted, was that the Appellate Division majority’s holding in that case would have allowed the predicate felony sentencing scheme “to be circumvented by plea bargaining and by the acquiescence of a sentencing Judge whenever he is inclined to extend leniency in violation of the legislative mandate” (105 AD2d at 1109). No such concern is present in cases such as this one, where the correct procedure is followed, and the People attempt but fail to meet their burden. I do not disagree that the *procedure* to designate someone a PVFO is mandatory. Penal Law § 70.08 (2) reads: “[w]hen the court has found, *pursuant to the provisions of the criminal procedure law*, that a person is a persistent violent felony offender the court must impose an indeterminate sentence of imprisonment, the maximum term of which shall be life imprisonment” (emphasis added). Neither the provisions of the Criminal Procedure Law, nor any other law, suggest that we should allow successive

bites at the apple to those given a full and fair chance to prove their case. The People can offer no support, and the majority cites none, suggesting that the People can keep introducing “new” evidence at successive resentencing hearings despite ample opportunity to do so previously and without some colorable excuse for their prior failure (*cf. People v Havelka*, 45 NY2d 636, 644 [1978]; *People v Dais*, 19 NY3d 335, 344-345 [2012]).

Finally, at a somewhat higher level of abstraction, I take issue with the proposition that because the evidence eventually showed Mr. Kaval met the statutory definition of a PVFO, he *is* one and holding otherwise would sanction an “illegal” sentence. It is not “illegal” to be found not guilty even when you are, in fact, guilty.² The same jury with different proof, lawyers, or arguments might have found you guilty instead. What is illegal is a verdict obtained by ignoring or violating procedural safeguards or constitutional rights. Likewise, it is not “illegal” to be sentenced as a second violent felony offender when proof could have shown that you were a PVFO. One’s PVFO status is not *malum in se*—it is not an inherent moral prohibition that the law merely codifies—rather, it is a creature of statute, fashioned to punish repeat offenders more harshly. The tolling exception is also an artificial mechanism, created to bring more offenders under the PVFO umbrella, even when the predicate convictions would otherwise be too old to justify a lengthy sentence—here, 23 years to life, where Mr. Kaval’s crime of conviction was carrying a gun in public. What allows the State to impose the designation is a statutory scheme dependent on mandatory *procedures*, including notice and an opportunity to be heard. What makes an illegal sentence is the flouting of such procedures, including the fundamental procedural rule that litigants who have been afforded a full and fair opportunity to prove their cases are stuck with the first bite they have taken, even if there’s a worm inside. The People were afforded all the procedural safeguards prescribed by the statute. They failed to meet their burden and should not be allowed to try again, especially when they do not even deign to offer an explanation.

2. As baseball’s “Old Arbitrator,” Bill Klem, famously said, “Sonny, it ain’t nothin’ till I call it” (David Sturt & Todd Nordstrom, *How You Can Make The Call That Makes A Difference*, *Forbes*, Dec. 6, 2013, available at <https://www.forbes.com/sites/davidsturt/2013/12/06/sonny-it-aint-nothin-til-i-call-it/?sh=297ad26a60aa>).

Acting Chief Judge CANNATARO and Judges RIVERA, GARCIA, SINGAS and TROUTMAN concur; Judge WILSON dissents and votes to affirm in an opinion.

Order reversed and case remitted to the Appellate Division, Second Department, for consideration of the facts and issues raised but not determined on appeal to that Court, in a memorandum.

SHANE CHRISTOPHER BUCZEK, Appellant, v TOWN OF EVANS et al., Respondents, et al., Defendants.

Decided March 16, 2023

Reported below, 210 AD3d 1428.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

LUJERIO CORDERO, Appellant, v TRANSAMERICA ANNUITY SERVICE CORPORATION, Also Known as WILTON RE ANNUITY SERVICE CORPORATION, Defendant/Third-Party Plaintiff-Respondent, TRANSAMERICA LIFE INSURANCE COMPANY, Defendant Cross-Claimant-Respondent, et al., Third-Party Defendants-Cross Defendants.

Submitted February 14, 2023; decided March 16, 2023

See 34 F4th 994.

Motion by National Structured Settlements Trade Association for leave to file a brief amicus curiae on consideration of the certified question herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

Acting Chief Judge CANNATARO took no part.

FAVOURITE LIMITED et al., Appellants, v BENEDETTO CICO et al.,
Respondents, et al., Defendant.

Submitted February 21, 2023; decided March 16, 2023

Reported below, 208 AD3d 99.

Motion to dismiss appeal denied.

In the Matter of FRANK GARCIA, Appellant, v CRAIG J. DORAN et
al., Respondents.

Submitted November 28, 2022; decided March 16, 2023

Motion for leave to appeal dismissed upon the ground that
the September 12, 2022 and October 6, 2022 letters sought to
be appealed from are neither judgments nor orders from which
an appeal to this Court may be taken (*see* CPLR 5512 [a]; 5602
[a]). Motion for poor person relief dismissed as academic.

Judge TROUTMAN took no part.

AMY R. GURVEY, Appellant, v STATE OF NEW YORK et al., Respon-
dents.

Decided March 16, 2023

Reported below, 72 Misc 3d 1211(A), 2021 NY Slip Op 50697(U).

Appeal transferred without costs, by the Court of Appeals
sua sponte, to the Appellate Division, Third Department, upon
the ground that a direct appeal does not lie when questions
other than the constitutional validity of a statutory provision
are involved (*see* NY Const, art VI, §§ 3 [b] [2]; 5 [b]; CPLR
5601 [b] [2]).

Acting Chief Judge CANNATARO took no part.

MICHAEL N. KELSEY, Appellant, v LENORE R., Respondent.

Decided March 16, 2023

Reported below, 211 AD3d 1361.

Appeal dismissed without costs, by the Court of Appeals sua
sponte, upon the ground that no substantial constitutional
question is directly involved.

K.E. LIGGETT, Appellant, v LEW REALTY LLC, Respondent.

Decided March 16, 2023

Reported below, 211 AD3d 473.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

VELIN MEZINEV, Appellant, v BERMET TASHYBEKOVA, Respondent.

Submitted December 19, 2022; decided March 16, 2023

Reported below, 209 AD3d 586.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of NICOLE B., Respondent, v FRANKLIN A., Appellant.

Submitted December 27, 2022; decided March 16, 2023

Reported below, 210 AD3d 1351.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

ANDREW NITKEWICZ, as Trustee of the JOAN C. LUPE FAMILY TRUST and On Behalf of Himself and All Others Similarly Situated, Appellant, v LINCOLN LIFE & ANNUITY COMPANY OF NEW YORK, Respondent.

Submitted February 6, 2023; decided March 16, 2023

See 49 F4th 721.

Motion to expand the record denied.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JORGE
BAQUE, Appellant.

Submitted March 13, 2023; decided March 16, 2023

Reported below, 210 AD3d 1000.

Motion for assignment of counsel granted and Patricia Pazner, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SHAMON
DILLIGARD, Appellant.

Submitted February 21, 2023; decided March 16, 2023

Reported below, 210 AD3d 542.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v VLADIMIR
KRULL, Respondent.

Decided March 16, 2023

Reported below, 208 AD3d 163.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MARTIN
ORTIZ, Appellant.

Submitted March 6, 2023; decided March 16, 2023

Reported below, 209 AD3d 451.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JUAN PADILLA-ZUNIGA, Appellant.

Submitted March 6, 2023; decided March 16, 2023

Reported below, 209 AD3d 770.

Motion for assignment of counsel granted and N. Scott Banks, Esq., Legal Aid Society of Nassau County, 40 Main Street, 3rd Floor, Hempstead, NY 11550 assigned as counsel to the appellant on the appeal herein.

Judge SINGAS took no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DWIGHT REID, Appellant.

Submitted March 13, 2023; decided March 16, 2023

Reported below, 203 AD3d 474.

Motion by New York Civil Liberties Union for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. BLAKE WINGATE, Appellant, v STATE OF NEW YORK DEPARTMENT OF CORRECTIONS AND COMMUNITY SERVICES AT SOUTHPORT CORRECTIONAL FACILITY MEDICAL, Respondent.

Submitted February 6, 2023; decided March 16, 2023

Reported below, 208 AD3d 1523.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

In the Matter of ROCHESTER POLICE LOCUST CLUB, INC., et al., Respondents, v CITY OF ROCHESTER et al., Respondents/Defendants, and COUNCIL OF CITY OF ROCHESTER, Appellant.

In the Matter of the Arbitration between CITY OF SYRACUSE, Appellant, and SYRACUSE POLICE BENEVOLENT ASSOCIATION, INC., Respondent.

Submitted February 14, 2023; decided March 16, 2023

Reported below, 196 AD3d 74.

Reported below, 198 AD3d 1322.

Motion by City of New York for leave to file a brief amicus curiae on the appeals herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

Judge TROUTMAN took no part.

SUZAN RUSSELL, Appellant, v NEW YORK UNIVERSITY et al.,
Respondents.

Submitted January 9, 2023; decided March 16, 2023

Reported below, 204 AD3d 577.

Motion to vacate this Court's December 8, 2022 dismissal order granted.

In the Matter of the Estate of MICHAEL KEVIN RYAN, Deceased.
GERALDINE A. WHITNEY, as Executor of the Estate of TERRY
L. WHITNEY, Deceased, Appellant; FRANK HEADLEY, as
Administrator of the Estate of MICHAEL KEVIN RYAN,
Deceased, Respondent. (And Another Related Proceeding.)

Decided March 16, 2023

Reported below, 212 AD3d 902.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of AILEEN T. SMISEK, Respondent, v MICHAEL V.
DeSANTIS, Appellant.

Submitted December 19, 2022; decided March 16, 2023

Reported below, 209 AD3d 142.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

TAX EQUITY NOW NY LLC, Appellant, v CITY OF NEW YORK et
al., Respondents.

Submitted March 13, 2023; decided March 16, 2023

Reported below, 182 AD3d 148.

Motion by LatinoJustice PRLDEF for leave to file a brief

amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

In the Matter of ANNA TAYLOR, Appellant, v RANDOLPH J. TAYLOR SR., Respondent.

Decided March 16, 2023

Appeal from order of Family Court, Suffolk County, transferred without costs, by the Court of Appeals sua sponte, to the Appellate Division, Second Department, upon the ground that a direct appeal does not lie when questions other than the constitutional validity of a statutory provision are involved (*see* NY Const, art VI, §§ 3 [b] [2]; 5 [b]; CPLR 5601 [b] [2]).

RANDOLPH J. TAYLOR, Respondent, v ANNA TAYLOR, Appellant.

Decided March 16, 2023

Appeal from orders of Supreme Court, Suffolk County, transferred without costs, by the Court of Appeals sua sponte, to the Appellate Division, Second Department, upon the ground that a direct appeal does not lie when questions other than the constitutional validity of a statutory provision are involved (*see* NY Const, art VI, §§ 3 [b] [2]; 5 [b]; CPLR 5601 [b] [2]).

SHAKEYA WOODWARD, Appellant, v NEW YORK CITY et al., Respondents.

In the Matter of SHAKEYA WOODWARD, Appellant, v NEW YORK STATE OFFICE OF CHILDREN AND FAMILY SERVICES et al., Respondents.

Submitted December 19, 2022; decided March 16, 2023

Reported below, 2022 NY Slip Op 73290(U).

Motion, insofar as it seeks leave to appeal from the portions of the Appellate Division order that denied appellant's motions for poor person relief and to consolidate the appeals, dismissed upon the ground that such portions of the order do not finally determine the action or proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied. Motion for poor person relief dismissed as academic.

[206 NE3d 1255, 186 NYS3d 112]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DAKOTA
W. BALDWIN, Appellant.

Argued February 8, 2023; decided March 21, 2023

SUMMARY

APPEAL by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered September 23, 2021. The Appellate Division affirmed a judgment of the Chemung County Court (Christopher P. Baker, J.), which had convicted defendant, upon a plea of guilty, of attempted assault in the second degree and sentenced him as a second felony offender to a prison term of two to four years.

People v Baldwin, 197 AD3d 1442, appeal dismissed.

HEADNOTE**Crimes — Appeal — Academic and Moot Questions**

In a criminal prosecution, defendant's appeal from the Appellate Division order affirming the judgment of conviction was dismissed upon the ground that the issues presented had become moot.

APPEARANCES OF COUNSEL

Clea Weiss, Rochester, for appellant.

Weeden A. Wetmore, District Attorney, Elmira (*Zachary S. Persichini* of counsel), for respondent.

OPINION OF THE COURT**MEMORANDUM.**

The appeal should be dismissed upon the ground that the issues presented have become moot (*see People v McLaine*, 64 NY2d 934, 934 [1985]; *see also People v Chi Fong Chen*, 100 NY2d 527, 528 [2003]).

WILSON, J. (concurring). The question presented on this appeal is whether, for the past several decades, the Third Department has imposed an erroneous legal standard on criminal defendants seeking a reduction of their sentences in the interest of justice. Mr. Baldwin points to countless Third Department cases, including his own, in which the Third Department employed a test requiring a showing of extraordinary circumstances or abuse of discretion for it to exercise its interest of justice jurisdiction to modify a sentence. Relying on the statu-

tory language empowering the Appellate Division to reduce “unduly harsh or severe” sentences in the interest of justice (CPL 470.15 [6] [b]), Mr. Baldwin contends that the Third Department’s test constitutes an incorrect legal standard.

Mr. Baldwin argues that the Third Department’s requirement that a defendant show a clear abuse of discretion or extraordinary circumstances is contrary to both our case law and the practices of the other Appellate Division departments. In *People v Delgado*, we emphasized that the Appellate Division’s “broad, plenary power to modify a sentence . . . may be exercised, if the interest of justice warrants, without deference to the sentencing court” (80 NY2d 780, 783 [1992]). Mr. Baldwin contends that the Third Department’s standard is an outlier: it is used by no other department, and has been expressly rejected by the Fourth Department (*see e.g. People v Thomas*, 194 AD3d 1405, 1406 [4th Dept 2021] [(W)e are compelled to emphasize once again that, contrary to the People’s assertion, a criminal defendant need not show extraordinary circumstances or an abuse of discretion by the sentencing court in order to obtain a sentence reduction under CPL 470.15 (6) (b)” (internal quotation marks omitted)]).

In *People v Epakchi* (37 NY3d 39, 43-45 [2021]), we held that even if an appellate court has couched its decision as one made in the interest of justice, if the court’s practical exercise of its discretion evidences the existence of a standard, and even if that standard allows for deviation in “exceptional circumstances,” we are empowered to review the propriety of the standard. Mr. Baldwin relies on *Epakchi* for the proposition that, although our Court lacks the power to modify sentences in the interest of justice, we do have the power (and obligation) to correct appellate courts that have applied an incorrect legal standard when exercising their interest of justice power, to ensure compliance with governing law and uniformity across the state.

I agree with the majority that Mr. Baldwin’s appeal is moot, but believe further explanation is required to address why his appeal does not meet the mootness exception. The maximum term of Mr. Baldwin’s sentence has expired. Thus, the issue of whether his sentence is excessive “may not properly be decided by this [C]ourt unless it is found to be within the exception to the doctrine which permits the courts to preserve for review important and recurring issues which, by virtue of their relatively brief existence, would be rendered otherwise nonre-

viewable” (*Matter of Hearst Corp. v Clyne*, 50 NY2d 707, 714 [1980]).

Here, however, as Mr. Baldwin himself points out, the issue is not likely to recur. The Third Department, to its great credit, apparently noticed the pendency of this appeal and the issue it raised, after which it corrected its long-standing use of the wrong standard, making repetition of the error unlikely (*see e.g. People v Sanders*, 206 AD3d 1164, 1165 [3d Dept 2022]; *People v Harris*, 206 AD3d 1454, 1461 [3d Dept 2022]; *People v Machia*, 206 AD3d 1272, 1278 [3d Dept 2022]; *People v Streater*, 207 AD3d 952, 954 [3d Dept 2022]; *People v Kimball*, 213 AD3d 1028 [3d Dept 2023]; *People v Garrick*, 213 AD3d 999 [3d Dept 2023]). Mr. Baldwin’s opening brief in our Court was filed in May 2022. No Third Department case since May 2022 has used the “abuse of discretion or extraordinary circumstances” standard; each has used the “unduly harsh or severe” standard set forth in CPL 470.15 (6) (b). Thus, the exception to the mootness doctrine does not apply. In a way, then, Mr. Baldwin has prevailed on the merits of his argument even though his appeal is moot.

Acting Chief Judge CANNATARO and Judges RIVERA, GARCIA, WILSON, SINGAS and TROUTMAN concur, Judge WILSON in a concurring opinion.

Appeal dismissed upon the ground that the issues presented have become moot, in a memorandum.

GERALDINE ANDREAS, Also Known as GERI ANDREAS, et al., Appellants, v 186 TENANTS CORP., et al., Respondents.

Submitted December 27, 2022; decided March 21, 2023

Reported below, 2022 NY Slip Op 74296(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

COUNSEL FINANCIAL HOLDINGS LLC, Respondent, v SULLIVAN LAW, L.L.C., et al., Appellants. (Appeal No. 2.)

Submitted December 19, 2022; decided March 21, 2023

Reported below, 208 AD3d 1028.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

ERIN DOMINGO, Appellant, v 541 OPERATING CORP., et al., Respondents.

Submitted December 27, 2022; decided March 21, 2023

Reported below, 210 AD3d 423.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

LUKASZ GOTTWALD, Professionally Known as DR. LUKE, et al., Respondents, v KESHA ROSE SEBERT, Professionally Known as KESHA, Appellant, et al., Defendants.

Submitted January 17, 2023; decided March 21, 2023

Reported below, 203 AD3d 488.

Motion by New York State Senator Brad Hoylman for leave to file a brief amicus curiae on the appeal herein denied (*see Local Govt. Assistance Corp. v Sales Tax Asset Receivable Corp.*, 2 NY3d 771 [2004] [motion by Speaker of the Assembly Sheldon Silver for leave to file a brief amicus curiae denied]).

Judges RIVERA and WILSON dissent.

LUKASZ GOTTWALD, Professionally Known as DR. LUKE, et al., Respondents, v KESHA ROSE SEBERT, Professionally Known as KESHA, Appellant, et al., Defendants.

Submitted February 6, 2022; decided March 21, 2023

Reported below, 203 AD3d 488.

Motion by Samuel D. Isaly for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

LUKASZ GOTTWALD, Professionally Known as DR. LUKE, et al.,
Respondents, v KESHA ROSE SEBERT, Professionally Known
as KESHA, Appellant, et al., Defendants.

Submitted March 13, 2023; decided March 21, 2023

Reported below, 203 AD3d 488.

Motion by Advance Publications, Inc., et al. for leave to file a
brief amici curiae on the appeal herein granted and the
proposed brief is accepted as filed. The brief must be submitted
in digital format within seven days.

LUKASZ GOTTWALD, Professionally Known as DR. LUKE, et al.,
Respondents, v KESHA ROSE SEBERT, Professionally Known
as KESHA, Appellant, et al., Defendants.

Submitted March 13, 2023; decided March 21, 2023

Reported below, 203 AD3d 488.

Motion by María Kim Grand for leave to file a brief amicus
curiae on the appeal herein granted and the proposed brief is
accepted as filed. The brief must be submitted in digital format
within seven days.

In the Matter of KATE KLENFER et al., Respondents, v ABDUS
SHAHID, Appellant, et al., Respondents.

Submitted January 17, 2023; decided March 21, 2023

Reported below, 2022 NY Slip Op 74799(U).

Motion for leave to appeal dismissed upon the ground that
the Court of Appeals does not have jurisdiction to entertain a
motion for leave to appeal from the order of the Appellate Divi-
sion entered in this proceeding commenced in the Civil Court
of the City of New York (*see* NY Const, art VI, § 3 [b] [7]; CPLR
5602 [a]).

NELLA MANKO, Appellant, v LENOX HILL ANESTHESIOLOGY,
PLLC, et al., Respondents.

Submitted January 17, 2023; decided March 21, 2023

Reported below, 2022 NY Slip Op 63442(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

Acting Chief Judge CANNATARO took no part.

MEDLOCK CROSSING SHOPPING CENTER DULUTH, GA. LIMITED PARTNERSHIP, Respondent, v TT MEDLOCK CROSSING, LLC, et al., Defendants, and WILLIAM P. ALLEN, Appellant. (Appeal No. 1.)

MEDLOCK CROSSING SHOPPING CENTER DULUTH, GA. LIMITED PARTNERSHIP, Respondent, v TT MEDLOCK CROSSING, LLC, et al., Defendants, and WILLIAM P. ALLEN, Appellant. (Appeal No. 2.)

Submitted December 27, 2022; decided March 21, 2023

Reported below, 210 AD3d 1450; 210 AD3d 1452.

Motion, insofar as it seeks leave to appeal from the Appellate Division order dismissing the appeal from the September 2021 Supreme Court order, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

MORET, LLC, Respondent, v NEWBANK, Appellant, et al., Defendants.

Submitted February 27, 2023; decided March 21, 2023

Reported below, 194 AD3d 809.

Motion for leave to appeal dismissed upon the ground that the judgment sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for a stay dismissed as academic.

In the Matter of LOREEN MORTAYA et al., Respondents, v ABDUS SHAHID, Appellant, et al., Respondent.

Submitted January 17, 2023; decided March 21, 2023

Reported below, 2022 NY Slip Op 74800(U).

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain a motion for leave to appeal from the order of the Appellate Division entered in this proceeding commenced in the Civil Court of the City of New York (*see* NY Const, art VI, § 3 [b] [7]; CPLR 5602 [a]).

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANTHONY DEBELLIS, Appellant.

Decided March 21, 2023

Reported below, 205 AD3d 555.

Reargument ordered for a future Court of Appeals session.

Concur: Acting Chief Judge CANNATARO and Judges RIVERA, GARCIA, WILSON, SINGAS and TROUTMAN.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DARRYL WATTS, Appellant.

Submitted January 3, 2023; decided March 21, 2023

Reported below, 210 AD3d 595.

Motion for leave to appeal denied upon the ground that an appeal lies as of right (*see* CPLR 5601 [b] [1]). Motion for poor person relief granted.

S & H CLINTON ASSOCIATES, LLC, Respondent, v TYRONE CHERRY, Appellant.

Submitted January 9, 2023; decided March 21, 2023

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3 [b] [7]; CPLR 5602 [a]).

NINA TSOKOLAKYAN, Appellant, v TIFFANY MANAGEMENT, LTD., Respondent, et al., Defendants.

Submitted December 27, 2022; decided March 21, 2023

Reported below, 210 AD3d 927.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

ZOOM TAN, INC., Appellant, v SHERIDAN PLAZA, LLC, Respondent.

Submitted December 19, 2022; decided March 21, 2023

Reported below, 210 AD3d 1457.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

[207 NE3d 565, 186 NYS3d 599]

KATHRYN CASEY et al., Respondents, et al., Plaintiffs-Intervenors, v WHITEHOUSE ESTATES, INC., et al., Appellants. WHITEHOUSE ESTATES, INC., et al., Third-Party Plaintiffs-Appellants, v ROBERTA L. KOEPEL et al., Third-Party Defendants.

Argued February 7, 2023; decided March 16, 2023

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered August 5, 2021. The Appellate Division order, insofar as appealed from, affirmed an order of the Supreme Court, New York County (Gerald Lebovits, J.; op 2017 NY Slip Op 33319[U] [2017]), which, insofar as appealed from as limited by the briefs, had (1) granted plaintiffs' motion for summary judgment declaring that their legal regulated rent should be calculated according to the Rent Stabilization Code's default formula; and (2) denied defendants' cross-motion to determine the amount of use and occupancy. The following question was certified by the Appellate Division: "Was the order of this Court, which affirmed the order of the Supreme Court, properly made?"

Casey v Whitehouse Estates, Inc., 197 AD3d 401, reversed.

HEADNOTE

Landlord and Tenant — Rent Regulation — Improper Deregulation of Apartments while Receiving J-51 Benefits — Calculation of Legal Regulated Rent — Fraud Exception

In a 2011 class action, plaintiffs, tenants of a Manhattan building seeking rent overcharges based on defendant building owners, managing agents, and landlords' improper deregulation of their apartments during receipt of J-51 benefits, failed to meet their burden on summary judgment to show that defendants engaged in fraud and failed to produce adequate records requiring use of the Rent Stabilization Code's default formula to determine overcharges. For cases preceding the Housing Stability and Tenant Protection Act of 2019, review of rental history outside the four-year lookback period is permitted only where the tenant produced evidence of a fraudulent scheme to deregulate and solely to ascertain whether fraud occurred. It cannot be used to furnish evidence for calculation of the base date rent or permit recovery for years of overcharges barred by the statute of limitations. Further, defendants' deregulation of the apartments during receipt of benefits was based on a misinterpretation of the law, generally precluding a finding of willfulness, and conduct cannot be fraudulent without being willful. Defendants' subsequent re-registering of the apartments occurred after the four-year lookback period, and plaintiffs failed to show that it affected the reliability of the actual rent paid on the base date. It was unclear whether the records made available by either party provided enough information to determine the base date rent.

APPEARANCES OF COUNSEL

Rosenberg & Estis, P.C., New York City (*Jeffrey Turkel*, *Howard W. Kingsley* and *Ethan R. Cohen* of counsel), for appellants.

Himmelstein McConnell Gribben & Joseph LLP, New York City (*Ronald S. Languedoc* and *William Gribben* of counsel), and *Emery Celli Brinckerhoff Abady Ward & Maazel LLP*, New York City, for respondents.

Katsky Korins LLP, New York City (*Adrienne B. Koch*, *Mark Walfish* and *Benjamin Cohen* of counsel), for Rent Stabilization Association of NYC, Inc. and another, amici curiae.

Newman Ferrara LLP, New York City (*Lucas A. Ferrara* and *Roger A. Sachar* of counsel), for Housing Rights Initiative, Inc., amicus curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division insofar as appealed from should be reversed, with costs, plaintiffs' motion insofar as it sought summary judgment declaring that their legal regulated rent should be calculated according to the Rent Stabilization Code's default formula denied, the case remitted to Supreme Court for further proceedings in accordance with this memorandum, and the certified question answered in the negative.

On October 14, 2011, plaintiffs, tenants of a building located in Manhattan, brought a class action against defendants, the building's owners, managing agents, and landlords seeking, in relevant part, rent overcharges. After extensive discovery, plaintiffs moved for summary judgment, alleging that defendants engaged in fraud and failed to produce adequate rent records, therefore requiring use of the default formula to determine any overcharge. Supreme Court granted plaintiffs' motion (2017 NY Slip Op 33319[U] [Sup Ct, NY County 2017]). A divided Appellate Division affirmed Supreme Court's order "which, insofar as appealed from as limited by the briefs, granted plaintiffs' motion for summary judgment declaring that their legal regulated rent should be calculated according to the Rent Stabilization Code's default formula and denied defendants' cross motion to determine the amount of use and occupancy" (197 AD3d 401, 401 [1st Dept 2021]).*

Matter of Regina Metro. Co., LLC v New York State Div. of Hous. & Community Renewal was decided after Supreme Court granted plaintiffs' motion (35 NY3d 332 [2020]). There, this Court made clear that, under the pre-Housing Stability and Tenant Protection Act of 2019 law applicable here,

"review of rental history outside the four-year look-back period [i]s permitted only in the limited category of cases where the tenant produced evidence of a fraudulent scheme to deregulate and, even then, solely to ascertain whether fraud occurred—not to furnish evidence for calculation of the base date rent or permit recovery for years of overcharges barred by the statute of limitations" (*id.* at 355 [citation omitted]).

In fraud cases, because the reliability of the base date rent has been tainted, "this Court sanctioned use of the default formula to set the base date rent" (*id.*; see *Matter of Grimm v State of N.Y. Div. of Hous. & Community Renewal Off. of Rent Admin.*, 15 NY3d 358, 367 [2010]). *Regina* also held that

"[d]eregulation of . . . apartments during receipt of J-51 benefits was not based on a fraudulent misstatement of fact but on a misinterpretation of the

* At the Appellate Division, plaintiffs conceded that they had "previously stated to [that] Court that they do not oppose that part of the appeal which deals with [d]efendants' affirmative defenses that two of the [d]efendants were acting as agents of a disclosed principal."

law [and so] a finding of willfulness is generally not applicable to cases arising in the aftermath of *Roberts* [and] [b]ecause conduct cannot be fraudulent without being willful, it follows that the fraud exception to the lookback rule is generally inapplicable to *Roberts* overcharge claims” (*Regina*, 35 NY3d at 356 [internal quotation marks and citations omitted]).

Plaintiffs failed to meet their burden on summary judgment. Defendants’ deregulation of the apartments was based on this same “misinterpretation of the law” involved in *Regina* and therefore that conduct did not constitute fraud (*id.*). Defendants’ subsequent re-registering of the apartments occurred after the four-year lookback period, and plaintiffs have failed to offer evidence that it somehow affected the reliability of the actual rent plaintiffs paid on the base date.

For purposes of calculating overcharges, where it is possible to determine the rent “actually charged on the base date”—here October 14, 2007—that amount should be used and rent increases legally available to defendants pursuant to the Rent Stabilization Law during the four-year period should be added (*id.* at 355-356). We agree with the dissent below that “[i]t is unclear whether the records made available by either party provide enough information to determine the base date rent in accordance with *Regina* for any of the subject apartments” (197 AD3d 401, 411 [2021, Gische, J., dissenting]). On remittal, that assessment must be made for each apartment.

Order insofar as appealed from reversed, with costs, plaintiffs’ motion insofar as sought summary judgment declaring that their legal regulated rent should be calculated according to the Rent Stabilization Code’s default formula denied, case remitted to Supreme Court, New York County, for further proceedings in accordance with the memorandum herein, and certified question answered in the negative.

Acting Chief Judge CANNATARO and Judges RIVERA, GARCIA, WILSON, SINGAS and TROUTMAN concur.

DAVID J. LEMIEUX, Appellant, v ALTON E. HORN et al., Respondents.

Decided March 16, 2023

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered October 13, 2022. The Appellate Division, with two Justices dissenting, affirmed (1) an order of the Supreme Court, Broome County (Jeffrey A. Tait, J.), entered June 29, 2021, which had granted (a) plaintiff's motion for partial summary judgment establishing the negligence of defendants, and (b) defendants' cross-motion for summary judgment dismissing the complaint based on the lack of a serious injury as defined in Insurance Law § 5102 (d); and (2) an order of that Supreme Court, entered February 17, 2022, which had, upon reargument, adhered to its prior decision.

Lemieux v Horn, 209 AD3d 1100, affirmed.

HEADNOTE

Insurance — No-Fault Automobile Insurance — Serious Injury

In a negligence action to recover for injuries allegedly sustained in a motor vehicle accident, the Appellate Division correctly concluded that defendant established prima facie entitlement to summary judgment and plaintiff failed to raise a triable issue of fact whether he suffered a serious injury within the meaning of Insurance Law § 5102 (d) as a result of the accident.

APPEARANCES OF COUNSEL

Edelman, Krasin & Jaye, PLLC, Westbury (*Aaron D. Fine* of counsel), for appellant.

Smith Sovik, Syracuse (*James W. Cunningham* and *Davis M. Katz* of counsel), for respondents.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs. The Appellate Division correctly concluded that defendant established prima facie entitlement to summary judgment and plaintiff failed to raise a triable issue of fact whether he suffered a serious injury within the meaning of Insurance Law § 5102 (d) as a result of the accident (*see Pommells v Perez*, 4 NY3d 566, 573-575 [2005]; *Franchini v Palmieri*, 1 NY3d 536, 537 [2003]).

Concur: Acting Chief Judge CANNATARO and Judges RIVERA,
GARCIA, WILSON, SINGAS and TROUTMAN.

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(March 1, 2023 through March 31, 2023)

People v Ahmed	App Term, 1st Dept: 77 Misc 3d 130(A) (NY)	denied 3/27/23 (Cannataro, Acting Ch. J.)
People v Alessi	App Term, 2d Dept, 9th & 10th Jud Dists: 75 Misc 3d 132(A) (Suffolk)	denied 3/16/23 (Wilson, J.)
People v Alvarado	1st Dept: 212 AD3d 539 (NY)	denied 3/17/23 (Singas, J.)
People v Anderson (Deon)	4th Dept: 213 AD3d 1331 (Onondaga)	denied 3/31/23 (Wilson, J.)
People v Anderson (Trever)	4th Dept: 213 AD3d 1357 (Monroe)	denied 3/24/23 (Rivera, J.)
People v Araujo	1st Dept: 212 AD3d 563 (NY)	denied 3/17/23 (Rivera, J.)
People v Arias	1st Dept: 210 AD3d 593 (NY)	denied 3/31/23 (Wilson, J.)
People v Armstrong	2d Dept: 210 AD3d 900 (Kings)	denied 3/1/23 (Cannataro, Acting Ch. J.)
People v Baylor	1st Dept: 211 AD3d 546 (NY)	denied 3/28/23 (Cannataro, Acting Ch. J.)
People v Benn	2d Dept: 210 AD3d 690 (Queens)	denied 3/31/23 (Wilson, J.)
People v Boateng (Jeffery)	1st Dept: 209 AD3d 448 (NY)	denied 3/16/23 (Wilson, J.)
People v Boateng (Jeffrey)	1st Dept: 209 AD3d 448 (NY)	denied 3/16/23 (Wilson, J.)
People v Briosio	1st Dept: 211 AD3d 620 (Bronx)	denied 3/1/23 (Cannataro, Acting Ch. J.)
People v Buckingham	4th Dept: 213 AD3d 1199 (Onondaga)	denied 3/22/23 (Rivera, J.)
People v Carey	App Term, 1st Dept: 77 Misc 3d 136(A) (NY)	denied 3/17/23 (Rivera, J.)
People v Carollo	County Ct, 11/30/22 (Oneida)	denied 3/10/23 (Singas, J.)
People v Castillo	1st Dept: 210 AD3d 414 (Bronx)	granted 3/16/23 (Wilson, J.)
People v Chevannes	1st Dept: 210 AD3d 507 (Bronx)	denied 3/31/23 (Wilson, J.)
People v Collier	App Div, 3d Dept: 2023 NY Slip Op 60223(U) (Rensselaer)	dismissed 3/31/23 (Wilson, J.)

People v Conyers	1st Dept: 212 AD3d 417 (NY)	denied 3/15/23 (Garcia, J.)
People v Cruz	App Term, 2d Dept, 9th & 10th Jud Dists: 77 Misc 3d 134(A) (Suffolk)	denied 3/27/23 (Cannataro, Acting Ch. J.)
People v Cunningham	4th Dept: 213 AD3d 1270 (Livingston)	denied 3/31/23 (Cannataro, Acting Ch. J.)
People v Danielson	App Div, 3d Dept: 2023 NY Slip Op 60272(U) (Chenango)	dismissed 3/8/23 (Rivera, J.)
People v Delacruz	2d Dept: 213 AD3d 691 (Kings)	denied 3/28/23 (Cannataro, Acting Ch. J.)
People v Devane	3d Dept: 212 AD3d 894 (Schenectady)	denied 3/29/23 (Singas, J.)
People v Diaz (Angel)	1st Dept: 212 AD3d 485, 2023 NY Slip Op 00186 (Bronx)	denied 3/16/23 (Wilson, J.)
People v Diaz (Angel)	1st Dept: 212 AD3d 485, 2023 NY Slip Op 00187 (Bronx)	denied 3/16/23 (Wilson, J.)
People v DiTore	2d Dept: 209 AD3d 665 (Nassau)	denied 3/27/23 (Rivera, J.)
People v Dobson	County Ct, 1/5/22 (Erie)	denied 3/23/23 (Cannataro, Acting Ch. J.)
People v Duncan	1st Dept: 212 AD3d 446 (NY)	denied 3/24/23 (Rivera, J.)
People v Dunton	App Div, 1st Dept: 2022 NY Slip Op 68332(U) (NY)	granted 3/31/23 (Wilson, J.)
People v Frederick	2d Dept: 211 AD3d 1034 (Kings)	denied 3/28/23 (Cannataro, Acting Ch. J.)
People v Garcia	1st Dept: 212 AD3d 413 (NY)	denied 3/16/23 (Wilson, J.)
People v Gaston	1st Dept: 209 AD3d 507 (NY)	denied 3/31/23 (Wilson, J.)
People v Gonyea	3d Dept: 211 AD3d 1102 (Washington)	denied 3/31/23 (Wilson, J.)
People v Gonzalez (Kenny)	2d Dept: 210 AD3d 1005 (Queens)	denied 3/1/23 (Cannataro, Acting Ch. J.)
People v Gonzalez (Randy)	1st Dept: 212 AD3d 513 (NY)	denied 3/31/23 (Cannataro, Acting Ch. J.)
People v Goody	2d Dept: 213 AD3d 694 (Kings)	denied 3/30/23 (Cannataro, Acting Ch. J.)
People v Graham	4th Dept: 211 AD3d 1636 (Onondaga)	denied 3/23/23 (Cannataro, Acting Ch. J.)
People v Graves	1st Dept: 211 AD3d 586 (NY)	denied 3/24/23 (Singas, J.)

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People v Guerrero	1st Dept: 212 AD3d 474 (NY)	denied 3/8/23 (Rivera, J.)
People v Gunn	4th Dept: 211 AD3d 1635 (Onondaga)	denied 3/15/23 (Garcia, J.)
People v Guzman	1st Dept: 212 AD3d 474 (NY)	denied 3/29/23 (Garcia, J.)
People v Hardie	3d Dept: 211 AD3d 1418 (Albany)	denied 3/29/23 (Garcia, J.)
People v Harrison	2d Dept: 212 AD3d 651 (Suffolk)	denied 3/30/23 (Cannataro, Acting Ch. J.)
People v Hayon	2d Dept: 211 AD3d 966 (Kings)	denied 3/23/23 (Garcia, J.)
People v Hernandez	2d Dept: 209 AD3d 672 (Nassau)	denied 3/1/23 (Cannataro, Acting Ch. J.)
People v Hernandez-Gonzalez	2d Dept: 210 AD3d 1006 (Nassau)	denied 3/1/23 (Cannataro, Acting Ch. J.)
People v Hill (Quentin)	4th Dept: 208 AD3d 1654 (Erie)	denied 3/1/23 (Cannataro, Acting Ch. J.)
People v Hill (Quinton)	4th Dept: 208 AD3d 1654 (Erie)	denied 3/1/23 (Cannataro, Acting Ch. J.)
People v Howard	4th Dept: 210 AD3d 1383 (Monroe)	denied 3/24/23 (Singas, J.)
People v Ibarondo	4th Dept: 208 AD3d 1647 (Livingston)	denied 3/31/23 (Wilson, J.)
People v Ingram	1st Dept: 212 AD3d 468 (NY)	denied 3/28/23 (Cannataro, Acting Ch. J.)
People v Jacque-Crews	4th Dept: 213 AD3d 1335 (Monroe)	denied 3/29/23 (Garcia, J.)
People v Jenkins (Terrell)	App Div, 1st Dept: 2022 NY Slip Op 72405(U) (NY)	dismissed 3/17/23 (Rivera, J.)
People v Jenkins (Terrell)	App Div, 1st Dept: 2022 NY Slip Op 66380(U) (NY)	denied reconsideration 3/17/23 (Rivera, J.)
People v Johns	2d Dept: 210 AD3d 1108 (Kings)	denied 3/1/23 (Rivera, J.)
People v Johnson (Chelsea)	2d Dept: 211 AD3d 747 (Orange)	denied 3/23/23 (Cannataro, Acting Ch. J.)
People v Johnson (Ronald)	4th Dept: 211 AD3d 1633 (Monroe)	denied 3/23/23 (Cannataro, Acting Ch. J.)
People v Jones (Lawrence)	3d Dept: 212 AD3d 888 (Chemung)	denied 3/23/23 (Garcia, J.)
People v Jones (Martha)	4th Dept: 211 AD3d 1594 (Monroe)	denied 3/31/23 (Cannataro, Acting Ch. J.)

People v Junior	3d Dept: 212 AD3d 894 (Schenectady)	denied 3/29/23 (Singas, J.)
People v Lassiter	1st Dept: 211 AD3d 545 (NY)	denied 3/24/23 (Singas, J.)
People v Leonard	4th Dept: 206 AD3d 1665 (Monroe)	denied reconsideration 3/31/23 (Wilson, J.)
People v Lopez	2d Dept: 209 AD3d 763 (Queens)	denied 3/22/23 (Rivera, J.)
People v Lorenz	3d Dept: 211 AD3d 1109 (Schenectady)	denied 3/31/23 (Wilson, J.)
People v Lovett	County Ct, 9/20/22 (Washington)	granted 3/1/23 (Cannataro, Acting Ch. J.)
People v Mack	3d Dept: 209 AD3d 1114 (Chemung)	denied 3/1/23 (Cannataro, Acting Ch. J.)
People v Martinez	2d Dept: 210 AD3d 1008 (Kings)	withdrawn 3/1/23 (Garcia, J.)
People v McDermott	App Div, 4th Dept: 2023 NY Slip Op 60784(U) (Herkimer)	denied 3/30/23 (Cannataro, Acting Ch. J.)
People v McPhee	2d Dept: 211 AD3d 852 (Queens)	denied 3/8/23 (Rivera, J.)
People v McPherson	4th Dept: 213 AD3d 1261 (Monroe)	denied 3/17/23 (Rivera, J.)
People v Mercer	1st Dept: 211 AD3d 612 (NY)	denied 3/27/23 (Cannataro, Acting Ch. J.)
People v Merritt	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 78 Misc 3d 18 (Kings)	denied 3/23/23 (Cannataro, Acting Ch. J.)
People v Noble	2d Dept: 211 AD3d 970 (Queens)	denied 3/20/23 (Garcia, J.)
People v O'Sullivan	2d Dept: 211 AD3d 1040 (Rockland)	denied 3/23/23 (Cannataro, Acting Ch. J.)
People v Occhiuto	2d Dept: 211 AD3d 751 (Kings)	denied 3/31/23 (Wilson, J.)
People v Parilla	4th Dept: 211 AD3d 1609 (Erie)	denied 3/30/23 (Cannataro, Acting Ch. J.)
People v Peters	2d Dept: 198 AD3d 987 (Kings)	granted 3/3/23 (Wilson, J.)
People v Philyaw	1st Dept: 212 AD3d 513 (NY)	denied 3/15/23 (Garcia, J.)
People v Posada	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 76 Misc 3d 133(A) (Queens)	denied 3/31/23 (Wilson, J.)
People v Ramos	2d Dept: 211 AD3d 1040 (Kings)	denied 3/8/23 (Rivera, J.)

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People v Reichel	3d Dept: 211 AD3d 1090 (Washington)	denied 3/31/23 (Wilson, J.)
People v Rideout	4th Dept: 206 AD3d 1661 (Monroe)	denied 3/16/23 (Wilson, J.)
People v Rivera (Eric)	3d Dept: 212 AD3d 942 (Montgomery)	denied 3/29/23 (Garcia, J.)
People v Rivera (Isais)	1st Dept: 213 AD3d 420 (NY)	denied 3/27/23 (Garcia, J.)
People v Rivera (Juan)	1st Dept: 212 AD3d 471 (Bronx)	denied 3/28/23 (Cannataro, Acting Ch. J.)
People v Rodriguez	1st Dept: 211 AD3d 543 (NY)	denied 3/23/23 (Cannataro, Acting Ch. J.)
People v Rogers	1st Dept: 211 AD3d 645 (Bronx)	denied 3/24/23 (Singas, J.)
People v Saccone	4th Dept: 211 AD3d 1520 (Onondaga)	denied 3/31/23 (Wilson, J.)
People v Salahuddin	3d Dept: 211 AD3d 1323 (Schenectady)	denied 3/24/23 (Singas, J.)
People v Sanford	1st Dept: 211 AD3d 427 (NY)	denied 3/1/23 (Cannataro, Acting Ch. J.)
People v Santiago	1st Dept: 211 AD3d 613 (Bronx)	denied 3/15/23 (Garcia, J.)
People v Scott	4th Dept: 213 AD3d 1268 (Monroe)	denied 3/29/23 (Singas, J.)
People v Seef	3d Dept: 211 AD3d 1323 (Schenectady)	denied 3/24/23 (Singas, J.)
People v Shabazz	3d Dept: 211 AD3d 1093 (Albany)	denied 3/23/23 (Cannataro, Acting Ch. J.)
People v Siplin	4th Dept: 213 AD3d 1281 (Monroe)	denied 3/31/23 (Cannataro, Acting Ch. J.)
People v Sistrunk	1st Dept: 210 AD3d 596 (NY)	denied 3/1/23 (Rivera, J.)
People v Smith	2d Dept: 211 AD3d 859 (Suffolk)	denied 3/29/23 (Singas, J.)
People v St. Hill	2d Dept: 211 AD3d 753 (Queens)	denied 3/23/23 (Cannataro, Acting Ch. J.)
People v Sterngast	2d Dept: 211 AD3d 1043 (Orange)	denied 3/27/23 (Cannataro, Acting Ch. J.)
People v Stines	3d Dept: 212 AD3d 883 (Franklin)	denied 3/28/23 (Cannataro, Acting Ch. J.)
People v Struble	App Div, 4th Dept, 1/9/23 (Monroe)	dismissed 3/30/23 (Cannataro, Acting Ch. J.)

People v Stuart	2d Dept: 209 AD3d 1044 (Kings)	denied 3/31/23 (Wilson, J.)
People v Tarver (Keimar)	3d Dept: 202 AD3d 1368 (Albany)	denied 3/31/23 (Wilson, J.)
People v Tarver (Kiermar)	3d Dept: 202 AD3d 1368 (Albany)	denied 3/31/23 (Wilson, J.)
People v Tarver (Kemar)	3d Dept: 202 AD3d 1368 (Albany)	denied 3/31/23 (Wilson, J.)
People v Taylor	3d Dept: 212 AD3d 891 (Broome)	denied 3/23/23 (Cannataro, Acting Ch. J.)
People v Wagoner	4th Dept: 211 AD3d 1636 (Cattaraugus)	denied 3/20/23 (Garcia, J.)
People v Waldron	3d Dept: 208 AD3d 1509 (Franklin)	denied 3/16/23 (Wilson, J.)
People v Williams	1st Dept: 212 AD3d 484 (Bronx)	denied 3/23/23 (Cannataro, Acting Ch. J.)
People v Works (Jamell)	4th Dept: 211 AD3d 1574 (Onondaga)	denied 3/20/23 (Garcia, J.) (Appeal No. 1)
People v Works (Jamell)	4th Dept: 211 AD3d 1576 (Onondaga)	denied 3/20/23 (Garcia, J.) (Appeal No. 2)
People v Works (Jamell)	4th Dept: 211 AD3d 1576 (Onondaga)	denied 3/20/23 (Garcia, J.) (Appeal No. 3)
People v Works (Jamell)	4th Dept: 211 AD3d 1577 (Onondaga)	denied 3/20/23 (Garcia, J.) (Appeal No. 4)
People v Zephir	2d Dept: 212 AD3d 738 (Kings)	denied* 3/31/23 (Cannataro, Acting Ch. J.)

[208 NE3d 78, 186 NYS3d 849]

**THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v YERMIA
SOLOMON, Also Known as JEREMY SOLOMON, Respondent.**

Argued March 15, 2023; decided April 20, 2023

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered March 31, 2022. The Appellate Division (1) reversed, on the law, a judgment of the Sullivan County Court (Michael F. McGuire, J.), which had convicted defendant, upon a plea of

* Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Ortega* (202 AD3d 489 [1st Dept 2022]), *lv granted* 38 NY3d 1073 [2022].

guilty, of endangering the welfare of a child; and (2) dismissed the superior court information.

People v Solomon, 203 AD3d 1468, affirmed.

HEADNOTE

Crimes — Indictment — Waiver

The superior court information (SCI) under which defendant had agreed to be prosecuted, which was filed after the grand jury had indicted defendant, was a nullity and was properly dismissed. A defendant may waive their constitutional right to grand jury presentment and indictment and proceed by SCI in accordance with the strict technical requirements of CPL 195.10 (2). As the SCI was filed after the grand jury indicted defendant it failed to comply with the statutory prerequisites.

APPEARANCES OF COUNSEL

Brian P. Conaty, Acting District Attorney, Monticello (Danielle K. Blackaby of counsel), for appellant.

The Law Offices of Nathaniel Z. Marmur, PLLC, New York City (Nathaniel Z. Marmur of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The Appellate Division order should be affirmed.

A grand jury indicted defendant on several felony sex offenses based on allegations that he engaged in sexual contact with an underage victim. Defendant agreed to be prosecuted under a superior court information (SCI) and, in full satisfaction of the amended indictment, which was consolidated with the SCI for plea purposes, defendant pleaded guilty to endangering the welfare of a child under Penal Law § 260.10 and was sentenced to three years' probation. The Appellate Division subsequently concluded the SCI was jurisdictionally defective, reversed defendant's conviction, and dismissed the SCI (203 AD3d 1468 [3d Dept 2022]). The prosecution appeals.*

A defendant may waive their constitutional right to grand jury presentment and indictment and proceed by SCI in accordance with the strict technical requirements of CPL 195.10 (2). Here, the SCI was filed after the grand jury indicted defendant and thus the SCI failed to comply with the statutory prerequisites. Accordingly, the SCI is a nullity and was properly

* The prosecution limits its challenge to the dismissal of the SCI. Therefore, we have no occasion to opine on the Appellate Division's determination that it was error to permit the prosecutor's amendment of the indictment to correct the victim's date of birth.

dismissed (*see* CPL 195.10 [2]; *People v Boston*, 75 NY2d 585 [1990]; *People v Iannone*, 45 NY2d 589 [1978]; *People v Randall*, 9 NY2d 413, 422-423 [1961]).

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, CANNATARO and TROUTMAN concur; Judge HALLIGAN took no part.

Order affirmed, in a memorandum.

In the Matter of CALL-A-HEAD PORTABLE TOILETS, INC., et al.,
Appellants, v NEW YORK STATE DEPARTMENT OF ENVIRON-
MENTAL CONSERVATION et al., Respondents.

Decided April 20, 2023

Reported below, 213 AD3d 842.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

Judge HALLIGAN took no part.

In the Matter of the Foreclosure of Tax Liens by COUNTY OF
BROOME. COUNTY OF BROOME, Respondent; JOHN CADORE
et al., Appellants.

Submitted March 20, 2023; decided April 20, 2023

Reported below, 212 AD3d 1012.

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for a stay dismissed as academic.

Judge HALLIGAN took no part.

4069 ROSEN ASSOCIATES, LLC, et al., Respondents, v TOURNA-
MENTONE CORP., Also Known as TOURNAMENT ONE CORP.
and Another, Appellant.

Submitted February 27, 2023; decided April 20, 2023

Reported below, 206 AD3d 464.

Motion for sanctions denied.

Judge HALLIGAN took no part.

LUKASZ GOTTWALD, Professionally Known as DR. LUKE., et al.,
Respondents/Counterclaim Defendants-Respondents, v KE-
SHA ROSE SEBERT, Professionally Known as KESHA,
Appellant/Counterclaim Plaintiff-Appellant, et al., Defend-
ants.

Submitted March 27, 2023; decided April 20, 2023

Reported below, 193 AD3d 573.

Motion by The Reporters Committee for Freedom of the Press
et al. for leave to file a brief amici curiae on the appeal herein
granted and the proposed brief is accepted as filed. The brief
must be submitted in digital format within seven days.

Judge HALLIGAN took no part.

AIXA GRAHAM, Appellant, v STATE OF NEW YORK, Respondent.

Decided April 20, 2023

Reported below, 212 AD3d 955.

Appeal dismissed without costs, by the Court of Appeals sua
sponte, upon the ground that the order appealed from does not
finally determine the action within the meaning of the Consti-
tution.

Judge HALLIGAN took no part.

In the Matter of COREY J. HOGAN, an Attorney, Appellant.
GRIEVANCE COMMITTEE OF THE EIGHTH JUDICIAL DISTRICT,
Respondent.

Submitted February 21, 2023; decided April 20, 2023

Reported below, 212 AD3d 152.

Motion for leave to appeal denied. Motion for a stay dismissed
as academic.

Judge HALLIGAN took no part.

IKB INTERNATIONAL, S.A., et al., Respondents, v WELLS FARGO BANK, N.A., as Trustee (and Any Predecessors and Successors Thereto), et al., Appellants, et al., Defendants. (And Three Other Actions.)

Submitted April 17, 2023; decided April 20, 2023

Reported below, 208 AD3d 423.

Motion by American Bankers Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

Judge HALLIGAN took no part.

THOMAS LENT, Appellant, v CITY OF NEW YORK et al., Respondents.

Submitted December 27, 2022; decided April 20, 2023

Reported below, 209 AD3d 494.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

Judge HALLIGAN took no part.

In the Matter of MICHAEL McRAE, Respondent. VIVIAN H., Appellant.

Submitted March 13, 2023; decided April 20, 2023

On the Court's own motion, appeal transferred, without costs, to the Appellate Division, First Department, upon the ground that a direct appeal does not lie when questions other than the constitutional validity of a statutory provision are involved (*see* NY Const, art VI, §§ 3 [b] [2]; 5 [b]; CPLR 5601 [b] [2]). Motion for leave to appeal dismissed upon the ground that this Court does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3; CPLR 5602).

Judge HALLIGAN took no part.

In the Matter of MIA S. SUFFOLK COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; MICHELLE C., Appellant.

Submitted January 30, 2023; decided April 20, 2023

Reported below, 212 AD3d 17.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

Judge HALLIGAN took no part.

In the Matter of PAUL NICHOLS et al., Appellants, et al.,
Petitioner, v KATHY HOCHUL et al., Respondents.

Decided April 20, 2023

Reported below, 212 AD3d 529.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

Judge HALLIGAN took no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MARCUS
BROWN, Appellant.

Submitted April 10, 2023; decided April 20, 2023

Reported below, 203 AD3d 1183.

Motion by Office of the Appellate Defender et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

Judge HALLIGAN took no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAIRO
CASTILLO, Appellant.

Submitted April 17, 2023; decided April 20, 2023

Reported below, 210 AD3d 414.

Motion for assignment of counsel granted and Jenay Nurse Guilford, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

Judge HALLIGAN took no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CARLOS
L. DAVID, Appellant.

Submitted April 3, 2023; decided April 20, 2023

Reported below, 209 AD3d 1276.

Motion for assignment of counsel granted and Julie A. Cianca, Esq., Monroe County Public Defender, 10 N. Fitzhugh Street, Rochester, NY 14614 assigned as counsel to the appellant on the appeal herein.

Judge HALLIGAN took no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DWANE
ESTWICK, Appellant.

Submitted March 27, 2023; decided April 20, 2023

Reported below, 208 AD3d 799.

Motion for assignment of counsel granted and Patricia Pazner, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

Judge HALLIGAN took no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v GEORGE
GARCIA, Appellant.

Submitted April 3, 2023; decided April 20, 2023

Reported below, 205 AD3d 432.

Motion, pursuant to CPL 460.60 (3), to extend the time for argument or submission of the appeal and to continue the stay granted and stay continued pending determination of the appeal.

Judge HALLIGAN took no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v THOMAS
P. PERDUE, Appellant.

Decided April 20, 2023

Reported below, 203 AD3d 1638.

Reargument ordered for a future Court session.

Concur: Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, CANNATARO and TROUTMAN.

Judge HALLIGAN took no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TYRONE PETERS, Appellant.

Submitted April 17, 2023; decided April 20, 2023

Reported below, 198 AD3d 987.

Motion for assignment of counsel granted and Eric Nelson, Esq., 54 Florence Street, Staten Island, NY 10308 assigned as counsel to the appellant on the appeal herein.

Judge HALLIGAN took no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JEREMY B. SOTO, Appellant.

Submitted April 10, 2023; decided April 20, 2023

Reported below, 210 AD3d 1502.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

Judge HALLIGAN took no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KEVIN L. THOMAS, Appellant.

Submitted April 17, 2023; decided April 20, 2023

Reported below, 211 AD3d 1326.

Motion for assignment of counsel granted and John B. Casey, Esq., c/o Casey Law LLC, 4 Tower Place, Suite 100, Albany, NY 12203 assigned as counsel to the appellant on the appeal herein.

Judge HALLIGAN took no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TALARICO YOUNG, Appellant.

Submitted April 3, 2023; decided April 20, 2023

Reported below, 208 AD3d 1654.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

Judges TROUTMAN and HALLIGAN took no part.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. PHILLIP HOLLOWAY, Appellant, v SUPERINTENDENT JAMES JOHNSON, Respondent.

Decided April 20, 2023

Appeal transferred without costs, by the Court of Appeals sua sponte, to the Appellate Division, Second Department, upon the ground that a direct appeal does not lie where questions other than the constitutional validity of a statutory provision are involved (*see* NY Const, art VI, §§ 3 [b] [2]; [5] [b]; CPLR 5601 [b] [2]).

Judge HALLIGAN took no part.

In the Matter of ST. LAWRENCE COUNTY et al., Appellants, v CITY OF OGDENSBURG et al., Respondents, et al., Respondents.

Submitted April 3, 2023; decided April 20, 2023

Reported below, 208 AD3d 929.

Motion by New York State Association of Counties for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

Judge HALLIGAN took no part.

STATE OF NEW YORK, Respondent, v CARLOTTA R. SUMMERS, Appellant.

Decided April 20, 2023

Reported below, 211 AD3d 1208.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

Judge HALLIGAN took no part.

SHAINDY WEICHMAN, Appellant, v YECHESKEL C. WEICHMAN,
Respondent.

Submitted January 17, 2023; decided April 20, 2023

Reported below, 199 AD3d 865.

Motion by A.G. et al. for leave to appear amici curiae on the motion for leave to appeal herein granted and the proposed brief is accepted as filed.

Judge HALLIGAN took no part.

[208 NE3d 749, 187 NYS3d 161]

In the Matter of JEREMY L. PERSONS, a Justice of the Guilford
Town Court, Chenango County.

Decided April 25, 2023

SUMMARY

CONSIDERATION, by the Court of Appeals, on its own motion, pursuant to New York Constitution, article VI, § 22 and Judiciary Law § 44 (8), of whether Hon. Jeremy L. Persons should be suspended from the office of Justice of the Guilford Town Court, Chenango County, and whether suspension should be with or without pay.

HEADNOTE

Judges — Suspension from Office

The Court of Appeals, on its own motion, pursuant to New York Constitution, article VI, § 22 and Judiciary Law § 44 (8), suspended a Town Court Justice from office, with pay, effective immediately.

APPEARANCES OF COUNSEL

Robert H. Tembeckjian, New York City, for New York State Commission on Judicial Conduct.

OPINION OF THE COURT

On the Court's own motion, it is determined that Hon. Jeremy L. Persons is suspended, with pay, effective immediately, from the office of Justice of the Guilford Town Court, Chenango County, pursuant to New York Constitution, article VI, § 22 and Judiciary Law § 44 (8).

Concur: Chief Judge WILSON and Judges GARCIA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN. Judge RIVERA took no part.

In the Matter of ROMAN BRIK, Appellant, v ILANA STROUTSOVSKY, Respondent.

Submitted February 21, 2023; decided April 25, 2023

Reported below, 2022 NY Slip Op 76344(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

Judges CANNATARO and HALLIGAN took no part.

CHAO-YU C. HUANG, Appellant, v HARRY AN-LING SHIH et al., Respondents.

Submitted January 9, 2023; decided April 25, 2023

Reported below, 210 AD3d 946.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge HALLIGAN took no part.

CARLOS JULE, Appellant, v KIAMESHA SHORES PROPERTY OWNERS ASSOCIATION INC., Also Known as KSPOA, et al., Respondents.

Submitted January 9, 2023; decided April 25, 2023

Reported below, 210 AD3d 1330.

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge HALLIGAN took no part.

In the Matter of DANIEL KARLIN, Appellant, v TINA M. STANFORD, as Chair of the Board of Parole, Respondent.

Submitted December 19, 2022; decided April 25, 2023

Reported below, 209 AD3d 1189.

Motion for leave to appeal denied as unnecessary (*see* CPLR 5601 [b] [1]). Motion for poor person relief granted.

Judge HALLIGAN took no part.

ERIC KEEFER, Respondent, v PAMELA KEEFER, Appellant.

Submitted January 23, 2023; decided April 25, 2023

Reported below, 211 AD3d 827; 211 AD3d 828.

Motion, insofar as it seeks leave to appeal from so much of the Appellate Division order as affirmed the January 2021 judgment of divorce, denied; motion otherwise dismissed upon the ground that the portion of the separate Appellate Division order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge HALLIGAN took no part.

In the Matter of the Claim of JAMES O'DONNELL, Appellant, v GROW KIEWI T. CATAPANO et al., Respondents. WORKERS' COMPENSATION BOARD, Respondent.

Submitted January 17, 2023; decided April 25, 2023

Reported below, 210 AD3d 1259.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

Judge HALLIGAN took no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v HALLIE
SAUNDERS, Appellant.

Submitted December 19, 2022; decided April 25, 2023

Reported below, 209 AD3d 776.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]). Motion for poor person relief dismissed as academic.

Judge HALLIGAN took no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LAZAR
YUSHUBYEV, Appellant.

Submitted January 3, 2023; decided April 25, 2023

Reported below, 77 Misc 3d 141(A), 2022 NY Slip Op 51386(U).

Motion for leave to appeal dismissed upon the ground that this Court does not have jurisdiction to entertain the motion from the order of the Appellate Term (*see* CPLR 5602 [a] [1]).

Judge HALLIGAN took no part.

ILANA RIGWAN, Appellant, v JORDAN NEUS, Respondent.

Submitted January 17, 2023; decided April 25, 2023

Reported below, 205 AD3d 1062.

Motion for reargument of motion for leave to appeal dismissed as untimely [*see* 39 NY3d 960 (2022)] (*see* Rules of Ct of Appeals [22 NYCRR] § 500.24 [b]).

Judge HALLIGAN took no part.

ROGER ROWE, Appellant, v U.S. BANK NATIONAL ASSOCIATION et
al., Respondents, et al., Defendants.

Submitted December 27, 2022; decided April 25, 2023

Reported below, 2022 NY Slip Op 68744(U); 2022 NY Slip Op 64937(U).

Motion for reconsideration of this Court's October 20, 2022 dismissal order denied [*see* 39 NY3d 932 (2022)]. Motion, insofar as it seeks leave to appeal from that portion of the April 2022 Appellate Division order resolving the appeal from the May 2021 Supreme Court order, denied; motion for leave to appeal otherwise dismissed upon the ground that the remaining portions of the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution.

Judge HALLIGAN took no part.

LILLIAN F. SCHWARTZ, Appellant, v A. MICHAEL NOLL et al.,
Respondents.

Submitted January 3, 2023; decided April 25, 2023

Reported below, 2022 NY Slip Op 66581(U); 2021 NY Slip Op 75698(U).

Motion for reargument of motion for leave to appeal denied [*see* 39 NY3d 948 (2022)].

Judge HALLIGAN took no part.

SHAMILA SEEGOPAUL, Appellant, v MTA BUS COMPANY et al.,
Respondents.

Submitted January 23, 2023; decided April 25, 2023

Reported below, 210 AD3d 715.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge HALLIGAN took no part.

SUSAN ARANOFF, Respondent, v GERALD ARANOFF, Appellant.

Submitted March 20, 2023; decided April 27, 2023

Reported below, 2022 NY Slip Op 75972(U).

Motion for reargument of motion for leave to appeal denied [*see* 39 NY3d 1063 (2023)].

Judge HALLIGAN took no part.

DENISE M. BUCKLEY et al., Appellants, v NICHOLAS S. McATEER et al., Respondents.

Submitted January 30, 2023; decided April 27, 2023

Reported below, 210 AD3d 1044.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge HALLIGAN took no part.

In the Matter of the Claim of NICOLE GISSER, Respondent. iTUTOR.COM, INC., Appellant. COMMISSIONER OF LABOR, Respondent.

Submitted January 30, 2023; decided April 27, 2023

Reported below, 211 AD3d 1258.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

Judge HALLIGAN took no part.

In the Matter of LONG ISLAND PURE WATER, LTD., Appellant, v NEW YORK STATE DEPARTMENT OF HEALTH et al., Respondents.

Submitted December 27, 2022; decided April 27, 2023

Reported below, 209 AD3d 1128.

Motion by Chamber of Commerce of the United States of America for leave to appear amicus curiae on the motion for leave to appeal herein granted and the proposed brief is accepted as filed.

Judge HALLIGAN took no part.

PATRICIA A. McATEER, Respondent, v NICHOLAS S. McATEER, Respondent. DENISE M. BUCKLEY et al., Nonparty-Appellants.

Submitted January 30, 2023; decided April 27, 2023

Reported below, 210 AD3d 1068.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge HALLIGAN took no part.

In the Matter of JANET MONROE, etc., Respondent, v WARREN T., Appellant.

Submitted January 30, 2023; decided April 27, 2023

Reported below, 210 AD3d 1096.

Motion for leave to appeal dismissed upon the ground that appellant is not a party aggrieved (*see* CPLR 5511).

Judge HALLIGAN took no part.

In the Matter of the Claim of ANDRIS Y. MOTA REYES, Respondent. AMERICAN PARAPROFESSIONAL SYSTEMS OF NYC, INC., Appellant. COMMISSIONER OF LABOR, Respondent. (And Two Related Proceedings.)

Submitted February 21, 2023; decided April 27, 2023

Reported below, 210 AD3d 1217.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order affirming the decision of the Unemployment Insurance Appeal Board assessing appellant for additional unemployment insurance contributions, denied; motion for leave to appeal otherwise dismissed upon the ground that the remaining portions of the Appellate Division order do not finally determine the proceedings within the meaning of the Constitution.

Judge HALLIGAN took no part.

ABDUS SHAHID, Appellant, v CITY OF NEW YORK, Respondent.

Submitted February 27, 2023; decided April 27, 2023

Reported below, 208 AD3d 1380.

Motion for reargument of motion for leave to appeal denied.

Judge HALLIGAN took no part.

[209 NE3d 591, 188 NYS3d 1]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MAMADOU BA, Appellant.

Argued February 8, 2023; decided March 21, 2023

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Term of the Supreme Court in the First Judicial Department, entered January 7, 2022. The Appellate Term modified, as a matter of discretion in the interest of justice, a judgment of the Criminal Court of the City of New York, New York County (Lyle E. Frank, J.), which had convicted defendant, upon a plea of guilty, of unlicensed general vending, and sentenced defendant to a \$500 fine and \$250 surcharge. The modification consisted of reducing the \$250 surcharge to \$200. The Appellate Term affirmed the judgment as modified.

People v Ba, 73 Misc 3d 148(A), 2022 NY Slip Op 50004(U), reversed.

HEADNOTE

Crimes — Sentence — Appellate Review

In a criminal prosecution, defendant's appeal from the Appellate Term order modifying the judgment of conviction and sentence of a \$500 fine and \$250 surcharge by reducing the \$250 surcharge to \$200 was reversed and the case remitted for a determination whether defendant's sentence was unduly harsh or severe (CPL 470.15 [6] [b]).

APPEARANCES OF COUNSEL

Twyla Carter, The Legal Aid Society, New York City (*Lauren E. Jones* of counsel), for appellant.

Alvin L. Bragg, Jr., District Attorney, New York City (*Meghan McLoughlin, Steven C. Wu and Samuel Z. Goldfine* of counsel), for respondent.

OPINION OF THE COURT

Order insofar as appealed from reversed and case remitted to the Appellate Term, First Department, for a determination whether defendant's sentence is unduly harsh or severe (CPL 470.15 [6] [b]).

Concur: Acting Chief Judge CANNATARO and Judges RIVERA, GARCIA, WILSON, SINGAS and TROUTMAN, Judge GARCIA in a concurring opinion, in which Acting Chief Judge CANNATARO and Judge SINGAS concur and Judge TROUTMAN in a separate concurring opinion, in which Judges RIVERA and WILSON concur.

GARCIA, J. (concurring). I agree with my concurring colleagues that the case should be remitted for the Appellate Term to review defendant's sentence. While I do not assume that the Appellate Term misapprehended its plenary power to reduce a sentence as "unduly harsh or severe" (CPL 470.15 [6] [b]), I agree that the better course in this unique case is to have that court clarify its basis for declining to reduce defendant's \$500 fine.

Defendant, charged with various crimes related to the selling of counterfeit designer handbags, pleaded guilty to one count of unlicensed general vending, a misdemeanor (Administrative Code of City of NY § 20-453). Violations of that section are "punishable by a fine of not less than two hundred fifty dollars nor more than one thousand dollars, or by imprisonment for not more than three months or by both such fine and imprisonment" (Administrative Code of City of NY § 20-472 [a]). Defendant was offered a choice of sentence: three days of community service or a \$500 fine. He chose to pay the fine. Defendant appealed, arguing, among other things, that his sentence was "harsh and unnecessary" and was "likely to create a financial hardship for him."

As reflected in the statute, intermediate appellate courts possess the discretionary power to modify or reduce a sentence in the interest of justice where the sentence is unduly harsh or severe under the circumstances (NY Const, art VI, §§ 4 [k]; 7 [a]; 8 [a]; *see* CPL 470.15 [6] [b]; *People v Pollenz*, 67 NY2d 264, 267-269 [1986]; *People v Thompson*, 60 NY2d 513, 519-520 [1983]). This discretionary sentence review power, which is not subject to legislative restriction (*Pollenz*, 67 NY2d at 268), is "broad" and "plenary" and applies even where a sentence is within the permissible statutory range or is the result of a bargained-for plea (*People v Delgado*, 80 NY2d 780, 783 [1992]; *Thompson*, 60 NY2d at 520). When affirming a sentence, the appellate court is not required to provide a basis for declining to exercise its interest of justice jurisdiction to modify or reduce a sentence (CPL 470.25 [1]; *see People v Mingo*, 9 NY3d 938 [2007]).

Here, the Appellate Term "perceive[d] no basis for reducing the fine" (73 Misc 3d 148[A], 2022 NY Slip Op 50004[U], *1 [App Term, 1st Dept 2022]). The court stated that "[d]efendant received the precise sentence for which he had bargained,

which was within the permissible statutory range” (*id.*).*

As my concurring colleagues note, the negotiated sentence may provide support for the court’s conclusion that it is not unduly harsh or severe (Troutman, J., concurring op at 1136). That is especially true where, as here, the sentence was a fine and the defendant chose to pay that amount over the option to perform community service. My concurring colleagues would read the language of the Appellate Term decision to mean the court believed itself bound to affirm the sentence merely because it was the result of a plea bargain (Troutman, J., concurring op at 1136-1137). I read the Appellate Term’s holding instead to mean that it did not find defendant’s sentence unduly harsh or severe under these circumstances (*see Delgado*, 80 NY2d at 783), but agree to remit to that court for clarification of the basis for its decision.

TROUTMAN, J. (concurring). On appeal to an intermediate appellate court, a criminal defendant may seek to invoke the court’s power to reduce the sentence—even one negotiated as part of a plea bargain—on the ground that such sentence is “unduly harsh or severe” (CPL 470.15 [6] [b]; *see People v Thompson*, 60 NY2d 513, 520 [1983]). Here, the Appellate Term erred in treating the bargained-for nature of defendant’s sentence as dispositive of his challenge to the severity of the sentence.

I.

In 2016, defendant was selling counterfeit designer handbags on a Manhattan street corner when the police arrested him and charged him with trademark counterfeiting in the third degree (Penal Law § 165.71), unlicensed general vending (Administrative Code of City of NY § 20-453), and failure to display a license (*id.* § 20-461). Defendant pleaded guilty to one count of unlicensed general vending in exchange for a \$500 fine and the dismissal of the remaining counts. Defendant contended on appeal that, among other things, the fine was “harsh,” “excessive,” and “unnecessary,” in part because during the pendency of the appeal the prosecutor’s office stopped prosecuting charges of unlicensed general vending. The Appellate

* With respect to the Appellate Term’s reference to the permissible statutory range, appellate courts may reverse or modify an illegal sentence regardless of whether the issue was raised on appeal (*see People v Price*, 140 AD2d 927 [4th Dept 1988]; CPL 470.15 [2] [c]).

Term rejected that contention: “We perceive no basis for reducing the fine. Defendant received the precise sentence for which he had bargained, which was within the permissible statutory range” (73 Misc 3d 148[A], 2022 NY Slip Op 50004[U], *1 [App Term, 1st Dept 2022]).

II.

The intermediate appellate courts have the power to vacate a sentence that falls outside the permissible statutory range on the ground that the “sentence was unauthorized, illegally imposed or otherwise invalid as a matter of law” (CPL 470.15 [4] [c]), and the courts have exercised that power regardless of whether either party addressed the illegality on appeal (*see e.g. People v Jones*, 118 AD3d 1361, 1362 [4th Dept 2014]; *People v Ryan*, 83 AD3d 1128, 1130 [3d Dept 2011]).

An entirely separate power is the intermediate appellate courts’ authority to reduce a criminal sentence as a matter of discretion in the interest of justice, which is an inherent power of those courts enshrined in the New York State Constitution (*see* NY Const, art VI, § 4 [k]; *People v Pollenz*, 67 NY2d 264, 267-268 [1986]; *Thompson*, 60 NY2d at 520). This power is codified under CPL 470.15 (6) (b) and 470.20 (6), the former of which provides that the intermediate appellate court may modify a judgment of conviction if the court finds that the “sentence, though legal, was unduly harsh or severe.” The question whether a sentence is unduly harsh or severe is addressed to the discretion of the intermediate appellate court (*see Thompson*, 60 NY2d at 519), which has “broad, plenary power” to reduce a sentence “without deference to the sentencing court” (*People v Delgado*, 80 NY2d 780, 783 [1992]).

The Appellate Division, as New York’s preeminent intermediate appellate court, has long understood its power to modify sentences as an important check on the sentencing court’s own broad discretion. Over a century ago, the Third Department lamented that “many an unjust sentence has been endured because counsel have failed to invoke the powers of the appellate tribunals to temper individual prejudices with judicial discretion” (*People v Miles*, 173 App Div 179, 182 [3d Dept 1916]). Some decades later, the Second Department, faced with a challenge to the severity of a plea-bargained sentence, observed that “[m]uch of the controversy and criticism swirling about the contemporary sentencing scene relates to inequitable

disparities between sentences for the same or similar crimes” (*People v Suitte*, 90 AD2d 80, 84-85 [2d Dept 1982]). The Court opined that the intermediate appellate court’s sentencing power “obviously is a useful means of diminishing sentencing disparity . . . and ensuring the imposition of fair sentences” (*id.* at 85). Thus, the Court, although sensitive to the fact that its rulings would become guidelines for sentencing courts in future prosecutions, recognized its power to “substitute [its] own discretion for that of a trial court which has not abused its discretion in the imposition of a sentence” (*id.* at 86; *accord People v Thomas*, 194 AD3d 1405, 1406 [4th Dept 2021], *lv denied* 37 NY3d 1165 [2022]; *People v Mitchell*, 168 AD3d 531, 532 [1st Dept 2019]).

As *Suitte* suggests, this power is not diminished in plea-bargained cases. Indeed, when the legislature enacted a statute barring interest-of-justice review of negotiated sentences, this Court unanimously struck the enactment down as an unconstitutional curtailment of judicial power (*see Pollenz*, 67 NY2d at 267-268). A rule disqualifying negotiated sentences from review for harshness or severity would also be incongruous. The sentencing court itself is not bound by the terms of a plea bargain negotiated by the parties but must in all cases exercise its discretion and impose an “appropriate sentence . . . after due consideration given to, among other things, the crime charged, the particular circumstances of the individual before the court and the purpose of a penal sanction, i.e., societal protection, rehabilitation and deterrence” (*People v Farrar*, 52 NY2d 302, 305 [1981]). An intermediate appellate court reviewing a defendant’s challenge to the severity of a negotiated sentence may similarly impose a lesser penalty and is not bound by the parties’ agreement (*see Thompson*, 60 NY2d at 520).

Nor should it be. The vast majority of criminal sentences result from the plea bargaining process (*see* Hon. Jonathan Lippman, Foreword to New York State Association of Criminal Defense Lawyers [NYSACDL], *The New York State Trial Penalty: The Constitutional Right Under Attack* at 3 [Mar. 2021]), which has become an indispensable feature of our system of criminal justice (*see Missouri v Frye*, 566 US 134, 143-144 [2012] [“(P)lea bargains have become . . . central to the administration of the criminal justice system”]). “Plea and sentence negotiation further important policy considerations, conserving law enforcement, judicial and penal resources, and

permitting the parties to avoid the uncertainties inherent in the lengthy process of charge, trial, sentence and appeals, thereby ‘starting the offender on the road to possible rehabilitation’ as soon as practicable” (*People v Avery*, 85 NY2d 503, 506 [1995]). At the same time, “[t]he prosecutor has more control over life, liberty, and reputation than any other person in America” (Hon. Robert H. Jackson, Attorney General of the United States, *The Federal Prosecutor*, Address at the Second Annual Conference of United States Attorneys at 1 [Apr. 1, 1940], available at <https://www.justice.gov/sites/default/files/ag/legacy/2011/09/16/04-01-1940.pdf> [accessed Mar. 10, 2023]). Consequently, although plea bargaining involves negotiation, the parties to that negotiation are seldom on equal footing. Prosecutors have full discretion over what charges to bring and what offers to make (see I. Bennett Capers, *The Prosecutor’s Turn*, 57 Wm & Mary L Rev 1277, 1296 [2016] [“The prosecutor’s outsized power is attributable in part to (their) almost unfettered discretion”]). Defendants, on the other hand, have far more to lose than prosecutors do—liberty, most significantly—which makes them unlikely to risk a lengthier sentence after an unsuccessful trial (see Vikrant P. Reddy & R. Jordan Richardson, *Why the Founders Cherished the Jury*, 31 Fed Sentencing Rep 316, 318 [Apr./June 2019]; H. Mitchell Caldwell, *Coercive Plea Bargaining: The Unrecognized Scourge of the Justice System*, 61 Cath Univ L Rev 63, 72-73 [2011]; NYSACDL at 23-29). To be sure, plea bargaining affords benefits to many defendants in the form of swift resolution, dismissal of certain charges, and reduced sentencing exposure (see *Frye*, 566 US at 144). But the imbalance of power inevitably leads “to innocent defendants pleading guilty and to guilty defendants serving sentences disproportionate to their crimes” (Caldwell at 73; see Hon. Jed S. Rakoff, *Why Innocent People Plead Guilty*, NY Review of Books [Nov. 20, 2014], available at <http://www.nybooks.com/articles/2014/11/20/why-innocent-people-plead-guilty/> [accessed Mar. 10, 2023]).

Sentence disparities result. Indeed, there is empirical evidence of “troubling racial disparities in plea-bargained cases,” not only in the severity of sentence but in the prosecutor’s willingness to offer defendants the chance to plead to reduced charges (Daniel S. McConkie, Jr., *Plea Bargaining for the People*, 104 Marq L Rev 1031, 1056 [2021]; see Ram Subramanian et al., Vera Institute of Justice, *In the Shadows: A Review of the Research on Plea Bargaining* at 24-29 [Sept. 2020];

Carlos Berdejó, *Criminalizing Race: Racial Disparities in Plea-Bargaining*, 59 BC L Rev 1187, 1213-1238 [2018]; *see also* *Ring v Arizona*, 536 US 584, 617 [2002, Breyer, J., concurring]). The Justices of our intermediate appellate courts—experienced in reviewing cases on the cold page and assessing the severity of legions of sentences for the same classes of offenses—may be less likely to be affected by certain kinds of bias that lead to sentencing disparities (*see* Michael M. O’Hear, *Appellate Review of Sentences: Reconsidering Deference*, 51 Wm & Mary L Rev 2123, 2141-2143 [2010]).

None of this is to say that the negotiated nature of a plea-bargained sentence is irrelevant. Rather, the fact that a defendant voluntarily agreed to a sentence can provide at least some support for a determination that the sentence is not “unduly harsh or severe under the circumstances” (*Delgado*, 80 NY2d at 783), and thus the intermediate appellate court may properly consider the bargained-for nature of the sentence, among other appropriate considerations, in determining whether the sentence is unduly harsh or severe (*see e.g. People v Rice*, 213 AD3d 1243, 1244 [4th Dept, Feb. 3, 2023]; *People v Scott*, 213 AD3d 1268, 1268 [4th Dept, Feb. 3, 2023]; *People v Jeremiah*, 186 AD3d 740, 741 [2d Dept 2020], *lv denied* 35 NY3d 1113 [2020]). However, the mere fact that the sentencing court imposed the sentence that a defendant bargained for is not dispositive of that defendant’s appellate challenge to the severity of the sentence.

III.

These principles in mind, we consider the order on appeal. The Appellate Term concluded that there was “no basis for reducing the fine” (73 Misc 3d 148[A], 2022 NY Slip Op 50004[U], *1). Although the court was not required to go further and set forth the basis for its conclusion (*see* CPL 470.25 [1]; *see People v Mingo*, 9 NY3d 938, 938 [2007]), here, it did so, reasoning that “[d]efendant received the precise sentence for which he had bargained, which was within the permissible statutory range” (73 Misc 3d 148[A], 2022 NY Slip Op 50004[U], *1). In other words, the sentence was legal and bargained-for. Certainly, the Appellate Term cannot be faulted for considering and addressing the legality of the sentence because the intermediate appellate courts “cannot allow an illegal sentence to stand” (*Jones*, 118 AD3d at 1362 [internal punctuation omitted]; *see* CPL 470.15 [4] [c]). However, the legality of the

sentence was irrelevant to the entirely separate issue of whether it was unduly harsh or severe (*see* CPL 470.15 [6] [b]), and it was improper for the Appellate Term to treat the bargained-for nature of defendant's sentence as dispositive of his challenge to the severity of the sentence.

[209 NE3d 1262, 188 NYS3d 449]

In the Matter of the Estate of FRANK I. MAIKA, Deceased. CORA A. ALSANTE, as Administratrix of the Estate of FRANK I. MAIKA, Deceased, Appellant; ANNE MAIKA et al., Respondents.

Argued March 16, 2023; decided April 25, 2023

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered June 3, 2022. The Appellate Division, with two Justices dissenting, (1) reversed, on the law, an order of the Supreme Court, Onondaga County (Spencer J. Ludington, A.J.), which had (a) denied respondents' motion for summary judgment dismissing the petition pursuant to SCPA 2103 to set aside a deed conveying real property to respondents, and (b) granted the petition; (2) granted respondents' motion; and (3) dismissed the petition.

Matter of Maika, 206 AD3d 1563, affirmed.

HEADNOTE

Powers — Power of Attorney — Transfer of Real Estate

In a proceeding to set aside a deed transferring title to decedent's residential property to respondents, two of decedent's children, as compensation for caregiving services that they had provided to decedent for over seven years, petitioner failed to raise a triable issue of fact in response to respondents' prima facie showing of entitlement to summary judgment. The determinative question was whether the transfer was a gift or compensation under the terms of the power of attorney decedent had executed, which did not grant the power to make gifts. There was un rebutted evidence that respondents had repeatedly asked for compensation for their services and the request was met with approval. However, only one respondent was initially able to receive nominal payment due to decedent's lack of liquid assets.

APPEARANCES OF COUNSEL

Hancock Estabrook, LLP, Syracuse (*Mary L. D'Agostino* and *Janet D. Callahan* of counsel), for appellant.

Costello, Cooney & Fearon, PLLC, Syracuse (*Daniel R. Rose* and *Matthew W. O'Neil* of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

Decedent executed a power of attorney authorizing several of his children to act on his behalf with respect to real estate transactions and health care expenses, but not granting the power to make gifts. Pursuant to the authority granted by the power of attorney, decedent's agents, by majority vote, transferred title to decedent's residential property to two of his children as compensation for caregiving services that they had provided to decedent for over seven years. Decedent, however, retained a life estate in the property. The determinative question presented on appeal is whether this transfer was a gift or compensation under the terms of the power of attorney.* There is unrebutted evidence that the two children had repeatedly asked for compensation for their services and the request was met with approval. However, only one child was initially able to receive nominal payment due to decedent's lack of liquid assets. We agree with the Appellate Division that petitioner failed to raise a triable issue of fact in response to respondents' prima facie showing of entitlement to summary judgment.

TROUTMAN, J. (dissenting). I respectfully dissent. "Because [t]he relationship of an attorney-in-fact to [the] principal is that of agent and principal . . . , the attorney-in-fact must act in the utmost good faith and undivided loyalty toward the principal, and must act in accordance with the highest principles of morality, fidelity, loyalty and fair dealing" (*Matter of Ferrara*, 7 NY3d 244, 254 [2006] [internal quotation marks omitted]). "Consistent with this duty, an agent may not make a gift . . . of the money or property which is the subject of the agency relationship" (*Mantella v Mantella*, 268 AD2d 852, 852 [3d Dept 2000] [internal quotation marks omitted]). "In the event such a gift is made, there is created a presumption of impropriety which can only be rebutted with a clear showing that the principal intended to make the gift" (*id.* at 852-853).

Respondents concede that the power of attorney signed by

* The issue of whether the transfer was in decedent's best interest (*see* dissenting op at 1139) is unpreserved and, in any event, not germane to this analysis.

decedent in 2010 did not authorize his attorneys-in-fact to make gifts. They contend, however, that the 2017 transfer of property to them was not a gift but rather compensation for years of intensive caregiving. The power of attorney authorized decedent's attorneys-in-fact to act in accordance with decedent's instructions or in his best interest. To overcome the presumption that their caregiving services were provided out of love and affection (*see id.* at 853), which presumption respondents concede applies here, and to demonstrate that the attorneys-in-fact acted within their authority under the power of attorney, respondents were therefore required to demonstrate that the attorneys-in-fact were compensating them for their caregiving in accordance with decedent's instructions or were otherwise acting in decedent's best interest.

I disagree with the majority that the issue whether the transfer was in decedent's best interest is unpreserved and "not germane" to our analysis (majority mem at 1138 n). In challenging the transfer, petitioner necessarily challenged the authority of the attorneys-in-fact to approve the transfer under the terms of the power of attorney. In support of their motion for summary judgment, respondents demonstrated that a majority of the attorneys-in-fact, which majority included respondent Philip Maika, intended to compensate respondents for their caregiving. But respondents did not demonstrate that decedent himself intended to compensate respondents or that such compensation was in decedent's best interest. In opposition to respondents' motion for summary judgment, petitioner's submissions raised issues of fact regarding whether the transfer constituted self-dealing by Philip or was otherwise inconsistent with the fiduciary obligations of the attorneys-in-fact to act in decedent's best interest. Respondents' implied assertion that the power of attorney gave the attorneys-in-fact absolute authority to make decisions on decedent's behalf regardless of decedent's wishes or best interest—which the majority appears to endorse by concluding that decedent's best interest is "not germane"—cannot be reconciled with the fiduciary obligations of attorneys-in-fact nor with the plain language of the power of attorney itself.

Respondents failed to demonstrate on their motion for summary judgment that the attorneys-in-fact were acting in accordance with decedent's instructions to compensate respondents. Inasmuch as Supreme Court failed to consider whether the attorneys-in-fact were acting in decedent's best interest, and the record reveals issues of fact on that subject, I would

modify the Appellate Division order by denying respondents' motion for summary judgment and remit for further proceedings.

Chief Judge WILSON and Judges GARCIA, SINGAS and CANNATARO concur; Judge TROUTMAN dissents in an opinion, in which Judge RIVERA concurs; Judge HALLIGAN took no part.

Order affirmed, with costs, in a memorandum.

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(April 1, 2023 through April 30, 2023)

People v Addison	1st Dept: 209 AD3d 504 (NY)	denied 4/25/23 (Troutman, J.)
People v Alvarado	2d Dept: 211 AD3d 848 (Queens)	denied 4/14/23 (Troutman, J.)
People v Amonor	App Term, 1st Dept: 77 Misc 3d 141(A) (Bronx)	denied 4/28/23 (Singas, J.)
People v Anderson (Jerry)	1st Dept: 213 AD3d 606 (NY)	denied 4/28/23 (Rivera, J.)
People v Anderson (Kadeem)	2d Dept: 213 AD3d 687 (Queens)	denied 4/28/23 (Singas, J.)
People v Anzo	2d Dept: 211 AD3d 1032 (Kings)	denied 4/14/23 (Troutman, J.) (Matter No. 2)
People v Arroyo	1st Dept: 210 AD3d 601 (NY)	dismissed 4/17/23 (Wilson, J.)
People v Arthur	2d Dept: 213 AD3d 772 (Kings)	denied 4/28/23 (Cannataro, J.)
People v Bateman	3d Dept: 212 AD3d 993 (Otsego)	denied 4/26/23 (Garcia, J.)
People v Batista	1st Dept: 211 AD3d 648 (Bronx)	denied 4/28/23 (Singas, J.)
People v Bowman	4th Dept: 213 AD3d 1282 (Onondaga)	denied 4/14/23 (Rivera, J.)
People v Britton	4th Dept: 213 AD3d 1326 (Onondaga)	denied 4/24/23 (Cannataro, J.)
People v Carson	2d Dept: 213 AD3d 690 (Orange)	denied 4/27/23 (Cannataro, J.)
People v Castro	County Ct, 12/9/22 (Erie)	denied 4/28/23 (Singas, J.)
People v Cheng Tong You	App Div, 1st Dept: 2023 NY Slip Op 60696(U) (NY)	denied 4/7/23 (Singas, J.)
People v Chung	2d Dept: 213 AD3d 107 (Nassau)	denied 4/28/23 (Rivera, J.)
People v Clark (Dayzhon)	3d Dept: 209 AD3d 1063 (Albany)	denied 4/14/23 (Troutman, J.)
People v Clark (Nigel)	1st Dept: 211 AD3d 489 (NY)	denied 4/14/23 (Troutman, J.)

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People v Colbert	4th Dept: 213 AD3d 1199 (Oswego)	denied 4/28/23 (Singas, J.)
People v Coleman	1st Dept: 213 AD3d 464 (NY)	denied ¹ 4/20/23 (Garcia, J.)
People v Colon	4th Dept: 211 AD3d 1613 (Erie)	denied 4/27/23 (Singas, J.)
People v DeLeon	1st Dept: 213 AD3d 438 (NY)	denied 4/26/23 (Garcia, J.)
People v Diaz	App Term, 1st Dept: 77 Misc 3d 141(A) (Bronx)	denied 4/27/23 (Cannataro, J.)
People v Dilligard	1st Dept: 210 AD3d 542 (Bronx)	denied 4/14/23 (Rivera, J.)
People v Douglas	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 75 Misc 3d 142(A) (Kings)	denied 4/7/23 (Singas, J.)
People v Duque	App Div, 2d Dept: 2022 NY Slip Op 75017(U) (Queens)	dismissed 4/14/23 (Troutman, J.)
People v Dure	2d Dept: 213 AD3d 772 (Westchester)	denied 4/21/23 (Garcia, J.)
People v Durkin	2d Dept: 214 AD3d 741 (Orange)	denied 4/26/23 (Garcia, J.)
People v Figueroa	2d Dept: 211 AD3d 1032 (Kings)	denied 4/14/23 (Troutman, J.) (Matter No. 1)
People v Fisher	3d Dept: 212 AD3d 984 (Chemung)	granted 4/3/23 (Rivera, J.)
People v Fonseca	1st Dept: 210 AD3d 508 (Bronx)	denied 4/7/23 (Singas, J.)
People v Fuller	1st Dept: 210 AD3d 597 (NY)	denied ² 4/28/23 (Troutman, J.)
People v Gordon	1st Dept: 211 AD3d 620 (NY)	denied 4/24/23 (Cannataro, J.)
People v Guillory	1st Dept: 213 AD3d 422 (Bronx)	denied 4/7/23 (Singas, J.)
People v Guzman	1st Dept: 212 AD3d 580 (NY)	denied 4/27/23 (Singas, J.)
People v Hall	2d Dept: 214 AD3d 1002 (Kings)	denied 4/28/23 (Rivera, J.)
People v Harris	4th Dept: 213 AD3d 1285 (Erie)	denied 4/24/23 (Garcia, J.)
People v Heiserman	3d Dept: 212 AD3d 949 (Franklin)	denied 4/28/23 (Singas, J.)
People v Hernandez (Jose)	2d Dept: 214 AD3d 900 (Suffolk)	withdrawn 4/28/23 (Troutman, J.)
People v Hernandez (Ricky)	App Term, 1st Dept: 77 Misc 3d 130(A) (Bronx)	denied 4/27/23 (Cannataro, J.)

1. Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Aguilar* (206 AD3d 572 [1st Dept 2022], *lv granted* 38 NY3d 1186 [2022]).

2. Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Ortega* (202 AD3d 489 [1st Dept 2022], *lv granted* 38 NY3d 1073 [2022]).

People v Hillary	2d Dept: 204 AD3d 1042 (Westchester)	denied 4/26/23 (Troutman, J.)
People v Hilton-Jones	App Term, 2d Dept, 9th & 10th Jud Dists: 77 Misc 3d 134(A) (Nassau)	denied 4/14/23 (Troutman, J.)
People v Hunt	4th Dept: 213 AD3d 1285 (Onondaga)	denied 4/27/23 (Singas, J.)
People v Jackson	1st Dept: 211 AD3d 592 (Bronx)	denied 4/14/23 (Troutman, J.)
People v Johnson	1st Dept: 214 AD3d 460 (NY)	denied 4/28/23 (Rivera, J.)
People v Joseph	4th Dept: 214 AD3d 1330 (Monroe)	denied ³ 4/28/23 (Rivera, J.)
People v Kazimer	2d Dept: 210 AD3d 1109 (Dutchess)	denied 4/27/23 (Cannataro, J.)
People v Keith A.B.	4th Dept: 214 AD3d 1311 (Monroe)	denied 4/28/23 (Rivera, J.)
People v Lawrence	2d Dept: 211 AD3d 1039 (Suffolk)	denied 4/14/23 (Troutman, J.)
People v Lopez (Rafael)	2d Dept: 214 AD3d 674 (Queens)	denied 4/14/23 (Rivera, J.)
People v Lopez (Ricardo)	1st Dept: 213 AD3d 606 (NY)	denied 4/28/23 (Singas, J.)
People v Lopez-Sarmiento	4th Dept: 207 AD3d 1210 (Yates)	denied reconsideration 4/20/23 (Garcia, J.)
People v Ly	App Term, 1st Dept: 77 Misc 3d 141(A) (NY)	denied 4/28/23 (Singas, J.)
People v Maggio	2d Dept: 210 AD3d 798 (Suffolk)	denied 4/27/23 (Cannataro, J.)
People v Mamikoglu	County Ct, 1/4/23 (Livingston)	denied 4/7/23 (Singas, J.)
People v Martinaj	App Div, 1st Dept: 2022 NY Slip Op 72600(U) (NY)	dismissed 4/27/23 (Singas, J.)
People v McBride	1st Dept: 211 AD3d 512 (NY)	denied 4/14/23 (Troutman, J.)
People v McDaniel	1st Dept: 211 AD3d 610 (NY)	denied 4/14/23 (Troutman, J.)
People v McNear	4th Dept: 210 AD3d 1455 (Genesee)	denied 4/28/23 (Rivera, J.)
People v Miranda	2d Dept: 213 AD3d 698 (Queens)	denied 4/28/23 (Cannataro, J.)
People v Moore (Artamion)	4th Dept: 213 AD3d 1213 (Monroe)	denied 4/24/23 (Garcia, J.)
People v Moore (Kemar)	2d Dept: 210 AD3d 1111 (Nassau)	denied 4/14/23 (Troutman, J.)
People v Morocho	2d Dept: 213 AD3d 697 (Queens)	denied 4/28/23 (Cannataro, J.)

3. Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Pastrana* (205 AD3d 461 [1st Dept 2022]), *lv granted* 38 NY3d 1135 [2022]).

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People v Nicholson	2d Dept: 211 AD3d 852 (Queens)	denied 4/28/23 (Singas, J.)
People v Nosea	1st Dept: 212 AD3d 511 (NY)	denied 4/24/23 (Cannataro, J.)
People v Olivieri	1st Dept: 212 AD3d 469 (NY)	denied 4/14/23 (Singas, J.)
People v Ortiz	4th Dept: 213 AD3d 1264 (Monroe)	denied 4/14/23 (Singas, J.)
People v O'Sullivan	2d Dept: 211 AD3d 751 (Queens)	denied 4/14/23 (Troutman, J.)
People v Paige	3d Dept: 211 AD3d 1333 (Schenectady)	denied 4/14/23 (Troutman, J.)
People v Palmer	App Div, 3d Dept: 2023 NY Slip Op 61193(U) (Albany)	dismissed 4/20/23 (Garcia, J.)
People v Parks	4th Dept: 213 AD3d 1208 (Onondaga)	denied 4/28/23 (Cannataro, J.)
People v Patterson	App Div, 2d Dept: 2022 NY Slip Op 69667(U) (Queens)	dismissed 4/14/23 (Troutman, J.)
People v Pellew	2d Dept: 210 AD3d 804 (Kings)	withdrawn 4/14/23 (Troutman, J.)
People v Perez-Castellanos	1st Dept: 211 AD3d 646 (NY)	denied 4/14/23 (Troutman, J.)
People v Perry	3d Dept: 213 AD3d 1000 (St. Lawrence)	denied 4/28/23 (Rivera, J.)
People v Peters	4th Dept: 213 AD3d 1359 (Monroe)	denied 4/28/23 (Cannataro, J.)
People v Ramirez	2d Dept: 214 AD3d 678 (Queens)	denied 4/13/23 (Singas, J.)
People v Rice	4th Dept: 213 AD3d 1243 (Onondaga)	denied 4/27/23 (Cannataro, J.)
People v Rodriguez	2d Dept: 211 AD3d 1042 (Richmond)	denied 4/28/23 (Rivera, J.)
People v Shipman	1st Dept: 213 AD3d 465 (Bronx)	denied 4/11/23 (Wilson, J.)
People v Sparrock	2d Dept: 213 AD3d 871 (Kings)	denied 4/14/23 (Rivera, J.)
People v Sporer	App Term, 1st Dept: 77 Misc 3d 136(A) (NY)	denied 4/27/23 (Cannataro, J.)
People v Spring	App Div, 2d Dept: 2023 NY Slip Op 61395(U) (Dutchess)	dismissed 4/28/23 (Singas, J.)
People v Stokes	3d Dept: 211 AD3d 1243 (Albany)	denied 4/14/23 (Troutman, J.)
People v Taylor (Abanaya)	2d Dept: 209 AD3d 772 (Kings)	denied 4/14/23 (Troutman, J.)
People v Taylor (Michael)	2d Dept: 210 AD3d 807 (Nassau)	denied 4/24/23 (Cannataro, J.)
People v Taylor (Pernorris)	App Term, 2d Dept, 9th & 10th Jud Dists: 77 Misc 3d 137(A) (Nassau)	denied 4/14/23 (Troutman, J.)
People v Thomas	4th Dept: 213 AD3d 1359 (Monroe)	denied 4/20/23 (Garcia, J.)

People v Tong You Cheng	App Div, 1st Dept: 2023 NY Slip Op 60696(U) (NY)	denied 4/7/23 (Singas, J.)
People v Truitt	3d Dept: 213 AD3d 1145 (Otsego)	denied 4/27/23 (Cannataro, J.)
People v Weeks	2d Dept: 212 AD3d 658 (Dutchess)	denied 4/10/23 (Garcia, J.)
People v Westbrooks	4th Dept: 213 AD3d 1274 (Monroe)	denied 4/27/23 (Cannataro, J.)
People v Williams	2d Dept: 211 AD3d 1054 (Queens)	denied 4/7/23 (Singas, J.)
People v Wolfe	4th Dept: 213 AD3d 1261 (Niagara)	denied 4/28/23 (Cannataro, J.)
People v Yanez	2d Dept: 210 AD3d 810 (Nassau)	denied 4/14/23 (Rivera, J.)
People v Yao	1st Dept: 212 AD3d 562 (NY)	denied 4/14/23 (Singas, J.)
People v Yushubyev	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 77 Misc 3d 141(A) (Queens)	dismissed 4/28/23 (Rivera, J.)
People v Zachary	1st Dept: 212 AD3d 538 (Bronx)	denied 4/28/23 (Rivera, J.)

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE OF
COURT OF APPEALS OR ON CONSENT**
(January 1, 2023 through January 31, 2023)

Cadore v State of New York	4th Dept: 208 AD3d 1585 (Appeal No. 1) 1/9/23
Cadore v State of New York	4th Dept: 208 AD3d 1592 (Appeal No. 2) 1/9/23

In the Matter of the BRIGHTONIAN NURSING HOME, INC., et al.,
Appellants, v HOWARD ZUCKER, as Commissioner of Health,
Respondent. (And Another Related Proceeding.)

Decided May 18, 2023

Reported below, 212 AD3d 162.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

CONSOLIDATED RESTAURANT OPERATIONS, INC., Appellant, v
WESTPORT INSURANCE CORPORATION, Respondent.

Submitted May 8, 2023; decided May 18, 2023

Reported below, 205 AD3d 76.

Motion by American Property Casualty Insurance Association et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

In the Matter of EGATE-95, LLC, Appellant, v FITNESS INTERNATIONAL, LLC, Respondent. (Appeal No. 2.)

Submitted February 21, 2023; decided May 18, 2023

Reported below, 208 AD3d 1638.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

HSBC BANK USA, N.A., Respondent, v ANTHONY AJAERO, Also
Known as ANTHONY J. AJAERO, Appellant, et al., Defendants.

Submitted February 14, 2023; decided May 18, 2023

Reported below, 2022 NY Slip Op 76202(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

JOSHUA B. KELLIER, Appellant, v NEW YORK STATE COMMISSION
ON JUDICIAL CONDUCT, Respondent.

Decided May 18, 2023

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that this Court does not have jurisdiction to entertain an appeal from a letter dismissing the complaint (*see* NY Const, art VI, § 22; Judiciary Law § 44 [7]; CPLR 5601).

Judge RIVERA took no part.

ESTER LELCHOOK, Individually and as Personal Representative of the ESTATE OF DAVID MARTIN LELCHOOK, et al., Appellants, v SOCIÉTÉ GÉNÉRALE DE BANQUE AU LIBAN SAL, Respondent.

Decided May 18, 2023

See 67 F4th 69.

Certification of questions by the United States Court of Appeals for the Second Circuit, pursuant to Rules of the Court of Appeals (22 NYCRR) § 500.27, accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN.

DMITRY MARKOV, Appellant, v MICHAEL BARROWS, Respondent, et al., Defendant.

Submitted February 6, 2023; decided May 18, 2023

Reported below, 208 AD3d 401.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed, insofar as appealed from, the April 2021 Supreme Court order, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v NAPOLEON C. CURTIS, Appellant.

Submitted May 1, 2023; decided May 18, 2023

Reported below, 188 AD3d 1090.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 dismissed as untimely.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v COREY DUNTON, Respondent.

Submitted April 24, 2023; decided May 18, 2023

Reported below, 2022 NY Slip Op 68332(U).

Motion for assignment of counsel granted and Caprice R. Jenerson, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the respondent on the appeal herein.

Judge HALLIGAN took no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KENNETH E. FISHER, Appellant.

Submitted April 24, 2023; decided May 18, 2023

Reported below, 212 AD3d 984.

Motion for assignment of counsel granted and Lisa A. Burgess, Esq., P.O. Box 440, Indian Lake, NY 12842 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JUSTICE A., Appellant.

Submitted May 1, 2023; decided May 18, 2023

Reported below, 77 Misc 3d 128(A), 2022 NY Slip Op 51150(U).

Motion, pursuant to CPL 460.60 (3), to extend the time for argument or submission of the appeal and to continue the stay granted and stay continued pending determination of the appeal.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ROBERT SUTTLE, Appellant.

Submitted January 9, 2023; decided May 18, 2023

Reported below, 209 AD3d 451.

Motion by The Center for HIV Law and Policy for leave to appear amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

In the Matter of ANGELO RUOTOLO, Appellant, v STATE OF NEW YORK DIVISION OF HOUSING AND COMMUNITY RENEWAL, Respondent.

Decided May 18, 2023

Reported below, 211 AD3d 955.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of **TERRENCE STEVENS et al.**, Respondents, v **NEW YORK STATE DIVISION OF CRIMINAL JUSTICE SERVICES et al.**, Appellants.

Submitted March 13, 2023; decided May 18, 2023

Reported below, 206 AD3d 88.

Motion by Parents of Murdered Children, Inc. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

Judges **RIVERA** and **HALLIGAN** took no part.

In the Matter of **TERRENCE STEVENS et al.**, Respondents, v **NEW YORK STATE DIVISION OF CRIMINAL JUSTICE SERVICES et al.**, Appellants.

Submitted May 15, 2023; decided May 18, 2023

Reported below, 206 AD3d 88.

Motion by New York Civil Liberties Union for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

Judges **RIVERA** and **HALLIGAN** took no part.

In the Matter of **AUDREY A. THOMAS** (Admitted as **AUDREY A. WATSON**), an Attorney, Appellant. **GRIEVANCE COMMITTEE FOR THE SECOND, ELEVENTH, AND THIRTEENTH JUDICIAL DISTRICTS**, Respondent.

Decided May 18, 2023

Reported below, 211 AD3d 21.

Appeal dismissed without costs, by the Court of Appeals suasponete, upon the ground that no substantial constitutional question is directly involved.

RYAN WEAVER, Respondent, v DERONDE TIRE SUPPLY, INC., et al., Defendants, and ESTES EXPRESS LINES, Appellant.

Decided May 18, 2023

Reported below, 211 AD3d 1503.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of ANONYMOUS. PATRICK B., Appellant. (App Div No. 2022-07242)

Submitted March 27, 2023; decided May 23, 2023

Motion for reargument of motion for leave to appeal denied [see 39 NY3d 908 (2023)].

Judge HALLIGAN took no part.

In the Matter of ATLANTIC MUTUAL INSURANCE COMPANY, Petitioner. UNITED SYNAGOGUE OF CONSERVATIVE JUDAISM, Appellant, v SUPERINTENDENT OF FINANCIAL SERVICES OF THE STATE OF NEW YORK, etc., Respondent.

Submitted March 13, 2023; decided May 23, 2023

Reported below, 208 AD3d 1121.

Motion for leave to appeal dismissed as untimely. The prior motion for leave to appeal made to the Appellate Division was untimely (see Arthur Karger, Powers of the New York Court of Appeals § 12:3 at 436-437 [3d ed rev 2005]).

JOHN D. CADORE, Appellant, v STATE OF NEW YORK, Respondent. (Claim No. 135656.) (Appeal No. 2.)

Submitted March 6, 2023; decided May 23, 2023

Reported below, 208 AD3d 1592.

Motion to vacate this Court's January 9, 2023 dismissal order denied [see 39 NY3d 1144 (2023)]. Motion for leave to appeal denied.

JOHN D. CADORE, Appellant, v STATE OF NEW YORK, Respondent. (Claim No. 129681.) (Appeal No. 1.)

Submitted March 6, 2023; decided May 23, 2023

Reported below, 208 AD3d 1585.

Motion to vacate this Court's January 9, 2023 dismissal order denied [*see* 39 NY3d 1144 (2023)]. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

RITCHIE DEGRAFF, Respondent, v WILLIAM COLONTONIO, Doing Business as FINE WOODWORKING BY WILLIAM, Appellant. (And a Third-Party Action.)

Submitted March 6, 2023; decided May 23, 2023

Reported below, 202 AD3d 1297.

Motion for leave to appeal dismissed upon the ground that simultaneous appeals do not lie to both the Appellate Division and the Court of Appeals (*see Parker v Rogerson*, 35 NY2d 751, 753 [1974]).

FAYE T. MADIGAN, Plaintiff, v BERKELEY CAPITAL LLC, et al., Defendants, and ROSA BRONSTEIN et al., Respondents. JOSEPH PAUKMAN, Appellant.

Submitted April 17, 2023; decided May 23, 2023

Reported below, 205 AD3d 900.

Motion for reconsideration of this Court's February 9, 2023 dismissal order denied [*see* 39 NY3d 1056 (2023)].

Judge HALLIGAN took no part.

NELLA MANKO, Appellant, v DR. DANA MANNOR et al., Respondents, et al., Defendants. NELLA MANKO, Appellant, v DANA MANNOR et al., Respondents, et al., Defendants.

Submitted February 27, 2023; decided May 23, 2023

Reported below, 2019 NY Slip Op 84361(U).

Motion for reargument of motion for leave to appeal dismissed as untimely (*see* Rules of Ct of Appeals [22 NYCRR] § 500.24 [b]) [*see* 39 NY3d 979 (2023)]. Motion for poor person relief dismissed as academic.

Chief Judge WILSON and Judge CANNATARO took no part.

OLIMPIADA MUNTEANU, Appellant, v KARAH PAYMAN et al., Respondents.

Submitted March 27, 2023; decided May 23, 2023

Reported below, 2023 NY Slip Op 62100(U).

Motion for leave to appeal dismissed upon the ground that no motion for leave to appeal lies from an Appellate Division order dismissing an appeal from a decision (*see* CPLR 5602).

ABDUS SHAHID, Appellant, v MARTIN A. BIENSTOCK, Respondent.

Submitted March 27, 2023; decided May 23, 2023

Reported below, 208 AD3d 1379.

Motion for reargument of motion for leave to appeal denied [*see* 39 NY3d 906 (2023)].

Judge HALLIGAN took no part.

In the Matter of HARINDER JEET SINGH, Appellant, v NEW YORK STATE DIVISION OF HOUSING AND COMMUNITY RENEWAL, Respondent.

Submitted March 20, 2023; decided May 23, 2023

Reported below, 204 AD3d 810.

Motion for reargument of motion for leave to appeal denied [*see* 39 NY3d 991 (2023)].

Judge HALLIGAN took no part.

21ST MORTGAGE CORPORATION, as Master Servicer for CHRISTIANA TRUST, Respondent, v JIN LIN et al., Defendants, and RENAISSANCE ECONOMIC DEVELOPMENT CORPORATION, Appellant.

Submitted March 27, 2023; decided May 23, 2023

Reported below, 210 AD3d 401.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of NICKIE KANE, Appellant, v BOARD OF ELECTIONS IN THE CITY OF NEW YORK, Respondent.

In the Matter of NICKIE KANE, Appellant, v SHAHANA HANIF et al., Respondents.

Submitted May 22, 2023; decided June 8, 2023

Reported below, 216 AD3d 483.

Motion for reargument of motion for leave to appeal denied [see 39 NY3d 912 (2023)].

In the Matter of MICHAEL I. PARIETTI, Appellant, v ED DAY, as Rockland County Executive, et al., Respondents.

Submitted May 22, 2023; decided June 8, 2023

Reported below, 215 AD3d 897.

Motion for leave to appeal denied. Motion for a stay dismissed as academic.

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(May 1, 2023 through May 31, 2023)

People v Abellard	2d Dept: 212 AD3d 842 (Kings)	denied 5/22/23 (Cannataro, J.)
People v Arel A.	1st Dept: 212 AD3d 534 (Bronx)	denied 5/23/23 (Troutman, J.)
People v Argueta-Guardado	2d Dept: 214 AD3d 821 (Suffolk)	denied 5/23/23 (Cannataro, J.)

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People v Arroyo	2d Dept: 211 AD3d 746 (Queens)	denied 5/26/23 (Cannataro, J.)
People v Beltran	4th Dept: 213 AD3d 1293 (Monroe)	denied 5/26/23 (Cannataro, J.)
People v Berger	App Div, 4th Dept, 3/13/23 (Monroe)	dismissed 5/19/23 (Garcia, J.)
People v Bishop	4th Dept: 215 AD3d 1278 (Onondaga)	denied 5/31/23 (Rivera, J.)
People v Blaszyk	4th Dept: 214 AD3d 1352 (Erie)	denied 5/12/23 (Singas, J.)
People v Bonacci	4th Dept: 214 AD3d 1358 (Monroe)	denied 5/31/23 (Singas, J.)
People v Bracero	1st Dept: 214 AD3d 457 (Bronx)	denied 5/23/23 (Cannataro, J.)
People v Bradshaw	2d Dept: 210 AD3d 44 (Queens)	denied 5/8/23 (Cannataro, J.)
People v Brissett	2d Dept: 211 AD3d 964 (Richmond)	denied ¹ 5/26/23 (Cannataro, J.)
People v Bristowfeelings	2d Dept: 214 AD3d 897 (Queens)	denied 5/31/23 (Garcia, J.)
People v Brooks	4th Dept: 214 AD3d 1425 (Monroe)	denied 5/31/23 (Rivera, J.)
People v Brown (Brandon)	1st Dept: 213 AD3d 498 (Bronx)	denied 5/30/23 (Wilson, Ch. J.)
People v Brown (Donell)	1st Dept: 212 AD3d 413 (NY)	denied 5/23/23 (Troutman, J.)
People v Brown (Quintin)	3d Dept: 213 AD3d 1035 (Albany)	denied 5/23/23 (Troutman, J.)
People v Carson	1st Dept: 214 AD3d 607 (NY)	denied 5/31/23 (Rivera, J.)
People v Cassell O.	2d Dept: 213 AD3d 699 (Queens)	denied 5/23/23 (Troutman, J.)
People v Clinton	App Term, 2d Dept, 9th & 10th Jud Dists: 77 Misc 3d 137(A) (Nassau)	denied 5/30/23 (Wilson, Ch. J.)
People v Coleman (Jayquan)	1st Dept: 209 AD3d 501 (NY)	denied 5/23/23 (Cannataro, J.)
People v Coley (Khari)	App Div, 3d Dept: 2023 NY Slip Op 62527(U) (Ulster)	dismissed 5/3/23 (Cannataro, J.)
People v Coley (Michael)	4th Dept: 214 AD3d 1455 (Genesee)	denied 5/23/23 (Singas, J.)
People v Colman (Jaquan)	1st Dept: 209 AD3d 501 (NY)	denied 5/23/23 (Cannataro, J.)
People v Colon	2d Dept: 213 AD3d 866 (Westchester)	denied 5/31/23 (Garcia, J.)
People v Crupi	2d Dept: 213 AD3d 950 (Richmond)	denied 5/31/23 (Singas, J.)
People v Cuevas	App Div, 1st Dept: 2023 NY Slip Op 60366(U) (NY)	denied 5/23/23 (Troutman, J.)

1. Denied, with leave to renew within 30 days after the Court of Appeals renders decisions in *People v Wright* (203 AD3d 965 [2d Dept 2022], *lv granted* 38 NY3d 1191 [2022]) and *People v Estwick* (208 AD3d 799 [2d Dept 2022], *lv granted* 39 NY3d 1078 [2023]).

People v Cummings	1st Dept: 213 AD3d 616 (Bronx)	denied 5/23/23 (Troutman, J.)
People v Curet	App Div, 1st Dept: 2022 NY Slip Op 74763(U) (Bronx)	dismissed 5/23/23 (Troutman, J.)
People v Curley	1st Dept: 212 AD3d 444 (NY)	denied 5/22/23 (Cannataro, J.)
People v Dais	1st Dept: 214 AD3d 417 (NY)	denied 5/26/23 (Cannataro, J.)
People v Demarco	3d Dept: 213 AD3d 1035 (Albany)	denied 5/23/23 (Troutman, J.)
People v Derevyanchenko	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 78 Misc 3d 42 (Kings)	denied 5/31/23 (Singas, J.)
People v Devitt	2d Dept: 214 AD3d 825 (Nassau)	denied 5/26/23 (Cannataro, J.)
People v Doane	3d Dept: 212 AD3d 875 (Schuyler)	denied 5/30/23 (Wilson, Ch. J.)
People v Edmond	1st Dept: 214 AD3d 461 (NY)	denied 5/23/23 (Troutman, J.)
People v Fishman	App Div, 2d Dept: 2023 NY Slip Op 62264(U) (Westchester)	dismissed 5/10/23 (Garcia, J.)
People v Flowers	2d Dept: 213 AD3d 692 (Kings)	denied 5/26/23 (Cannataro, J.)
People v Francis	3d Dept: 213 AD3d 1031 (Saratoga)	denied 5/3/23 (Cannataro, J.)
People v Fraser	2d Dept: 210 AD3d 1107 (Kings)	denied 5/30/23 (Wilson, Ch. J.)
People v Fuller (Fitzalbert)	4th Dept: 214 AD3d 1337 (Monroe)	denied 5/31/23 (Singas, J.)
People v Fuller (Gabriel)	2d Dept: 212 AD3d 734 (Kings)	denied 5/3/23 (Cannataro, J.)
People v Fulton	4th Dept: 210 AD3d 1436 (Monroe)	denied 5/30/23 (Wilson, Ch. J.)
People v Galante	App Term, 2d Dept, 9th & 10th Jud Dists: 78 Misc 3d 31 (Suffolk)	denied 5/25/23 (Cannataro, J.)
People v Galusha	3d Dept: 211 AD3d 1421 (Broome)	denied 5/24/23 (Rivera, J.)
People v Garcia	2d Dept: 210 AD3d 906 (Queens)	granted 5/31/23 (Wilson, Ch. J.)
People v Garry (Lamont)	2d Dept: 213 AD3d 773, 2023 NY Slip Op 00672 (Queens)	denied 5/23/23 (Troutman, J.)
People v Garry (Lamont)	2d Dept: 213 AD3d 773, 2023 NY Slip Op 00673 (Queens)	denied 5/23/23 (Troutman, J.)
People v Gay	1st Dept: 211 AD3d 589 (Bronx)	denied 5/31/23 (Rivera, J.)
People v Giles	4th Dept: 214 AD3d 1460 (Onondaga)	denied 5/31/23 (Garcia, J.)
People v Gonzalez	4th Dept: 214 AD3d 1439 (Onondaga)	denied 5/31/23 (Rivera, J.)
People v Grady	2d Dept: 211 AD3d 1037 (Kings)	denied 5/26/23 (Cannataro, J.)

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People v Green	1st Dept: 213 AD3d 422 (Bronx)	denied 5/23/23 (Troutman, J.)
People v Hagberg	County Ct, 1/30/23 (Oneida)	denied 5/31/23 (Rivera, J.)
People v Harris (Coreen)	App Div, 3d Dept: 2023 NY Slip Op 63910(U) (Albany)	denied 5/31/23 (Cannataro, J.)
People v Harris (Cory)	App Div, 3d Dept: 2023 NY Slip Op 63910(U) (Albany)	denied 5/31/23 (Cannataro, J.)
People v Hernandez	2d Dept: 213 AD3d 774 (Kings)	denied 5/23/23 (Troutman, J.)
People v Highsmith	App Div, 4th Dept: 2023 NY Slip Op 60726(U) (Erie)	denied 5/31/23 (Singas, J.)
People v Hines	3d Dept: 214 AD3d 1117 (Albany)	denied 5/10/23 (Garcia, J.)
People v Holland	App Div, 2d Dept: 2023 NY Slip Op 63338(U) (Queens)	dismissed 5/26/23 (Singas, J.)
People v Hunter	3d Dept: 213 AD3d 1032 (Sullivan)	denied 5/23/23 (Troutman, J.)
People v Hurt	1st Dept: 214 AD3d 609 (NY)	denied 5/23/23 (Cannataro, J.)
People v Jackson (Bobby)	App Div, 3d Dept: 2023 NY Slip Op 63911(U) (Clinton)	denied 5/31/23 (Singas, J.)
People v Jackson (Wali)	1st Dept: 215 AD3d 461 (NY)	denied 5/31/23 (Garcia, J.)
People v Jenkins	3d Dept: 210 AD3d 1293 (Chemung)	denied 5/22/23 (Cannataro, J.)
People v Johnson (Patrick)	1st Dept: 213 AD3d 585 (NY)	denied 5/10/23 (Garcia, J.)
People v Johnson (Terrance)	1st Dept: 213 AD3d 505 (Bronx)	denied 5/30/23 (Wilson, Ch. J.)
People v Johnson (Terrence)	1st Dept: 213 AD3d 505 (Bronx)	denied 5/30/23 (Wilson, Ch. J.)
People v Jones (Antoine)	1st Dept: 213 AD3d 416 (Bronx)	denied 5/30/23 (Wilson, Ch. J.)
People v Jones (Charles)	1st Dept: 214 AD3d 543 (NY)	denied 5/31/23 (Singas, J.)
People v Jones (Darryl)	1st Dept: 214 AD3d 566 (NY)	denied 5/24/23 (Cannataro, J.)
People v Jones (Marquan)	1st Dept: 213 AD3d 580 (Bronx)	denied 5/23/23 (Troutman, J.)
People v Jones (Sandy)	4th Dept: 213 AD3d 1279 (Erie)	denied 5/12/23 (Singas, J.)
People v Jones (Stephen)	4th Dept: 214 AD3d 1340 (Monroe)	denied 5/23/23 (Cannataro, J.)
People v Keppen	App Div, 4th Dept, 3/1/23 (Monroe)	dismissed 5/25/23 (Garcia, J.)
People v Koeberle	4th Dept: 214 AD3d 1435 (Ontario)	denied 5/19/23 (Garcia, J.)
People v LaClair	App Term, 2d Dept, 9th & 10th Jud Dists: 79 Misc 3d 8 (Nassau)	denied 5/31/23 (Garcia, J.)

People v Latta	4th Dept: 213 AD3d 1268 (Monroe)	denied 5/30/23 (Wilson, Ch. J.)
People v Mahoney	1st Dept: 215 AD3d 462 (Bronx)	denied 5/30/23 (Wilson, Ch. J.)
People v Malary	2d Dept: 213 AD3d 774 (Kings)	denied 5/23/23 (Cannataro, J.)
People v Mason	1st Dept: 213 AD3d 531 (NY)	denied 5/31/23 (Rivera, J.)
People v McDowell	4th Dept: 214 AD3d 1437 (Onondaga)	denied 5/31/23 (Rivera, J.)
People v McWilliams	4th Dept: 214 AD3d 1328 (Monroe)	denied ² 5/10/23 (Garcia, J.)
People v Megnath	2d Dept: 212 AD3d 653 (Queens)	denied 5/22/23 (Cannataro, J.)
People v Miller	3d Dept: 206 AD3d 1296 (Albany)	denied 5/30/23 (Wilson, Ch. J.)
People v Milonovich	2d Dept: 215 AD3d 764 (Kings)	denied 5/31/23 (Rivera, J.)
People v Ndaula	2d Dept: 212 AD3d 653 (Kings)	denied 5/23/23 (Troutman, J.)
People v Nektalov	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 78 Misc 3d 1 (Queens)	granted 5/24/23 (Rivera, J.)
People v Ortiz	1st Dept: 209 AD3d 451 (NY)	denied 5/31/23 (Garcia, J.)
People v Pearce	App Div, 4th Dept, 3/13/23 (Monroe)	dismissed 5/26/23 (Singas, J.)
People v Perez	3d Dept: 213 AD3d 984 (Columbia)	denied 5/30/23 (Wilson, Ch. J.)
People v Persaud	2d Dept: 212 AD3d 654 (Nassau)	denied 5/31/23 (Cannataro, J.)
People v Pil-Yong Yoo	2d Dept: 208 AD3d 1257 (Suffolk)	denied 5/30/23 (Wilson, Ch. J.)
People v Pimentel	1st Dept: 212 AD3d 444 (Bronx)	denied 5/23/23 (Troutman, J.)
People v Porter	2d Dept: 210 AD3d 1012 (Queens)	denied 5/26/23 (Cannataro, J.)
People v Rabidou	2d Dept: 214 AD3d 1004 (Queens)	denied 5/30/23 (Wilson, Ch. J.)
People v Recore	3d Dept: 211 AD3d 1241 (Franklin)	denied 5/22/23 (Cannataro, J.)
People v Rivera	App Term, 1st Dept: 77 Misc 3d 141(A) (Bronx)	denied 5/25/23 (Troutman, J.)
People v Robert	3d Dept: 214 AD3d 1085 (Clinton)	denied 5/26/23 (Singas, J.)
People v Rodriguez (Brandon)	2d Dept: 214 AD3d 906 (Queens)	denied 5/31/23 (Garcia, J.)
People v Rodriguez (Orlando)	App Div, 1st Dept: 2022 NY Slip Op 60819(U) (NY)	dismissed 5/22/23 (Cannataro, J.)

2. Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Pastrana* (205 AD3d 461 [1st Dept 2022], *lv granted* 38 NY3d 1135 [2022]).

MEMORANDA

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People v Sanchez	1st Dept: 210 AD3d 599 (NY)	denied 5/30/23 (Wilson, Ch. J.)
People v Scott	4th Dept: 214 AD3d 1326 (Monroe)	denied 5/31/23 (Singas, J.)
People v Sharma	1st Dept: 213 AD3d 470 (NY)	denied 5/31/23 (Singas, J.)
People v Shepard	4th Dept: 213 AD3d 1216 (Onondaga)	denied 5/23/23 (Cannataro, J.)
People v Siad	2d Dept: 214 AD3d 678 (Queens)	denied 5/25/23 (Garcia, J.)
People v Sides	4th Dept: 213 AD3d 1301 (Monroe)	denied 5/23/23 (Cannataro, J.)
People v Slide	2d Dept: 213 AD3d 701 (Suffolk)	denied 5/25/23 (Garcia, J.)
People v Small	2d Dept: 212 AD3d 655 (Queens)	denied ³ 5/31/23 (Wilson, Ch. J.)
People v Smith (Gerald)	4th Dept: 214 AD3d 1339 (Monroe)	denied 5/30/23 (Wilson, Ch. J.)
People v Smith (Kevin)	2d Dept: 214 AD3d 679 (Queens)	denied 5/31/23 (Rivera, J.)
People v Smith (Kevin)	App Term, 1st Dept: 78 Misc 3d 127(A) (NY)	denied 5/30/23 (Wilson, Ch. J.)
People v Smith (Rhonda)	App Term, 2d Dept, 9th & 10th Jud Dists: 78 Misc 3d 129(A) (Westchester)	denied 5/26/23 (Singas, J.)
People v Smith (Zaki)	1st Dept: 212 AD3d 534 (NY)	denied 5/23/23 (Troutman, J.)
People v Soltez-Pula	County Ct, 3/29/23 (Monroe)	denied 5/31/23 (Rivera, J.)
People v Sostre	1st Dept: 212 AD3d 563 (Bronx)	denied 5/23/23 (Cannataro, J.)
People v Stackhouse (Carlos)	4th Dept: 214 AD3d 1303 (Onondaga)	denied 5/24/23 (Cannataro, J.) (Appeal No. 1)
People v Stackhouse (Carlos)	4th Dept: 214 AD3d 1299 (Onondaga)	denied 5/24/23 (Cannataro, J.) (Appeal No. 2)
People v Thornton	4th Dept: 213 AD3d 1332 (Monroe)	denied 6/30/23 (Singas, J.)
People v Vega	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 77 Misc 3d 136(A) (Kings)	denied 5/30/23 (Wilson, Ch. J.)
People v Vilella	4th Dept: 213 AD3d 1282 (Erie)	denied 5/23/23 (Singas, J.)
People v Wagoner	App Div, 4th Dept, 3/10/23 (Cattaraugus)	dismissed 5/24/23 (Cannataro, J.)
People v Whichard	2d Dept: 212 AD3d 737 (Kings)	denied 5/23/23 (Troutman, J.)
People v Williams (Antoine)	2d Dept: 210 AD3d 913 (Kings)	denied 5/8/23 (Cannataro, J.)

3. Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Cabrera* (206 AD3d 479 [1st Dept 2022], *lv granted* 38 NY3d 1187 [2022]).

People v Williams (Lionel)	2d Dept: 214 AD3d 828 (Orange)	denied 5/18/23 (Garcia, J.)
People v Wilson (Cedrick)	4th Dept: 213 AD3d 1217 (Monroe)	denied 5/31/23 (Rivera, J.)
People v Wilson (Rashaan)	2d Dept: 211 AD3d 973 (Kings)	denied 5/10/23 (Rivera, J.)
People v Wright	4th Dept: 214 AD3d 1327 (Monroe)	denied 5/31/23 (Rivera, J.)
People v Wyche	2d Dept: 211 AD3d 974 (Kings)	denied 5/31/23 (Cannataro, J.)
People v Young (Kwame)	App Div, 4th Dept, 3/15/23 (Monroe)	dismissed 5/31/23 (Rivera, J.)
People v Young (Talarico)	4th Dept: 208 AD3d 1654 (Onondaga)	denied 5/31/23 (Singas, J.)
People v Zhiminaicela-Duchitanga	2d Dept: 214 AD3d 1005 (Rockland)	denied 5/25/23 (Garcia, J.)

[212 NE3d 272, 191 NYS3d 255]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SANTINO GUERRA, Appellant.

Argued February 7, 2023; decided March 16, 2023

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered March 23, 2021. The Appellate Division affirmed a judgment of the Supreme Court, Bronx County (Margaret L. Clancy, J.), which had convicted defendant, upon a jury verdict, of assault in the second degree.

People v Guerra, 192 AD3d 563, affirmed.

HEADNOTE

Crimes — Justification — Prior Violent Acts of Victim

In a prosecution in which defendant, who was accused of stabbing the victim, asserted the defense of justification and sought to introduce evidence of the specific violent conduct underlying four of the victim's prior youthful offender adjudications to prove that the victim was the initial aggressor with respect to deadly physical force, the trial court prohibited the jury from considering that evidence for that purpose and the Appellate Division order affirming defendant's judgment of conviction was affirmed. Given the policy concerns behind youthful offender designations, there was no reason here to revisit the rule recognized in *People v Rodawald* (177 NY 408 [1904]) and

People v Miller (39 NY2d 543 [1976]) that precludes the admission of prior violent acts of victims in cases where a claim of justification is made unless the defendant was aware of the specific acts at the time of the assault.

APPEARANCES OF COUNSEL

Winston & Strawn LLP, New York City (*Kelly A. Librera*, *Patrick S. Opdyke* and *Robert S. Pannullo* of counsel), and *Twyla Carter, The Legal Aid Society*, New York City (*David Crow* of counsel), for appellant.

Darcel D. Clark, District Attorney, Bronx (*T. Charles Won*, *Nancy D. Killian* and *Peter D. Coddington* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

We are asked once again to discard the rule recognized in *People v Rodawald* (177 NY 408 [1904]) and *People v Miller* (39 NY2d 543 [1976]) that “preclud[es] the admission of prior violent acts of victims in cases where a claim of justification is made” unless the defendant was aware of the specific acts at the time of the assault (*id.* at 553; *see People v Watson*, 20 NY3d 1018, 1020 [2013]; *Matter of Robert S.*, 52 NY2d 1046, 1048 [1981]). We decline to do so.

Defendant stabbed the victim in the chest with a small knife, causing life-threatening injuries. At trial, the court determined that defendant was entitled to raise a justification defense. Defendant sought to introduce evidence of the specific violent conduct underlying four of the victim’s prior youthful offender adjudications to prove that the victim was the initial aggressor with respect to deadly physical force (*see People v Brown*, 33 NY3d 316, 321 [2019]). Supreme Court, in accordance with *Miller*, prohibited the jury from considering that evidence for that purpose. The Appellate Division affirmed (192 AD3d 563 [1st Dept 2021]).

“Youthful Offender status provides youth four key benefits: relief from [a] record of a criminal conviction, reduced sentences, privacy from public release of the youth’s name pending the Youthful Offender determination on misdemeanor offenses only, and confidentiality of the Youthful Offender record” (Final Report of the Governor’s Commission on Youth, Public Safety, and Justice at 135 [2014]). Youthful offender designations are given to those who have “a real likelihood of turning

their lives around,” and the protection gives these individuals “the opportunity for a fresh start, without a criminal record” (*People v Rudolph*, 21 NY3d 497, 501 [2013]). Given these policy concerns, we see no reason to revisit the *Miller* rule in this case.*

Defendant’s additional challenge to the constitutionality of the *Miller* rule is without merit (*see Williams v Lord*, 996 F2d 1481, 1483-1484 [2d Cir 1993]).

WILSON, J. (dissenting). Imagine for a moment that you are a juror in a criminal case. On trial is a young man with no history of violence. He is charged with stabbing another young man, one who on four prior occasions has, without provocation, assaulted and beaten up strangers. The defendant says he stabbed the victim with a penknife attached to his keys because the other man wielded a broken beer bottle as a weapon, hit him and was attempting to cut him with the beer bottle. The victim says he never had a beer bottle, never threatened the defendant, and it was the defendant who pulled out a knife and stabbed him following a minute of name-calling back and forth. As a juror, would you feel better able to determine who was the initial aggressor if you knew of the victim’s history of violence, or would you be better able to determine the truth without any information about the victim’s prior violent attacks? Under the doctrine the majority leaves in place today, no court can ever allow you to consider that information in deciding who was the initial aggressor.

Santino Guerra stabbed Dylan Pitt with a penknife, after a verbal altercation between strangers turned violent. Mr. Guerra claimed he was acting in self-defense, and the trial court concluded that he was entitled to an instruction as to

* The dissent incorrectly characterizes this appeal as limited to the propriety of the instruction admonishing the jury not to consider evidence of the victim’s prior violent conduct for any non-impeachment purpose (dissenting op at 1161). However, the dissent’s arguments make clear that the proposed rule would apply equally in murder cases (*see* dissenting op at 1168) and therefore could not be limited to situations involving testimony by the victim. A defendant accused of murdering a 17 year old could, if the victim happened to have a prior youthful offender determination, offer direct evidence of specific conduct committed by the victim as a child to show the killing was justified. Our exclusion of such evidence is neither “archaic,” “obsolete,” nor “out of step with other jurisdictions” (dissenting op at 1165). To the contrary, defendant seeks to offer evidence of prior bad acts that would not be admissible under the Federal Rules of Evidence or in nearly any state that has adopted those rules (*see* Fed Rules Evid rule 404 [a] [2]; 1 McCormick on Evidence § 193 [8th ed, July 2022 update] [surveying various approaches]).

justification, to which no challenge is made. It is the People's burden to prove lack of justification beyond a reasonable doubt. Included in that burden is the requirement that the People prove that Mr. Guerra, not Mr. Pitt, was the first aggressor. Certain evidence suggested that Mr. Guerra was the first aggressor; other evidence suggested that Mr. Pitt was. To assist the jury in determining that question, Mr. Guerra sought to introduce the facts underlying four of Mr. Pitt's prior arrests, each of which led to a criminal conviction replaced by a youthful offender adjudication. The trial court unsealed two of the youthful offender adjudications and permitted Mr. Guerra to introduce the facts concerning those two offenses, but issued a limiting instruction that the evidence could be used only for the purpose of evaluating Mr. Pitt's credibility and not to be considered in determining who was the initial aggressor.

The sole issue on this appeal is the propriety of the limiting instruction.¹ There is no challenge to the unsealing of the youthful offender records and no challenge to the presentation to the jury of the underlying facts of Mr. Pitt's violent acts leading up to those adjudications. The majority says, in essence, that we should uphold the limiting instruction to protect Mr. Pitt's confidentiality and give him a chance to turn his life around. Whatever force that position might have in a different case, it has none here, because that very evidence was exposed to the jurors (and anyone who attended the trial) in this case. Moreover, a defendant's right to put the People to their burden to prove guilt beyond a reasonable doubt—including proof that the defendant was the initial aggressor—is guaranteed by the U.S. Constitution. Mr. Pitt is not on trial; his statutorily protected interest in confidentiality pales in comparison and cannot be asserted to deprive Mr. Guerra of a fair trial.

I.

On St. Patrick's Day weekend 2016, Santino Guerra, a 20 year old with no record of violent criminal behavior, encountered a group of five teenagers and young adults including Dylan Pitt, who had several youthful offender adjudications for

1. Mr. Guerra does challenge the trial court's failure to permit him to introduce evidence relating to two other sets of facts that led to another two other youthful offender adjudications for Mr. Pitt. However, as to all admissible evidence, trial courts are vested with great authority to manage trials by precluding evidence as cumulative so as to not bog down trials (*see People v. Ely*, 68 NY2d 520, 532 [1986]). It was well within the trial court's discretion to allow introduction of two, but not four, of Mr. Pitt's prior violent incidents.

violent assaults. Both Mr. Guerra and Mr. Pitt had been drinking.

Mr. Guerra had an ugly-looking black eye from an assault he suffered a few days before his foray to Van Cortlandt Park to watch the St. Patrick's Day parade. As he and Mr. Pitt's group passed each other, one of Mr. Pitt's friends harangued Mr. Guerra about his black eye. A series of verbal jabs turned into physical jabs, though with inconsistent evidence about whether Mr. Pitt wielded a beer bottle as a weapon, swung with it or his fist, or made contact with Mr. Guerra's person. Some evidence suggested that Mr. Pitt first threatened deadly force; other evidence suggested that he did not.

Mr. Guerra was tried to a jury for assault in the second degree (Penal Law § 120.05) and asserted a justification defense (*see* Penal Law § 35.15 [2] [a]), claiming that he "reasonably believe[d] that [Mr. Pitt was] using or about to use deadly physical force." To support his defense, Mr. Guerra sought to question Mr. Pitt about four previous incidents in which Mr. Pitt had attacked or threatened another person, including a previous St. Patrick's Day altercation. Mr. Guerra explained that those prior incidents were relevant as part of the evidence the jury should be able to rely on to determine whether he or Mr. Pitt first threatened deadly force. In all four of the cases Mr. Guerra sought to introduce, Mr. Pitt was adjudicated a youthful offender, meaning that, pursuant to CPL 720.20, his four criminal convictions in those cases were converted to youthful offender findings and the related records were sealed pursuant to CPL 720.35 (2). Mr. Guerra learned about those incidents only because the trial judge had specifically unsealed them for the purposes of this case. The court allowed Mr. Guerra to cross-examine Mr. Pitt about two of those incidents, but only to establish that Mr. Pitt had a motive to lie because he was on probation for the two previous incidents—under our present rule as set forth in *People v Miller*, evidence of similar prior bad acts generally can be introduced only if the defendant knew of them prior to the time of the charged crime or, if unknown to the defendant, the bad acts consisted of threats against the defendant (39 NY2d 543, 549, 551 [1976]). At trial, the court said that the questioning about the prior incidents "goes only toward the issue of whether or not Mr. Pitt has a motive to lie and on the issue of his credibility and not for any other purpose." Before the jury began its deliberations, the court additionally informed them that "[a] person cannot

be considered the initial aggressor simply because he has previously engaged in violent acts.”

The jury found Mr. Guerra guilty and he was sentenced to three years’ incarceration. The Appellate Division affirmed Supreme Court’s judgment convicting Mr. Guerra upon a jury verdict and rejected Mr. Guerra’s challenge to Supreme Court’s refusal to permit the challenged evidence on *Miller* grounds, reasoning that “[s]ince the acts were unknown to defendant, they were irrelevant to his state of mind at the time of the altercation and cannot establish that the victim was the initial aggressor” (192 AD3d 563, 563 [1st Dept 2021]).

Mr. Guerra urges us to modify the *Miller* rule. Doing so would render the limiting instruction erroneous, and Mr. Guerra would be entitled to a new trial in which he could argue that Mr. Pitt’s prior violent acts supported the conclusion that Mr. Pitt, not Mr. Guerra, was the first to threaten deadly force. As we commented in *Miller* itself, our existing rule was not then accepted by most state courts or the federal courts (39 NY2d at 549). In the ensuing decades, the balance has tipped even further against our existing rule. Although the majority “see[s] no reason to revisit the *Miller* rule” due to the “policy concerns” raised by the way Mr. Guerra sought to use the particular evidence in this case (majority mem at 1159-1160), those concerns do not justify a misguided and obsolete rule.

II.

Under Penal Law § 35.15 (2) (a), a defendant is typically justified in using deadly physical force on another person when the defendant “reasonably believes that such other person is using or about to use deadly physical force,” where “deadly physical force” is defined as “physical force which, under the circumstances in which it is used, is readily capable of causing death or other serious physical injury” (Penal Law § 10.00 [11]). Most defendants cannot succeed on that defense if they are the “initial aggressor[s]” in a confrontation (Penal Law § 35.15 [1] [b]; see *People v Petty*, 7 NY3d 277, 285 [2006]; *Stokes v People*, 53 NY 164, 174-175 [1873]).

Although the general principles of consistency, integrity, and humility underlying stare decisis are always relevant when we decide cases (see generally *Matter of State of New York v Donald DD.*, 24 NY3d 174, 187 [2014]), stare decisis “[c]onsiderations . . . are at their [weakest] . . . in cases . . . involving procedural and evidentiary rules” (*Payne v Tennessee*, 501 US

808, 828 [1991]). Not only do common-law evidentiary rules entail relatively limited reliance interests (*id.*; see also *People v Turner*, 117 NY 227, 233 [1889]), but litigants are on notice that “[t]he common law of evidence is constantly being refashioned by the courts of this and other jurisdictions to meet the demands of modern litigation” (see *Matter of Brown v Ristich*, 36 NY2d 183, 190 [1975]). That is, neither Mr. Guerra nor Mr. Pitt considered or in any way relied on our *Miller* rule when deciding how to conduct themselves on St. Patrick’s Day, and few if any future combatants with long criminal records are depending on the continuation of our existing rule to help tip the first aggressor balance in their favor.

The relatively light weight of stare decisis here is evident from the changes to our rule over time. Beginning with *People v Lamb*, we announced that character evidence of a victim is inadmissible “as a general principle” but further explained that “when admissible, it must be in a case where the defendant had reason to be in fear of his life, or had reasonable grounds to apprehend great bodily harm” (2 Abb Prac [NS] 148, 154 [NY 1866]). Applying that rule in *Lamb*, we concluded that the trial court properly excluded the testimony of a third party as to whether the decedent had a “quarrelsome, vindictive, and brutal character” or whether she had a “general character for peace and quietness” (2 Abb Prac [NS] at 152). Seven years later, in *Stokes v People*, we modified the rule in *Lamb*, permitting evidence of threats made by the victim against the defendant even where the defendant did not know of them because “threats indicate an intention to do it, and the existence of this intention creates a probability that he has in fact committed it” (53 NY 164, 175 [1873]).

By *People v Druse*, we had crystalized a new rule that held for the next few decades, stating:

“[t]he rule is that after evidence has been given by a defendant, tending to show that the homicide was committed in self-defense, he may follow it by proof of the general reputation of the deceased for quarrelsomeness and violence. But a defendant is confined to proof of general reputation, and evidence of specific acts of violence toward third persons is inadmissible” (103 NY 655, 656 [1886]; accord *People v Gaimari*, 176 NY 84, 95 [1903]).

In *People v Rodawald*, we revisited the doctrine once more, noting that “[u]pon a trial for murder . . . the accused . . .

may prove that the general reputation of the deceased was that of a quarrelsome, vindictive or violent man and that such reputation had come to his knowledge prior to the homicide” (177 NY 408, 423 [1904]). We added a further restriction: “[s]uch evidence is not received to show that the deceased was the aggressor” (*id.*), notwithstanding the fact that unknown threats were still permissible evidence (*id.*, citing *Stokes*, 53 NY at 174).

We announced our most recent modification of this doctrine in *People v Miller*. To sustain his justification instruction, Mr. Miller attempted to introduce prior incidents and evidence of his sister’s erratic and sometimes violent behavior. We held that

“the [*Rodawald*] rule should be modified to permit a defendant in a criminal case, where justification is an issue, to introduce evidence of the victim’s prior specific acts of violence of which the defendant had knowledge, provided that the acts sought to be established are reasonably related to the crime of which the defendant stands charged” (39 NY2d at 551).

Miller contains no discussion of the weight of stare decisis, evidencing by its silence our recognition that stare decisis has little or no weight in this particular area. Much as stare decisis did not factor into our decision in *Miller* to modify the *Rodawald* rule, it does not preclude us from modifying the rule in *Miller*.

By contrast, subsequent developments have made *Miller* an increasingly “archaic and obsolete doctrine” that is out of step with other jurisdictions (*cf. People v Peque*, 22 NY3d 168, 194 [2013] [discussing a condition for departing from precedent in general]). Although New York may choose to disregard the evidentiary or procedural rules of the federal courts or our sister states, we are mindful of the “persuasive force” of other jurisdictions (*cf. Matter of Costello v Geiser*, 85 NY2d 103, 110-111 [1995]). Indeed, we have always been attentive to other states’ practice when articulating our doctrine on this question (*see e.g. Lamb*, 2 Abb Prac [NS] at 154-155; *Miller*, 39 NY2d at 549-550). New York’s embrace of what we, in *Miller*, called “the traditional rule” (39 NY2d at 549) is increasingly out of the mainstream. Even when we announced the *Miller* rule, we noted that “the trend of the decisions in other jurisdictions, even in certain jurisdictions which formerly denied the admis-

sibility of testimony as to specific acts, is towards the admissibility of such evidence” (*id.*). Since *Miller*, that trend has continued, as many of the states that “adhered to the rule of exclusion” (*id.* at 549 n 2) have either abandoned it or else never fully excluded all evidence of a victim’s character on the first aggressor question (*compare id.*, with *State v Dunson*, 433 NW2d 676, 680 [Iowa 1988], *overruled with respect to specific acts evidence State v Williams*, 929 NW2d 621, 636 [Iowa 2019], *Commonwealth v Davis*, 14 SW3d 9, 14 [Ky 1999], *State v Lee*, 331 So 2d 455, 460 [La 1975], *Thomas v State*, 301 Md 294, 307, 483 A2d 6, 13 [1984], *State v Keaton*, 258 Minn 359, 367, 104 NW2d 650, 656 [1960], *State v Gonzales*, 153 SW3d 311, 313 [Mo 2005], and *State v Lewchuk*, 4 Neb App 165, 172-174, 539 NW2d 847, 852-854 [1995]). Today, it is “well established” in most jurisdictions that a defendant may use some sort of character evidence—even if unknown to the defendant at the time—to argue that the victim was the first aggressor (*see* 1 McCormick on Evidence § 193 [8th ed, July 2022 update]; *Commonwealth v Adjutant*, 443 Mass 649, 655, 824 NE2d 1, 7 [2005] [“appellate courts in forty-five of the forty-eight State jurisdictions that have considered the issue have decided that some form of such evidence is properly admissible on the first aggressor issue, regardless whether the victim’s violent character was known to the defendant at the time of the assault”]). Although other jurisdictions do not all adopt the same rule, today, New York appears to stand almost alone in embracing the “rule of exclusion” (*Miller*, 39 NY2d at 549 n 2), save for Maine (*see State v Leone*, 581 A2d 394, 400 [Me 1990]).

III.

Innocent people go to prison and guilty people go free when we exclude relevant evidence. Our blanket prohibition on using *any* evidence of the victim’s character or prior bad acts in considering a dispute as to who was the first aggressor undermines our “truth-seeking function” by barring the consideration of facts relevant to a material issue (*see Bill Birds, Inc. v Stein Law Firm, P.C.*, 35 NY3d 173, 178 [2020]). Excluding that evidence is especially concerning because it offends “our basic philosophic belief that, everything considered, in criminal cases there is to be greater latitude in admitting exculpatory evidence than in determining whether prejudicial potentialities in proof offered to show guilt should result in its exclusion” (*Matter of Robert S.*, 52 NY2d 1046, 1053 [1981, Fuchsberg, J., dissenting], citing 1 Wigmore, Evidence, § 194)).

Given its potential to obscure the truth, the *Miller* rule has been sharply criticized (see e.g. *Robert S.*, 52 NY2d at 1052 [Fuchsberg, J., dissenting]; *Williams v Lord*, 996 F2d 1481, 1485 [2d Cir 1993, Cardamone, J., concurring]).

The exclusionary rule articulated in *Rodawald* and *Miller* has been justified on three bases, none of which is consistent with the truth-seeking function of courts nor our rules governing propensity evidence generally. The primary rationale has been that “the worst man has the right to live the same as the best, and no one may attack another because his general reputation is bad” (*Rodawald*, 177 NY at 422-423). The second reason, articulated most clearly in *Miller*, “is the need to carefully limit and narrow the issues that the jury must decide” (39 NY2d at 551; see also *Rodawald*, 177 NY at 424). *Miller* and *Rodawald* also suggest a third reason, similar to the second but relating only to the admission of specific acts as opposed to general reputation: “[g]enerally, character and reputation may not be proved by reference to specific acts, except to impeach the credibility of character witnesses” (*Miller*, 39 NY2d at 551; *Rodawald*, 177 NY at 424).

The first rationale functionally extends our evidentiary doctrine in *Molineux* beyond its jurisprudential foundations. In brief, our *Molineux* rule prevents the prosecution from using evidence that a defendant has committed past crimes or bad acts to prove that the defendant probably committed the charged crime. We explained that our exclusion of such evidence was “the product of that same humane and enlightened public spirit which . . . has decreed that every person charged with the commission of a crime shall be protected by the presumption of innocence until he has been proven guilty beyond a reasonable doubt” (*People v Molineux*, 168 NY 264, 291 [1901]): introducing evidence of past bad acts “would lead to convictions, upon the particular charge made, by proof of other acts in no way connected with it, and to uniting evidence of several offenses to produce conviction for a single one” (*id.* at 292, quoting *Coleman v People*, 55 NY 81, 90 [1873]; accord *People v Jackson*, 39 NY2d 64, 68 [1976] [“The danger that a jury might condemn a defendant because of his past criminal activity rather than his present guilt has been propounded as justification for the exclusion”]).

By contrast, in civil law, liability is often proved by propensity evidence.² In the criminal context, we generally break from our norm of permitting past conduct to demonstrate a propensity in order to protect the presumption of innocence and high bar of proof beyond a reasonable doubt—not because such evidence has no probative value. But neither the *Molineux* rule nor its underlying purpose has any application to the use of prior bad acts of the complainant, who is not entitled to the same procedural protections as criminal defendants because the State is not criminally prosecuting the complainant.

Adapting our law to conform to the general approach in almost all other jurisdictions would not impinge on the reasons for eschewing propensity evidence to prove guilt. A modified rule would apply only in cases where a defendant was entitled to a justification charge, and only in the subset of those cases in which first aggressor status was disputed. In such cases, allowing a defendant to introduce exculpatory propensity evidence (whether reputational or specific relevant bad acts) poses no risk to erosion of the presumption of innocence or weakening of the burden to prove guilt beyond a reasonable doubt; those protections, after all, belong to the defendant. Nor would a modified rule harm victims of crimes by introducing needlessly prejudicial evidence (*see e.g. People v Watson*, 20 NY3d 1018, 1020 [2013] [excluding propensity evidence because the victim could not have been the initial aggressor, “no matter how great his propensity for violence, for the simple reason that (he) did not have a gun”]).

The second and third rationales are largely undercut by *Miller* itself. There, we altered the rule in *Rodawald* by allowing the introduction of specific violent acts known to the defendant, even if those violent acts were not directed at the defendant. In permitting the admission of such evidence, though “mindful of the danger that the principal issues to be resolved

2. For example, courts regularly consider propensity evidence about the defendant and third parties in cases involving negligent entrustment (*see e.g. Hamilton v Beretta U.S.A. Corp.*, 96 NY2d 222, 237 [2001]), negligent hiring (*see e.g. Waterbury v New York City Ballet, Inc.*, 205 AD3d 154, 160 [1st Dept 2022]; *Novak v Sisters of the Heart of Mary*, 210 AD3d 1104, 1105 [2d Dept 2022]), discrimination claims (*see e.g. Robinson v Metro-North Commuter R.R. Co.*, 267 F3d 147, 158 [2d Cir 2001]; *Matter of New York City Bd. of Educ., Community School Dist. No. 1 v Batista*, 54 NY2d 379, 382-384 [1981]; *Fern v International Bus. Machs. Corp.*, 204 AD2d 907, 908-909 [3d Dept 1994]), and fraud or theft claims (*see e.g. Andryeyeva v New York Health Care, Inc.*, 33 NY3d 152, 171 [2019]; *Rocanova v Equitable Life Assur. Socy. of U.S.*, 83 NY2d 603, 611 [1994]).

may be lost in an endless maze of collateral matters,” we resolved that concern by noting that questions of relatedness and extent of the proof would be sufficiently constrained by the trial court’s “exercise of its sound discretion” to exclude prejudicial, cumulative, or collateral evidence (see *Miller*, 39 NY2d at 552). Having concluded that trial courts are fully capable of regulating violent acts about which the defendant knew so as to avoid unfairness to victims and miring juries in irrelevant mini trials, it is difficult to conclude that trial courts would be incapable of doing the same for prior violent acts unknown to defendants. Meanwhile, by reaffirming *Stokes*, *Miller* also allowed a defendant to prove a complainant’s violent propensity by prior acts (namely, prior threats made by a complainant, even when unknown to the defendant), a decision at some tension with its third rationale (see *Miller*, 39 NY2d at 549).

The *Miller* restriction puts juries like the one here in a peculiar position. On the one hand, if, prior to their altercation, Mr. Guerra happened to see reports of Mr. Pitt’s prior bad acts in the news, or heard about them from neighbors, the jury could hear evidence of those bad acts to help decide whether Mr. Guerra was justified in stabbing the complainant. On the other hand, we say that the jury may not make that same deduction when deciding who it thought started the fight. In deciding the first aggressor question, the jury was—because of the *Miller* rule—admonished that it must not prejudge the complainant based on his prior St. Patrick’s Day brawl. The *Miller* rule defies common sense and is out of line with much of the rest of our evidentiary law. We should update it, much as *Miller* updated the antiquated regime of *Rodawald*.

The majority posits that because some jurisdictions permit the introduction of reputation when determining who was the first aggressor but forbid introduction of specific bad acts, the result here might be the same were we to modify *Miller* and adopt such a rule (see majority mem at 1160 n; *United States v Smith*, 230 F3d 300, 308 [7th Cir 2000] [“character evidence usually does not go to an essential element of a self-defense claim,” meaning specific acts evidence is typically inadmissible under Federal Rules of Evidence rule 405 (b)]). That is true. However, the possibility that we might modify *Miller* and adopt a rule precluding bad acts but allowing bad reputation is not a defense of the *Miller* rule any more than it is a defense of a rule never permitting a defendant to introduce any evidence at all—a rule that would also result in the same outcome in this case.

IV.

The “policy concerns” (majority mem at 1159-1160) referenced by the majority should not prevent us from revisiting this doctrine in this case. Applying a revised rule would not have resulted in any additional harm to Mr. Pitt. Supreme Court independently decided to unseal Mr. Pitt’s youthful offender records and permitted Mr. Guerra to ask Mr. Pitt about two of the convictions for the purpose of indicting his credibility. Under the Confrontation Clause of the Sixth Amendment to the US Constitution, Supreme Court was required to permit Mr. Guerra to ask Mr. Pitt about those convictions (*see Davis v Alaska*, 415 US 308, 319 [1974]). The only question facing Supreme Court with respect to these two adjudications was whether it should permit Mr. Guerra to use them as evidence about who was the first aggressor (it did not) and whether it should issue a limiting instruction to the jury admonishing them only to consider the convictions for the purpose of Mr. Pitt’s credibility (it did). As for the two wholly excluded offenses, Supreme Court would be free at a retrial to continue to exclude all evidence about them. Modifying *Miller* as Mr. Guerra requests would not require the court divulge any new information about Mr. Pitt’s prior bad acts.

It is beyond question—and indeed, no one disputes—that Mr. Guerra was entitled to a justification instruction and that the burden to disprove his defense was on the prosecution (*see People v Umali*, 10 NY3d 417, 425 [2008]; *People v Maher*, 79 NY2d 978, 982 [1992]). Much as Mr. Guerra’s right to a complete defense entitled him to introduce Mr. Pitt’s convictions to indict his credibility, it also entitled Mr. Guerra to use that already-introduced evidence to support his justification defense. “Whether rooted directly in the Due Process Clause of the Fourteenth Amendment . . . or in the Compulsory Process or Confrontation clauses of the Sixth Amendment . . . the Constitution guarantees criminal defendants ‘a meaningful opportunity to present a complete defense’” (*Crane v Kentucky*, 476 US 683, 690 [1986], quoting *California v Trombetta*, 467 US 479, 485 [1984]). The majority defends this application of the *Miller* rule by citing nonbinding case law (*see* majority mem at 1160), which merely repeated two of the weak justifications for *Miller* and then noted that the evidence in question “ha[d] little probative value” because the victim’s alleged prior bad act did not result in a prosecution or conviction and was insufficiently similar to the crime at issue (*Williams v Lord*,

996 F2d 1481, 1483-1484 [2d Cir 1993]). Here, unlike in *Williams*, the facts leading to Mr. Pitt's multiple previous assault adjudications bear a striking resemblance to his St. Patrick's Day altercation with Mr. Guerra: indeed, one such adjudication stemmed from Mr. Pitt's assault of a stranger on St. Patrick's Day three years prior.

The majority counters not so much by defending the court's conduct in this case—which involves a limiting instruction on already-introduced evidence—but in imagining a hypothetical case in which some rule one might extract from the dissent were applied differently to an incomplete set of facts (*see* majority mem at 1160 n). I would “reject the hypothetical on threshold grounds” (*see* Paul Gewirtz, *The Jurisprudence of Hypotheticals*, 32 J Legal Educ 120, 121 [1982]). The majority speculates that a defendant accused of murdering a 17-year-old victim might offer direct evidence of a prior youthful offense to show the killing was justified (majority mem at 1160 n), “but one cannot simply *assume* that the checks [in the system] fail” (Gewirtz at 121). In the majority's hypothetical, a trial judge would have found the evidence relevant, insufficiently prejudicial, and noncumulative at the very least, and a jury would weigh it along with all other relevant evidence. Suppose—to alter the majority's hypothetical a bit—the 17-year-old victim had several youthful offender adjudications resulting from attempted knifepoint robberies over the past year in the exact location where the killing took place and was found shot by the defendant, knife in hand. Surely in such a context the previous attempted robberies would help a jury decide whether the defendant was the first aggressor. Although hypotheticals can help us think more clearly and design better rules (*see id.* at 120-121), the majority's textureless hypothetical does not help us grapple with the limiting instruction at issue in this case.

The limiting instruction here, which prevented the jury from considering Mr. Pitt's past acts as evidence suggesting that he was the initial aggressor, does not serve the purpose of the youthful offender laws because Mr. Pitt's past acts were already revealed to the jury. Moreover, Mr. Guerra, not Mr. Pitt, was on trial. Mr. Guerra's right to a complete defense required the trial court to permit the jury to consider Mr. Pitt's prior similar violent acts as part of the evidence bearing on which of the two was the first aggressor. Whatever the rule might be in a case in which the victim's past acts were wholly obscured from the jury by virtue of a youthful offender adjudication, this

is not that case. Accordingly, I dissent and would remit for a new trial.

Acting Chief Judge CANNATARO and Judges GARCIA, SINGAS and TROUTMAN concur; Judge WILSON dissents in an opinion, in which Judge RIVERA concurs.

Order affirmed, in a memorandum.

AH WINES, INC., et al., Appellants, v C6 CAPITAL FUNDING LLC,
Respondent.

Decided June 13, 2023

Reported below, 208 AD3d 1623.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the issues presented have become moot.

In the Matter of ANONYMOUS, Appellant. GRIEVANCE COMMITTEE FOR THE SECOND, ELEVENTH, AND THIRTEENTH JUDICIAL DISTRICTS, Respondent. (App Div Nos. 2021-05514 and 2021-08435.)

Submitted January 30, 2023; decided June 13, 2023

Motion for reconsideration of this Court's December 13, 2022 dismissal orders denied [*see* 39 NY3d 965 (2022); 39 NY3d 966 (2022)].

Judge HALLIGAN took no part.

BANK OF NEW YORK MELLON TRUST COMPANY, N.A., Respondent, v DANIEL GAMBINO et al., Defendants. ARMAND RETAMOLLO, Nonparty Appellant.

Decided June 13, 2023

Reported below, 212 AD3d 756.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of URAINIA BENDTER, Appellant, v IFECHUKWUDE
ELIKWU, Respondent.

Submitted April 24, 2023; decided June 13, 2023

Reported below, 214 AD3d 972.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of HILARY BEST, Appellant, v STATE OF NEW YORK
et al., Respondents.

Decided June 13, 2023

Reported below, 211 AD3d 837.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

CHESWOLD (TL), LLC, Respondent, v JAMES WYNN, Appellant,
et al., Defendants.

Submitted April 10, 2023; decided June 13, 2023

Reported below, 2023 NY Slip Op 62783(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for the imposition of sanctions denied.

In the Matter of RYAN FELTZ, Appellant, v AMY YANUCIL, Re-
spondent. (And Related Proceedings.)

Submitted March 20, 2023; decided June 13, 2023

Reported below, 213 AD3d 1246.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceedings within the meaning of the Constitution.

STEVEN HORN, Respondent, v MARIANNE NESTOR, Appellant, et al., Defendants.

Submitted March 6, 2023; decided June 13, 2023

Reported below, 213 AD3d 435.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of PETER LANG et al., Respondents, v BRITTANEY LANG et al., Respondents. MICHAEL ANTHONY DEEM, Nonparty Appellant.

In the Matter of PETER LANG et al., Respondents, v BRITTANEY M. LANG et al., Respondents. MICHAEL ANTHONY DEEM, Nonparty Appellant.

Submitted March 27, 2023; decided June 13, 2023

Reported below, 2023 NY Slip Op 61467(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the proceedings within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceedings within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

GARY J. LAVINE, Appellant, v STATE OF NEW YORK et al., Respondents.

Decided June 13, 2023

Reported below, 78 Misc 3d 744.

Appeal transferred without costs, by the Court of Appeals sua sponte, to the Appellate Division, Fourth Department, upon the ground that a direct appeal does not lie where questions other than the constitutional validity of a statutory provision are involved (*see* NY Const, art VI, §§ 3 [b] [2]; 5 [b]; CPLR 5601 [b] [2]).

In the Matter of LONG ISLAND POWER AUTHORITY HURRICANE SANDY LITIGATION.

JOHN COYLE et al., Appellants, v LONG ISLAND POWER AUTHORITY, Respondent, et al., Defendant.

Submitted March 6, 2023; decided June 13, 2023

Reported below, 200 AD3d 1040.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution and is not an order of the type provided for in CPLR 5602 (a) (2).

NELLA MANKO, Appellant, v SHOREFRONT APARTMENTS, LLC, et al., Respondents.

Decided June 13, 2023

Reported below, 2022 NY Slip Op 73574(U).

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

Chief Judge WILSON took no part.

NELLA MANKO, Appellant, v STATE OF NEW YORK, Respondent.

Decided June 13, 2023

Reported below, 2022 NY Slip Op 73575(U).

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

Chief Judge WILSON took no part.

In the Matter of RONALD MORGAN, Respondent, v MIRTHA BAERGA MORGAN, Appellant.

Submitted March 20, 2023; decided June 13, 2023

Reported below, 213 AD3d 669.

Motion for leave to appeal denied. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

JESSICA MURRAY, Respondent, v HAMIDUR RASHID, Appellant.

Submitted April 10, 2023; decided June 13, 2023

Reported below, 2023 NY Slip Op 63060(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MICHAEL BAY, Appellant.

Submitted June 5, 2023; decided June 13, 2023

Reported below, 79 Misc 3d 171.

Motion by Albany County Office of the Public Defender et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MICHAEL BAY, Appellant.

Submitted June 5, 2023; decided June 13, 2023

Reported below, 79 Misc 3d 171.

Motion by New York State Association of Criminal Defense Lawyers for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

In the Matter of ERWIN ROSENBERG, an Attorney, Appellant.
(Attorney Registration No. 2898625.) ATTORNEY GRIEVANCE
COMMITTEE FOR THE THIRD JUDICIAL DEPARTMENT, Respon-
dent.

Decided June 13, 2023

Reported below, 202 AD3d 1271.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of VASHTI M. ERIE COUNTY DEPARTMENT OF SOCIAL
SERVICES, Respondent; CAROLETTE M., Appellant.

Decided June 13, 2023

Reported below, 214 AD3d 1335.

Appeal, insofar as taken from so much of the Appellate Division order as dismissed the appeal to that Court from so much of the Family Court order as was entered on consent, dismissed without costs, by the Court of Appeals sua sponte, upon the ground that appellant is not a party aggrieved (*see* CPLR 5511); appeal otherwise dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

JAMES I. WYNN, SR., Appellant, v JOHN F. SPERANZA et al.,
Respondents.

Submitted April 10, 2023; decided June 13, 2023

Reported below, 2023 NY Slip Op 62820(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for ancillary relief dismissed upon the ground that this Court does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3).

In the Matter of KATHRYN ARNTZEN et al., Appellants, v CITY OF NEW YORK, Respondent.

Submitted April 3, 2023; decided June 15, 2023

Reported below, 209 AD3d 404.

Motion by Steven Thaler et al. for reargument of motion for leave to appeal denied [*see* 39 NY3d 908 (2023)].

Judge HALLIGAN took no part.

DEUTSCHE BANK NATIONAL TRUST COMPANY, Appellant, v JORGE VELAZQUEZ et al., Defendants. POINT HOLDING ALPHA, LLC, Nonparty Respondent.

Submitted April 10, 2023; decided June 15, 2023

Reported below, 213 AD3d 807.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

NIGEL JOHN ECCLES et al., Appellants, v SHAMROCK CAPITAL ADVISORS, LLC, et al., Respondents.

Submitted April 10, 2023; decided June 15, 2023

Reported below, 209 AD3d 486.

Motion by Business Council of New York State, Inc. for leave to appear amicus curiae on the motion for leave to appeal herein granted and the proposed brief is accepted as filed.

Judges GARCIA and HALLIGAN took no part.

NIGEL JOHN ECCLES et al., Appellants, v SHAMROCK CAPITAL ADVISORS, LLC, et al., Respondents.

Submitted April 10, 2023; decided June 15, 2023

Reported below, 209 AD3d 486.

Motion by Patrick M. Connors for leave to appear amicus curiae on the motion for leave to appeal herein granted and the proposed brief is accepted as filed.

Judges GARCIA and HALLIGAN took no part.

NIGEL JOHN ECCLES et al., Appellants, v SHAMROCK CAPITAL ADVISORS, LLC, et al., Respondents.

Submitted April 17, 2023; decided June 15, 2023

Reported below, 209 AD3d 486.

Motion by Patrick J. Borchers et al. for leave to appear amici curiae on the motion for leave to appeal herein granted and the proposed brief is accepted as filed.

Judges GARCIA and HALLIGAN took no part.

NIGEL JOHN ECCLES et al., Appellants, v SHAMROCK CAPITAL ADVISORS, LLC, et al., Respondents.

Submitted April 24, 2023; decided June 15, 2023

Reported below, 209 AD3d 486.

Motion by New York State Trial Lawyers' Association for leave to appear amicus curiae on the motion for leave to appeal herein and to join the amicus curiae brief by Patrick M. Connors granted.

Judges GARCIA and HALLIGAN took no part.

In the Matter of the Claim of DAVID J. EISENBERG, Respondent. CENSEOHEALTH LLC, Appellant. COMMISSIONER OF LABOR, Respondent.

Submitted April 10, 2023; decided June 15, 2023

Reported below, 205 AD3d 1185.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]; *Eaton v State of New York*, 76 NY2d 824 [1990]).

ELIZABETH M. KAIREY, Respondent, v ELLIOT M. HIRSCH, Appellant.

Submitted April 10, 2023; decided June 15, 2023

Reported below, 2023 NY Slip Op 62375(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

FAYE T. MADIGAN, Plaintiff, v BERKELEY CAPITAL LLC et al.,
Defendants, and ROSA BRONSTEIN et al., Respondents, and
JOSEPH PAUKMAN, Appellant.

Submitted April 24, 2023; decided June 15, 2023

Reported below, 2023 NY Slip Op 63302(U).

On the Court's own motion, appeal dismissed, without costs,
upon the ground that the order appealed from does not finally
determine the action within the meaning of the Constitution.
Motion for leave to appeal dismissed upon the ground that the
order sought to be appealed from does not finally determine
the action within the meaning of the Constitution.

SEAGATE MINI MALL, INC., et al., Appellants, v SEAGATE AS-
SOCIATION, INC., Respondent.

Submitted April 3, 2023; decided June 15, 2023

Reported below, 2023 NY Slip Op 60213(U).

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution.

In the Matter of WILLIAM SHANKLE, Appellant, v VINCENT DEL
GUIDICE et al., Respondents.

Submitted April 17, 2023; decided June 15, 2023

Motion for leave to appeal dismissed upon the ground that
no appeal lies to this Court from the decision of an individual
Justice of the Appellate Division.

In the Matter of JEFFREY TERBORG, Appellant, v NEW YORK
STATE DEPARTMENT OF CORRECTIONS AND COMMUNITY SU-
PERVISION, Respondent.

Submitted April 10, 2023; decided June 15, 2023

Reported below, 2023 NY Slip Op 61478(U).

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the proceeding within the meaning of the Constitution. Motion
for ancillary relief dismissed upon the ground that this Court
does not have jurisdiction to entertain it (*see* NY Const, art VI,
§ 3).

THOMAS C. WILMOT, SR., et al., Respondents, v TONY KIRIK, Appellant, and COUNTY OF MONROE, Respondent.

Submitted April 3, 2023; decided June 15, 2023

Reported below, 210 AD3d 1432.

Motion for reconsideration of this Court's February 14, 2023 dismissal order dismissed as untimely [*see* 39 NY3d 1069 (2023)] (*see* Rules of Ct of Appeals [22 NYCRR] § 500.24 [b]). Motion for leave to appeal denied.

Judge HALLIGAN took no part.

SHAKEYA WOODWARD, Appellant, v NEW YORK CITY et al., Respondents.

In the Matter of SHAKEYA WOODWARD, Appellant, v NEW YORK STATE OFFICE OF CHILDREN AND FAMILY SERVICES et al., Respondents.

Submitted April 24, 2023; decided June 15, 2023

Reported below, 2022 NY Slip Op 73290(U).

Motion for reargument of motion for leave to appeal denied [*see* 39 NY3d 1096 (2023)].

Judge HALLIGAN took no part.

DIGEST-INDEX

ABUSE OF PROCESS.

See PROCESS; TORTS

ACCOUNTS AND ACCOUNTING.

See, also, BROKERS; EXECUTORS AND ADMINISTRATORS; GUARDIAN AND WARD; INCAPACITATED AND MENTALLY DISABLED PERSONS; JOINT VENTURES; LIMITATION OF ACTIONS; PARTNERSHIP; TRUSTS, and other specific titles

ACTIONS.

See, also, ABATEMENT AND REVIVAL; DISMISSAL AND NONSUIT, and other specific titles

ADMINISTRATIVE LAW.

RULEMAKING.

1. Exceeding Scope of Authority.—Respondent New York State Department of Financial Services did not exceed its authority in promulgating an amendment to Insurance Regulation 187 (11 NYCRR part 224) providing protections to consumers engaging in life insurance and annuity transactions. A governmental agency exceeds the scope of its delegated authority in promulgating a regulation when it engages in impermissible legislative policy-making, as opposed to permissible administrative rule-making. The legislature gave respondent the authority to supervise “persons providing . . . financial products and services” (Financial Services Law § 201 [a]) and to establish “professional standards of conduct” for insurance producers (Insurance Law § 2104 [a] [2]). A regulation that is aimed at ensuring that consumers buying insurance are doing so with the relevant information and without fear that the salesperson is acting in their own contrary interest falls squarely within the legislature’s directives, and fills in the details of the legislature’s pre-stated policy. Moreover, in the complex area of insurance transactions, respondent’s specific expertise was necessary to flesh out details of the broadly stated legislative policies. Finally, there was no failed legislative effort to institute the changes. Rather, respondent was creating rules to clarify producers’ and insurers’ duties, and provide protection to consumers of insurance products. *Matter of Independent Ins. Agents & Brokers of N.Y., Inc. v New York State Dept. of Fin. Servs.*, 39 NY3d 56.

2. Protections for Consumers of Insurance.—Respondent New York State Department of Financial Services did not violate the State Administrative Procedure Act in promulgating an amendment to Insurance Regulation 187 (11 NYCRR part 224) providing protections to consumers engaging in life insurance and annuity transactions. The State Administrative Procedure Act requires agencies to include in a regulatory impact statement the “best estimate” of a regulation’s projected costs (State Administrative Procedure Act § 202-a [3] [c] [iv]). The costs required to be estimated are the additional expenditures required by the rule, and does not mean that, in all cases, an agency must project an actual dollar figure. Though respondent did not give a dollar figure of expected costs, the State Administrative Procedure Act does not require such an exact estimate. Respondent’s evaluation was in substantial compliance with section 202-a (3) (c) (iv)’s requirements. Moreover, respondent’s analysis and explanation that the amendment exceeded federal regulation on the same topic and was necessary for the protection of New York consumers as to the life insurance and annuity products within its own purview made sense because federal agencies have only concurrent jurisdiction with respondent over those products that are both insurance products and securities. The regula-

ADMINISTRATIVE LAW—Cont'd

tion of all other life insurance and annuity products and sales is within the sole purview of respondent. Finally, respondent extensively analyzed the amendment's impact on small businesses, altered the amendment in response to commenters' concerns, and issued a regulatory flexibility analysis including a clarification of the amendment's impact on small businesses. *Matter of Independent Ins. Agents & Brokers of N.Y., Inc. v New York State Dept. of Fin. Servs.*, 39 NY3d 56.

3. Rationality of Regulation Providing Protections for Consumers of Insurance.—Respondent New York State Department of Financial Services's promulgation of an amendment to Insurance Regulation 187 (11 NYCRR part 224) providing protections to consumers engaging in life insurance and annuity transactions was not arbitrary or irrational, where respondent reasonably concluded that the best interest framework was needed to protect consumers, and petitioners could not show that the amended regulation was essentially arbitrary. If a regulation is to be nullified, the challenger must establish that it is so lacking in reason for its promulgation that it is essentially arbitrary. So long as the regulation is genuinely reasonable and rational it should be upheld; courts should not scrutinize the policy considerations underlying the regulation. The goal of the amendment is straightforward and supported by the administrative record, and the amendment is plainly tailored to achieve those objectives. *Matter of Independent Ins. Agents & Brokers of N.Y., Inc. v New York State Dept. of Fin. Servs.*, 39 NY3d 56.

ADMINISTRATORS.

See EXECUTORS AND ADMINISTRATORS

AGENCY.

See BROKERS; INSURANCE; PRINCIPAL AND AGENT

ALIMONY.

See HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS

ANNULMENT OF MARRIAGE.

See MARRIAGE

APPEAL.

See, also, COSTS; COURTS; CRIMES; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles

ACADEMIC AND MOOT QUESTIONS.

1. Exception to Mootness Doctrine.—The appeal from an Appellate Division order granting the underlying petition for a writ of habeas corpus on defendant's behalf and directing defendant's immediate release was moot because defendant was no longer in custody, but the exception to the mootness doctrine applied. The question presented—whether a court may remand a defendant into custody solely because a CPL article 730 competency examination has been ordered—was significant and novel, there was a likelihood of repetition, and the issue was likely to evade review because competency examinations are usually conducted before the appellate process is completed. Given that defendant was no longer in respondent's custody, the competency hearing had been held, and the criminal charges against him had since been dismissed, habeas relief was no longer available and the proceeding was converted into a declaratory judgment action. *People ex rel. Molinaro v Warden, Rikers Is.*, 39 NY3d 120.

ARBITRATION.

See, also, INSURANCE

MATTERS ARBITRABLE.

1. Reasonable Relationship between Subject Matter of Dispute and General Subject Matter of Collective Bargaining Agreement.—In a CPLR article 75 proceeding to permanently stay arbitration of a grievance by respondent firefighters' union

ARBITRATION—Cont'd

alleging that petitioner municipality's determination to discontinue certain General Municipal Law § 207-a benefits violated the parties' collective bargaining agreement (CBA), the grievance was arbitrable because it was reasonably related to the CBA's detailed procedural mechanism by which firefighters on section 207-a status could seek arbitration of disputes concerning their benefits. If there is a reasonable relationship between the subject matter of the dispute and the general subject matter of the CBA, the matter is arbitrable, leaving the arbitrator to make a more exacting interpretation of the precise scope of the substantive provisions of the CBA, and whether the subject matter of the dispute fits within them. The parties' CBA included broad provisions granting the arbitrator "authority to decide, *de novo*, the claim of entitlement [and continued entitlement] to [section] 207-a benefits" and that, when "the matter presents a termination of" such benefits, petitioner had the burden to prove "that the member is no longer eligible for [section] 207-a benefits." Respondent's grievance reasonably related to those provisions because they provided for the arbitration of disputes over General Municipal Law § 207-a benefits, and respondent contended that petitioner was attempting to terminate such benefits by withholding special pays. *Matter of City of Yonkers v Yonkers Fire Fighters, Local 628, IAFF, AFL-CIO*, 39 NY3d 114.

ARTICLE 78 PROCEEDING.

See PROCEEDING AGAINST BODY OR OFFICER

BANKS AND BANKING.

See, also, BILLS, NOTES AND CHECKS

BILLS, NOTES AND CHECKS.

See, also, BANKS AND BANKING

CERTIORARI.

See PROCEEDING AGAINST BODY OR OFFICER

CHIROPRACTORS.

See LICENSES; PHYSICIANS AND SURGEONS

CHURCHES.

See RELIGIOUS CORPORATIONS AND ASSOCIATIONS

CITIES.

See MUNICIPAL CORPORATIONS

CIVIL SERVICE.

See, also, ARBITRATION; LABOR UNIONS; MUNICIPAL CORPORATIONS; PUBLIC OFFICERS; SCHOOLS, and other specific titles

COLLECTIVE BARGAINING.

1. Procedures Prior to Termination of Employment Following One-Year Disability Leave.—The Taylor Law (Civil Service Law § 200 *et seq.*) requires a municipality to engage in collective bargaining over the procedures for terminating municipal employees after they have been absent from work for more than a year due to an injury sustained in the line of duty. Civil Service Law § 71 entitles public employees disabled by an occupational injury to a one-year leave of absence and provides them with a means for later reinstatement if they are terminated for being absent for longer than one year. There is no plain and clear evidence that the legislature intended to foreclose from mandatory bargaining the procedures for terminating employees covered by the statute. Nor is there a specific statutory directive that leaves no room for negotiation of pretermination procedures. Inasmuch as section 71 does not reference pretermination procedures at all, the statute plainly left room for the parties to negotiate those procedures. Moreover,

CIVIL SERVICE—Cont'd

due process required petitioner to provide notice and a minimal opportunity to be heard prior to terminating an employee covered by section 71, regardless of the section's provisions for seeking reinstatement after termination. Further, notice and an opportunity to be heard plainly qualify as "procedures," and under the Taylor Law public employers must negotiate the details of those procedures. *Matter of City of Long Beach v New York State Pub. Empl. Relations Bd.*, 39 NY3d 17.

FIREFIGHTERS.

2. Exclusion of Certain Compensation from Statutory Disability Benefits.— "[R]egular salary or wages" within the meaning of General Municipal Law § 207-a (2) includes monetary compensation to which current firefighters are contractually entitled based on the performance of their regular job duties, but does not include monetary compensation based on the performance of additional responsibilities beyond their regular job duties. Under the collective bargaining agreements (CBAs) between respondent municipality and petitioners, firefighters who were permanently disabled and retired as a result of work-related injuries, petitioners would have been legally entitled to holiday pay and check-in pay for performing their regular job duties. Accordingly, respondent's determination that holiday pay and check-in pay for active-duty firefighters did not constitute "regular salary or wages" for purposes of calculating the supplement to which petitioners were entitled under General Municipal Law § 207-a (2) was based on an error of law. However, given that the CBAs provided night differential only to those who worked nights and petitioners did not establish that all firefighters were contractually obligated to work nights, substantial evidence supported respondent's conclusion that night differential should not be included when calculating the supplement. *Matter of Borelli v City of Yonkers*, 39 NY3d 138.

PUBLIC EMPLOYEES' FAIR EMPLOYMENT ACT.

3. Terms and Conditions of Employment — Economic Benefit — Past Practice of Waiving Examination Fees for Represented State Employees.—The imposition by the Department of Civil Service (DCS) of application fees for promotional and transitional civil service exams was not a term and condition of employment as defined in Civil Service Law § 201 (4) and, thus, petitioner had no obligation to negotiate those fees under the Taylor Law (*see* Civil Service Law § 200 *et seq.*). Respondent Public Employment Relations Board's conclusion to the contrary was error. To be a term and condition of employment, an economic benefit must have some nexus to the employment. Civil Service Law § 50 (5), which vests the State with power to impose fees to recoup the administrative costs of conducting civil service exams, does not provide the State with authority to alter the employer-employee relationship through the imposition of the fees. Rather, the exam fees are akin to fees imposed by an agency with plenary authority to set fees for licenses that an employer may demand as a job requirement, such as a driver's or professional license. As with those fees, DCS's statutory authority to impose civil service exam application fees is unrelated to the employment itself as the application fees have no connection to job qualifications, criteria for employment, or job-related duties and obligations. *Matter of State of New York v New York State Pub. Empl. Relations Bd.*, 39 NY3d 157.

RETIREMENT AND PENSION BENEFITS.

4. Accidental Disability Retirement.—Substantial evidence supported respondents' determination that the precipitating cause of the injuries sustained by petitioner police officer when a heavy metal door slammed shut on her was not an accident. Petitioner conceded that she knew that the heavy metal door slammed automatically and that on the day of the injury her movements were intended to avoid that quick and forceful closure. While the known condition might be a risk of the work site, it could not be the cause of an accident compensable under Retirement and Social Security Law § 363. *Matter of Rizzo v DiNapoli*, 39 NY3d 991.

CLUBS.

See ASSOCIATIONS

CONDEMNATION.

See EMINENT DOMAIN

CONSTITUTIONAL LAW.

DELEGATION OF LEGISLATIVE POWER.

1. Creation of Committee to Determine Legislative and Executive Salaries.—In a declaratory judgment action brought by plaintiffs to challenge the constitutionality of Laws of 2018, chapter 59, § 1, part HHH, in which the legislature tasked the Committee on Legislative and Executive Compensation with determining, after consideration of various factors, whether the annual salary and allowances of members of the legislature and certain other state officials warranted an increase, the Court of Appeals affirmed an order of the Appellate Division which declared that Laws of 2018, chapter 59, § 1, part HHH has not been shown to be unconstitutional. *Delgado v State of New York*, 39 NY3d 242.

VALIDITY OF REGULATION.

2. Vagueness.—An amendment to Insurance Regulation 187 (11 NYCRR part 224) promulgated by respondent New York State Department of Financial Services providing protections to consumers engaging in life insurance and annuity transactions did not fail to give notice of its requirements in every application, and was therefore not impermissibly vague on its face. The regulation's text showed that respondent carefully considered what communications would and would not be considered "recommendations" and provided a clear definition employing standard legal terminology. Employing long-accepted terms, the definition established clear, objective legal guidelines to ensure that a communication's legal impact would not depend on the sensitivities of a communication's recipient, and was both sufficiently definite to provide notice to those regulated and to prevent arbitrary enforcement. The result was broad categories of conduct for which the application of the term "recommendation" was clear. Moreover, although the regulation provided flexibility as to what exact information a producer or insurer must consider for a particular consumer, the definition of "suitability information" provided clear boundaries for what must be considered. As to the term "best interest," the regulation employed standard legal terms to explain exactly what a producer had to do to discharge its duty. The regulation did not require producers and insurers to identify the single best policy for a consumer. It simply required them to reasonably recommend a suitable policy that would benefit the consumer, while refraining from considering their own financial gain. *Matter of Independent Ins. Agents & Brokers of N.Y., Inc. v New York State Dept. of Fin. Servs.*, 39 NY3d 56.

CONTRACTS.

See, also, ARBITRATION; BILLS, NOTES AND CHECKS; BROKERS; FRAUDS, STATUTE OF; INFANTS; INSURANCE; LANDLORD AND TENANT; MORTGAGES; MUNICIPAL CORPORATIONS; SALES; SPECIFIC PERFORMANCE; STATE; VENDOR AND PURCHASER, and other specific titles

IMPLIED COVENANTS.

1. Breach of Covenant of Good Faith and Fair Dealing in Structured Settlement Agreements.—A plaintiff does not sufficiently allege a breach of the implied covenant of good faith and fair dealing under New York law by pleading that an issuer or obligor failed to object to plaintiff's sale of periodic payments in a Structured Settlement Protection Act (SSPA) proceeding where the underlying agreements contain anti-assignment provisions and the sale approved by the SSPA court was not in plaintiff's best interest. For a plaintiff to plead a valid cause of action for breach of the covenant of good faith, a plaintiff must allege facts sufficient to demonstrate that the plaintiff reasonably understood the contract or contractual provision at issue to state a duty to take or refrain from taking a particular action. The implied duty must arise from the contract and the promisee's reasonable expectations. Assuming that anti-assignment provisions in structured settlement and qualified assignment agreements are, at least in part, for a plaintiff's benefit, a reasonable person in the position of such a plaintiff would not be justified in believing, at the time the agreements were made, that the anti-assignment provi-

CONTRACTS—Cont'd

sions required the issuer and obligor to object to any attempt the plaintiff made to execute prohibited assignments as part of an SSPA proceeding in which the court is charged with determining whether the transfer is in the best interests of the payee. To hold otherwise would create an implied fiduciary duty on the part of issuers or obligors to protect a plaintiff from the consequences of their own breach. Structured settlement agreements, however, do not contemplate a fiduciary relationship. Under the SSPA, the court, not the issuer or obligor, is tasked with being the gatekeeper who determines whether a plaintiff's assignment of periodic payments under a structured settlement agreement is in their best interests. *Cordero v Transamerica Annuity Serv. Corp.*, 39 NY3d 399.

COUNTIES.

See, also, MUNICIPAL CORPORATIONS

COURT OF CLAIMS.

See STATE

COURTS.**COURT OF APPEALS.**

1. Constitutional Questions — Interstate Sovereign Immunity.—The Court of Appeals did not have power to hear an appeal by defendant corporation, an arm of the State of New Jersey, under NY Constitution, article VI, § 3 and CPLR 5601 (b) (1) because defendant failed to preserve its sovereign immunity defense, and therefore no directly involved constitutional question supported an appeal as of right. The preservation issue itself was not directly involved because the Appellate Division did not address the issue and, thus, it was not decisive of the Appellate Division's determination. An unpreserved issue, not subject to any preservation exception, may not be the predicate for an appeal as of right under CPLR 5601 (b) (1). *Henry v New Jersey Th. Corp.*, 39 NY3d 361.

JURISDICTION.

2. Long-Arm Jurisdiction — Due Process.—In an action arising out of a dispute over the operability of unmanned aerial vehicles (UAVs) defendant non-domiciliary corporation manufactured and sold to a New York State university, the exercise of jurisdiction over defendant comported with due process, where defendant's minimum contacts with New York were such that defendant should reasonably have anticipated being haled into court in the state. Due process requires first that a defendant have minimum contacts with the forum state such that the defendant should reasonably anticipate being haled into court there and second, that the prospect of having to defend a suit in New York comports with traditional notions of fair play and substantial justice. Jurisdiction will be upheld where the defendant purposefully reaches beyond their state into another but the relationship between defendant and the forum state must arise out of defendant's own contacts with the forum and not contacts between the plaintiff (or third parties) and the forum state. Defendant sought, negotiated, and then entered a contractual relationship with a New York State entity. Defendant furthered that relationship through numerous telephonic and email communications with the university and continued negotiations over terms of the deal when defendant's CEO visited New York and met with a university representative. Defendant's grant application, describing the university as a "partner" and projecting a two-year budget for the university's costs related to delivery of an additional 10 UAVs, further demonstrated defendant's understanding of the relationship with the university as ongoing and connected to New York. *State of New York v Vayu, Inc.*, 39 NY3d 330.

3. Long-Arm Jurisdiction — Transaction of Business within State.—Supreme Court had personal jurisdiction over defendant non-domiciliary corporation in plaintiff's action arising out of a dispute over the operability of unmanned aerial vehicles (UAVs) defendant manufactured and sold to a New York State university, where the facts demonstrated a clear intent by defendant to engage purposefully

COURTS—Cont'd

in business activities within the meaning of CPLR 302 (a) (1). When assessing whether there is personal jurisdiction over a defendant pursuant to the “transacts any business” clause of New York’s long-arm statute, courts must ask whether what the defendant did in New York constitutes a sufficient transaction to satisfy the statute. This requires an assessment of whether the non-domiciliary’s activities in the state were purposeful, meaning that they were volitional acts by which the non-domiciliary availed itself of the privilege of conducting activities within the forum state, thus invoking the benefits and protections of its laws. For two years, defendant projected itself into the state via calls and emails that resulted in the sale of two UAVs. The content of the communications showed that defendant purposefully sought to establish a substantial ongoing business relationship with the university. And, although being physically present in New York is not required, the fact that defendant’s CEO traveled to New York to meet with a university representative in furtherance of the ongoing business relationship was significant. Moreover, plaintiff’s claims were based on the sale of the two UAVs, and defendant’s contacts in New York were directly related to efforts to resolve the dispute. Thus, there was an articulable nexus or substantial relationship between defendant’s New York activities and the parties’ contract, defendant’s alleged breach thereof, and potential damages. *State of New York v Vayu, Inc.*, 39 NY3d 330.

CRIMES.

See, also, BAIL; CONSTITUTIONAL LAW; CONTEMPT; COURTS; DISTRICT AND PROSECUTING ATTORNEYS; EXTRADITION; GRAND JURY; HABEAS CORPUS; INFANTS (JUVENILE DELINQUENTS, YOUTHFUL OFFENDERS); MOTOR VEHICLES; PAROLE; PRISONS AND PRISONERS, and other specific titles

APPEAL.

1. Academic and Moot Questions.—In a criminal prosecution, defendant’s appeal from the Appellate Division order affirming the judgment of conviction was dismissed upon the ground that the issues presented had become moot. *People v Baldwin*, 39 NY3d 1097.

2. Preservation of Issue for Review.—Defendant’s claim that the trial judge violated his constitutional due process rights by ordering defendant to be handcuffed when the jury returned to announce its verdict without providing an on-the-record, individualized explanation for the restraints was preserved for appellate review. Defense counsel noted his opposition to the handcuffing on the record based on a fear that the jurors would draw negative inferences about defendant by observing him physically restrained. Defense counsel’s protest was sufficient to preserve the handcuffing issue since it made the defense’s position about the handcuffing known to the court, thereby furnishing the trial judge with an opportunity to either provide an individualized explanation for the handcuffs or order the handcuffs removed (CPL 470.05 [2]). The trial judge did neither and instead cursorily denied the motion. *People v Sanders*, 39 NY3d 216.

CONTROLLED SUBSTANCES.

3. The Appellate Term order affirming a judgment convicting defendant of criminal possession of a controlled substance in the seventh degree was reversed and the accusatory instrument was dismissed. As the People acknowledged, the accusatory instrument’s misdemeanor count, to which defendant pleaded guilty, was facially deficient, and the People consented to dismissal of the remaining portion of the accusatory instrument. *People v Cruz*, 39 NY3d 973.

EVIDENCE.

4. Tape Recordings — Statements Made during Phone Call Initiated by Inmate Intercepted while Monitoring Wiretap.—In a criminal prosecution in which defendant was charged after making statements suggesting his involvement in a fatal hit-and-run accident during a phone call that originated from a county jail and was intercepted by law enforcement officials monitoring a wiretap in an unrelated investigation by the New York State Attorney General, the People’s failure to timely furnish defendant with a copy of the eavesdropping warrant and underlying

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application precluded admission of the wiretap and jail recordings into evidence at trial, as the recorded conversation obtained from the jail was derived from an intercepted communication within the meaning of CPL 700.05. The implied consent given to the jail by the inmate who placed the call in which defendant and others participated did not convert the wiretap into a consensual recording and vitiate the protections of CPL article 700. The fact that the sender consented to recording by the jail had no bearing on the status of the communication overheard on the wiretap. When the Attorney General's Office intercepted the call, it was "intentionally . . . recorded by a person other than the sender or receiver thereof, without the consent of the sender or receiver" (CPL 700.05 [3] [a]). The wiretap was therefore an "intercepted communication" within the meaning of CPL 700.05. The Attorney General's Office was permitted to share recordings from the wiretap with appropriate law enforcement officials pursuant to CPL 700.65, but use of that intercepted call or any evidence "derived therefrom" at trial was subject to the notice requirement of CPL 700.70. In listening to the wiretap, a detective heard incriminating statements about the hit-and-run, identified defendant as the declarant, and directed authorities to the jail recording. Therefore, the jail call was clearly evidence derived from the wiretap. *People v Myers*, 39 NY3d 130.

FAIR TRIAL.

5. Defendant Handcuffed during Reading of Verdict and Polling of Jurors — Failure to Place Special Need for Restraints on Record.—The trial judge committed a constitutional error by ordering defendant to be handcuffed when the jury returned to announce its verdict without placing the special need for such restraints on the record (*see Deck v Missouri*, 544 US 622 [2005]). The Due Process Clause of the Fourteenth Amendment to the United States Constitution prohibits states from physically restraining a defendant during a criminal trial without an on-the-record, individualized assessment of the state interest specific to a particular trial. Until the jury returns to the courtroom, publicly announces the verdict and, if polled, confirms the verdict, there is no finding of guilt, defendant is still presumed innocent, and the constitutional prohibition on restraining a defendant without explanation remains in full force. Because the error was not harmless beyond a reasonable doubt, it required reversal of defendant's conviction and a new trial. *People v Sanders*, 39 NY3d 216.

FAMILY OFFENSE.

6. Aggravated Family Offense — Notice of Underlying Misdemeanor Offense.—The count of the indictment charging defendant with aggravated family offense (Penal Law § 240.75), which alleged that defendant "committed an offense specified in subdivision two of section 240.75 of the Penal Law" but did not specify the offense, was jurisdictionally defective. A count is jurisdictionally defective only if it does not effectively charge the defendant with the commission of a particular crime, including by failing to allege that the defendant committed acts constituting every material element of the crime charged or accusing the defendant of performing acts that do not constitute a crime. To commit the crime of aggravated family offense a defendant must have been convicted of one or more of the specified offenses in section 240.75 (2) within the previous five years, must have currently committed one of the misdemeanor offenses listed in subdivision (2), and both offenses must be committed against a member of the same family or household as the defendant. Inasmuch as section 240.75 (2) contains 54 specified offenses, 18 of which are misdemeanors that may serve as the current offense, merely alleging that defendant had committed one of those offenses, without specifying which one, did not provide defendant with notice sufficient to enable him to prepare a defense, or sufficiently allege an element of aggravated family offense. Nor did the bill of particulars clarify the underlying offense as the conduct the People alleged could have constituted commission of several of the qualifying misdemeanor offenses. Notwithstanding that the indictment charged defendant separately with criminal contempt in the second degree, an offense listed in section 240.75 (2), the crime of aggravated family offense does not require the underlying misdemeanor offense to be charged separately. Here, there was no way of determining from the face of the

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indictment what underlying misdemeanor offense the grand jury believed defendant had committed for purposes of aggravated family offense, and therefore no way to ensure that the People could not allege an alternative underlying offense at trial. *People v Saenger*, 39 NY3d 433.

FITNESS TO PROCEED TO TRIAL.

7. Confinement Prior to Competency Examination.—In accordance with CPL article 730, when a defendant is not in custody, a court only has the authority to either order a competency examination on an outpatient basis or to direct that the defendant be confined in a hospital pending completion of the examination upon proper medical recommendation that such confinement is necessary. The court may not remand a defendant into custody solely because an examination has been ordered. CPL 730.20 (2) instructs the court on how to order a competency examination when the defendant is in the community and CPL 730.20 (3) mandates where the examination shall be conducted when a defendant is already in custody. Defendant in the underlying habeas corpus proceeding was not “in custody” during his arraignment for the purposes of subdivision (3) because he was not charged with a qualifying offense under the bail laws and the court was required to order his release at arraignment. The phrase “in custody,” as used in subdivision (3), does not broadly refer to custodial control over a defendant at a courthouse. The only options that a court is authorized to apply when it orders a competency examination for a defendant charged with a nonqualifying offense and who is thus entitled to release, as defendant was here, are to direct an examination on an outpatient basis or, upon a medical recommendation of the director, the court may, but need not, order hospital confinement until completion of the examination. *People ex rel. Molinaro v Warden, Rikers Is.*, 39 NY3d 120.

HARASSMENT.

8. Sufficiency of Evidence — Serious and Unequivocal Threats of Harm Not Mere Outburst.—In a prosecution for harassment in the second degree, the evidence was legally sufficient to establish that defendant’s statements to the victim, his former intimate partner, that her children were going to get a bullet in their heads, and that he was going to firebomb her home and kill her and her family were serious and unequivocal threats of physical harm, not a mere outburst. Penal Law § 240.26 (1) criminalizes a true threat, not mere angry words; hence genuine threats of physical harm fall within the scope of the statute while an angry outburst, without more, does not. Viewing the evidence in the light most favorable to the prosecution, a rational trier of fact could have concluded that defendant unequivocally threatened the victim with physical contact of a serious nature, with the intent to harass, annoy or alarm her. The angry tone of the call, defendant’s use of profanities to refer to the victim and her children, and the fact that defendant threatened to use deadly violence all supported a finding that the statements were not said in jest. The threats on the call were specific and unequivocal—the type of statements that a reasonable person in the victim’s position, knowing that defendant was an armed police officer who was trained in the use of deadly force and who believed her to be unfaithful and an extortionist, would commonly understand as words describing intended violent action and not a crude outburst, puffery, or bluffs. *People v Lagano*, 39 NY3d 108.

INDICTMENT.

9. Waiver.—The superior court information (SCI) under which defendant had agreed to be prosecuted, which was filed after the grand jury had indicted defendant, was a nullity and was properly dismissed. A defendant may waive their constitutional right to grand jury presentment and indictment and proceed by SCI in accordance with the strict technical requirements of CPL 195.10 (2). As the SCI was filed after the grand jury indicted defendant it failed to comply with the statutory prerequisites. *People v Solomon*, 39 NY3d 1114.

JURORS.

10. Discharged Alternate Juror Not Available for Service to Replace Trial Juror — Mistrial Required.—Once a court has clearly stated on the record that

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an alternate juror has no further responsibilities in the case, the alternate juror is discharged and is no longer “available for service” under CPL 270.35 (1) as a replacement for a trial juror. Accordingly, when a trial juror was challenged for alleged misconduct prior to the start of deliberations in defendant’s trial but after the court had thanked the alternate jurors for their service and “excused [them] from this case,” the court erred by recalling the discharged alternates and substituting one of them for the juror accused of misconduct rather than declaring a mistrial. Once a jury retires to deliberate alternate jurors must either be discharged, with the parties’ consent, or directed not to discuss the case and kept separate and apart from the regular jurors (CPL 270.30 [1]). If a regular juror is discharged and “an alternate juror or jurors are available for service” the court must order that the discharged juror be replaced by an alternate (CPL 270.35 [1]). If the trial jury has begun deliberating, the defendant must consent to the replacement, and if no alternate is available, the court must declare a mistrial. The plain text of the statutory provisions establishes that a discharged alternate juror is not “available for service” to replace a trial juror pursuant to CPL 270.35 (1). Had the court waited to discharge the alternates until the start of deliberations as CPL 270.30 (1) directs, the alternates would have remained available during the short period of time between discharge of the alternates and the jury retiring to deliberate, and a substitution could have been made without defendant’s consent thereby avoiding the necessity of a mistrial (*see* CPL 270.30 [1]; 270.35 [1]). *People v Murray*, 39 NY3d 10.

JUSTIFICATION.

11. Police Use of Pepper Spray Not Excessive or Otherwise Unlawful.—In the second-degree assault prosecution of defendant for striking a police sergeant after being pepper sprayed for refusing to remove his footwear while being processed for an arrest at a county jail, the trial court did not err in refusing to grant defendant’s request for a justification charge. Viewing the evidence in the light most favorable to defendant, there was no reasonable view of the evidence that the sergeant’s use of pepper spray was excessive or otherwise unlawful. The trial evidence was that defendant was given a lawful command to remove his footwear, that he was given that verbal command several times yet persisted in his refusal, and that he was specifically warned that he would be pepper sprayed if he did not comply. The officers further testified that the use of pepper spray was considered a “minimal” use of force compared to using “hands on” force to remove the footwear. Defendant’s contention that the force exerted was unlawful because the sergeant’s use of pepper spray was inconsistent with facility policy was without merit. *People v Heiserman*, 39 NY3d 988.

12. Prior Violent Acts of Victim.—In a prosecution in which defendant, who was accused of stabbing the victim, asserted the defense of justification and sought to introduce evidence of the specific violent conduct underlying four of the victim’s prior youthful offender adjudications to prove that the victim was the initial aggressor with respect to deadly physical force, the trial court prohibited the jury from considering that evidence for that purpose and the Appellate Division order affirming defendant’s judgment of conviction was affirmed. Given the policy concerns behind youthful offender designations, there was no reason here to revisit the rule recognized in *People v Rodawald* (177 NY 408 [1904]) and *People v Miller* (39 NY2d 543 [1976]) that precludes the admission of prior violent acts of victims in cases where a claim of justification is made unless the defendant was aware of the specific acts at the time of the assault. *People v Guerra*, 39 NY3d 1158.

POSSESSION OF WEAPON.

13. Jury Charge on Temporary and Lawful Possession Not Warranted.—Defendant, who was charged with criminal possession of a weapon in the second degree and related crimes and testified at trial that she shot and killed her boyfriend through the metal, windowless door to her residence in the mistaken belief that she was shooting at her estranged husband, was not entitled to a jury charge on the defense of temporary and lawful possession. A defendant is entitled to such charge when there is evidence presented at trial showing a legal excuse for posses-

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sion as well as facts tending to establish that, once possession has been obtained, the weapon had not been used in a dangerous manner. Viewing the evidence adduced at trial in the light most favorable to defendant, there was no reasonable view of the evidence that would support a finding of the tendered defense of temporary and lawful possession. Defendant used the weapon in a dangerous manner. Although no single fact was dispositive, she fired the gun blindly through a closed, windowless door, endangering anyone who might have been on the other side, striking and killing the victim, and creating a risk that the bullet would ricochet off the metal door and potentially injure her children who were inside her residence. *People v Ruiz*, 39 NY3d 981.

RIGHT TO COUNSEL.

14. Effective Representation.—Defendant did not meet his burden of showing that trial counsel's performance was constitutionally deficient and his claims regarding counsel's tactical decisions were based on matters dehors the record. *People v Rivera*, 39 NY3d 1062.

15. Effective Representation — Failure to Challenge Sufficiency of Evidence — Criminal Contempt.—Defendant did not demonstrate that his trial counsel was ineffective for failing to make a motion for a trial order of dismissal challenging the evidence supporting his conviction of first-degree criminal contempt pursuant to Penal Law § 215.51 (c), which requires a defendant's present offense to involve a violation of that part of an order of protection that requires the defendant to stay away from the protected person, as there was no clear appellate authority at the time of trial adopting defendant's statutory interpretation of Penal Law § 215.51 (c). A conviction for first-degree criminal contempt under Penal Law § 215.51 (c) requires that the defendant have committed the crime of second-degree criminal contempt (Penal Law § 215.50 [3]) by violating the part of a duly served order of protection requiring the defendant to stay away from the person on whose behalf the order was issued, and that the defendant have been previously convicted of a criminal contempt offense for violating an order of protection "as described herein" within the preceding five years. Here, defendant claimed that the phrase "as described herein" required that the prior contempt offense also involve the violation of that part of an order of protection requiring him to stay away from the protected person, and thus his counsel should have challenged the legal sufficiency of the conviction where the People alleged that defendant's prior contempt conviction involved harassing phone calls. While, at the time of trial, two Appellate Division cases had identified but not resolved the issue of the interpretation of "as described herein," it was only after defendant's trial that the Appellate Division held that the language requires both the current and the former violation of an order of protection to be of that part of the order requiring the defendant to stay away from the protected person. At the time of trial, the issue was not so clear-cut and dispositive that no reasonable defense counsel would have failed to assert it. *People v Saenger*, 39 NY3d 433.

RIGHT TO REPRESENTATION PRO SE.

16. Ineffective Waiver of Right to Counsel — Failure to Adequately Warn of Risks.—In a criminal prosecution wherein defendant requested and was deemed to be proceeding pro se with an assigned legal advisor at several pretrial appearances after the grand jury proceedings, defendant's waiver of the right to counsel was not effective because the trial court failed to conduct a sufficient inquiry to ensure that the waiver was knowing, voluntary, and intelligent. For a waiver to be effective, the court's discussion of the issue with the defendant must accomplish the goals of adequately warning of the risks inherent in proceeding pro se, and apprising of the singular importance of the lawyer in the adversarial system. Here, the court initially conducted no discussion whatsoever of the risks or importance of a lawyer before stating that defendant was representing himself. Although the court later told defendant that it was "not a great idea" to represent himself, that defendant was putting himself "in a very bad position," and that a lawyer would have knowledge of criminal procedure that defendant did not, those brief, generalized warnings did not satisfy the requirement for a searching inquiry. Nor did a later

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colloquy before a different justice render defendant's waiver effective where he did not unequivocally request self-representation, had already been representing himself for nearly a year and a half, and the court's discussion similarly informed him that it was "not a good idea" to represent himself and that he was making a mistake. Moreover, when the court permitted standby counsel, it did not explain the court's rules regarding the role of a legal advisor or standby counsel and how that role differs from representation by an attorney. As a result, defendant was entitled to remittal to Supreme Court for an opportunity to make whatever pre-trial motions were or could have been made during the period he was unrepresented, as he or his counsel deem appropriate, and the corresponding substantive pretrial proceedings. *People v Baines*, 39 NY3d 1.

RIGHT TO SPEEDY TRIAL.

17. *Taranovich* Analysis.—A sexual assault prosecution was reversed and remitted by the Court of Appeals, where the Appellate Division deviated from the framework set forth in *People v Taranovich* (37 NY2d 442 [1975]) in several significant ways in considering whether the nearly eight-year period between the alleged crime and defendant's indictment rose to the level of a constitutional deprivation of the right to a speedy trial. Under the *Taranovich* framework, no one factor or combination of factors is necessarily decisive or determinative of a speedy trial claim, and the analysis must be tailored to the facts of each case. Instead of attempting to evaluate the good faith reasons for the various periods of delay, the Appellate Division's conclusion that this factor favored defendant was based upon an assumption for the sake of argument. Moreover, the nature of the crime was directly related to the issues of complexity and could have, therefore, accounted for some of the delay: the minor victim's severe intoxication and lack of memory of the assault rendered her unable to identify her attacker. It was not clear on what basis the Court concluded that its assumption of lack of good faith led to the conclusion that this factor favored defendant, but that conclusion, apparently based solely on that assumption with no analysis of the relevant concerns, was not supportable. It was also error for the Appellate Division to hold that because defendant pleaded guilty only to rape in the second degree, which depended solely on the age difference between defendant and the victim, the preindictment delay could not have impaired defendant's ability to defend himself on the charge of which he was convicted. The appellate court must consider prejudice measured against all counts pending when the dismissal motion is made, not merely against the crime of conviction. *People v Johnson*, 39 NY3d 92.

18. No Good Cause for Substantial Preindictment Delay.—In a rape prosecution, defendant's constitutional right to prompt prosecution was violated where the People failed to establish good cause for the more than four-year delay in filing an indictment after the complainant first told the authorities about defendant's assault and defendant refused to voluntarily provide a DNA sample. In the context of preindictment delay, a determination made in good faith to defer commencement of the prosecution for further investigation or for other sufficient reasons will not deprive the defendant of due process of law even though the delay may cause some prejudice to the defense. However, if commencement of the action has been delayed for a lengthy period, without good cause, the defendant may be entitled to a dismissal although there may be no showing of special prejudice. The People could not satisfactorily account for 31 months of their four-year delay. Although they should have immediately concluded, as the police did, that they would need defendant's DNA, they waited, for no asserted or apparent reason, and delayed seeking a warrant for that DNA until 38 months after the complainant identified defendant as her assailant and defendant denied having sex with her. The People simply failed to employ readily available legal procedures, ultimately filing an indictment roughly 48 months after the crime. Although the crime was heinous, the preparation to which the People attributed a delay for the prosecution of the particular crime was not complex. The People never contended, and there was no suggestion in the record, that the complainant was reluctant to testify, or that investigators had any difficulty processing or interpreting the DNA evidence once it was finally collected. When a serious crime has been committed and there are no

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significant obstacles to prosecution, the interests of the People, the public, the victim, and the defendant all favor prompt prosecution. *People v Regan*, 39 NY3d 459.

SENTENCE.

19. Appellate Review.—In a criminal prosecution, defendant's appeal from the Appellate Term order modifying the judgment of conviction and sentence of a \$500 fine and \$250 surcharge by reducing the \$250 surcharge to \$200 was reversed and the case remitted for a determination whether defendant's sentence was unduly harsh or severe (CPL 470.15 [6] [b]). *People v Ba*, 39 NY3d 1130.

20. Resentence — Persistent Violent Felony Offender — Adjudication upon Evidence Not Submitted at Original Sentencing.—In a criminal prosecution in which Supreme Court, upon remittal from the Appellate Division, resentenced defendant as a persistent violent felony offender in reliance on supplemental evidence of defendant's prior incarceration brought to the court's attention in connection with collateral motion practice, the Appellate Division should have affirmed Supreme Court's resentence. Upon the appeal from defendant's judgment of conviction and original sentence as a persistent violent felony offender the People conceded that defendant's prior incarceration dates did not provide sufficient tolling to qualify one of his prior convictions as a requisite predicate offense for adjudication as a persistent violent felony offender. The Appellate Division remitted the matter to Supreme Court "for resentencing in accordance" with its decision and did not further direct the scope of resentencing. At the time of resentencing, Supreme Court was on notice of the supplemental evidence conclusively demonstrating that defendant was a persistent violent felony offender. Given that Supreme Court has inherent authority to correct illegal sentences and must follow statutory sentencing procedures, which provide safeguards like notice and an opportunity to be heard and generally require that pertinent information available to the court or the People be presented and used to determine a defendant's sentence (CPL 400.15 [2]; Penal Law § 70.08 [2]), Supreme Court was not precluded from imposing the statutorily required sentence. *People v Kaval*, 39 NY3d 1081.

SEX OFFENDERS.

21. Sex Offender Registration Act — Sex Offense Committed in Another State — Sexually Violent Offender Designation.—Correction Law § 168-a (3) (b), which provides that "a felony in any other jurisdiction for which the offender is required to register as a sex offender" therein is a "sexually violent offense," requires any person subject to the Sex Offender Registration Act's foreign registration requirements to be designated a sexually violent offender regardless of whether the underlying offense is violent in nature. Accordingly, County Court properly determined that it was required by law to designate defendant a sexually violent offender because he had been convicted of a felony in Michigan that required him to register as a sex offender therein, notwithstanding the recommendation by the Board of Examiners of Sex Offenders that defendant be adjudicated a presumptive level one sex offender with no sexually violent offender designation. The Advisory Committee on Criminal Law and Procedure to the Chief Administrative Judge of the Courts of the State of New York has concluded that subdivision (3) (b)'s foreign registration clause was added in error and has recommended that the legislature delete it. The Committee has observed that, because subdivision (3) (b)'s foreign registration clause is identical to its subdivision (2) (d) counterpart, the statute collapses the distinction between violent and nonviolent sex offenses, at least as it applies to out-of-state offenders who reside in New York. Moreover, the legislative history suggests that the legislature may have intended for subdivision (3) (b)'s foreign registration clause to have a more limited effect than its plain language compels. However, if the wording of the statute has created an unintended consequence, it is the prerogative of the legislature, not the Court of Appeals, to correct it. *People v Talluto*, 39 NY3d 306.

22. Sex Offender Registration Act — Sexually Violent Offender Designation.—The decision whether to designate a defendant a sexually violent offender is not a matter with respect to which the adjudicating court may exercise discretion. "Sexu-

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ally violent offender” is defined as “a sex offender who has been convicted of a sexually violent offense defined in subdivision three” (Correction Law § 168-a [7] [b]). The court is bound by the statute. Although an adjudicating court in a Sex Offender Registration Act (SORA) proceeding has the discretion to grant a party's request for an upward or downward departure from the presumptive risk level, that authority, and the procedures for assessing the defendant's presumptive risk level in the first instance, are derived from SORA's guidelines, which the Board of Examiners of Sex Offenders is empowered to create pursuant to Correction Law § 168-l (5). Conversely, section 168-l (6) does not explicitly or implicitly bestow discretion on the courts to “depart” from a sexually violent offender designation. That section sets forth only the procedure for SORA adjudications; it does not provide the courts with the discretion to disregard the legislature's unambiguous statutory definition of “sexually violent offender.” *People v Talluto*, 39 NY3d 306.

DEBTOR AND CREDITOR.

See ASSIGNMENTS FOR BENEFIT OF CREDITORS; ATTACHMENT; CREDITORS' SUITS; EXECUTION; FRAUDULENT CONVEYANCES; LIENS; LIS PENDENS; MORTGAGES, and other specific titles

DECEDENTS' ESTATES.

See ALIENS; COURTS (SURROGATE'S COURT); DEAD BODIES; DEATH; DESCENT AND DISTRIBUTION; DOMICILE; EXECUTORS AND ADMINISTRATORS; GIFTS; INSURANCE; POWERS; TAXATION; TRUSTS; WILLS, and other specific titles

DENTISTS.

See LICENSES; PHYSICIANS AND SURGEONS

DEPOSITIONS.

See DISCLOSURE

DISCONTINUANCE.

See DISMISSAL AND NONSUIT

DISCOVERY AND INSPECTION.

See DISCLOSURE

DIVORCE.

See HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS

DOUBLE JEOPARDY.

See CRIMES

ELDER LAW.

See HEALTH; INCAPACITATED AND MENTALLY DISABLED PERSONS; INSURANCE; SOCIAL SERVICES; TRUSTS

EMPLOYMENT RELATIONSHIPS.

See, also, CIVIL SERVICE; LABOR; LABOR UNIONS; MUNICIPAL CORPORATIONS; SCHOOLS; STATE; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles

EVIDENCE.

See, also, AFFIDAVITS; CRIMES; DISCLOSURE; SEARCHES AND SEIZURES; STIPULATIONS; WITNESSES, and other specific titles

EXAMINATION BEFORE TRIAL.

See DISCLOSURE

FILIATION PROCEEDINGS.*See* CHILDREN BORN OUT OF WEDLOCK**FORMER ADJUDICATION.***See* JUDGMENTS**FORMER JEOPARDY.***See* CRIMES (DOUBLE JEOPARDY)**FRATERNAL ORDERS.***See* ASSOCIATIONS**GAS AND OIL.***See, also,* PUBLIC UTILITIES**GRAND JURY.**

INSTRUCTIONS TO JURY.

1. Defense of Justification Not Warranted.—In a grand jury proceeding in which defendant was indicted on several counts for striking and severely injuring a small dog with a broom stick, the prosecutor was not obligated to instruct the grand jury on the “choice of evils” defense under Penal Law § 35.05 (2). Defendant maintained that he chose to hit the dog to avoid a potentially fatal dog bite infection but, as limited by defendant’s argument, the evidence did not support the defense. Defendant testified before the grand jury that he was not afraid of the dog, that he never intended to hurt her, and that he struck her by mistake during his struggle with someone attempting to disarm him of the broom stick he had picked up to defend himself with and as a reaction to the surrounding circumstances. Thus, by his own account, defendant made no choice at all to strike the dog, but acted without intending to hit anything or specifically to hurt her. The record, including defendant’s own testimony and the surveillance video, foreclosed defendant’s argument that he chose to strike the dog as an “emergency measure to avoid an imminent . . . private injury” (Penal Law § 35.05 [2]). *People v Jimenez*, 39 NY3d 74.

GUARANTEE.*See* SURETYSHIP AND GUARANTEE**HOTELS.***See* INNKEEPERS**HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS.***See, also,* ADOPTION; COURTS (FAMILY COURT); INFANTS; MARRIAGE; PARENT, CHILD AND FAMILY; SOCIAL SERVICES; TENANTS BY THE ENTIRETY, and other specific titles**IMMIGRATION.***See* ALIENS**INFANTS.***See, also,* ADOPTION; CHILDREN BORN OUT OF WEDLOCK; COURTS (FAMILY COURT); GUARDIAN AND WARD; HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS; PARENT, CHILD AND FAMILY; SCHOOLS; SOCIAL SERVICES, and other specific titles**INSURANCE.***See, also,* ARBITRATION; UNEMPLOYMENT INSURANCE; WORKERS’ COMPENSATION, and other specific titles

NO-FAULT AUTOMOBILE INSURANCE.

1. Serious Injury.—In a negligence action to recover for injuries allegedly sustained in a motor vehicle accident, the Appellate Division correctly concluded

INSURANCE—Cont'd

that defendant established prima facie entitlement to summary judgment and plaintiff failed to raise a triable issue of fact whether he suffered a serious injury within the meaning of Insurance Law § 5102 (d) as a result of the accident. *Le-mieux v Horn*, 39 NY3d 1108.

INTELLECTUAL PROPERTY LAW.

See COPYRIGHTS; PATENTS; TRADEMARKS, TRADE NAMES AND UNFAIR COMPETITION

INTERVENTION.

See PARTIES

JUDGES.

SUSPENSION FROM OFFICE.

1. The Court of Appeals, on its own motion, pursuant to New York Constitution, article VI, § 22 and Judiciary Law § 44 (8), suspended a Town Court Justice from office, with pay, effective immediately. *Matter of Persons*, 39 NY3d 1123.

JUDGMENTS.

See, also, EXECUTION, and other specific titles

JUDICIAL NOTICE.

See EVIDENCE

LABOR.

See, also, ARBITRATION; CIVIL SERVICE; EMPLOYMENT RELATIONSHIPS; LABOR UNIONS; MUNICIPAL CORPORATIONS; SCHOOLS; STATE; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles

LANDLORD AND TENANT.

See, also, NEGLIGENCE (MAINTENANCE OF PREMISES)

RENT REGULATION.

1. Improper Deregulation of Apartments while Receiving J-51 Benefits — Calculation of Legal Regulated Rent — Fraud Exception.—In a 2011 class action, plaintiffs, tenants of a Manhattan building seeking rent overcharges based on defendant building owners, managing agents, and landlords' improper deregulation of their apartments during receipt of J-51 benefits, failed to meet their burden on summary judgment to show that defendants engaged in fraud and failed to produce adequate records requiring use of the Rent Stabilization Code's default formula to determine overcharges. For cases preceding the Housing Stability and Tenant Protection Act of 2019, review of rental history outside the four-year lookback period is permitted only where the tenant produced evidence of a fraudulent scheme to deregulate and solely to ascertain whether fraud occurred. It cannot be used to furnish evidence for calculation of the base date rent or permit recovery for years of overcharges barred by the statute of limitations. Further, defendants' deregulation of the apartments during receipt of benefits was based on a misinterpretation of the law, generally precluding a finding of willfulness, and conduct cannot be fraudulent without being willful. Defendants' subsequent re-registering of the apartments occurred after the four-year lookback period, and plaintiffs failed to show that it affected the reliability of the actual rent paid on the base date. It was unclear whether the records made available by either party provided enough information to determine the base date rent. *Casey v Whitehouse Estates, Inc.*, 39 NY3d 1104.

LIBEL AND SLANDER.

See, also, NEWSPAPERS, and other specific titles

LICENSES.

See, also, BROKERS; DRUGS AND PHARMACISTS; INTOXICATING LIQUORS; MOTOR VEHICLES; PHYSICIANS AND SURGEONS, and other specific titles

LIMITATION OF ACTIONS.**REVIVAL OF TIME-BARRED CLAIMS.**

1. Mortgage Foreclosure.—In a mortgage foreclosure action, Supreme Court erred in concluding that the complaint was untimely inasmuch as defendant debtor made four payments which were effective pursuant to General Obligations Law § 17-107 (1) to make the statute of limitations begin running anew on the date of the last such payment. Plaintiff met its prima facie burden on its motion by submitting evidence that, after entering a Home Affordable Modification Trial Period Plan (the Plan), defendant debtor made a total of seven payments within a certain period, each in an amount exceeding that of the regular installment payments required under the loan documents prior to the acceleration of the debt. The first three payments were required pursuant to the Plan, but the remaining four were not. Those four payments established circumstances amounting to an absolute and unqualified acknowledgment by defendant debtor of more being due, from which a promise may be inferred to pay the remainder. In response, defendant debtor and a codefendant failed to raise a triable issue of fact. Those defendants submitted no evidence which called into question whether such a promise might be inferred from the debtor's acknowledgement of the debt. *Federal Natl. Mtge. Assn. v Jeanty*, 39 NY3d 951.

LITTORAL RIGHTS.

See ENVIRONMENTAL CONSERVATION; NAVIGABLE WATERS; WATERS AND WATERCOURSES, and other specific titles

MANDAMUS.

See PROCEEDING AGAINST BODY OR OFFICER

MASTER AND SERVANT.

See EMPLOYMENT RELATIONSHIPS

MEDICAL REPORTS.

See DISCLOSURE

MINES AND MINERALS.**MINED LAND RECLAMATION LAW.**

1. Applications for Mining Permit Renewal or Modification — Prior Nonconforming Use.—Environmental Conservation Law § 23-2703 (3), which prohibits agencies from considering or processing “an application for a permit to mine” within covered counties “if local zoning laws or ordinances prohibit mining uses within the area proposed to be mined,” does not unconstitutionally infringe upon the property rights of owners of lands which have a prior nonconforming use. ECL 23-2703 (3) implicitly contemplates that a mining applicant may have prior nonconforming use rights and requires the Department of Environmental Conservation to defer to local town zoning laws when reviewing applications for mining permits. Section 23-2703 (3) provides on its face that it is applicable only “if local zoning laws or ordinances prohibit mining uses within the area proposed to be mined.” If mining in that area is a recognized prior nonconforming use under the local zoning code, then the conclusion follows that the local law does not “prohibit mining uses” within the area proposed to be mined. A zoning code that permits mining on a property as a prior nonconforming use cannot logically be said to prohibit that use within the meaning of ECL 23-2703 (3). The statute does not eliminate or alter nonconforming use, but instead acts only as a protection against further expansion of those mining activities beyond the permissible nonconforming use. *Matter of Town of Southampton v New York State Dept. of Envtl. Conservation*, 39 NY3d 201.

2. Supersession of Local Mining Laws — Applications for Mining Permit Renewal or Modification.—Environmental Conservation Law § 23-2703 (3), which prohibits agencies from considering or processing “an application for a permit to

MINES AND MINERALS—Cont'd

mine” within covered counties “if local zoning laws or ordinances prohibit mining uses within the area proposed to be mined,” does not bar the Department of Environmental Conservation from processing applications, including applications for renewal and modification, when such applications seek to mine land that falls within the scope of an undisputed prior nonconforming use. The plain language of ECL 23-2703 (3) evinces an intent that the provision should apply, not just to applications for new mining permits, but also to applications for modification and renewal. The language of the section refers generally to “an application for a permit to mine,” and contains no language limiting its application to only “new mines,” and “permit” is specifically defined elsewhere in the ECL to include any “department approval,” “modification” or “renewal” (ECL 70-0105 [4]). Thus, read together with the ECL’s definition of “permit” in section 70-0105 (4), the phrase “permit to mine” in ECL 23-2703 (3) encompasses all applications to mine, including applications for renewal and modification. Moreover, local laws in the targeted counties already prohibited new mines when ECL 23-2703 (3) was enacted. As such, the addition of subdivision (3) reasonably appears to have been intended to address the threat to the counties’ drinking water posed by the expansion of existing mines, not just the opening of new mines. *Matter of Town of Southampton v New York State Dept. of Envtl. Conservation*, 39 NY3d 201.

MORTGAGES.**FORECLOSURE.**

1. Acceleration of Debt by Commencement of Prior Foreclosure Action.—In a mortgage foreclosure action, defendant established that the statute of limitations began to run on the date when plaintiff commenced a prior action to foreclose the mortgage, which was dismissed without prejudice based on plaintiff’s failure to appear for a court conference. Plaintiff did not commence the second foreclosure action until more than six years after acceleration of the debt (*see* CPLR 213 [4]). Plaintiff failed to raise an issue of fact in opposition to defendant’s motion for, among other things, dismissal of the amended complaint as time-barred and for summary judgment on its counterclaim pursuant to RPAPL article 15. *Everhome Mgt. Co. v Aber*, 39 NY3d 949.

2. Compliance with RPAPL 1304 — Separate Envelope.—A lender’s inclusion of concise and relevant additional information does not void an otherwise proper 90-day notice to borrowers sent pursuant to RPAPL 1304 and therefore does not bar a subsequently filed foreclosure action. Accordingly, defendant borrower who received a seven-page notice containing all of the language required by RPAPL 1304 (1) was not entitled to summary judgment dismissing the complaint on the ground that the inclusion of two additional paragraphs addressing bankruptcy status and military membership violated the “separate envelope” provision of RPAPL 1304 (2). The operative statutory language requires that the notice “shall include” specified information to help borrowers avoid foreclosure and that the notice must be sent “in a separate envelope from any other mailing or notice” (RPAPL 1304 [1], [2]). Accurate statements that further the underlying statutory purpose of providing information to borrowers that is or may become relevant to avoiding foreclosure do not constitute an “other . . . notice.” Application of a bright-line rule, such that any deviation from the statutory language, however minor, would void the notice, would be both unfair and contrary to the statutory purpose, as it would deprive borrowers of information that could help them avoid foreclosure and penalize lenders who attempt to ensure their customers are better informed. Here, the additional two paragraphs were directly related to the notice’s subject matter and furthered the statutory purpose by informing certain borrowers of additional protections they might have beyond those identified in the statutory notice language. *Bank of Am., N.A. v Kessler*, 39 NY3d 317.

MOTELS.

See INNKEEPERS

MOTOR VEHICLES.

INJURIES TO PEDESTRIANS.

1. Summary Judgment.—In an action brought by plaintiff pedestrian to recover damages for personal injuries she sustained when she and defendant bicyclist collided, the Appellate Division order granting defendant's motion for summary judgment dismissing the complaint was affirmed. In response to defendant's prima facie showing of entitlement to summary judgment, plaintiff failed to raise a triable issue of material fact. *Min Zhong v Matranga*, 39 NY3d 1053.

MUNICIPAL CORPORATIONS.

See, also, BRIDGES; CIVIL SERVICE; COUNTIES; ELECTIONS; EMINENT DOMAIN; ENVIRONMENTAL CONSERVATION; HIGHWAYS; LICENSES; NEGLIGENCE; PROCEEDING AGAINST BODY OR OFFICER; PUBLIC HOUSING; PUBLIC UTILITIES; SCHOOLS; TAXATION; WORKERS' COMPENSATION, and other specific titles

TORT LIABILITY.

1. Firefighters — Operation of Fire Truck — Reckless Disregard Standard.—The reckless disregard standard set forth in Vehicle and Traffic Law § 1104 (e) applies when a fire district is alleged to be vicariously liable for conduct that is privileged under that statute. Accordingly, in a personal injury action arising out of a collision between plaintiff's vehicle and a fire truck owned by defendant fire district and operated by a volunteer firefighter, defendant was not vicariously liable where the firefighter's actions were privileged under Vehicle and Traffic Law § 1104 and were not otherwise reckless. Vehicle and Traffic Law § 1104 (a) grants drivers of fire trucks owned by fire districts "privileges" to disobey certain traffic laws when they are "involved in an emergency operation." However, under Vehicle and Traffic Law § 1104 (e), the driver is not relieved "from the duty to drive with due regard for the safety of all persons" or protected "from the consequences of [their] reckless disregard for the safety of others." Therefore, section 1104 (e) makes conduct that is privileged under the statute subject to a recklessness standard, but leaves in place the ordinary negligence standard of care for unprivileged conduct. Section 1104 modifies firefighters' underlying duties in the defined contexts by permitting categories of conduct which would violate other drivers' ordinary duty of care, specifying particular safety precautions which must be observed when engaging in such conduct, and requiring emergency vehicle drivers to avoid recklessness even when engaged in the privileged conduct. When a volunteer firefighter's actions satisfy all of the conditions and thus are privileged, there is no breach of duty or negligence which can be imputed to a fire district under General Municipal Law § 205-b. *Anderson v Commack Fire Dist.*, 39 NY3d 495.

2. Special Relationship — Justifiable Reliance.—In an action alleging negligence on the part of county protective services agencies who investigated and closed as unfounded reports concerning the well-being of a developmentally disabled adult and the Sheriff's deputies who returned her to her mother's care after she ran away from home, where she continued to suffer severe abuse by her mother and brother which ultimately led to her death, defendants established as a matter of law that the government employees took no action that could have induced justifiable reliance so as to create a special duty, and plaintiff failed to raise a triable issue of fact in opposition. When a negligence claim is asserted against a municipality acting in a governmental capacity, the plaintiff must prove the existence of a special duty. The justifiable reliance element provides the essential causative link between the special duty assumed by the municipality and the alleged injury. Months before her death, the protective services agencies investigated the reports that the victim was being abused, concluded that those reports were unfounded, closed their investigations, and advised the victim's other brother, who lived out of state, that the investigations were closed and would not be reopened without new information. The brother did not in fact relax his own vigilance inasmuch as he made two follow-up calls to a caseworker asking her to reopen the investigation, and he was not induced to forgo other avenues of relief. Similarly, the Sheriff's deputies took no action that could have induced reliance. Imposing liability where the victim's family members did not justifiably rely on any promises by the agen-

MUNICIPAL CORPORATIONS—Cont'd

cies and relax their vigilance as a result could impose a crushing burden on those agencies, which may render them less effective in fulfilling their mission to protect vulnerable individuals. *Maldovan v County of Erie*, 39 NY3d 166.

3. Special Relationship — Violation of Order of Protection — No Justifiable Reliance.—In a negligence action commenced against defendant city and police officers, plaintiff, whose ex-boyfriend brutally attacked her and pushed her out of a third-floor window in violation of an order of protection, failed to raise a triable issue of fact as to justifiable reliance, an element required to establish a voluntarily assumed special duty. Accordingly, the Appellate Division properly granted defendants' motion for summary judgment dismissing the complaint. Plaintiff testified during her deposition that she had no contact with the police on the day of the incident prior to the attack, that her ex-boyfriend was in fact at liberty that day, and that the officers never told her that her ex-boyfriend would be arrested for violating the order of protection. Plaintiff's own testimony demonstrated that she did not relax her vigilance based on any police promises that her ex-boyfriend would be arrested for violating the order of protection and also showed that the police were not on the scene or in a position to provide assistance if necessary. The mere existence of an order of protection, standing alone, will not prove justifiable reliance. A contrary rule would impermissibly expand government liability in violation of the policies supporting the special duty rule, given that New York courts issue hundreds of orders of protection in favor of persons at risk of harm every day. *Howell v City of New York*, 39 NY3d 1006.

NEGLIGENCE.

See, also, ANIMALS; AVIATION; CARRIERS; DEATH; DRUGS AND PHARMACISTS; EMPLOYMENT RELATIONSHIPS; HOSPITALS; INDEMNITY; INSURANCE; LABOR; LANDLORD AND TENANT; MOTOR VEHICLES; MUNICIPAL CORPORATIONS; PHYSICIANS AND SURGEONS; PUBLIC AUTHORITIES; PUBLIC UTILITIES; SCHOOLS; STATE, and other specific titles

MAINTENANCE OF PREMISES.

1. Premises Security — Criminal Attack on "Targeted" Victim.—In an action for damages resulting from the death of plaintiff's decedent in the hallway of her New York City Housing Authority (NYCHA) apartment building after she was attacked and burned by her former intimate partner who had gained access to the building through an exterior door without functioning locks, defendant NYCHA was not entitled to summary judgment dismissing the complaint based on the theory that the "targeted" nature of the attack severed the causal chain between its negligence and the injuries as a matter of law. Landlords have a common-law duty to take minimal precautions, such as locks for the entrances, to protect tenants from foreseeable harm, including a third party's foreseeable criminal conduct. Where minimal security measures would have had the effect of deterring an attacker, a jury can infer that the absence of such measures proximately caused an attack, regardless of whether the crime was random or deliberately planned. An intervening act may serve as a superseding cause only when it is extraordinary under the circumstances, not foreseeable in the normal course of events, or independent of or far removed from the defendant's conduct. It may not serve as a superseding cause where the risk of the intervening act occurring is the very same risk which renders the actor negligent. Thus, while the sophistication and planning of an attack is relevant to the factfinder's determination of proximate cause, given the unique nature of the inquiry in each case, proximate cause is generally an issue for the trier of fact where the court is satisfied that a prima facie case has been established and the evidence could support various reasonable inferences. Here, the risk created by the nonfunctioning door lock, i.e., that intruders would gain access to the building and harm residents, was exactly the risk that came to fruition. It was not the court's role on summary judgment to assess the fact-bound question of whether the intruder would have persevered in his attack had the doors been securely locked. Thus, although the attack was committed in a shocking manner, it could not be said that an attack by a non-tenant domestic abuser is so independent of or far removed from NYCHA's conduct in failing to provide locking doors that it broke

NEGLIGENCE—Cont'd

the causal nexus as a matter of law. *Scurry v New York City Hous. Auth.*, 39 NY3d 443.

2. Premises Security — Criminal Attack on “Targeted” Victim.—In an action for damages resulting from the death of plaintiff’s decedent in the stairwell of her New York City Housing Authority (NYCHA) apartment building where she was shot in an act of vengeance when two individuals with whom decedent’s friends had been engaged in a dispute gained access to the building through an exterior door without functioning locks, defendant NYCHA was not entitled to summary judgment dismissing the complaint based on the theory that the “targeted” nature of the attack severed the causal chain between its negligence and the injuries as a matter of law. Landlords have a common-law duty to take minimal precautions, such as locks for the entrances, to protect tenants from foreseeable harm, including a third party’s foreseeable criminal conduct. Where minimal security measures would have had the effect of deterring an attacker, a jury can infer that the absence of such measures proximately caused an attack, regardless of whether the crime was random or deliberately planned. An intervening act may serve as a superseding cause only when it is extraordinary under the circumstances, not foreseeable in the normal course of events, or independent of or far removed from the defendant’s conduct. It may not serve as a superseding cause where the risk of the intervening act occurring is the very same risk which renders the actor negligent. Thus, while the sophistication and planning of an attack is relevant to the factfinder’s determination of proximate cause, given the unique nature of the inquiry in each case, proximate cause is generally an issue for the trier of fact where the court is satisfied that a prima facie case has been established and the evidence could support various reasonable inferences. Here, the risk created by the non-functioning door lock, i.e., that intruders would gain access to the building and harm residents, was exactly the risk that came to fruition. It was not the court’s role on summary judgment to assess the fact-bound question of whether the intruders would have persevered in their attack had the doors been securely locked. Surveillance video showed that after the attackers attempted to enter through a locked door, they tried the side door, which was unlocked, rather than breaking through the locked door or attempting to follow another person in or force such person to let them in. Even if they had been determined to enter despite a locked door, a jury could find that the added time it would have taken them to gain entry would have allowed plaintiff’s decedent to escape to the safety of her own or a friend’s apartment. In light of evidence suggesting that the attackers would have attacked any of the group of six friends involved in the dispute, it was hardly the type of sophisticated, meticulously planned and executed attack that might possibly sever the causal chain as a matter of law. *Scurry v New York City Hous. Auth.*, 39 NY3d 443.

3. Premises Security — Criminal Attack on “Targeted” Victim — Proximate Cause.—General negligence principles apply to cases in which a tenant is injured by a third party’s criminal attack, including the principle that a defendant’s negligence qualifies as a proximate cause where it is a substantial cause of the events which produced the injury. There is no need to create a special rule for premises security cases, since the burden regularly placed on plaintiffs to establish proximate cause in negligence cases strikes the desired balance between a tenant’s ability to recover for an injury caused by the landlord’s negligence against a landlord’s ability to avoid liability when its conduct did not cause any injury. Though the sophisticated nature of an attack may in some cases be relevant to the proximate cause analysis, the fact that an attack was “targeted” does not sever the causal chain between a landlord’s negligence and a plaintiff’s injuries as a matter of law. *Scurry v New York City Hous. Auth.*, 39 NY3d 443.

4. Premises Security — Notice of Hazardous Condition — Nonfunctioning Exterior Door Locks at Apartment Building.—In an action for damages resulting from the death of plaintiff’s decedent in the stairwell of her New York City Housing Authority (NYCHA) apartment building where she was shot in an act of vengeance when two individuals with whom decedent’s friends had been engaged in an escalating dispute gained access to the building through an exterior door

NEGLIGENCE—Cont'd

without functioning locks, defendant NYCHA failed to establish as a matter of law that it did not have notice of the broken lock on the door to warrant summary judgment dismissing the complaint. A plaintiff in a premises security suit need not prove that a landlord had notice to defeat summary judgment. Here, defendant's own maintenance records raised questions of fact regarding whether it had notice of the broken door lock. Despite entries indicating that the door worked properly on the mornings before and after the attack, other inconsistencies and omissions in defendant's records rendered them inadequate to demonstrate lack of notice as a matter of law. For instance, Supreme Court observed that the surveillance video showed that the lock clearly was not working during the time of the attack, and defendant did not provide any record of a repair having taken place before the entry for the morning after the attack. In addition, there were questions of fact as to whether the employees identified on an earlier work order actually could have made the repairs specified by the order. *Scurry v New York City Hous. Auth.*, 39 NY3d 443.

NEGOTIABLE INSTRUMENTS.

See **BILLS, NOTES AND CHECKS**

NEWSPAPERS.

See, also, **LIBEL AND SLANDER**, and other specific titles

OPTICIANS.

See **LICENSES; PHYSICIANS AND SURGEONS**

OPTOMETRISTS.

See **LICENSES; PHYSICIANS AND SURGEONS**

PARENT, CHILD AND FAMILY.

See, also, **ADOPTION; CHILDREN BORN OUT OF WEDLOCK; COURTS (FAMILY COURT); HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS; INFANTS; SCHOOLS; SOCIAL SERVICES**, and other specific titles

ABUSED OR NEGLECTED CHILD.

1. Interstate Compact on Placement of Children — Out-of-State Noncustodial Parent Seeking Custody of Child in Foster Care.—The Interstate Compact on the Placement of Children (ICPC), an agreement among the states which governs the out-of-state “placement” of children “in foster care or as a preliminary to a possible adoption” (Social Services Law § 374-a [1] [art III] [a], [b]), does not apply to out-of-state, noncustodial parents seeking custody of their children who are in the custody of New York social services agencies. The language of the statute unambiguously limits its applicability to cases of placement for foster care or adoption, which are substitutes for parental care that are not implicated when custody of the child is granted to a noncustodial parent. Nothing in the language of the statute or the legislative history indicates that the ICPC was ever intended to address any individual other than an out-of-state foster or adoptive parent. Further, an interpretation of the ICPC as applicable to noncustodial parents would be inconsistent with other components of New York's statutory framework governing child protection, which overwhelmingly reflects the preeminence of the biological family and embraces a policy of keeping biological families together whenever safely possible. The Family Court Act contains other effective means to ensure the safety of a child before awarding custody to an out-of-state parent. *Matter of D.L. v S.B.*, 39 NY3d 81.

PARTNERSHIP.**PARTNERSHIP AGREEMENT.**

1. Recovery of Attorney's Fees Incurred in Dissolution Action.—Plaintiff was not entitled to recover attorney's fees and costs incurred in successfully defending a

PARTNERSHIP—Cont'd

partnership dissolution action brought by a former partner, where nothing in the partnership agreement's indemnification provision made unmistakably clear that the partners intended to permit recovery for attorney's fees in an action between them on the contract. Under the American rule, attorney's fees are incidents of litigation and a prevailing party may not collect them from the loser unless an award is authorized by agreement between the parties, statute or court rule. Courts should not infer a party's intention to waive the benefit of the rule unless the intention to do so is unmistakably clear from the language of the promise. The indemnification provision made no explicit mention that partners may recoup attorney's fees in an action on the contract. Nor was there any basis to infer the provision was limited to actions between the partners. The indemnification provision broadly applied to all types of actions. It was not limited to actions between the partners but encompassed actions involving third parties. It was limited in scope only by the requirement that the partner have committed some misconduct. It was not difficult to ascertain what the indemnification clause would cover other than attorney's fees in suits between the parties. *Sage Sys., Inc. v Liss*, 39 NY3d 27.

PATERNITY PROCEEDINGS.

See CHILDREN BORN OUT OF WEDLOCK

PHYSICAL EXAMINATIONS.

See DISCLOSURE

PLEADING.**AMENDMENT.**

1. Relation-Back Doctrine — Notice of Transactions or Occurrences.—In a breach of contract action, Supreme Court abused its discretion as a matter of law when it granted plaintiffs' motion to amend their complaint at trial to include an otherwise untimely reformation claim based on mutual mistake and a preexisting oral agreement. The reformation claim could not relate back to plaintiffs' original pleading because the complaint did not place defendant on "notice of the transactions, occurrences, or series of transactions or occurrences, to be proved" in support of that claim (CPLR 203 [f]). Plaintiffs' allegation that they complied with all conditions precedent and subsequent pursuant to the policy terms was fatal to their assertion that the complaint provided notice of the transactions or occurrences to be proved in support of a reformation claim. It suggested the opposite because, by asserting total compliance, plaintiffs necessarily disclaimed any challenge to the policy's terms, specifically the protective safeguards endorsement (PSE) purportedly included by mistake. Moreover, the reformation claim was based on a purported oral agreement that preceded the contract's formation, whereas the breach of contract claim in the original complaint was based on the written policy which included the PSE and with which plaintiffs alleged full compliance. Nothing in the stand-alone breach of contract claim put defendant on notice that there was a prior oral agreement that excluded the PSE and that the PSE's inclusion in the written policy was a mistake. The "transactions, occurrences, or series of transactions or occurrences, to be proved pursuant to the amended pleading" did not give notice of reformation because they were factually distinct and discordant from plaintiffs' allegation of breach of the written policy (CPLR 203 [f]). 34-06 73, *LLC v Seneca Ins. Co.*, 39 NY3d 44.

PODIATRISTS.

See LICENSES; PHYSICIANS AND SURGEONS

POLITICAL PARTIES.

See ELECTIONS

POWERS.**POWER OF ATTORNEY.**

1. Transfer of Real Estate.—In a proceeding to set aside a deed transferring title to decedent's residential property to respondents, two of decedent's children, as

POWERS—Cont'd

compensation for caregiving services that they had provided to decedent for over seven years, petitioner failed to raise a triable issue of fact in response to respondents' prima facie showing of entitlement to summary judgment. The determinative question was whether the transfer was a gift or compensation under the terms of the power of attorney decedent had executed, which did not grant the power to make gifts. There was un rebutted evidence that respondents had repeatedly asked for compensation for their services and the request was met with approval. However, only one respondent was initially able to receive nominal payment due to decedent's lack of liquid assets. *Matter of Maika*, 39 NY3d 1137.

PRINCIPAL AND AGENT.

See, also, BROKERS; INSURANCE, and other specific titles

PROHIBITION.

See PROCEEDING AGAINST BODY OR OFFICER

PSYCHIATRISTS.

See LICENSES; PHYSICIANS AND SURGEONS

PUBLIC OFFICERS.

See, also, ATTORNEY GENERAL; CIVIL RIGHTS; CIVIL SERVICE; DISTRICT AND PROSECUTING ATTORNEYS; ELECTIONS; GOVERNOR; JUDGES; MUNICIPAL CORPORATIONS; PROCEEDING AGAINST BODY OR OFFICER; SCHOOLS; SHERIFFS AND CONSTABLES; STATE, and other specific titles

RAILROADS.

See, also, CARRIERS

REAL ESTATE BROKERS.

See BROKERS

REAL PROPERTY.

See ADVERSE POSSESSION; BOUNDARIES; BROKERS; COVENANTS; DEEDS; EASEMENTS; EMINENT DOMAIN; ENVIRONMENTAL CONSERVATION; LANDLORD AND TENANT; LIENS; MORTGAGES; MUNICIPAL CORPORATIONS (ZONING); PARTITION; RECORDS; STATE; TAXATION; VENDOR AND PURCHASER, and other specific titles

RES JUDICATA.

See JUDGMENTS

RESCISSION.

See CONTRACTS; FRAUD; INSURANCE; SALES; VENDOR AND PURCHASER, and other specific titles

RESIDENCE.

See DOMICILE

RETIREMENT AND PENSION BENEFITS.

See CIVIL SERVICE; EMPLOYMENT RELATIONSHIPS; LABOR UNIONS; SCHOOLS, and other specific titles

RIPARIAN RIGHTS.

See ENVIRONMENTAL CONSERVATION; NAVIGABLE WATERS; WATERS AND WATERCOURSES, and other specific titles

SALES.

See, also, CONTRACTS; DAMAGES; FRAUDS, STATUTE OF; SPECIFIC PERFORMANCE; VENDOR AND PURCHASER, and other specific titles

SCHOOLS.

See, also, CIVIL SERVICE; COLLEGES AND UNIVERSITIES, and other specific titles

SECURED TRANSACTIONS.**SECURITY AGREEMENTS.**

1. Assignee Includes Holder of Security Interest in Assignor's Receivables.—For purposes of New York's UCC 9-406 an "assignee" includes the holder of a presently exercisable security interest in an assignor's receivables. Under UCC 9-406, a security interest is an assignment and the UCC is purposefully structured to permit a debtor to grant creditors security interests in a debtor's receivables so that the secured creditor can direct account debtors to pay it directly. An account debtor who receives a secured creditor's notice asserting its right to receive payment directly can pay the secured creditor and receive a complete discharge (UCC 9-406 [a]) or, if in doubt, can seek proof from the secured creditor that it possesses a valid assignment and withhold payment in the interim (UCC 9-406 [c]). Here, plaintiff was the secured party, with the authority to enforce the rights of its debtor, a nonparty, to collect on the obligations of defendant account debtor. Accordingly, defendant's motion to dismiss the complaint in plaintiff's action, which had alleged that pursuant to UCC 9-607 plaintiff was entitled to recover from defendant all amounts defendant owed to the nonparty after defendant's receipt of the notice of assignment, should not have been granted. *Worthy Lending LLC v New Style Contrs., Inc.*, 39 NY3d 99.

SEPARATION.

See HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS

SLANDER.

See LIBEL AND SLANDER

SPORTING EVENTS.

See THEATRES AND SHOWS

STATE.**SOVEREIGN IMMUNITY.**

1. Preservation Required.—A State must preserve its interstate sovereign immunity defense by raising it before the trial court, and no exception to the general preservation rule applies because sovereign immunity does not implicate the subject matter jurisdiction of New York courts. Arguments or defenses that are waivable are generally subject to the preservation rule. The Supreme Court's determination in *Franchise Tax Bd. of Cal. v Hyatt* (587 US —, 139 S Ct 1485 [2019]) that interstate sovereign immunity is waivable fatally undermines the argument that interstate sovereign immunity is rooted in subject matter jurisdiction because subject matter jurisdiction, as a rule, cannot be dispensed with by litigants. Interstate sovereign immunity's waivability vitiates any legal justification for applying a broad exception to the general preservation requirement to such sovereign immunity claims. Interstate sovereign immunity is rooted and analyzed in terms of concepts that align closely with treatment of personal jurisdiction issues, not subject matter jurisdiction ones. As such, interstate sovereign immunity defenses do not fall within the subject-matter-jurisdiction exception to the general preservation requirement. *Henry v New Jersey Tr. Corp.*, 39 NY3d 361.

STATUTE OF FRAUDS.

See CONTRACTS; FRAUDS, STATUTE OF

STATUTE OF LIMITATIONS.

See LIMITATION OF ACTIONS

SUBPOENA.

See WITNESSES

SUMMONS.

See PROCESS

SYNAGOGUES.

See RELIGIOUS CORPORATIONS AND ASSOCIATIONS

TAXATION.**TAX LIENS, TAX SALES AND TAX TITLES.**

1. Challenge to County's Compliance with Notice Requirements in Absence of Evidence of Failure to Receive Notice.—An interested party in a tax foreclosure proceeding is permitted to establish that a taxing authority failed to comply with the notice requirements set forth in RPTL 1125 (1) (b) (i), even when the taxing authority submits proof that notice that was allegedly sent by both certified and first-class mail is not returned. By its unambiguous terms, RPTL 1125 (1) (b) (i) relates to whether notice will be “deemed received,” not whether the taxing authority has complied with the statutory mailing requirements. RPTL 1125 (1) (b) (i) does not bar an interested party from submitting evidence that would call the taxing authority's compliance with its requirements into issue or limit the proof an interested party may use to raise an issue of fact with respect to that compliance only to evidence that both the certified and first-class mailings were returned. Thus, although the statute contains no requirement of actual notice and evidence of the failure to receive notice is, by itself, insufficient to demonstrate noncompliance, an interested party may create a factual issue as to whether the taxing authority has complied with the requirements of RPTL 1125 (1) (b) by other relevant proof, despite the taxing authority's submission of the “affidavit[s] of mailing” mandated by section 1125 (3) (a) and evidence that no mailings were returned. *James B. Nutter & Co. v County of Saratoga*, 39 NY3d 350.

2. Tax Foreclosure Notice Requirements.—In an action by plaintiff, decedent's wife and executor of his estate, to recover damages allegedly incurred as a result of the tax foreclosure sale of decedent's property, defendants satisfied both their statutory and constitutional obligations to provide plaintiff with adequate notice of the tax foreclosure proceeding, as defendants' efforts were reasonably calculated to ascertain and notify any persons who might have had a legal interest in the property that might have been affected by the pending foreclosure action and redemption period. When defendants performed the required search of public records, decedent was alive and listed as an owner. The notices were sent by certified mail and first-class mail to him at the property address, the mailings were not returned, and the return receipts were signed for by a restaurant employee. Thus, the notice was sent in compliance with the statutory requirements. Defendants publicized the notice and petition in two local newspapers on three different days and mailed six copies of the notice to the property. Once defendants learned that decedent had died, the Treasurer made additional efforts to notify living interested parties before the time to redeem had expired. No one returned his calls, and he was told that no one was available when he visited the business located on the property. Throughout this period plaintiff worked at the business seven days a week and handled its mail. Moreover, a taxing authority is entitled to expect that those appointed to administer estates that include real property would place something on the land record to put the world on notice of the owner's death and would also obtain mail addressed to their decedent. Plaintiff also failed to avail herself of recourse under RPTL article 11, take any actions to ensure that the Treasurer was aware of her status, attempt to pay the tax to avoid foreclosure, or seek to vacate the default judgment. *Hetelekides v County of Ontario*, 39 NY3d 222.

3. Tax Foreclosure Proceeding — Deceased Property Owner.—In an action by plaintiff, decedent's wife and executor of his estate, to recover damages allegedly incurred as a result of the tax foreclosure sale of decedent's property, County Court had jurisdiction to enter a default judgment in the tax foreclosure proceeding in favor of the county defendants because the proceeding was validly commenced against the property, not against a deceased owner. An action or proceeding in rem has for its subject specific property which is within the jurisdiction and control of

TAXATION—Cont'd

the court to which application for relief is made. In an action in rem, a court obtains jurisdiction over the “res”—the property at issue in the proceeding. An action for foreclosure is in the nature of a proceeding in rem to appropriate the land. While a dead person cannot be sued, an action in rem, like a tax foreclosure proceeding, is not an action against a person, but rather the subject property on which the tax was charged and due. Property owners and interested parties are owed adequate process where their property rights are at stake through an in rem foreclosure proceeding. However, those are not matters which go to the jurisdiction of the court to entertain the action on its merits. Accordingly, the holding in *Matter of Foreclosure of Tax Liens* (165 AD3d 1112 [2d Dept 2018] [*Goldman*]) that a tax foreclosure proceeding may not be maintained against a deceased person rests on an erroneous legal premise and should not be followed. *Matter of City of Schenectady (Permaul)* (201 AD3d 1 [3d Dept 2021]) is also abrogated to the extent that it relied upon *Goldman*. *Hetelekides v County of Ontario*, 39 NY3d 222.

4. Tax Foreclosure Proceeding — Policy or Custom Causing Violation of Constitutional Rights.—In an action by plaintiff, decedent’s wife and executor of his estate, to recover damages allegedly incurred as a result of the tax foreclosure sale of decedent’s property, plaintiff’s claims under 42 USC §§ 1983 and 1988 alleging that defendants had adopted a policy, custom, or practice precluding adequate due process to persons with interests in real property were properly dismissed, where the record failed to establish an official policy or custom that caused a violation of plaintiff’s constitutional rights. To establish a policy or custom, plaintiff was required to show an official policy or custom of the county government itself that caused the Treasurer or his employees to violate her constitutional rights. Official municipal policy includes the decisions of a government’s lawmakers, the acts of its policymaking officials, and practices so persistent and widespread as to practically have the force of law. Plaintiff did not provide evidence that defendants routinely failed to notify estate administrators or parties who informed defendants of their interests or an owner’s death. Once defendants learned of decedent’s death, the Treasurer took steps to identify and provide notice to parties with a legal interest in the property that would be affected by the foreclosure and redemption deadline by personally contacting the restaurant to identify an owner or manager. Thus, plaintiff failed to carry her burden since nothing in the record established an official policy or a widespread custom violative of due process. *Hetelekides v County of Ontario*, 39 NY3d 222.

TOWNS.

See MUNICIPAL CORPORATIONS

UNFAIR COMPETITION.

See MONOPOLIES; TRADEMARKS, TRADE NAMES AND UNFAIR COMPETITION, and other specific titles

VENDOR AND PURCHASER.

See, also, BROKERS; CONTRACTS; FRAUDS, STATUTE OF; SALES; SPECIFIC PERFORMANCE, and other specific titles

VETERANS.

See CIVIL SERVICE; INCAPACITATED AND MENTALLY DISABLED PERSONS; INSURANCE; TAXATION

VILLAGES.

See MUNICIPAL CORPORATIONS

WELFARE.

See SOCIAL SERVICES

WITNESSES.

See, also, CONTEMPT; CRIMES; DISCLOSURE; EVIDENCE; TRIAL; WILLS, and other specific titles

WORKERS' COMPENSATION.**DISABILITY BENEFITS.**

1. Nonschedule Permanent Partial Disability Award — Death of Employee from Causes Unrelated to Injury — Unaccrued Portions of Award Do Not Pass to Beneficiaries.—Unaccrued portions of a nonschedule award under Workers' Compensation Law § 15 (3) (w) do not remain payable following an injured employee's death from causes unrelated to the work injury and do not pass to the injured employee's beneficiaries. Accordingly, claimant, decedent's minor son, was entitled only to the portion of his father's nonschedule permanent partial disability award that had accrued but remained unpaid at the time of death. Although Workers' Compensation Law § 15 (4) provides that an award "made to a claimant under subdivision three," which provides for both schedule loss of use and nonschedule awards, may pass to a beneficiary of an injured employee who dies "from causes other than the injury," it is clear from both the statute's language and its legislative history that no unaccrued portion of a nonschedule award survives after the claimant's death. Unlike a schedule loss of use award (Workers' Compensation Law § 15 [3] [a]-[u]), which is designed to compensate for loss of earning power, a nonschedule award under section 15 (3) (w) seeks to reimburse a claimant for earnings lost due to injury and is subject to reduction and suspension based on actual earnings and continuance of the disability. The 2007 amendments to the statute, which were intended to reduce unfairness arising from the potentially unlimited period for which nonschedule awards could be paid in comparison to the statutorily limited period for which schedule awards are payable, did not evince a general legislative intent to eliminate all distinctions between the two forms of awards. Nor did the legislative intent to reduce disparities between schedule and nonschedule awards require identical treatment of these forms of awards in contravention of the statute's plain text and purpose. *Matter of Green v Dutchess County BOCES*, 39 NY3d 35.

ZONING.

See MUNICIPAL CORPORATIONS

**NEW YORK REPORTS
CUMULATIVE ERRATA TABLE**

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|---|---|
| 1. 19 NY2d 159 (Thrasher v United States Liab. Ins. Co.) | At 19 NY2d 168, line 4 from the bottom of the page, change insurer's to insured's. |
| 2. 33 NY2d 846 (Petrie v Chase Manhattan Bank) | Change appellant's name in title from James A. Pertie, Jr. to James A. Petrie, Jr. |
| 3. 35 NY2d 179 (Matter of Lutfy v Gangemi) | Change plaintiff's name in title from Edward R. Lufy to Edward R. Lutfy. |
| 4. 45 NY2d 233 (Simonds v Simonds) | At 45 NY2d 241, line 3 of last full paragraph, change contructive to constructive. |
| 5. 51 NY2d 62 (Matter of Priest v Hennessy) | At 51 NY2d 68, line 9, change constitutes to constitutes. |
| 6. 53 NY2d 499 (Weinberg v D-M Rest. Corp.) | At 53 NY2d 500, line 35, change running line citation from 73 AD2d 1067 to 73 AD2d 1066. |
| 7. 54 NY2d 137 (People v Baldi) | At 54 NY2d 147, lines 3 and 4, change meaninful to meaningful. |
| 8. 64 NY2d 966 (Slatt v Slatt) | At 64 NY2d 967, line 15, change <i>Marlee Sales Corp. v Manufactur-ers Trust Co.</i> to <i>Morlee Sales Corp. v Manufacturers Trust Co.</i> |
| 9. 66 NY2d 667 (Matter of Lewis Tree Serv. v Fire Dept. of City of N.Y.) | At 66 NY2d 669, line 15, change citation from 66 NY2d 718 to 66 NY2d 713. |
| 10. 69 NY2d 601 (Matter of Rose Assoc. v State Div. of Hous. & Community Renewal, Off. of Rent Admin.) | Add the word denied in the result column of the motion for leave to appeal table. |

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| 11. 75 NY2d 927 (Matter of David T.) | At 75 NY2d 929, line 20, change effect to defect. |
| 12. 77 NY2d 806 (Dowd v Ahr) | Change denied to granted in the result column of the motion for leave to appeal table. |
| 13. 80 NY2d 1030 (People v Sallito) | Change the title entry from Salito to Sallito. |
| 14. 85 NY2d 139 (British Land [Maryland] v Tax Appeals Trib. of State of N.Y.) | At 85 NY2d 146, second paragraph, line 13, change lead to led. |
| 15. 88 NY2d 41 (Town of Orangetown v Magee) | At 88 NY2d 41, change running line citation from as amended 218 AD2d 343 to as amended 218 AD2d 733. |
| 16. 88 NY2d 400 (People v Huston) | At 88 NY2d 402, line 1, change citation from CPL 210.20 [c] to CPL 210.20 [1] [c]. |
| 17. 90 NY2d 717 (Panepinto v New York Life Ins. Co.) | At 90 NY2d 720, line 1, change date of October 28, 1996 to October 28, 1986 and at 90 NY2d 720, line 5, change date of October 28, 1996 to October 28, 1986. |
| 18. 93 NY2d 382 (BDO Seidman v Hirshberg) | At 93 NY2d 391, line 25, change former employer to former employee. |
| 19. 94 NY2d 759 (Phillips-Smith Specialty Retail Group II, L.P. v Parker Chapin Flattau & Klimpl, L.L.P.) | Change the page number of the reported below citation from 209 to 208. |
| 20. 97 NY2d 709 | In Criminal Leave Table, first 13 entries on this page (from <i>People v Santos</i> through and including <i>People v Stallone</i>), change the year within the decision date from “/01” to “/02.” |
| 21. 100 NY2d 960 (Vernon v Vernon) | At 100 NY2d 967, line 7 of second paragraph, change degree to decree. |

Errata

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22. **1 NY3d 174** (People v Taylor) At 1 NY3d 177, line 10 of first full paragraph, change (People v Ryan, 93 NY2d at 823-824) to (People v Ryan, 90 NY2d at 823-824), and on line 13 of same paragraph, change (People v Tonge, 90 NY2d at 840) to (People v Tonge, 93 NY2d at 840).
23. **1 NY3d 541** (People v Sanchez) In Criminal Leave Table, middle column, change App Div, 1st Dept, 5/22/03 (NY) to 2d Dept: 306 AD2d 296 (Kings).
24. **3 NY3d 491** (People v Jones) At 3 NY3d 496, lines 21 and 22, insert a dash after the word force and after the word attack.
25. **4 NY3d 739** (Matter of Peter R. [Stacey R.]) Change the reported below citation from 8 AD3d 567 to 8 AD3d 576.
26. **4 NY3d 857** (People v Smith [DeJesus]) Change the reported below citation from 15 AD3d 1016 (NY) to 15 AD3d 1015 (NY).
27. **4 NY3d 884** (People v Bronson) Change the title entry from Bronson to M.B.
28. **5 NY3d 864** (Matter of Kadeem W.) At end of first paragraph on page 865, insert the following: (2) vacated the fact-finding order, and (3) dismissed the petition.
29. **6 NY3d 427** (People v Boyer) At 6 NY3d 432, line 31, change 79 NY2d at 922 to 74 NY2d at 922.
30. **7 NY3d 703** (Matter of Park v Kapica) Change the page number of the reported below citation from 802 to 801.
31. **8 NY3d 944** (People v Charriez) In Criminal Leave Table, middle column, change 2007 NY Slip Op 81340(U) to 2006 NY Slip Op 81340(U).
32. **9 NY3d 923** (People v Jacobs) In Criminal Leave Table, middle column, change 37 AD3d 866 to 37 AD3d 868.

33. **11 NY3d 875** (People v Ford) On line 5 of the Summary, change Bronx County to New York County.
34. **13 NY3d 511** (Matter of Goldstein v New York Urban Dev. Corp.) At 13 NY3d 534, lines 13 and 14 from the bottom of the page, change deposition to [disposition].
35. **18 NY3d 667** (People v Rodriguez) At 18 NY3d 671, second line from bottom of the page, change CPL 410.30 to CPL 430.10.
36. **19 NY3d 1058** (Matter of 677 New Loudon Corp. v State of N.Y. Tax Appeals Trib.) At 19 NY3d 1058, line 4 of the headnote, and at page 1159, third paragraph, line 4 of the Memorandum, change 10% to 10¢.
37. **21 NY3d 1043** (People v Mackey-Meggs) Change defendant's name in title from Mackey-Meggs to Marquan M.
38. **22 NY3d 648** (Union Sq. Park Community Coalition, Inc. v New York City Dept. of Parks & Recreation) At 22 NY3d 654, eighth line of third paragraph, change 22,000 acres to 22,000 square feet.
39. **23 NY3d 455** (People v Golb) At 23 NY3d 461, in second full paragraph the email address "newsmedia.ucla.edu" should read "newsmedia@ucla.edu"
At 23 NY3d 461, in third full paragraph the email address "steve.goransongmail.com" should read "steve.goranson@gmail.com"
At 23 NY3d 462, in the first paragraph the email address "frank.cross2gmail.com" should read "frank.cross2@gmail.com"
At 23 NY3d 462, in the second full paragraph the email address "larry.schiffmangmail.com" should read "larry.schiffman@gmail.com"
At 23 NY3d 463, in the second full paragraph the email address "seidel.jonathangmail.com" should read "seidel.jonathan@gmail.com"

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| 40. 23 NY3d 665 (Norex Petroleum Ltd. v Blavatnik) | At 23 NY3d 668, footnote 3, last sentence on page should read . . . For purposes of discussion in this opinion, we simply assume that, within the meaning of section 205 (a), Norex’s federal action was not terminated on the merits, and Norex’s state court action alleges claims “upon the same transaction or occurrence” as its federal predecessor |
| 41. 24 NY3d 294 (People v Silva) | At 24 NY3d 296, change attorney’s name for appellant in the second above-entitled action from Steven R. Bernard to Steven R. Bernhard. |
| 42. 25 NY3d 906 (Richard H. v State of New York) | Change 1324 to 1306 in the middle column of the motion for leave to appeal table. |
| 43. 26 NY3d - 28 NY3d | Change the spelling of “irrevelant” to “irrelevant” throughout. |
| 44. 26 NY3d 903 (McMillin v Grimditch) | Change the reported below citation from 130 AD3d 150 to 131 AD3d 150. |
| 45. 26 NY3d 903 (Town of N. Elba v Grimditch) | Change the reported below citation from 130 AD3d 150 to 131 AD3d 150. |
| 46. 27 NY3d 1079 (People ex rel. Monte v Mingo) | Change respondents’ name in title from <i>Warden</i> to <i>Warden Maxsolaine Mingo</i> . |
| 47. 27 NY3d 1158 (People v McCullough) | At 27 NY3d 1161, line 8 from the bottom of the page, delete the comma that follows 531. |
| 48. 28 NY3d 1123 (People v Faeth) | In Criminal Leave Table, middle column, change App Div, 4th Dept: 2016 NY Slip Op 68866(U) (Wayne) to App Div, 4th Dept, 9/6/16 (Wayne). |

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|---|---|
| 49. 32 NY3d 1222 (People v Javon Loney) | Change appellant's name in title from Javon Loney to J.L. |
| 50. 33 NY3d 950 (People v Loney) | Change appellant's name in title from Loney to J.L. |
| 51. 37 NY3d 901 (Matter of Laland v Bookhart) | Change Laland, Matter of, v Bookhart to D.L., Matter of, v S.B. |
| 52. 37 NY3d 918 (Matter of Lynch v City of New York) | Change granted to motions granted in the third column of the motion for leave to appeal table. |
| 53. 37 NY3d 927 (Matter of Laland v Bookhart) | Change appellant's name in title from Davlin Laland to D.L. and respondent's name from Shavonne Bookhart to S.B. |
| 54. 38 NY3d 1123 (Elberg v Crabapple Corp.) | Change the reported below citation from 203 AD3d 425 to 201 AD3d 546; 2022 NY Slip Op 63824(U). |
| 55. 38 NY3d 1133 (People v Fleming) | In Criminal Leave Table, middle column, change 1st Dept: 201 AD3d 552 (Bronx) to App Div, 1st Dept: 2022 NY Slip Op 60633(U) (Bronx). |